

TWENTIETH MAIN PUBLIC SERVICE AGREEMENT

DRAFT consolidation · E&OE. Effective April 1, 2025 through March 31, 2029.

between the

GOVERNMENT OF THE PROVINCE OF BRITISH COLUMBIA

represented by the

BC PUBLIC SERVICE AGENCY

and the

B.C. GENERAL EMPLOYEES' UNION (BCGEU)

Effective from April 1, 2025 to March 31, 2029

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FRASER VALLEY AREA OFFICE

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Toll Free: 1-800-667-1103

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KAMLOOPS AREA OFFICE
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DEFINITIONS

For the purpose of this agreement:

- (1) "aboriginal community government" - means an Indian Band Council duly constituted under the federal Indian Act or an aboriginal, or Métis governing body authorized under the terms of a treaty duly ratified by the provincial and/or federal governments or federal legislated self-government arrangements.
- (2) "bargaining unit" - is the unit for collective bargaining described in Section 4(c) of the Public Service Labour Relations Act for which the B.C. General Employees' Union was certified by the Labour Relations Board of British Columbia on March 8, 1974, and includes all the employees in the ministries, boards, and agencies of the Government of British Columbia as outlined in Appendix 1 - Ministries, Boards and Agencies;
- (3) "basic pay" - means the rate of pay negotiated by the parties to this agreement, including add-to-pay resulting from salary protection;
- (4) "child" - wherever the word "child" is used in this agreement, it shall be deemed to include a ward of the Director of Child Protection, or a child of a spouse;
- (5) "common-law spouse" - includes same sex and opposite sex individuals where the employee has signed a declaration or affidavit that they have been living in a common-law relationship or have been co-habiting for at least 12 months. The period of co-habitation may be less than 12 months where the employee has claimed the common-law spouse's child/children for taxation purposes;
- (6) "component" - means an occupational bargaining unit as specified in Appendix 3 - Classifications and Rates of Pay;
- (7) "continuous employment" or "continuous service" - means uninterrupted employment in the Public Service of British Columbia subject to the provisions of Clause 11.3;
- (8) "day of rest" - in relation to an employee, means a day other than a holiday on which an employee is not ordinarily required to perform the duties of their position. This does not include employees on a leave of absence;
- (9) "demotion" - means a change from an employee's position to one with a lower maximum salary;
- (10) "ministry" - means a part of the government of British Columbia specified in
Appendix 1 - Ministries, Boards and Agencies;
- (11) "Deputy Minister" - means the Deputy of a Minister or the Head of a ministry as defined in this agreement;
- (12) "employee" - means a member of the bargaining unit and includes:
 - (a) "regular employee" - meaning an employee who is employed for work which is of a continuous full-time or continuous part-time nature;
 - (b) "auxiliary employee" - meaning an employee who is employed for work which is not of a continuous nature such as: 1. seasonal positions; 2. positions created to carry out special projects or work which is not continuous; 3. temporary positions created to cover employees on vacation, short-term disability leave, education leave, compassionate leave, or other leave;

4. temporary positions created by special programs such as the summer student employment program, winter works programs for the unemployed, emergencies such as floods or other special temporary programs; "employee" does not include:

(a) persons excluded by Section 1 of the Public Service Labour Relations Act;
(b) incumbents of managerial or confidential positions mutually excluded by the parties to this agreement;

(c) excluded classes as outlined in Appendix 2 - Excluded Classes.

(13) "Employer" - means the government of the Province of British Columbia represented by the BC Public Service Agency;

(14) "field status" - employees who are normally required to work away from their point of assembly and who, on a day-to-day basis, do not work in an office, institution, plant, or other similar fixed location which is their normal point of assembly;

(15) "headquarters or geographic location" - is that area within a radius of 32 kilometers of where an employee ordinarily performs their duties. For the purposes of Articles 12.8, 13 and 36 and relocation expenses arising therefrom, "headquarters or geographic location" will be redefined as a radius of 50 kilometers (32 kilometers in the Metro Vancouver or CRD) of where an employee ordinarily performs their duties. When employees are relocated the headquarters area may be redefined where exceptional circumstances such as unusual road conditions exist;

(16) "holiday" - means the 24-hour period commencing at 0001 hours of a day designated as a paid holiday in this agreement;

(17) "hours of operation" - are the hours established by the Employer to provide adequate service to the public and to fulfil the functions of the work unit;

(18) "hours travelled" - means hours spent travelling from point to point on an hourly or daily basis laid down by the Employer and does not include meal breaks, lodging time, or time spent other than travelling;

(19) "lateral transfer" or "transfer" - refers to the movement of an employee from one position to another which does not constitute a demotion or promotion;

(20) "layoff" - includes a cessation of employment, or elimination of a job resulting from a reduction of the amount of work required to be done by the Employer, a reorganization, program termination, closure or other material change in organization, and where should work become available, employees will be recalled in accordance with Article 13 - Layoff and Recall or Article 31 - Auxiliary Employees;

(21) "leave of absence with pay" - means to be absent from duty with permission and with pay;

(22) "leave of absence without pay" - means to be absent from duty with permission but without pay;

(23) "probation" - for an employee means that period of probation outlined in Section 9 of the Public Service Act;

(24) "promotion" - means a change from an employee's position to one with a higher maximum salary level;

(25) "relocation" - refers to the movement of an employee from one geographic location to another;

(26) "resignation" - means a voluntary notice by the employee that they are terminating their service on the date specified;

(27) "rest period" - is a paid interval which is included in the workday and is intended to give the employee an opportunity to have refreshments or a rest;

(28) "seasonal field employees" - are those employees who occupy positions which permit them to be normally domiciled at their permanent headquarters but who are assigned field duties on a seasonal basis, returning to their permanent headquarters when not working in the field;

(29) "shift" - means the period of scheduled straight-time working hours on a scheduled workday where the hours scheduled are consecutive except for the meal period;

(30) "spouse" - includes husband, wife and common-law spouse;

(31) "termination" - is the separation of an employee from the Public Service for cause pursuant to Article 10 - Dismissal, Suspension and Discipline, Article 11 - Seniority, or Article 31 - Auxiliary Employees;

(32) "travel status" - with respect to an employee means absence of the employee from their headquarters or geographic location on government business with the approval of the Employer, but travel status does not apply to employees temporarily assigned to a position outside of their headquarters or geographic location or to field status employees;

(33) "Union" - means the B.C. General Employees' Union (BCGEU);

(34) "workday" - is a period of 24 consecutive hours commencing with the starting time of any shift. For the purpose of calculating compensatory overtime rates only, the time worked prior to, but adjoining to, a shift shall be deemed as time worked after a shift;

(35) "work schedule" - means the roster of work hours and days to meet the annual hours of work.

ARTICLE 1 - PREAMBLE

Recognition of First Nations Territories and Indigenous Peoples and Cultures

The parties to this agreement acknowledge the First Nations and their Territories on which we conduct our work, now known as British Columbia.

The parties commit to advancing reconciliation by working together to implement the Province of British Columbia's Declaration on the Rights of Indigenous Peoples Act, the Anti-Racism Act, the Anti-Racism Data Act, and the Accessible British Columbia Act.

1.1 Purpose of Agreement

(a) The purpose of this agreement is to establish and maintain orderly collective bargaining procedures between the Employer and the Union.

(b) The parties to this agreement share a desire to improve the quality of the Public Service of British Columbia. Accordingly, they are determined to establish, within the framework provided by the law, an effective working relationship at all levels of the Public Service in which members of the bargaining unit are employed.

1.2 Future Legislation

In the event that any future legislation renders null and void or materially alters any provision of this agreement, the remaining provisions shall remain in effect for the term of the agreement, and the parties hereto shall negotiate a mutually agreeable provision to be substituted for the provision so rendered null and void or materially altered.

1.3 Conflict With Regulations

In the event that there is a conflict between the contents of this agreement and any regulation made by the Employer, or on behalf of the Employer, this agreement shall take precedence over the said regulation.

1.4 Notice of Legislative Change

The BC Public Service Agency agrees that no proposal to amend, repeal, or revise the Public Service Labour Relations Act, the Public Service Act, or regulations made pursuant thereto, which would affect the terms and conditions of employment of employees covered by this agreement shall be put forward without first notifying the Union in writing of the nature of the proposal.

1.5 Main/Component Agreement

(a) The Main Agreement will be the principal agreement under which all negotiable items are bargained, unless delegated to the Components by mutual agreement between the main bargaining agents.

(b) The Component Agreement shall be subject to the provisions of the Main Agreement and shall not contradict, nullify, or alter any term contained in the Main Agreement.

(c) Whenever the term "component agreement" is used, it shall be deemed synonymous to the term "Subsidiary Agreement" as used in the Public Service Labour Relations Act.

(d) The expiry date of a component agreement shall not be prior to the expiry date of the Main Agreement.

(e) The main bargaining agents shall have the sole prerogative to determine which items are negotiable in component agreements.

(f) Any item not specified by the main bargaining agents as negotiable by the Components shall be deemed as negotiable in the Main Agreement until so delegated to the Component.

(g) The parties agree that items in component agreements signed by the parties shall be deemed to be negotiable in component agreements and such provisions shall be in full force and effect.

1.6 Singular and Plural

Wherever the singular is used in this agreement the same shall be construed as meaning the plural if the context requires unless otherwise specifically stated.

1.7 Human Rights Code

The parties hereto subscribe to the principles of the Human Rights Code of British Columbia. In accordance with Clause 7.5, the parties will continue to review methods of extending knowledge of the Human Rights Code within the Public Service and for extending knowledge relating to the Human Rights Code to all employees.

The government of British Columbia, in cooperation with the Union, will promote a work environment that is free from discrimination where all employees are treated with respect and dignity. Discrimination relates to any of the prohibited grounds contained in the BC Human Rights Code. Prohibited conduct may be verbal, non-verbal, physical, deliberate or unintended, unsolicited or unwelcome, as determined by a reasonable person. It may be one incident or a series of incidents depending on the context. Employees have the right to employment without discrimination because of Indigenous identity, race, colour, ancestry, place of origin, religion, family status, marital status, physical disability, mental disability, sex, age, sexual orientation, political beliefs, gender identity or expression, and criminal or summary offence unrelated to their employment. Discrimination does not include actions occasioned through exercising in good faith the Employer's managerial/supervisory rights and responsibilities. Protection against discrimination extends to incidents occurring at or away from the workplace during or outside working hours provided the acts are committed within the course of the employment relationship. This clause does not preclude an employee from filing a complaint under Section 13 of the BC Human Rights Code, however, an employee shall not be entitled to duplication of process. An employee making a complaint of discrimination must choose to direct a complaint to either the BC Human Rights Tribunal or to the process specified in Clause 1.9. In either event a complaint of discrimination, if included as an element of a grievance, shall not be pursued through the process identified in Clause 1.9.

1.8 Sexual Harassment

The government of British Columbia, in cooperation with the Union, will promote a work environment that is free from sexual harassment where all employees are treated with respect and dignity. Sexual harassment is one form of discrimination and is defined as any unwelcome comment or conduct of a sexual nature that may detrimentally affect the work environment or lead to adverse job-related consequences for the victim of the harassment. Prohibited conduct may be verbal, non-verbal, physical, deliberate or unintended, unsolicited or unwelcome, as determined by a reasonable person. It may be one incident or a series of incidents depending on the context. Sexual harassment does not include actions occasioned through exercising in good faith the Employer's managerial/supervisory rights and responsibilities. Protection against harassment extends to incidents occurring at or away from the workplace during or outside working hours provided the acts are committed within the course of the employment relationship. This clause does not preclude an employee from filing a complaint under Section 13 of the BC Human Rights Code, however, an employee shall not be entitled to duplication of process. An employee making a complaint of sexual harassment must choose to direct a complaint to either the BC Human Rights Tribunal or to the process specified in Clause 1.9. In either event a complaint of sexual harassment, if included as an element of a grievance shall not be pursued through the process identified in Clause 1.9. Examples of sexual harassment include but are not limited to:

- a person in authority asking an employee for sexual favours in return for being hired or receiving promotions or other employment benefits; · sexual advances with actual or implied work related consequences;
- unwelcome remarks, questions, jokes or innuendo of a sexual nature; including sexist comments or sexual invitations; · verbal abuse, intimidation, or threats of a sexual nature; · leering, staring or making sexual gestures; · display of pornographic or other sexual materials; · offensive pictures, graffiti, cartoons or sayings; · unwanted physical contact such as touching, patting, pinching, hugging; · physical assault of a sexual nature. This definition of sexual harassment is not meant to inhibit interactions or relationships based on mutual consent or normal social contact between employees.

1.9 Discrimination and Sexual Harassment Complaint Procedures

(a) All persons involved in the handling of a discrimination or sexual harassment complaint under Clause 1.7 or 1.8 shall hold in the strictest confidence all information of which they become aware; however, it is recognized that various officials of the constituent group(s) and the Employer will be made aware of all or part of the proceedings on a "need to know" basis.

(b) Before proceeding to the formal complaint mechanism an employee who believes they have a

complaint of harassment or discrimination may approach their supervisory personnel, union steward, or other contact person to discuss potential means of resolving a complaint and to request assistance in resolving the matter. If the matter is resolved to the complainant's satisfaction the matter is deemed to be resolved.

(c) If the matter is not resolved to the employee's satisfaction, then the employee will approach the first excluded level of management not involved in the matter, for assistance in resolving the issue within one year of the alleged occurrence. The manager will investigate the allegation and take steps to resolve the concern as appropriate within 30 days of the issue being raised by the employee. The manager will discuss the proposed resolution with the employee. The employee may have a union representative present during these discussions. Where the first excluded level of management is the respondent, the employee shall approach the respondent's supervisor.

(d) If the proposed resolution is not acceptable, the employee may refer the matter through the Union in writing to the Deputy Minister or their designate within 30 days of receiving the manager's response or when the response was due. A written complaint shall specify the details of the allegation(s) including: · name, title and ministry of the respondent; · a description of the action(s), conduct, events or circumstances involved in the complaint; · the specific remedy sought to satisfy the complaint; · date(s) of incidents; · name(s) of witnesses (if any); · prior attempts to resolve (if any).

(e) The Deputy Minister or their designate will acknowledge, in writing, receipt of the Union's notice and will have the matter investigated and will take such steps as may be required to resolve the matter. The Union and the employees involved shall be advised in writing of the proposed resolution within 30 days of providing notice to the Deputy Minister or such later date as may be mutually agreed by the Ministry and the Union.

(f) If the proposed resolution or response is not acceptable to the complainant or respondent, the Union may refer the matter, in writing, to a mutually agreed to arbitrator after receiving the Employer's response. The arbitrator's terms of reference will be in accordance with the agreed upon Discrimination and Harassment in the Workplace Policies and Procedures.

(g) Any action taken by the Employer, including discipline, which is consistent with the findings of fact of the Adjudicator shall be considered by all parties to be determinative of the complaint and shall not form the basis of a grievance.

(h) If the Adjudicator determines that discrimination and/or harassment has occurred, the Employer must document the personnel file of the respondent accordingly.

(i) Pending the determination of the complaint, the Deputy Minister(s) may take interim measures to separate the employees concerned, if deemed necessary. Any such action taken under this section will not be deemed disciplinary in nature, or seen as presumption of guilt or innocence.

(j) The complainant will not be relocated without their agreement.

1.10 Bullying Between Peers and Misuse of Managerial/Supervisory Authority

The parties recognize the right of employees to work in an environment free from bullying and misuse of managerial/supervisory authority. The parties agree there is a need to take responsible action to prevent bullying and misuse of managerial/supervisory authority and whenever they become aware of such behaviour, put a stop to it. For the purposes of this clause, 'bullying between peers' refers to: · vexatious behaviour by a person with no managerial or supervisory authority over the complainant, including but not limited to repeated hostile conduct, comments, actions, or gestures, that affects an employee's psychological or physical well-being and that results in a harmful work environment; or · a single incident by a person with no managerial or supervisory authority over the complainant that has a lasting harmful effect on the complainant. For the purposes of this article, misuse of managerial/supervisory authority refers to a person with managerial or supervisory authority over the complainant exercising that authority in a manner which serves no legitimate work purpose which a reasonable person would consider inappropriate. Misuse of managerial/supervisory authority does not include the good faith exercise of the Employer's managerial/supervisory rights and responsibilities, nor does it include a single incident of a minor nature where the harm, by any objective standard is minimal. This clause is not intended to supplant or replace the procedures at Clauses 1.7, 1.8, and 1.9 of the agreement for dealing with complaints alleging discrimination under the Human Rights Code or sexual harassment. Where the allegation is based on a matter for which another dispute resolution mechanism exists, then this process shall not be utilized. If an employee does not present a complaint within the prescribed time limits, or if the President of the Union or their designate does not present a complaint to the next higher level within the prescribed time limits, the complaint will be deemed to have been abandoned.

Process for Complaint Review or Investigation An employee may approach their supervisor, or the first level of excluded manager not involved in the complaint, for assistance in resolving the issue informally within 30 days of the alleged occurrence. The employee is encouraged to seek union support. If the supervisor or first level of excluded manager fails to resolve the issue to the satisfaction of the employee within 15 days of notification, the employee may make a written complaint to the supervisor or first level of excluded manager on the designated form. The Employer will provide the Union with a copy of the written complaint within ten days of receipt. The written complaint must be filed within 45 days of the alleged occurrence. This complaint will include the following information:

- the name(s) of the people involved;
- the specific actions alleged to constitute bullying between peers or misuse of managerial/supervisory authority;
- the dates of these specific actions;
- names of witnesses;
- an explanation of why the actions complained of constitute bullying between peers or misuse of managerial/supervisory authority;
- an outline of the steps which have been taken to resolve the matter; and,
- the remedy sought.

The allegations and any relevant materials will be provided to the respondent. Upon request of the employee, the Union will provide assistance to the employee in the drafting of the complaint in an effort to ensure it provides the listed information. The supervisor/manager will review the written complaint and determine next steps which will be communicated to the employee within 14 days. During this period, the supervisor/manager may take steps to informally resolve the complaint (e.g. Conflict Management Office). During the 14 day review, and where appropriate, the supervisor/manager may refer the matter for investigation or review which will be completed without unreasonable delay and an outline of the findings of an investigation or review and the Employer's response will be reported to the complainant and respondent. The Employer agrees to provide regular updates to the Union at least every 30 days. The Union will be informed when a complaint is referred for investigation or review. An investigation or review will be performed under the guidelines established by the Public Service Agency. Upon completion, the complainant and respondent will be provided with the Employer's response which will include an outline of the findings of the investigation or review. The Union will be copied on this correspondence. The outline of the findings of the investigation or review must be sufficient to allow the complainant and respondent to understand why the Employer investigation or review has reached the conclusions and the process for reaching those conclusions.

Referral to Panel If the response is not acceptable to the complainant or respondent, the Union may refer the matter, in writing, to the Panel within 30 days of receipt of the Employer's response. The Parties recognize the shared interest in early resolution of matters referred to the Panel. To support determining whether there is sufficient merit for the matter to proceed to the Panel, the Parties agree on an early disclosure process of an appropriately redacted investigation report, if available. The process shall be as follows: - Within 30 days of receiving the referral the Employer representative will prepare and submit a redacted copy of the report for approval by the Panel. - The Panel will review to ensure that the redactions are appropriate and once confirmed will order the release of the redacted report to the BCGEU Staff Representative. The Parties agree that the early disclosure of the report shall be for the sole purpose of determining the merit for a matter to proceed. It is mutually understood that the report is not to be shared or used in any other proceeding. For clarity, the Union will not release the redacted copy to a complainant, respondent, or any other person. The Parties agree that they will continually review this early disclosure process to determine if it meets the needs of the Parties. Any changes in the process are subject to mutual agreement by the Bargaining Principals. This early disclosure process will remain in effect through the term of the 20th Main Agreement. The Panel will review the complaint and the Employer's response, if available. The Panel may make a decision based on these documents and, if it determines that there is no basis for a complaint or if there are insufficient particulars, may dismiss the complaint. Where the Panel determines there is sufficient reason to conduct a mediation/arbitration hearing, the Panel shall hear and determine any dispute between the parties over the interpretation, application, or alleged violation of this clause. Hearings shall be conducted in an expedited, non-precedential basis so as to give those involved a fair hearing. The Panel may admit any evidence deemed necessary or appropriate. The Panel will determine its own process and may:

- (1) make findings of fact;
- (2) decide if, on the facts, bullying between peers or misuse of managerial/supervisory authority has occurred;
- (3) attempt to mediate a resolve;
- (4) dismiss the complaint.

The decision of the Panel shall be final and binding and consistent with the terms of the collective agreement. Where possible the Panel decision should be available within 60 days of the hearing. The Panel shall be seized of any grievances filed which pertain to a complaint filed under this clause. Pending the determination of the complaint, the Deputy Minister(s) may take interim measures to separate the employees concerned, if deemed necessary. Any such action taken will not be deemed disciplinary in nature or seen as evidence of the validity of the complaint.

ARTICLE 2 - UNION RECOGNITION AND RIGHTS

2.1 Bargaining Unit Defined

(a) The bargaining unit shall comprise all employees included in the Public Service bargaining unit as defined in this agreement except those employees in positions mutually agreed to between the parties as managerial and (or) confidential exclusions. The parties to this agreement acknowledge the difficulty in establishing a service-wide policy for determining managerial and (or) confidential exclusions. The parties further agree that cognizance shall be given to the type of organization and to the degree to which employees, at varying levels, are involved either in the formation of government policy or in the process of employer-employee relations.

(b) The guidelines to be considered in negotiating exclusions shall be:

- (1) position incumbents employed for the primary purpose of exercising senior management functions;
- (2) position incumbents employed in a confidential capacity in matters relating to labour relations;
- (3) a sufficient number of position incumbents to represent management in matters relating to labour relations taking into account both operational and geographical considerations.

(c) Incumbents of new positions established by the Employer shall automatically be included in the bargaining unit unless specifically excluded by mutual agreement or by virtue of their being covered by another bargaining unit as specified in Section 4(a) or (b) of the Public Service Labour Relations Act.

(d) (1) When the Employer wishes to commence negotiation for the exclusion of a position from the bargaining unit, it shall notify the Union in writing. The Employer will provide to the Union a copy of the organization chart for the immediate branch or program where the position is located, a copy of the position's job description and a copy of the job description for the position which supervises the applied for position.

(2) The parties will then commence discussions with a view to reaching a mutually agreeable resolution to the exclusion status of the position.

(i) Such discussions shall include an interview with the incumbent and their immediate supervisor. Where the position is vacant, the supervisor shall be interviewed. These interviews may be waived by mutual agreement. (ii) Where the position is classified at ML6 or higher, the incumbent and their immediate supervisor may be interviewed by mutual agreement.

(3) If no agreement is reached or if no response is received from the Union within 60 days of the date of notification in (1) above, the Employer shall refer the matter to arbitration and have it heard by an arbitrator from a mutually agreeable list of arbitrators.

(4) Where a matter has been referred to arbitration, the arbitrated decision, if any, will be deemed to be binding on the parties.

(5) The Employer shall provide to the Union on April 1st on an annual basis a list of excluded positions and incumbents in each ministry.

2.2 Bargaining Agent Recognition

The Employer recognizes the B.C. General Employees' Union as the exclusive bargaining agent for all employees to whom the certification issued by the Labour Relations Board on March 8, 1974, applies.

2.3 Correspondence

(a) The Employer agrees that all correspondence between the Employer and the Union related to matters covered by this agreement or component agreements shall be sent to the President of the Union or their designate.

(b) The Employer agrees that a copy of any correspondence between the Employer or ministry official and any employee in the bargaining unit covered by this agreement or component agreements, pertaining to the interpretation or application of this agreement or a component agreement, as it applies to that employee, shall be forwarded to the President of the Union or their designate.

2.4 No Other Agreement

No employee covered by this agreement shall be required or permitted to make a written or oral agreement with the Employer or its representatives which may conflict with the terms of this agreement.

2.5 No Discrimination for Union Activity

The Employer and the Union agree that there shall be no discrimination, interference, restriction, or coercion exercised or practised with respect to any employee for reason of membership or activity in the Union.

2.6 Recognition and Rights of Stewards

(a) The Employer recognizes the Union's right to select stewards to represent employees. The Employer and the Union will agree on the number of stewards, taking into account both operational and geographic considerations.

(b) The Union agrees to provide the Employer with a list of the employees designated as stewards for each jurisdictional area.

(c) A steward, or their alternate, shall obtain the permission of their immediate supervisor before leaving their work to perform their duties as a steward. Leave for this purpose shall be with pay. Such permission shall not be unreasonably withheld. On resuming their normal duties, the steward shall notify their supervisor.

(d) The duties of stewards shall include:

- (1) investigation of complaints of an urgent nature;
- (2) investigation of grievances and assisting any employee whom the steward represents in presenting a grievance in accordance with the grievance procedure;
- (3) supervision of ballot boxes and other related functions during ratification votes;
- (4) attending meetings at the request of the Employer.

2.7 Bulletin Boards

The Employer shall provide bulletin board facilities for the exclusive use of the Union, the sites to be determined by mutual agreement. The use of such bulletin board facilities shall be restricted to the business affairs of the Union.

2.8 Union Insignia

(a) A union member shall have the right to wear or display the recognized insignia of the Union. The Union agrees to furnish to the Employer at least one union shop card, for each of the Employer's places of operation covered by this agreement, to be displayed on the premises. Such card will remain the property of the Union and shall be surrendered upon demand.

(b) The recognized insignia of the Union shall include the designation "BCGEU". This designation shall, at the employee's option, be placed on stenography typed by a member of the Union. This designation shall be placed below the signatory initials on typewritten correspondence.

2.9 Right to Refuse to Cross Picket Lines

All employees covered by this agreement shall have the right to refuse to cross a picket line arising out of a dispute as defined in the Labour Relations Code of British Columbia. Any employee failing to report for duty shall be considered to be absent without pay. Failure to cross a picket line encountered in carrying out the Employer's business shall not be considered a violation of this agreement nor shall it be grounds for disciplinary action.

2.10 Time Off for Union Business

(a) Without pay - with reasonable written notice leave of absence without pay and without loss of seniority will be granted:

- (1) to an elected or appointed representative of the Union to attend conventions of the Union and bodies to which the Union is affiliated;
 - (2) for elected or appointed representatives of the Union to attend to union business which requires them to leave their general work area;
 - (3) for employees who are representatives of the Union on a bargaining committee to attend meetings of the Bargaining Committee;
 - (4) up to seven employees on a component bargaining committee to carry on negotiations with the Employer; however, the Components reserve the right to use up to three additional persons for technical information or advice, who shall also be covered by the provisions of this clause;
 - (5) to employees called by the Union to appear as witnesses before an arbitration board, the Labour Relations Board, or the Human Rights Tribunal;
 - (6) to employees designated to sit as an observer on a selection panel in accordance with Clause 12.1.
- (b) With pay - leave of absence with basic pay and without loss of seniority will be granted to one employee per component (two employees where the component has 7,500 or more employee members) and to employees who are table officers of the BCGEU who are representatives of the Union on the Union's Main Bargaining Committee to carry on negotiations with the Employer.
- (c) To facilitate the administration of this clause when leave without pay is granted, the leave shall be given with basic pay and the Union shall reimburse the Employer for salary and benefit costs, including travel time incurred. Leave of absence granted under this clause shall include sufficient travel time. The Union shall provide the Employer with reasonable notice prior to the commencement of leave under this clause. It is understood that employees granted leave of absence pursuant to this clause shall receive their current rates of pay while on leave of absence with pay. The Employer agrees that any of the above leaves of absence shall not be unreasonably withheld.
- (d) The Employer shall grant, on request, leave of absence without pay:
- (1) for employees selected for a full-time position with the Union for a period of one year;
 - (2) for an employee elected to the position of President or Treasurer of the B.C. General Employees' Union.
- (3) for an employee elected to any body to which the Union is affiliated for a period of one year and the leave shall be renewed upon request.

2.11 Union Meetings

- (a) Employees may attend a meeting with a representative of the Union at their worksite on a quarterly basis on a mutually agreeable date.
- (b) The Union shall provide not less than two weeks' notice to the appropriate excluded manager at the local level of the intended date and time of the meeting.
- (c) Meetings will take place after the conclusion of the employees' scheduled shift and shall not interfere with normal operations.

ARTICLE 3 - UNION SECURITY

(a) All employees in the bargaining unit who on March 8, 1974 were members of the Union or thereafter become members of the Union shall, as a condition of continued employment, maintain such membership (subject only to the provisions of Section 17 of the Labour Relations Code).

(b) All employees hired on or after March 8, 1974, shall, as a condition of continued employment, become members of the Union, and maintain such membership, upon completion of 30 days as an employee (subject only to the provisions of Section 17 of the Labour Relations Code).

(c) Nothing in this agreement shall be construed as requiring a person who was an employee prior to March 8, 1974, to become a member of the Union.

ARTICLE 4 - CHECK-OFF OF UNION DUES

(a) The Employer shall, as a condition of employment, deduct from the wages or salary of each employee in the bargaining unit, whether or not the employee is a member of the Union, the amount of the regular dues payable to the Union by a member of the Union.

(b) The Employer shall deduct from any employee who is a member of the Union any assessments levied in accordance with the Union constitution and (or) bylaws and owing by the employee to the Union.

(c) Deductions shall be made for each biweekly payroll period and membership dues or payments in lieu thereof shall be considered as owing in the period for which they are so deducted.

(d) All deductions shall be remitted to the President of the Union not later than 28 days after the date of deduction and the Employer shall also provide a list of names as well as classifications of those employees from whose salaries such deductions have been made together with the amounts deducted from each employee.

(e) Before the Employer is obliged to deduct any amount under (a) above, the Union must advise the Employer in writing of the amount of its regular dues. The amount so advised shall continue to be the

amount to be deducted until changed by further written notice to the Employer signed by the President of the Union. When the change cannot reasonably be accommodated by the Employer's existing payroll system, then the cost of implementation shall be borne by the Union. In all cases, the Union shall provide the Employer with a reasonable notice period to implement any change.

(f) From the date of the signing of this agreement and for its duration, no employee organization other than the Union shall be permitted to have membership dues or other moneys deducted by the Employer from the pay of the employees in the bargaining unit.

(g) The Employer shall supply each employee, without charge, a receipt for income tax purposes in the amount of the deductions paid to the Union by the employee in the previous year. Such receipts shall be provided to the employees prior to March 1 of the succeeding year.

(h) An employee shall, as a condition of continued employment, complete an authorization form providing for the deduction from an employee's wages or salary the amount of the regular dues payable to the Union by a member of the Union.

(i) A report of employees who cease employment will be provided to the Union on a quarterly basis, which shall include a report of employees who have ceased employment and the record of employment code (ROE) used in Block 16 of the ROE form for each of those employees.

(j) The Employer will submit union dues remittance by Electronic Funds Transfer (EFT). The EFT will be submitted with an email to direct.deposit@bcgeu.ca including the EFT date and dollar amount.

(k) Employer pay period reporting:

(1) By December 15th of each year, the Employer will provide the Union with the following information for each pay period in the upcoming year:

(i) Pay period number

(ii) Pay period ending date (iii) Pay period pay date

(2) The Union will provide a secure data transfer solution for this information that meets the Employer's data privacy and security requirements. The Union will consult with the

Employer before changing which solution it uses to improve security or user experience. If at

any time the transfer solution does not meet the Employer's requirements or incurs additional costs to the Employer, the secure data transfer will cease immediately.

ARTICLE 5 - EMPLOYER AND UNION TO ACQUAINT NEW EMPLOYEES

(a) At the time of hire new employees will be advised that a collective agreement is in effect and of the conditions of employment set out in the articles dealing with Union Security and Dues Check-off.

(b) A new employee shall also be provided with:

(1) the name, work address, email address (if available) and work telephone number of the steward; and,

(2) an authorization form for union dues check-off.

(c) Upon request, the steward shall be advised of the name, location and work telephone number of the new employee.

(d) The Employer will provide the Union with a list of new employees within seven days of the end of each pay period. The list will include the name, employee ID, location, ministry, pay list and classification of each employee and will be provided in a mutually agreed format.

(e) The Union will provide a secure data transfer solution for this information that meets the Employer's data privacy and security requirements. The Union will consult with the Employer before

changing which solution it uses to improve security or user experience. If at anytime the transfer solution does not meet the Employer's requirements or incurs additional costs to the Employer, the secure data transfer will cease immediately.

(f) The steward will be given an opportunity to interview each new employee within regular working hours, without loss of pay, for 20 minutes sometime during the first 30 days of employment.

(g) The Union will provide ministries with an up-to-date list of stewards' names, work address, email address (if available) and work telephone numbers in order that the Employer may meet its obligation in (b)(1) above.

(h) The Union will be provided with a copy of the completed and signed authorization form for dues check-off for all new employees.

ARTICLE 6 - EMPLOYER'S RIGHTS

The Union acknowledges that the management and directing of employees in the bargaining unit is retained by the Employer, except as this agreement otherwise specifies.

ARTICLE 7 - EMPLOYER/UNION RELATIONS

7.1 Union and Employer Representation

No employee or group of employees shall undertake to represent the Union at meetings with the Employer without the proper authorization of the Union. To implement this the Union shall supply the Employer with the names of its officers and similarly, the Employer shall supply the Union with a list of its supervisory or other personnel with whom the Union may be required to transact business.

7.2 Union Bargaining Committees

A union main bargaining committee shall be appointed and consist of the President of the Union, Vice-Presidents (or designates) of each Public Service component. Components with more than 7,500 members may have a second representative. Component bargaining committees shall be appointed by the Components. The Union shall have the right at any time to have the assistance of members of the staff of the Union when negotiating with the Employer.

7.3 Union Representatives

(a) The Employer agrees that access to its premises will be granted to members of the staff of the Union when dealing or negotiating with the Employer, as well as for the purpose of investigating and assisting in the settlement of a grievance.

(b) Members of union staff shall notify the excluded designated supervisory official in advance of their intention and their purpose for entering and shall not interfere with the operation of the Ministry or section concerned.

(c) In order to facilitate the orderly, as well as the confidential investigation of grievances, the Employer will make available to union representatives or stewards temporary use of an office or similar facility.

(d) The Employer agrees that access to its premises will be granted to local chairpersons, component vice-presidents and members of the Provincial Executive. Notification shall be given to the excluded designated supervisory official in advance of the intention and purpose for entering the Employer's premises and such access shall not interfere with the operations of the Ministry or section concerned.

(e) Notwithstanding Clause 7.3(d), the Employer agrees that access to its premises will be extended to persons designated by the President upon reasonable notice to the Head of the BC Public Service Agency of their intention and purpose for entering the Employer's premises and such access shall not interfere with the operations of the Ministry or section concerned.

7.4 Technical Information

The Employer agrees to provide to the Union such information that is available relating to employees in the bargaining unit, as may be required by the Union for collective bargaining purposes.

7.5 Policy Meetings

The Employer and the Union recognize the importance and necessity of the Principals to this agreement meeting quarterly to discuss issues and suggestions, which may arise from time to time.

7.6 Emergency Services

The parties recognize that in the event of a strike or lockout as defined in the Public Service Labour Relations Act situations may arise of an emergency nature. To this end, the Employer and the Union will agree to provide services of an emergency nature.

ARTICLE 8 - GRIEVANCES

8.1 Grievance Procedure

(a) The Employer and the Union recognize that grievances may arise concerning:

(1) differences between the parties respecting the interpretation, application, operation, or any alleged violation of a provision of this agreement, component agreements, or arbitral award, including a question as to whether or not a matter is subject to arbitration; or

(2) the dismissal, discipline, or suspension of an employee bound by this agreement.

(b) The procedure for resolving a grievance shall be the grievance procedure in this article.

8.2 Step 1

In the first step of the grievance procedure, every effort shall be made to settle the dispute with the designated local supervisor. The aggrieved employee shall have the right to have their steward present at such a discussion. If the dispute is not resolved orally, the aggrieved employee may submit a written grievance, through the union steward, to Step 2 of the grievance procedure. Where the aggrieved employee is a steward, they shall not, where possible, act as a steward in respect of their own grievance but shall submit the grievance through another steward or union staff representative.

8.3 Time Limits to Present Initial Grievance

An employee who wishes to present a grievance at Step 2 of the grievance procedure, in the manner prescribed in Clause 8.4, must do so no later than 30 days after the date:

(a) on which they were notified orally or in writing, of the action or circumstances giving rise to the grievance;

(b) on which they first became aware of the action or circumstances giving rise to the grievance.

8.4 Step 2

(a) Subject to the time limits in Clause 8.3, the employee may present a grievance at this level by:

(1) recording their grievance on the appropriate manual or electronic grievance form, setting out the nature of the grievance and the circumstances from which it arose;

(2) stating the article(s) or clause(s) of the agreement infringed upon or alleged to have been violated, and the remedy or correction required; and,

(3) transmitting their grievance to the designated local supervisor through the union steward.

(b) The local supervisor shall:

- (1) forward the grievance to the representative of the Employer authorized to deal with grievances at Step 2; and,
- (2) provide the employee with a receipt stating the date on which the grievance was received.

8.5 Time Limit to Reply at Step 2

- (a) Within 21 days of receiving the grievance at Step 2, the representative designated by the Employer to handle grievances at Step 2 and the designated union representative shall meet to examine the facts, the nature of the grievance and attempt to resolve the dispute. This meeting may be waived by mutual agreement.
- (b) The representative designated by the Employer to handle grievances at Step 2 shall reply in writing to an employee's grievance within 30 days of receiving the grievance at Step 2.
- (c) Where the grievance concerns a disciplinary matter, the reply shall include a report of the Step 2 meeting and the results of investigations carried out by the Employer with regard to the facts and nature of the grievance. The report shall not be introduced as evidence at any arbitration proceeding.

8.6 Failure to Act

If the President of the Union, or their designate (or the Employer in the case of an employer grievance), does not present a grievance to the next higher level within the prescribed time limits, the grievance will be deemed to have been abandoned. However, the Union or the Employer shall not be deemed to have prejudiced its position on any future grievance.

8.7 Time Limits to Submit to Arbitration

Failing satisfactory settlement at Step 2, and pursuant to Article 9 - Arbitration, the President, or their designate, may inform the Employer of their intention to submit the dispute to arbitration within:

- (a) 30 days after the Employer's decision has been received, or
- (b) 30 days after the Employer's decision was due.

8.8 Administrative Provisions

- (a) Replies to grievances at Step 2 of the grievance procedure and notification to arbitrate shall be by certified mail, electronic mail or by courier.
- (b) Grievances, replies, and notification shall be deemed to have been presented on the date on which they were verifiably transmitted, and received on the date they were delivered to the appropriate office of the Employer or the Union.

8.9 Dismissal or Suspension Grievances

- (a) In the case of a dispute arising from an employee's dismissal, rejection on probation, suspension greater than 20 days or suspension for just cause pending investigation, the grievance may be filed directly at arbitration, with a copy to the BC Public Service Agency and the Deputy Minister of the appropriate ministry, within 30 days of the date on which the dismissal, rejection on probation, or suspension occurred, or within 30 days of the employee receiving such notice.
- (b) Within 45 days of receiving a grievance filed directly to arbitration as per (a) above, and prior to setting hearing dates, representatives at arbitration for the parties shall meet to examine the facts, the nature of the grievance and the possibility of any resolution for the dispute.

(c) In the case of a dispute arising from other suspensions, the grievance may commence at Step 2 of the grievance procedure within 30 days of the date on which the suspension occurred, or within 30 days of the employee receiving such notice.

8.10 Deviation from Grievance Procedure

(a) The Employer agrees that, after a grievance has been initiated by the Union, the Employer's representatives will not enter into discussion or negotiation with respect to the grievance, either directly or indirectly with the aggrieved employee without the consent of the Union. The Union agrees that, after the Union files the grievance at arbitration, the Union's representative will not enter into discussion or negotiation with respect to the grievance, either directly or indirectly, with any ministry representative without the consent of the Public Service Agency.

(b) In the event that, after having initiated a grievance through the grievance procedure, an employee endeavours to pursue the same grievance through any other channel, then the Union agrees that, pursuant to this article, the grievance shall be considered to have been abandoned.

(c) Where an employee has filed a complaint with the Ombudsperson or the Employment Standards Branch, the grievance shall be deemed to be abandoned unless the complaint is withdrawn, in writing, within 45 days of it being filed.

(d) Notwithstanding (b) above, an employee who has filed a complaint with the Human Rights Tribunal shall not have their grievance deemed abandoned through the filing of the complaint.

8.11 Policy Grievance

(a) Where either party to this agreement disputes the application, interpretation, or alleged violation of an article of this agreement or a component agreement, the dispute shall be discussed initially with the BC Public Service Agency or the Union, as the case may be, within 60 days of the occurrence. Where no satisfactory agreement is reached, either party may submit the dispute to arbitration, as set out in Article 9 - Arbitration.

(b) Unless agreed by the Principals, this article shall not be used by the Union to initiate a grievance directly affecting an employee or group of employees where such employees themselves could otherwise initiate a grievance through the grievance procedure. This provision shall not be utilized to circumvent any mandatory provision of the grievance procedure.

8.12 Technical Objections to Grievances

It is the intent of both parties to this agreement that no grievance shall be defeated merely because of a technical error other than time limitations in processing the grievance through the grievance procedure. To this end an arbitration board shall have the power to allow all necessary amendments to the grievance and the power to waive formal procedural irregularities in the processing of a grievance in order to determine the real matter in dispute and to render a decision according to equitable principles and the justice of the case.

8.13 Effective Date of Settlements

Settlements reached at any step of the grievance procedure in this article, other than Clause 8.11, shall be applied retroactively to the date of the occurrence of the action or situation which gave rise to the grievance, but not prior to the effective date of the agreement in effect at the time of the occurrence or the date set by a board of arbitration.

8.14 Amending Time Limits

The time limits fixed in this grievance procedure may be altered by mutual consent of the parties, but the same must be in writing.

ARTICLE 9 - ARBITRATION

9.1 Notification

(a) Where a difference arising between the parties relating to the interpretation, application, or administration of this agreement or a component agreement, including any question as to whether a matter is arbitrable, or where an allegation is made that a term or condition of this agreement or a component agreement has been violated, either of the parties may, after exhausting the grievance procedure in Article 8 - Grievances, notify the other party within 30 days of the receipt of the reply at the second step, of its desire to submit the difference or allegations to arbitration.

(b) All grievances being filed at arbitration will be scanned and emailed, along with the normal correspondence, to the PSA Registrar and copied to the BCGEU Registrar in Advocacy.

(c) Where the matter in dispute is a dismissal grievance, the parties shall set a date for the hearing to be held seven weeks from the date that such a hearing is requested. Every effort will be made to complete dismissal hearings within six months of a dismissal grievance being advanced to arbitration.

9.2 Assignment of a Single Arbitrator

(a) When a party has requested that a grievance be submitted to an arbitration and either party has requested that a hearing date be set, an arbitrator will be assigned from the mutually agreed upon list of single arbitrators.

(b) Depending upon availability, single arbitrators shall be assigned cases on a rotating basis.

(c) The parties shall agree upon a list of arbitrators which shall be appended to this agreement. An arbitrator may be removed from the list by mutual agreement.

(d) The parties shall endeavour to develop and maintain a list of acceptable arbitrators which is gender balanced.

(e) The parties agree to the following as a pilot project for the term of the 20th Main Agreement:

(1) The parties will schedule four blocks of arbitration dates ("Blocks") for each year within the term of the 20th Main Agreement. Blocks will be five days long and scheduled by mutual agreement, to facilitate the expeditious resolution of grievances scheduled for full hearing ("Cases"). This does not preclude the parties from scheduling additional mutually agreeable hearing dates.

(2) The Union and the Employer will each appoint a representative who is knowledgeable with the process as a Block Booking Registrar ·the Registrars·. Registrars' meetings will be held by mutual agreement where they will discuss which Cases will be assigned to each Block. The determination of Cases to be scheduled to each Block will be by mutual agreement and must be established no later than 90 days prior to the start of the Block or these timelines may be adjusted by mutual agreement. Terminations will default to 9(2)(e), unless one party puts the other on notice that the grievance will proceed under 9.2(b) above.

(3) The parties will agree on an arbitrator, and a secondary backup arbitrator to serve as

lead block booking arbitrator and case manager (Lead Arbitrator) within 90 days of the ratification of the 20th Main Agreement. The parties will only utilize the backup arbitrator to act as Lead Arbitrator by mutual agreement. The parties agree to fully utilize the scheduled dates in each Block. The parties agree that they will schedule an appropriate number of Cases for each Block with the intent to fill up the days. In anticipation that those Cases are settled or withdrawn prior to the hearing, or mediated or resolved early in the Block, the parties will also schedule no more than two additional Cases that can reasonably be anticipated to last no more than five days.

(4) Cases that had not been identified under (1) and (2) may not be added to the scheduled dates except by mutual agreement.

(5) The parties agree that the initial disclosure of evidence will take place by the party bearing the onus a minimum of 60 days prior to the commencement of the Block to which the Case is assigned, with disclosure by the other party to take place a minimum of 30 days prior to the commencement of the Block. Prior to the Block and by mutual agreement, the Lead Arbitrator may hold a case management meeting with the parties to review the Cases. Both Registrars must be present for case management meetings.

(6) (*)The hearings will take place virtually or in locations agreed to by the parties. The Arbitrator will deliver the award in writing to the parties within 60 days following the conclusion of the arbitration hearing. All awards shall be final and binding upon the parties, but in no event shall the Arbitrator have the power to alter, modify or amend this agreement in any respect.

(7) Any Case assigned to a Block that is not heard within that Block may, by mutual agreement, be assigned to a different arbitrator pursuant to Clause 9.2. However, if a Case is commenced during the Block, but the arbitration is not completed, the Arbitrator will retain jurisdiction over that Case and it shall be completed during a subsequent Block.

(8) Unless agreed to by the parties, this provision - Clause 9.2(e) will expire at the end of the term of the 20th Main Agreement. *Note: The pilot project is conditional upon the parties agreeing on the selection of arbitrators and their acceptance of the assignment.

9.3 Three-Person Arbitration Board

(a) Notwithstanding Clause 9.2, when a single arbitrator has been appointed either party may indicate to the other party, within seven days of receipt of written notice, if it chooses to have the matter heard by a three-person arbitration board. Both parties shall then have seven days to name their appointee to the three-person board. The two appointees shall then meet to select an impartial chairperson.

(b) If either party fails to name their appointee, or the two appointees fail to agree upon a chairperson within seven days of their appointment, the appointment shall be made by the Collective Agreement Arbitration Bureau.

9.4 Board Procedure

(a) In this article the term "Board" means a single arbitrator or a three-person arbitration board.

(b) The Board may determine its own procedure in accordance with the relevant legislation and shall give full opportunity to all parties to present evidence and make representations. It shall hear and determine the difference or allegation and shall render a decision within 60 days of the conclusion of the hearing.

9.5 Decision of Board

The decision of the majority shall be the decision of the Board. Where there is no majority decision, the decision of the Chairperson shall be the decision of the Board. The decision of the Arbitration Board shall be final, binding, and enforceable on the parties. The Board shall have the power to dispose of a discharge or discipline grievance by any arrangement which it deems just and equitable. However, the Board shall not have the power to change this agreement or to alter, modify, or amend any of its provisions or the provisions of the Component Agreements.

9.6 Disagreement on Decision

Should the parties disagree as to the meaning of the Board's decision, either party may apply to the Chairperson of the Arbitration Board to reconvene the Board to clarify the decision, which it shall make every effort to do within seven days.

9.7 Expenses of Arbitration Board

Each party shall pay:

- (a) The fees and expenses of the Arbitrator it appoints; and,
- (b) One-half of the fees and expenses of the Chairperson.

9.8 Amending Time Limits

The time limits fixed in the arbitration procedure may be altered by mutual consent of the parties, but the same must be in writing.

9.9 Expedited Arbitration

(a) The parties shall meet every four months or as often as required to review outstanding grievances filed at arbitration to determine by mutual agreement those grievances suitable for this process, and shall set dates and locations for hearings of groups of grievances considered suitable for expedited arbitration.

(b) All grievances shall be considered suitable for and resolved by expedited arbitration except grievances in the nature of:

- (1) dismissals;
- (2) rejection on probation;
- (3) suspensions in excess of 20 workdays;
- (4) policy grievances;
- (5) grievances requiring substantial interpretation of a provision of the Main or a component agreement;
- (6) grievances relating to Article 14 - Hours of Work of the Main Agreement;
- (7) grievances requiring presentation of extrinsic evidence;
- (8) grievances where a party intends to raise a preliminary objection;
- (9) demotions; or
- (10) grievances that are related to a matter already filed at formal arbitration;
- (11) grievances that are agreed to be heard at the Rapid Grievance Tribunal.

By mutual agreement, a grievance falling into any of these categories may be placed into the expedited arbitration process.

(c) The parties shall mutually agree upon single arbitrators who shall be appointed to hear and resolve groups of grievances.

(d) The Arbitrator shall hear the grievances and shall render a decision within two working days of

such hearings. No written reasons for the decision shall be provided beyond that which the Arbitrator deems appropriate to convey a decision.

(e) Arbitration awards shall be of no precedential value and shall not thereafter be referred to by the parties in respect of any other matter.

(f) All settlements of expedited arbitration cases prior to hearing shall be without prejudice.

(g) A grievance determined by either party to fall within one of the categories listed in (b) above, may be removed from the expedited arbitration process and forwarded to a regular arbitration hearing pursuant to Clause 9.2, provided this occurs more than four weeks prior to the scheduled hearing date.

(h) The parties will utilize case conference to mutually agree on the grievances set down for expedited arbitration, but all files must be set no later than four weeks prior to the expedited hearing date. Once the parties mutually agree to set a grievance down for expedited arbitration at or after case conference, it cannot unilaterally be forwarded to regular arbitration without mutual agreement of the parties or an order of an arbitrator.

(i) The parties shall equally share the cost of the fees and expenses of the Arbitrator and hearing rooms.

ARTICLE 10 - DISMISSAL, SUSPENSION AND DISCIPLINE

10.1 Burden of Proof

In all cases of discipline, the burden of proof of just cause shall rest with the Employer.

10.2 Dismissal

A deputy minister or any other person authorized in accordance with the Public Service Act, may dismiss any employee for just cause. Notice of dismissal shall be in writing and shall set forth the reasons for dismissal.

10.3 Suspension

(a) The Deputy Minister or any other person authorized in accordance with the Public Service Act may only suspend an employee for just cause. Notice of suspension shall be in writing and shall set forth the reasons for the suspension.

(b) Upon the employee's request, suspensions of less than five days will be removed from an employee's file after the expiration of five years from the date it was issued, provided there has not been a further infraction.

10.4 Dismissal and Suspension Grievance

All dismissals and suspensions will be subject to formal grievance procedure under Article 8 - Grievances. A copy of the written notice of dismissal or suspension shall be forwarded to the President of the Union within five days of the action being taken.

10.5 Right to Grieve Other Disciplinary Action

(a) Disciplinary action grievable by the employee shall include:

- (1) written censures;
- (2) letters of reprimand;
- (3) adverse reports; or

(4) adverse employee appraisals.

(b) An employee shall be given a copy of any such document placed on the employee's file which might be the basis of disciplinary action. Should an employee dispute any such entry in their file, they shall be entitled to recourse through the grievance procedure and the eventual resolution thereof shall become part of their personnel record.

(c) Upon the employee's request any such document, other than formal employee appraisals (unless agreed by way of a grievance settlement), shall be removed from the employee's file after the expiration of 18 months from the date it was issued provided there has not been a further infraction.

(d) The Employer agrees not to introduce as evidence in any hearing any document from the file of an employee, the existence of which the employee was not aware at the time of filing.

10.6 Employee Appraisal Forms

(a) Where a formal appraisal of an employee's performance is carried out, the employee shall be given sufficient opportunity to read, review and ask questions about the appraisal. Upon request, the employee will be given three working days to read and review the appraisal.

(b) The appraisal form shall provide for the employee's signature in two places, one indicating that the employee has read and accepts the appraisal, and the other indicating that the employee disagrees

with the appraisal. No employee may initiate a grievance regarding the contents of an employee appraisal unless the employee has signed in the place indicating disagreement with the appraisal.

(c) An employee appraisal shall not be changed after an employee has signed it, without the knowledge of the employee, and any such changes shall be subject to the grievance procedure of this agreement.

(d) An employee shall receive a copy of their appraisal upon request.

10.7 Personnel File*

An employee, or the President of the Union or their designate with the written authority of the employee, shall be entitled to review the employee's personnel file(s) electronically. The employee or the President, as the case may be, shall give the Employer adequate notice prior to having access to such file(s).

10.8 Right to Have Steward Present

(a) An employee shall have the right to have their steward present at any discussion with supervisory personnel which the employee believes might be the basis of disciplinary action. Where a supervisor intends to interview an employee for disciplinary purposes, the supervisor shall make every effort to notify the employee in advance of the purpose of the interview in order that the employee may contact their steward, providing that this does not result in an undue delay of the appropriate action being taken. This clause shall not apply to those discussions that are of an operational nature and do not involve disciplinary action.

(b) A steward shall have the right to consult with a staff representative of the Union and to have a local union representative present at any discussion with supervisory personnel which the steward believes might be the basis of disciplinary action against the steward, providing that this does not result in an undue delay of the appropriate action being taken.

10.9 Rejection During Probation

(a) A deputy minister or any other person authorized in accordance with the Public Service Act may

reject any probationary employee for just cause. A rejection during probation shall not be considered a dismissal for the purpose of Clause 10.4. The test of just cause for rejection shall be a test of suitability of the probationary employee for continued employment in the position to which they have been appointed, provided that the factors involved in suitability could reasonably be expected to affect work performance.

(b) Where an employee feels they have been aggrieved by the decision of the Employer to reject the employee during the probationary period, they may in accordance with Article 8 - Grievances, grieve the decision within 30 days of receiving the notice of rejection. Such grievance may be filed directly at arbitration in accordance with Clause 8.9(a).

10.10 Abandonment of Position

An employee who fails to report for duty for 10 consecutive workdays without informing the Employer of the reason for their absence will be presumed to have abandoned their position. An employee shall be afforded the opportunity to rebut such presumption and demonstrate that there were reasonable grounds for not having informed the Employer.

ARTICLE 11 - SENIORITY

11.1 Seniority Defined

For the purpose of this and component agreements:

(a) Service seniority shall mean the length of continuous service as a regular employee in the Public Service of British Columbia. Regular employees in the Public Service of British Columbia as of June 30, 1974, shall be credited with service seniority equivalent to their length of continuous service as a permanent employee or their length of service as a continuous temporary employee with the Employer prior to that date. Service seniority for part-time employees shall be prorated on the basis of one year's service seniority for every 1827 hours completed.

(b) Classification seniority for a regular employee shall be from that date upon which an employee is last appointed to their present classification with the status of a regular employee.

(c) Notwithstanding the provisions of (b) above, a regular employee who is demoted shall have time previously spent at the level to which they are demoted included in their classification seniority, other than in cases where an employee takes a voluntary demotion in accordance with Clause 12.7 or

Appendix 4, Part III or is demoted through no fault of their own. In the latter cases, the employee shall

have classification seniority equivalent to all time previously spent at the level to which they are demoted, together with all time spent in any higher classification within the same classification series or related series.

(d) Regular employees of BC Buildings Corporation and those employees who had been employed as regular employees in the Public Service prior to their transfer to a health authority who are appointed to regular positions in the Public Service shall be credited with service seniority equivalent to their length of service with the Crown Corporation or health authority and the Employer subject to the following conditions:

(1) the employee must successfully complete their probation period on appointment to the Public Service; and,

(2) there must be no break in regular service between the two employers.

(e) Employees appointed under the Public Service Act who are not members of this bargaining unit

will not be credited, for the purpose of layoff and recall, with service seniority until they have completed one year's employment after having been placed into a vacancy within this bargaining unit, except as provided in (f).

(f) Employees who left the bargaining unit to fill a position, within the Public Service, shall be immediately credited, for the purposes of layoff and recall, with their service seniority accrued within the bargaining unit. Upon completion of one year's service these employees will be credited with the remainder of their service seniority.

11.2 Seniority List

A current service seniority list for regular employees as of December 31 will be provided by the Employer to the President of the Union on or before March 31 of the following year and for March 31 by June 30, June 30 by September 30 and September 30 by December 31.

11.3 Loss of Seniority

(a) A regular employee on leave of absence without pay, other than leave of absence for an elected or appointed position in the Union, leave granted under Article 21 - Maternity, Parental and Pre-

Adoption Leave, or leave taken in accordance with Clause 20.14 - Canadian Armed Forces and Canadian Coast Guard Auxiliary, shall not accrue seniority for leave periods over 30 calendar days.

(b) A regular employee on a claim recognized by the Workers' Compensation Board shall be credited with service seniority equivalent to what they would have earned had they not been absent and had been able to work.

(c) A regular employee who is on leave of absence without pay in an elected or appointed position of the Union shall continue to accrue seniority without benefits during the leave period, provided that, upon returning, the employee shall accept the first available position in their original classification at the work location nearest their residence.

(d) An employee shall lose their seniority as a regular employee in the event that:

(1) they are discharged for just cause;
(2) subject to Clause 11.4, they voluntarily terminate their employment or abandon their position; or

(3) they are on layoff for more than one year and they do not opt for auxiliary recall pursuant to Clause 13.3(a)(4).

11.4 Re-Employment

A regular employee who resigns their position and within 90 days is re-employed as a regular employee shall be granted leave of absence without pay covering those days absent and shall retain, effective the date of re-employment, all provisions and rights in relation to seniority and other fringe benefits, provided they have not withdrawn their pension benefit contributions.

11.5 Bridging of Service

If a regular employee terminates as a result of a decision to care for a dependent parent, spouse or child, and is re-employed, upon application they shall be credited with length of service accumulated at time of termination for the purposes of benefits based on service seniority. The following conditions shall apply:

(a) the employee must have been a regular employee with at least two years of service seniority at time of termination;

- (b) the resignation must indicate the reason for termination;
- (c) the break in service shall be for no longer than six years;
- (d) the previous length of service shall not be reinstated until successful completion of the probationary period on re-employment. Former employees who meet the conditions outlined above will have in-service status when applying for re-employment, and shall, for the purpose of the selection process, be credited with points for the years of continuous service accumulated to the effective date of termination.

ARTICLE 12 - SERVICE CAREER POLICY

12.1 Postings

(a) Vacancies of a regular nature that are to be filled, for positions in the bargaining unit, shall be posted within 30 days. Such postings shall be throughout the Public Service unless limited by the Head of the BC Public Service Agency or their designate or as specified in the Memorandum of

Understanding 30 - Priority Placement and Employment Equity. The posting language may also specify if the position can be done remotely. The posting language must state if the position is eligible to be designated as an approved remote location as specified in the Memorandum of Understanding 47 - Re: Dedicated Remote Postings.

(b) Eligibility lists may be established through the posting process and used to fill vacancies. When eligibility lists are established it shall be stated on the posting. Eligibility lists shall be in effect for a maximum of 18 months from the establishment of the list. Once established an eligibility list may not be cancelled.

(c) Vacancies of a temporary nature which are known to exceed seven months shall be posted within 30 days. Such postings will normally be limited to the geographic area. In cases where a position is unique to the Ministry or forms a career path for ministry employees, the opportunity may be limited to a ministry within the geographic area. In those circumstances where the posting is not limited to the geographic area, Memorandum of Understanding 3 - Board and Lodging and Relocation Expenses, shall not apply. Where necessary to facilitate and support a ministry's succession planning, a deputy minister may approve payment of board and lodging in accordance with Memorandum of Understanding 3, Part I providing the posting for the temporary vacancy contains notice that this discretion will apply. For the purpose of this clause "geographic area" shall mean that area from which persons could reasonably be expected to commute.

(d) Notices shall be posted at least 14 days prior to the closing date of the competition, except as provided for in Clauses 12.7, 12.8, Appendix 4, Part III and Article 13 - Layoff and Recall.

(e) On posted competitions, an employee is ineligible for transfer or demotion from one geographic location to another within two years at the previous location. The closing date of the competition shall determine eligibility. A selection panel may waive this restriction with the approval of the applicant's deputy minister or designate. This restriction does not apply to redundant employees or to promotions.

(f) The notice of postings shall contain the following information: nature of position, qualifications, skills, whether shift work is involved, wage or salary rate or range, and where applicable, specific location. Such qualifications may not be established in an arbitrary or discriminatory manner.

(g) Where the Employer determines that it is prepared to have a particular position filled by persons possessing either specified educational requirements or equivalencies, the posting shall specify that equivalent experience is acceptable.

(h) Consistent with the Public Service Act, the Head of the BC Public Service Agency shall delegate to

ministries the authority and responsibility to appoint the Chairperson of all selection panels.

(i) Temporary vacancies of not more than seven months in duration shall be filled in accordance with the provisions in the Component Agreements.

12.2 Union Observer

The President of the Union or their designate may sit as an observer on a selection panel, including panel deliberations following selection tests, for positions in the Public Service bargaining unit. The observer shall be a disinterested party. This clause shall not apply to excluded positions.

12.3 Selection Procedures

(a) Appointments to and from within the Public Service will be based on applying the principle of merit. The matters to be considered in determining merit shall, having regard to the nature of the duties

to be performed, include the applicant's education, skills, knowledge, experience, past work performance and years of continuous service in the Public Service.

(b) The initial assessment of applicants shall be a process which appraises the knowledge, skills and abilities of eligible applicants. The weighting of these factors shall be consistently applied within job types within a classification, which have been evaluated under the selection standards project. Selection procedures shall also include consideration of years of continuous service, ie., 0.5% of total competition points for each year of continuous service to a maximum of 10% of total competition points (maximum of 20 years).

(c) Where an eligibility list has been established pursuant to Clause 12.1(b), qualified candidates shall be placed on the list in order of their respective point scores.

12.4 Notification

(a) Unsuccessful employee applicants to posted positions will be notified of the name and classification of the successful employee applicant.

(b) If the successful applicant is not an employee, upon request, an unsuccessful employee applicant will receive either the name of the successful applicant or a summary of the successful applicant's qualifications, skills and experience.

12.5 Review of Staffing Decisions

(a) An employee who is an unsuccessful applicant for an appointment to the Public Service may request from the individual responsible for the appointment an explanation of the reasons why they were not appointed.

(b) The responsible individual must provide an explanation as soon as practicable after receiving a request under Subsection (a).

(c) An employee who has made a request under (a) above may request an inquiry into the application of Section 8(1) of the Public Service Act with respect to the appointment. Any such request must include a detailed statement specifying the grounds on which the request is made and be directed to the Deputy Minister responsible for the position.

(d) The Deputy Minister, or a person designated by the Deputy Minister, who receives an application

under (c) above must inquire into the appointment and confirm the appointment or proposed appointment or direct that the appointment or proposed appointment be reconsidered. The Deputy Minister will reply within 30 days.

(e) Except as provided in (g) below, an employee who is an unsuccessful applicant for an appointment to a position and who has made a request pursuant to (c) above and disagrees with the decision made in (d) above to confirm the appointment or proposed appointment may request a review of the appointment by the merit commissioner on the ground that Section 8(1) of the Public Service Act has not been complied with.

(f) A request for a review pursuant to (e) above must be in writing and may only be based upon the grounds submitted to the Deputy Minister under (c) above.

(g) The following are not subject to a review by the merit commissioner and may not form the basis of a grievance:

- (1) Staffing decisions respecting positions outside the bargaining unit;
 - (2) A temporary appointment of not more than seven months in duration;
 - (3) An appointment of an auxiliary employee; and,
 - (4) A direct appointment by the Head of the BC Public Service Agency.
- (h) All requests for reasons, inquiry or review and submissions must be within the time period prescribed by Regulation made pursuant to the Public Service Act.

12.6 Interview Expenses

An in-service applicant for a posted position who is not on leave of absence without pay and who has been called for a panel interview shall be granted leave of absence with basic pay and shall have their authorized expenses paid. An employee granted leave under this clause shall notify their supervisor as soon as they are notified of their requirement to appear for an interview.

12.7 Transfers Without Posting

(a) Lateral transfers or voluntary demotions may be granted, without posting, for compassionate grounds to regular employees who have completed their probationary period. Compassionate grounds includes care for a family member.

(b) In such cases the Rehabilitation Committee established in Appendix 4, Part III shall consider any applications or requests presented to the Committee. Each request for special consideration shall be judged solely on its merit.

(c) An employee whose spouse is also an employee and who is transferred pursuant to Clause 12.8, Articles 13 - Layoff and Recall, 36 - Limited Employment and Privatization, or Memorandum of Understanding 10 - Riverview Hospital Devolution, may be considered for a lateral transfer or voluntary demotion to available vacancies.

12.8 Relocations

(a) It is understood by the parties that, as a general policy, employees shall not be required to relocate from one geographic location to another against their will. However, the Employer and the Union recognize that in certain cases relocations may be in the interests of the Public Service and/or the employee. In such cases, an employee will receive 90 days' written notice prior to the effective date of relocation and be fully advised of the reason for their relocation, as well as the possible result of refusal to be relocated.

(b) Should a regular employee choose not to relocate, the employee shall elect prior to the date of

relocation:

- (1) for those employees with three or more years of service seniority:
 - (i) vacancy selection pursuant to Clause 13.4(c); or
 - (ii) early retirement pursuant to Clause 13.4(g); or (iii) severance pay pursuant to Clause 13.4(i).

- (2) For those employees with less than three years of service seniority:

- (i) the options outlined in Clause 13.3.

An employee shall elect one of these options no later than 30 days prior to the effective date of relocation and should they fail to do so, they shall be deemed to have resigned and shall be paid severance pay as outlined in Clause 13.3 or 13.4(i), as applicable.

(c) When a relocation is required and there is more than one regular employee performing the transferred work within the Ministry and geographic location, the Employer will first attempt to effect

the relocation on a voluntary basis. Where no employee from that group wishes to relocate voluntarily the least senior regular employee in the group shall be relocated and the provisions of (b) above apply.

12.9 Selection Panels

(a) Delegation to the individuals responsible for recruitment, selection and appointment shall be in accordance with the Public Service Act and Regulations pursuant thereto. It is understood that all operations under such designation are subject to the applicable auditing procedures of the merit commissioner.

(b) Disputes regarding the application of the above shall be resolved pursuant to Clause 12.5.

ARTICLE 13 - LAYOFF AND RECALL

PREAMBLE

The Employer agrees not to exercise its right to cause a layoff that results in the cessation of employment for a regular employee except as provided in this article.

PRE-LAYOFF CANVASS

Prior to the layoff of regular employee(s) under Clause 13.3 or 13.4, the Ministry may at its option, within a geographic location, canvass any employee or group of employees within the Ministry to invite:

- (a) voluntary placement into a vacant regular position within the Ministry;
- (b) resignation with severance as provided for in Clause 13.3/13.4; or
- (c) where eligible, early retirement.

13.1 Ministry Workforce Adjustment (Phase 1)

(a) The parties recognize that workforce adjustment will be necessary due to the elimination of positions resulting from a reduction in the amount of work required to be done by the Employer, reorganization, program termination or closure which impacts a number of employees. Clauses 13.1 and 13.2 shall not apply to regular employees who are normally subject to layoff because of business cycle or seasonal work.

(b) The timeframe for Clause 13.1 placement activities is 90 days, or a lesser time frame for smaller

adjustments, from the date the employee receives written notice of redundancy as mutually agreed to by the Ministry Joint Committee. Such notice will only be issued after consultation with or advice to the Ministry Joint Committee.

(c) Ministry will consult with the Union through the Ministry Joint Committee established pursuant to Article 29 respecting workforce adjustment which results in redundancy as required pursuant to (a) above. Ministry workforce adjustment activities will be guided by the following principles and procedures:

- (1) Both parties recognize the need for the cooperation of all participants to facilitate the placement of regular employees.
- (2) Ministries must first minimize the impact on their regular employees through the appropriate:
 - (i) layoff of limited term employees;
 - (ii) cancellation of contracts for employment agency personnel;
 - (iii) cancellation of personal service contracts where a surplus regular employee qualified to do the work can be placed; (iv) where necessary, layoff of auxiliary employees;
- (3) Ministries must exhaust all placement options within their own ministry prior to seeking placement of affected staff in other ministries. This will include lateral transfers and, where necessary, regular employees displacing auxiliary employees performing ongoing work.
- (4) The placement process applies to junior regular employees or, where appropriate, other regular employees within the Ministry, in the same classification and geographic location for placement into vacant positions for which they are qualified.
- (5) Surplus employees will be placed through lateral transfers in their same geographic locations where such vacancies are available.
- (6) Surplus employees not able to be placed through lateral transfers will be offered available comparable vacancies in their same geographic location. Where comparable placement offers are turned down by a surplus employee, they may be immediately referred to Clause 13.2 (Phase 2).
- (7) Acceptance of offers made to employees pursuant to this clause is voluntary. Where an employee accepts an offer, once confirmed in writing such acceptance is final and binding upon the employee, subject to the agreement of the Employer.

13.2 Joint Workforce Adjustment Steering Committee (JWASC) (Phase 2)

(a) The parties will form a joint workforce adjustment steering committee whose purpose will be to minimize the impact on individual employees affected by redundancy.

(b) The purpose of the Steering Committee will be:

- (1) to facilitate and coordinate across ministries, if necessary, the placement of surplus regular employees into existing vacancies for which they are qualified within their own or other headquarters or geographic location;
- (2) to guide the placement activities of the Ministry Joint Committees established pursuant to Article 29;
- (3) to maximize placement opportunities and minimize job loss of affected employees by

gathering relevant information, including lists of surplus staff and vacancies; and,

(4) to recommend job orientation or appropriate training.

(c) The Steering Committee will be comprised of three representatives of the Employer and three representatives of the Union. The Employer agrees that union representatives who require leave from work will not suffer any loss of basic pay for time spent on the work of the Steering Committee.

(d) The parties agree that in order to maximize the placement of surplus employees into vacant positions, training may be required over and above that provided for in the Main Agreement.

(e) The parties agree that the Committee is a proper vehicle to identify employee skills, training options, and training sources. Where the Committee determines it is advisable to provide training to assist in such placement, it shall be offered. Any training provided pursuant to this clause will be on a cost-effective basis for the purpose of continuing a surplus employee's service with the government.

(f) The Steering Committee will be guided by the following principles:

(1) Once a regular employee is referred to the Steering Committee for placement, the Steering Committee will have three weeks to effect a placement under this process. If no placement by the Steering Committee is possible within this time frame, then the Employer may issue layoff notice and the procedures of Clause 13.3 or 13.4, as applicable, will be utilized. This time frame may be extended by mutual agreement. Where layoff notice is issued, the three-week period may run concurrent with the notice period of 13.3(b) or 13.4(b), as applicable.

(2) JWASC shall review all referrals and:

(i) may recommend on the advisability and scope of a pre-layoff canvass;

(ii) may recommend staffing actions such as restricted competitions, under implementation, temporary assignments or secondments; (iii) may recommend to the Principals on the advisability of an Early retirement Incentive Plan; (iv) may refer employees back to the Ministry Joint Committee with recommendation;

(v) identify employee skills, training options and training sources for surplus employees.

(3) This placement process applies to junior regular employees or where appropriate other regular employees within the Ministry, in the classification in the geographic location for placement into vacant positions for which they are qualified.

13.3 Less Than Three Years' Service Seniority

In the event of a layoff, the following shall apply to regular employees with less than three years' service:

(a) Layoff

(1) The employee to be laid off shall be the employee with the least service seniority in the same classification, same ministry and same geographic location.

(2) (i) A regular employee designated for layoff may opt to use Clause 13.4(c)(2)(i)

and (ii) providing the employee exercising such an option has the qualifications to meet the requirements of the job. (ii) If there are no vacancies available an employee promoted from another position within the same ministry and geographic location may opt to displace the employee currently filling the position originally held by the employee designated for layoff, providing the employee exercising such a displacement option has greater seniority and is qualified and able to perform the job after a period of familiarization. (iii) If an employee is not placed through the option of (a)(2)(ii) above, then they may opt to displace the junior employee currently filling a position within that classification originally held, providing the employee exercising this displacement option has greater seniority and is qualified and able to perform the job after a period of familiarization. This option shall be exercised only within the same ministry and same geographic location.

(iv) The employee displaced pursuant to (ii) or (iii) shall have the options contained in (i).

(3) Upon layoff, a regular employee will have the option of displacing the most senior auxiliary employee in the Ministry, within the same geographic location and going onto auxiliary recall lists within the Ministry within the geographic location.

(4) A regular employee who chooses to go onto the auxiliary recall list pursuant to this section, shall retain their regular status unless they fail to maintain 1200 hours worked at the straight-time rate within the previous 26 pay periods except as provided under Article 21 - Maternity, Parental and Pre-Adoption Leave; but a regular employee recalled to auxiliary work will be considered to have auxiliary status for purposes of Clauses 15.3 and 15.4 of the Main Agreement, the vacation scheduling provisions of component agreements and notice of layoff as specified in (b) below. Where an employee loses regular status by failing to maintain 1200 hours in 26 pay periods as referenced above, their previous regular service seniority shall be credited as auxiliary seniority for the purposes of layoff and recall only. Calculation shall be based on 1827 hours of auxiliary seniority per year of regular service seniority (prorated for partial years).

(5) Notwithstanding (1), (2) and (3) above, regular employees to be retained shall be qualified and able to perform the work which is available after a period of familiarization.

(b) The Employer shall notify regular employees, in writing, who are to be laid off, 20 workdays prior to the effective date of layoff. Copies of such notifications will be forwarded to the Union. If the employee has not had the opportunity to work 20 full days after notice of layoff, they shall be paid in lieu of work for that part of the 20 days during which work was not made available.

(c) An employee shall not accumulate seniority while on layoff.

(d) Providing regular status is maintained pursuant to (a)(4) above, a regular employee with service seniority of less than three years and who is laid off, will be placed on a recall list for the purposes of recall to a regular position within the Ministry in the geographic location from which the employee has been laid off.

(e) Recall of regular employees shall be in order of service seniority providing the employee is qualified and able to perform the work which is available after a period of familiarization. Recall to available work of six months or longer duration shall be considered to be "regular" recall under this section rather than "auxiliary" recall under Clause 31.5 or (3) above. An employee who declines an offer pursuant to this paragraph shall be deemed to have resigned but may, if eligible, claim early retirement.

(f) Severance Pay

(1) An employee may opt for severance pay on the date the layoff was scheduled to occur, in which case they shall be deemed to have resigned.

(2) A regular employee who has elected severance pay pursuant to this article shall be entitled to severance pay in an amount equal to three weeks' pay for every year (1827 hours at straight-time rate) of regular service seniority or major part thereof.

13.4 Layoff - Three or More Years of Service Seniority

In the event of a layoff of employees with three or more years' seniority, the following shall apply:

(a) Where the employee's position is relocated, they shall be offered the position in the new location. An employee may decline an offer pursuant to this section.

(b) The Employer shall notify employees affected by Clause 13.4, in writing, at least six weeks prior

location, and with a salary or maximum step pay range the same as their existing position, they shall claim early retirement or severance pay as outlined in Clause 13.4(i).

(3) If an employee refuses a maximum of two job offers in a different geographic location or with a salary or maximum step pay range comparable to their existing position they shall claim early retirement or severance pay as outlined in Clause 13.4(i).

(4) An employee who fails to elect between early retirement or severance pay in (2) and (3) above shall be paid severance pay as outlined in Clause 13.4(i).

(e) In all cases, the regular employee must possess the qualifications as determined by the Joint Committee, to perform the work available.

(f) Retraining and Adjustment Period

(1) Employees who assume a new position pursuant to this article will receive job orientation, including, where deemed appropriate by the Joint Committee, current in-service training, and shall be allowed a reasonable time to familiarize themselves with their new duties.

(2) In those circumstances where an employee is being placed in a regular vacancy, the Joint Committee shall also consider other training where it is complementary to current in-service training.

(3) Employees involved in training under this section shall receive their basic pay for the period of training, the cost of tuition and the cost of course-related materials.

(g) Early Retirement

A regular employee who is age 55 years or older and is entitled to receive a pension under the Public Service Pension Plan Rules, as of the effective date of layoff, and who has opted for and is entitled to severance pay pursuant to this article shall, upon application, be entitled to purchase all or part of any eligible service for which no contributions were made, as permitted by the Public Service Pension Plan Rules.

(h) Pay Out of Sick Leave

When an employee age 55 or older opts for severance pay or early retirement, they will also qualify in accordance with the Main Agreement, for an amount equal to 50% of accumulated sick leave credits on the date of severance or retirement.

(i) Severance Pay

Prior to the expiry of the Notice of Layoff, or within 30 days of refusing job offers in accordance with Clause 13.4(d), a regular employee with greater seniority than three years will be entitled to resign with severance pay based upon three weeks current salary for each year (1827 hours at straight-time rate) of regular service seniority or major part thereof.

The employee will not receive an amount greater than 12 months current salary.

(j) Subject to Clause 13.4(d), employees shall remain at work and on pay until the steps under Clause 13.4(c)(2) are completed provided the employee:

- (1) has co-operated in the placement process; and,
- (2) has opted for displacement; and,
- (3) has not opted to use Clause 13.4(c)(6).

The above provisions of paragraph (j) do not apply to employees who receive a layoff notice resulting from a seasonal reduction in the amount of work required to be done by the Employer.

(k) Employees who relocate pursuant to Clause 13.4 shall be entitled to relocation expenses in accordance with Clause 27.16.

13.5 Joint Committee

(a) A joint committee shall be constituted to provide for continuing consultation and cooperation between the parties with respect to the relocation, training and placement of employees who have three or more years of seniority and who are subject to layoff.

(b) (1) The Joint Committee shall consist of five representatives, two appointed by the Union, two appointed by the Employer, and a chairperson.

(2) The Chairperson shall be appointed jointly by the parties.

(3) The Committee shall meet as required during working hours and leave without loss of pay shall be granted to committee members. Minutes shall be taken of all meetings and copies of such minutes shall be provided to the Employer and the Union.

(c) The Union and the Employer representatives on the Committee shall have the authority to waive by mutual agreement any portion of Article 13 where it is considered by them to be fair and equitable, provided such waiver is also with agreement of the employee who is seeking placement via the Joint Committee.

(d) The Employer will make available to the Committee a monthly list of vacant positions by ministry and geographic location and a list of the employees issued notices, laid off, retired, received severance pay, or placed pursuant to Article 13, by classification, ministry and geographic location.

(e) The Joint Committee shall establish a schedule of comparable classifications.

(f) The Chairperson of the Committee shall, at the request of either party, sit as an arbitrator over all disputes pertaining to the application or interpretation of Article 13 after the parties have reviewed and attempted to resolve the dispute.

(g) The Employer agrees to supply the Joint Committee with as much notice as possible of expected employees to be designated for layoff. For the purposes of this clause, and where the Committee considers it appropriate, the following definition of "comparable" may be used to effect a placement: "comparable" includes a job with a salary range not more than four grid levels below or one grid level above the employee's original classification. Where this definition is used, an employee shall not utilize the displacement/bumping options to obtain a promotion.

ARTICLE 14 - HOURS OF WORK

14.1 Hours of Work

The annual hours of work exclusive of meal periods taken away from the workstation but including paid holidays will be 1827, which is equivalent to an average of 35 hours per week. The 1827 annual hours means that all work schedules will be based on that figure. Due to varying lengths of the calendar and work years and the varying times that employees may begin and end their work schedules, an employee will be required to work an average of 1827 hours.

14.2 Work Schedules

(a) Component agreements shall establish shift patterns, length of scheduled workdays and, where appropriate, averaging periods to meet the annual hours of work.

(b) The Employer shall determine, pursuant to the appropriate statutory authority, when various services are provided (hours of operation), the classifications of positions and the numbers of employees required to provide the services.

(c) The Employer's designate and the union steward at the local level will establish work schedules based upon the shift patterns and hours of work clauses in the relevant component agreement and the provisions of this article including the following:

(1) if either party wishes a change to existing work schedules it shall provide the other party with the earliest possible advance notice in writing;

(2) if a change is requested only at the local level, the notice shall be given to the appropriate union steward or designated employer representative. If a change is requested which involves more than one worksite, notice shall be given to the President of the Union or designated ministry official;

(3) the parties shall have 14 days, from the date notice is given to reach agreement on work schedules;

(4) if the parties are unable to reach agreement within 14 days either party may refer the matter to an Hours of Work Umpire on the appropriate form through the Union or the BC Public Service Agency.

(d) The Employer and the Union shall agree on a list of persons designated as "Hours of Work Umpires" who shall resolve hours of work disputes in accordance with the provisions of the Main and component agreements.

(e) (1) The Umpire shall have 14 days, which may be extended by mutual agreement of the Principals by a further seven days, in which to bring in a decision.

(2) The Umpire shall base their decision on work schedule information in the relevant component agreement and the criteria to be applied in this section. The Umpire may consider a work schedule proposed by either party, however only work schedules which are consistent with the relevant component agreement may be considered.

(3) The party requesting a change from what has been previously agreed to shall bear the onus for justifying the change.

(4) In coming to a decision, the Umpire shall abide by the following rules:

(i) the decision must not be retroactive;

(ii) the hours of work schedule awarded shall not contain scheduled overtime; (iii) the decision must not interpret the Main or Component collective agreements except for the provisions of Clauses 14.2(e)(4) and 14.2(f).

(f) The parties recognize that in reaching mutual agreement on work schedules, or where the Umpire is determining a schedule in accordance with the provisions of this article the following will also apply:

(1) work schedules shall meet the hours of operation and shall consider unusual or seasonal demands and functionally linked work groups within and without the bargaining unit;

(2) work schedule changes, within existing hours of operation, must not result in increased cost to the Employer and where possible shall result in decreased cost to the Employer and/or improved efficiency and/or improved service to the public. The onus of proof shall be on the Employer to prove decreased cost;

(3) consideration shall also be given to employee preferences, fairness and equity.

(g) (1) In the event there is a dispute between the parties at the local level, the Employer may

implement, on an interim basis, a new or changed work schedule by giving 14 days' notice, providing the length of workday is not increased beyond nine hours and providing the change is necessary because of an introduction of a new program or a change to the hours of operation. However, under extenuating circumstances the 14 days' notice may be concurrent with the period of notice in (c)(3) above.

(2) Where the proposed change is within existing hours of operation, no change shall be made without mutual agreement or an umpire's decision.

(h) Either party may grieve an Hours of Work Umpire decision made pursuant to Clause 14.2 on the grounds that the award contravenes the requirements of Clause 14.2(e) or Clause 14.2(f). The grievance may be filed to a mutually agreed upon Hours of Work Arbitrator within 14 days of the receipt of the Umpire's award. The Hours of Work Arbitrator shall render a decision within 14 days of the conclusion of the hearing.

(i) If any of the provisions of this article are in conflict with, or are restricted by, any provision of a component agreement, the provisions of this article will apply.

14.3 Conversion of Hours

(a) Lieu days - where an employee is granted a lieu day pursuant to Clauses 17.3 or 17.4, the time off granted will be seven hours per lieu day for a full-time employee and prorated for a part-time employee.

(b) Vacation - where an employee is granted vacation pursuant to Clause 18.1, the annual vacation entitlement shall be converted to hours on the basis of a seven-hour day and vacation taken shall be deducted in accordance with the actual hours of the employee's daily shift in effect at the time the vacation is taken.

(c) Designated paid holidays - where an employee is granted a designated paid holiday pursuant to Article 17 - Paid Holidays, the time off granted will be seven hours per designated paid holiday for a full-time employee and prorated for a part-time employee. Where the scheduled workday exceeds seven hours, the resulting difference shall be included in the work schedules established pursuant to Clause 14.2.

14.4 Rest Periods

(a) All employees shall have two, 15-minute rest periods in each work period in excess of six hours, one rest period to be granted before and one after the meal period. Employees working a shift of three and one-half hours, but not more than six hours, shall receive one rest period during such a shift. Rest periods shall not begin until one hour after the commencement of work or not later than one hour before either the meal period or the end of the shift. Rest periods shall be taken without loss of pay to the employees.

(b) An employee unable to take their rest period because the Employer directs them for operational reasons to work through their rest period shall be credited with the missed rest period at straight-time rates in the form of ETO/CTO if the Employer prevented them from taking the rest period by the end of that workday.

14.5 Standby Provisions

(a) Where employees are required to stand by to be called for duty under conditions which restrict their normal off-duty activities, they shall be compensated at straight-time in the proportion of one hour's pay for each three hours standing by. An employee designated for standby shall be immediately available for duty during the period of standby at a known telephone number. No standby payment shall be made if an employee is unable to be contacted or to report for duty when required. The provisions of this clause do not apply to part-time employees who are not assigned a regular work schedule and who are normally required to work whenever called.

(b) Employees on standby in a relief operation, such as a staffing pool, shall be compensated one day's basic pay for 12 hours' standing by. Where the time spent on standby is followed by a full shift being worked, employees shall be compensated at the straight-time rate in the proportion of one hour's pay for each four hours of standing by in addition to their normal day's pay with a minimum of one hour's standby.

(c) Employees required to stand by under (a) above will not be required to stand by on two consecutive weekends or two consecutive designated paid holidays, except by mutual agreement. This provision will not apply in emergency situations.

14.6 Meal Periods

The scheduling and length of meal periods shall be in accordance with the provisions of the Component Agreement.

14.7 Points of Assembly and Work Start Times

(a) Where a work unit is staffed by employees who are members of more than one component and where there is a work dependency between such employees, the start time shall be established for the members of the Component having the largest representation in the work unit.

(b) If one or more of the Components in the work unit has a point of assembly negotiated in a component agreement and there is a work dependency between such employees, then the point of assembly for all employees in the work unit shall be as negotiated for the members of the Component having the largest representation in the work unit.

14.8 Flextime

(a) For the purpose of this agreement, flextime means the hours worked by an employee, or a group of employees, who are given authority to:

- (1) choose their starting and finishing times; and,
- (2) choose their length of workday within a stated maximum number of hours, subject to meeting the required annual hours of work in accordance with this agreement, through a specified averaging period which shall be determined at the Component level.

(b) The full-time employee on flextime who has a day of absence, whether with or without pay, will be deemed to be absent for seven hours, providing at least seven hours are required to complete the averaging period. If less than seven hours are required to complete the averaging period, such number of hours will be deemed to be hours of absence.

14.9 Scheduling of Earned Days Off

Notwithstanding any existing hours of work agreement, the earned days off for all positions and classifications in the Public Service resulting from a modified workweek and/or shift pattern shall be scheduled evenly throughout the days of the workweek at the local level for all new employees to improve service delivery when approved by an Assistant Deputy Minister, or equivalent. Such scheduling shall be on the basis of seniority. The Employer will provide the Union with at least 60 days' notice of implementing this clause. New employees are all of those employees, including existing bargaining unit employees, hired at the local level after the notice is given. Once scheduled, an employee's earned day off will not be changed without mutual agreement with the employee.

ARTICLE 15 - SHIFT WORK

15.1 Definition of Shifts and Shift Premiums

(a) Identification of Shifts:

(1) day shift - all hours worked on any shift which starts between 4:30 a.m. and 1:59 p.m. inclusive;

(2) afternoon shift - all hours worked on any shift which starts between 2:00 p.m. and 8:59 p.m. inclusive;

(3) night shift - all hours worked on any shift which starts between 9:00 p.m. and 4:29 a.m. inclusive.

(b) Shift Premium (full-time employees):

Effective dates	Afternoon shift	Night Shift April 1, 2025			
\$1.71	\$1.82 April 1, 2027	\$1.76	\$1.87 April 1, 2028	\$1.66	\$1.77 April 1, 2026
				\$1.81	\$1.93

15.2 Shift Premium Entitlement

(a) Employees working an afternoon or night shift as identified in Clauses 15.1(a)(2) and 15.1(a)(3) shall receive a shift premium for all hours worked on the shift.

(b) An employee working a full shift which begins between 11:00 a.m. and 1:59 p.m. inclusive shall receive the afternoon shift premium for all hours worked after 2:00 p.m.

(c) A part-time employee working less than the normal hours per day of a full-time employee will receive the afternoon shift premium for all hours worked on a shift more than half of which is regularly scheduled between 6:00 p.m. and 6:00 a.m., except that an employee regularly scheduled to start between 10:00 p.m. and 2:00 a.m. will receive instead the night shift premium.

(d) Employees covered by flextime and/or modified workweek agreements who, by their own volition, choose to begin their shift at a time which would qualify them for a shift premium shall not be entitled to the premium. Employees who are required to begin their shift at a time which would qualify them for a shift premium in accordance with the above provisions shall receive the appropriate premium.

(e) Shift premiums will apply to overtime hours worked in conjunction with a shift. An employee who is called out between 9:00 p.m. and 4:29 a.m. shall receive the night shift premium for each hour worked during the callout period up to the commencement of their regularly scheduled shift.

15.3 Notice of Work Schedules

(a) Work schedules for regular employees shall be posted at least 14 days in advance of the starting day of a new schedule.

(b) In the event that the work schedule or shift for a regular employee or an auxiliary employee working a scheduled shift roster is changed without 48 hours' advance notice and such change is the result of the actions of another employee covered by this agreement utilizing the benefits provided for by the provisions of this agreement, the employee will receive a premium of 85¢ per hour in addition to their regular pay, for work performed on the first shift to which they changed.

(c) In the event that an employee's work schedule or shift is changed without five days advance notice and the change results from causes other than defined in (b) above, the employee shall receive a premium at the applicable overtime rate for work performed on the first shift to which they changed, except that if the change results from no fault of the Employer they shall not receive a premium at overtime rates but shall receive the premium defined under (b) above.

15.4 Short Changeover Premium

(a) If shifts are scheduled so that there are not 24 hours between the start of an employee's shift and the start of their next shift, a premium calculated at the overtime rates will be paid for hours worked on the succeeding shift within the 24-hour period.

(b) Where an employee exercises seniority rights to work shifts, one of which falls within the 24-hour period from the start of the previous shift, the employee shall not be entitled to claim the premium rate referred to in (a) above.

15.5 Exchange of Shifts

Employees may exchange shifts with the approval of the Employer, provided that, whenever possible, sufficient advance notice in writing is given and provided that there is no increase in cost to the Employer.

15.6 Shortfall of Annual Working Hours

There shall be no payback for shortfall of annual working hours in the shift systems determined in the Component Agreement.

ARTICLE 16 - OVERTIME

16.1 Definitions

(a) "Overtime" - means work performed by a full-time employee in excess or outside of their regularly scheduled hours of work.

(b) "Straight-time rate" - means the hourly rate of remuneration.

(c) "Time and one-half" - means one and one-half times the straight-time rate.

(d) "Double-time" - means twice the straight-time rate.

(e) "Double-time and one-half" - means two and one-half times the straight-time rate.

16.2 Authorization and Application of Overtime

(a) An employee who is required to work overtime shall be entitled to overtime compensation when:

(1) the overtime worked is authorized in advance by the Employer; and,

(2) the employee does not control the duration of the overtime worked.

(b) Notwithstanding the foregoing, the Employer and the Union recognize that the nature of the work carried out by persons in some classifications is such that it may not be possible for the employee to obtain prior authorization for the necessary overtime work. In such cases the employee shall use their discretion in working the overtime and the Employer shall be considered to have authorized the overtime in advance. However, the Employer reserves the right, subject to the grievance procedure, to determine the legitimacy of the overtime claimed. In order to facilitate a fair and reasonable administration of the clause, the Ministry will draw up regulations defining the circumstances under which an employee may undertake overtime work without prior authorization. Copies of these regulations will be supplied to the Ministry Joint Committee.

(c) The method of compensation for overtime shall be in accordance with the Component Agreement.

16.3 Overtime Entitlement

- (a) An employee will be entitled to compensation for authorized overtime in excess of:
 - (1) the scheduled daily hours; or
 - (2) the maximum daily hours for those employees on flextime; or
 - (3) the agreed averaging period.
- (b) For the purposes of calculating the hourly rate for overtime, an employee's biweekly rate shall be divided by 70.
- (c) Overtime shall be compensated in 30-minute increments; however, employees shall not be entitled to any compensation for periods of overtime of less than five minutes per day.

16.4 Recording of Overtime

Employees shall record starting and finishing times for overtime worked in a form determined by the Employer.

16.5 Sharing of Overtime

Overtime work shall be allocated equitably to qualified employees considering their availability and location.

16.6 Overtime Compensation

- (a) Overtime worked shall be compensated at the following rates:
 - (1) time and one-half for the first two hours of overtime on a regularly scheduled workday; and,
 - (2) double-time for hours worked in excess of the two hours referred to in (1) above;
 - (3) double-time for all hours worked on a day of rest.
- The compensation of overtime in (1) and (2) is to be on a daily basis and not cumulative.

(b) An employee who works on a designated holiday which is not a scheduled workday shall be considered to have worked overtime and shall receive their regular day's pay, and shall receive additional compensation at the rate of double-time for all hours worked; except for Christmas and New Year's when the additional compensation shall be at the rate of double-time and one-half for all hours worked.

(c) An employee on travel status who is required to travel on government business outside their regular working hours shall be compensated at the applicable overtime rates for all hours travelled. The Employer may determine the means of such travel.

(d) (1) Overtime shall be compensated either in cash or time off, or a combination of both, as provided in the Component Agreement.

(2) Accumulated overtime shall be paid in cash at the fiscal year-end or on such other date(s) as provided in the Component Agreement, or upon termination.

16.7 Overtime Meal Allowance

(a) When an employee is required to work in excess of two and one-half hours overtime immediately before or after completion of their scheduled daily hours, they shall be provided with a meal or shall be reimbursed with an overtime meal allowance, and a meal break of one-half hour with pay will be given. The overtime meal allowance shall be \$18.01 effective April 1, 2025; \$18.55 effective April 1, 2026; \$19.11 effective April 1, 2027, and \$19.68 effective April 1, 2028.

(b) If the employee continues to work overtime beyond three hours, a further meal or allowance and meal break as above shall be provided upon completion of an additional four hours worked, and upon the completion of every three hours worked thereafter.

(c) When an employee is not on standby and is called out for overtime prior to their scheduled shift and it was not possible to give sufficient notice ¹ to permit preparation of the meal normally taken to work, the Employer shall provide the meal or pay the overtime meal allowance.

(d) In the case of an employee called out on overtime to work on a rest day, this clause will apply only to hours worked outside their regular shift times for a normal workday.

(e) Where any of the meals provided under (a), (b), (c) or (d) above duplicates a meal to which an employee is entitled because of travel status or field allowance, then the employee shall receive only one benefit for each meal.

¹ Sufficient notice means one-half hour to permit preparation of the meal normally taken to work.

16.8 No Layoff to Compensate for Overtime

Employees shall not be required to layoff during regular hours to equalize any overtime worked.

16.9 Right to Refuse Overtime

(a) All employees shall have the right to refuse to work overtime, except when required to do so in emergency situations, without being subject to disciplinary action for so refusing.

(b) An employee on standby shall not have the right to refuse callout for overtime work.

16.10 Overtime for Part-Time Employees

(a) A part-time employee working less than the normal hours per day of a full-time employee, and who is required to work longer than their regular workday, shall be paid at the rate of straight-time for the hours so worked, up to and including the normal hours in the workday of a full-time employee.

(b) A part-time employee working less than the normal days per week of a full-time employee, and who is required to work other than their regularly scheduled workdays, shall be paid at the rate of straight-time for the days so worked up to and including the normal workdays in the workweek of a full-time employee.

(c) Overtime rates shall apply to hours worked in excess of (a) and (b) above.

16.11 Callout Provisions

(a) Callout Compensation - A regular employee who is called back to work outside their regular working hours shall be compensated for a minimum of three hours at overtime rates. They shall be compensated from the time they leave their home to report for duty until the time they arrive back upon proceeding directly to and from work.

(b) Callout Time Which Abuts the Succeeding Shift:

(1) If the callout is for three hours or less, the employee will be required to work the callout period and the whole of the abutting shift. In this case, compensation shall be overtime rates for the callout period and straight-time rate for the regular shift.

(2) If the callout is for longer than three hours, the employee will be required to work the

callout period and a portion of the abutting regular shift. The portion of the regular shift which must be worked will be regular shift less the amount that callout exceeds three hours. Compensation shall be at overtime rates for the callout period and straight-time for the regular shift without shortfall.

(3) For the purpose of (1) above it is agreed that "callout" means that an employee has been called out without prior notice.

(c) Overtime or Callout Which Does not Abut the Succeeding Shift:

(1) When overtime is worked there shall be an elapsed time of eight hours between the end of overtime and the time the employee reports for duty on the next regular shift, with no shortfall out of their regular shift.

(2) In a callout situation where at least three hours which do not abut the succeeding shift are worked in the 10 hours preceding the start of the regular shift, there shall be an elapsed time of eight hours between the end of callout and the time the employee reports for duty on their next regular shift, with no shortfall out of the regular shift.

(3) If the elapsed eight-hour period following results in only two hours or less of their regular shift available for work, employees shall not be required to report for work on that shift, with no shortfall.

(d) Time spent by an employee travelling to work or returning to their residence before and after callout shall not constitute time worked but shall be compensated at the overtime rate.

(e) Should the employee be required to work that period which is considered free from work in the regular shift, as provided for in (b)(2), (c)(1), and (c)(2) above, then that portion of the shift shall be compensated at overtime rates.

(f) An auxiliary employee who is called back to work in a circumstance such that they would be entitled to overtime compensation for the time worked, shall also be entitled to the provision of (a) above.

16.12 Rest Interval After Overtime

An employee required to work overtime adjoining their regularly scheduled shift shall be entitled to eight clear hours between the end of the overtime work and the start of their next regular shift. If eight clear hours are not provided, a premium calculated at overtime rates shall apply to hours worked on the next regular shift.

ARTICLE 17 - PAID HOLIDAYS

17.1 Paid Holidays

(a) The following have been designated as paid holidays:

New Year's Day	Labour Day	Family Day	Day of Truth and Reconciliation	Good Friday
Thanksgiving Day	Easter Monday	Remembrance Day	Queen's Birthday	Christmas Day
Boxing Day	BC Day			Canada Day

(b) Any other day proclaimed as a holiday by the federal, provincial, or municipal governments for the locality in which an employee is working shall also be a paid holiday.

17.2 Holidays Falling on Saturday or Sunday

(a) For an employee whose workweek is from Monday to Friday and when any of the above-noted

holidays fall on a Saturday and is not proclaimed as observed on some other day, the following Monday shall be deemed to be the holiday for the purpose of this agreement; and when a holiday falls on a Sunday and it is not proclaimed as being observed on some other day, the following Monday (or Tuesday, where the preceding section already applies to the Monday), shall be deemed to be the holiday for the purpose of this agreement.

(b) Where there is a work dependency between employees covered by this agreement and private sector employees, the parties may, by mutual agreement, amend (a) above.

17.3 Holiday Falling on a Day of Rest

(a) When a paid holiday falls on an employee's day of rest, the employee shall be entitled to a day off with pay in lieu. The scheduling of such lieu day shall be subject to component negotiations.

(b) If an employee is called in to work on the day designated as the lieu day pursuant to (a) above, they shall be compensated at double-time rate.

17.4 Holiday Falling on a Scheduled Workday

An employee who works on a designated holiday which is a scheduled workday shall be compensated at the rate of double-time for hours worked, plus a day off in lieu of the holiday; except for Christmas and New Year's when the compensation shall be at the rate of double-time and one-half for hours worked, plus a day off in lieu of the holiday. The scheduling of the lieu day shall be subject to component negotiations.

17.5 Holiday Coinciding With a Day of Vacation

Where an employee is on vacation leave and a paid holiday falls within that period, the paid holiday shall not count as a day of vacation.

17.6 Christmas or New Year's Day Off

The Employer agrees to make every reasonable effort to ensure that employees required to work shift shall have at least Christmas Day or the following New Year's Day off.

17.7 Paid Holiday Pay

Payment for paid holidays will be made at an employee's basic pay, except if an employee has been working in a higher paid position than their regular position for a majority of the 60 workdays preceding a paid holiday, in which case they shall receive the higher rate. For employees who work in excess of seven hours per day, they shall receive the higher rate if they have been working in a higher paid position for a majority of the 420 working hours preceding a paid holiday.

ARTICLE 18 - ANNUAL VACATIONS

18.1 Annual Vacation Entitlement

(a) Definitions:

"Vacation year" - for the purposes of this article a vacation year shall be the calendar year commencing January 1 and ending December 31. "First vacation year" - the first vacation year is the calendar year in which the employee's first anniversary falls.

(b) A regular full-time employee who has received at least 10 days' pay at straight-time rates for each

calendar month will have an annual vacation entitlement as follows: Vacation Years	Workdays First
to Second 15 Third 16 Fourth..... 17	
Fifth 19 Sixth 20 Seventh	
..... 20 Eighth 22 Ninth 23	
Tenth 24	
Eleventh 25 Twelfth 26 Thirteenth to fifteenth	
27 Sixteenth to eighteenth 28 Nineteenth 29 Twentieth	
..... 31 Twenty-first 32 Twenty-second..... 33	
Twenty-third and twenty-fourth..... 34 Twenty-fifth and thereafter	35

(c) Conversion of Hours - where an employee is granted vacation pursuant to this article, and where the regularly scheduled workday is greater than seven hours per day, the annual vacation entitlement shall be converted to hours on the basis of a seven-hour day and deducted accordingly.

(d) Employees engaged on a part-time basis shall be entitled to annual vacation on a pro rata basis as above.

18.2 Vacation Earnings for Partial Years

(a) During the first partial year of service a new employee will earn vacation at the rate of one and one-quarter days for each month for which they earn 10 days' pay.

(b) During the first and subsequent vacation years an employee will earn one-twelfth of the annual entitlement for each month in which the employee has received at least 10 days' pay at straight-time rates. Where an employee has taken more vacation than earned, the unearned portion taken shall be charged against future earned credits or recovered upon termination whichever occurs first.

18.3 Vacation Scheduling

(a) With the exception of authorized vacation carryover under Clause 18.6, the scheduling and completion of vacations shall be on a calendar-year basis.

(b) The calendar year in which an employee's first anniversary falls shall be the first vacation year. For the purpose of additional leave entitlement, the calendar year in which the fifth anniversary falls shall be the fifth vacation year; in which the sixth anniversary falls shall be the sixth vacation year; etc.

(c) During the first six months of continuous employment an employee may, subject to mutual agreement at the local level, take vacation leave which has been earned.

(d) Scheduling of vacation shall be subject to the provisions of the applicable component agreement.

(e) Vacation schedules, once approved by the Employer, shall not be changed, other than in cases of emergency, except by mutual agreement between the employee and the Employer. Employee requests for changes in a previously approved vacation schedule shall not be unreasonably withheld and approval is subject to operational requirements.

(f) Upon resignation, vacation credits that have been utilized yet not earned are understood to be owed to the Employer and must be reimbursed. Overdrawn vacation credits may be offset against wages or other monies owed to the employee.

(g) Upon acceptance to the Long-Term Disability Benefit Plan, vacation credits that have been utilized

yet not earned are understood to be owed to the Employer and must be reimbursed. Overdrawn vacation credits may be offset against wages or other monies owed to the employee.

18.4 Vacation Pay

(a) Payment for vacations will be made at an employee's basic pay, except if an employee has been working in a higher paid position than their regular position for a majority of their regularly scheduled hours in the 60 workdays preceding their vacation, in which case they shall receive the higher rate.

(b) When a payday falls during a regular employee's vacation, the employee shall be entitled to have the paycheck forwarded to a mailing address supplied by the employee in writing.

18.5 Approved Leave of Absence With Pay

When an employee is hospitalized or under a physician's care and in receipt of the Short-Term Illness and Injury Plan benefits or on leave with pay in accordance with Clauses 20.1, 20.5, 20.7 and 20.8 during their vacation period, there shall be no deduction from the vacation credits for such leave. The period of vacation so displaced shall be taken at a mutually agreed time. An employee intending to claim displaced vacation leave must advise the Employer and provide necessary documentation within seven days of returning to work.

18.6 Vacation Carryover

(a) An employee may carry over up to 10 days' vacation leave per vacation year except that such vacation carryover shall not exceed 10 days at any time. An employee shall not receive cash in lieu of vacation time except upon termination, resignation or retirement.

(b) A single vacation period which overlaps the end of a calendar year (December 31) shall be considered as vacation for the vacation year in which the vacation commenced. The portion of vacation taken subsequent to but adjoining December 31 shall not be considered as vacation carryover, nor as a seniority choice for the subsequent vacation year.

18.7 Callback From Vacation

(a) Employees who have commenced their annual vacation shall not be called back to work, except in cases of extreme emergency.

(b) When, during any vacation period, an employee is recalled to duty, they shall be reimbursed for all expenses incurred by themselves, in proceeding to their place of duty and in returning to the place from which they were recalled upon resumption of vacation, upon submission of receipts (except for meals) to the Employer. Where an employee's spouse and/or dependent children also return from vacation due to the recall of the employee, they shall be reimbursed for reasonable expenses incurred in returning home.

(c) Time necessary for travel in returning to their place of duty and returning again to the place from which they were recalled shall not be counted against their remaining vacation entitlement.

18.8 Vacation Leave on Retirement

An employee scheduled to retire and to receive pension benefits under the Public Service Pension Plan Rules shall be granted full vacation entitlement for the final calendar year of service.

18.9 Vacation Credits Upon Death

Earned but unused vacation entitlement shall be made payable, upon termination due to death, to the employee's dependent, or where there is no dependent, to the employee's estate.

18.10 Recognition of Prior Vacation Year Upon Re-Employment

A regular employee who is re-employed will have their vacation year attained prior to voluntary termination or layoff recognized if their break in employment was:

- (a) voluntary termination (i.e. resignation or retirement); or
- (b) being on layoff for more than one year; or
- (c) becoming an auxiliary employee.

The foregoing applies notwithstanding Clauses 11.3, 11.4, 11.5 and 18.1.

ARTICLE 19 - SHORT-TERM ILLNESS AND INJURY AND LONG-TERM DISABILITY

Employees shall be entitled to coverage for short-term illness and injury and long-term disability in

accordance with agreed-upon regulations which will be subject to review and revision during the period of this agreement by negotiations between the parties and included as Appendix 4 - Short-Term and Long-Term Disability.

ARTICLE 20 - SPECIAL AND OTHER LEAVE

20.1 Bereavement Leave

(a) In the case of death in the immediate family an employee not on leave of absence without pay shall be entitled to special leave, at their regular rate of pay. The leave will include the date of the funeral or the date of death with, if necessary, an allowance for immediate return travelling time. Such leave shall normally not exceed five workdays. It is understood that the employee has the ability to split the five day entitlement between the date of death and the date of the funeral.

(b) Immediate family is defined as an employee's parent, stepparent, spouse, child, stepchild, grandchild, foster child in the care of the employee, sibling, stepsibling, parent-in-law. Any relative permanently residing in the employee's household or with whom the employee permanently resides is also considered to be immediate family.

(c) In the event of the death of the employee's grandparents, children-in-law, sibling-in-law, the employee shall be entitled to special leave for one day for the purpose of attending the funeral.

(d) If an employee is on vacation leave at the time of bereavement, the employee shall be granted bereavement leave and be credited the appropriate number of days to vacation leave credits.

(e) Where established ethno cultural or religious practices provide for ceremonial occasions other than the bereavement period in (a) above, the balance of the bereavement leave as provided in (a) above, if any, may be taken at the time of the ceremonial occasion.

20.2 Special Leave

(a) Where leave from work is required, an employee shall be entitled to special leave at their regular rate of pay for the following:

- (1) wedding of the employee - two days;
- (2) attend wedding of the employee's child - one day;
- (3) birth of the employee's child - two days;
- (4) serious household or domestic emergency - one day;
- (5) moving household furniture and effects - one day;
- (6) attend their formal hearing to become a Canadian citizen - one day;
- (7) attend funeral as pallbearer or mourner - one-half day;
- (8) court appearance for hearing of employee's child - one day;
- (9) in the case of serious illness or hospitalization of a parent or stepparent of the employee, when no one other than the employee can provide for the needs of the parent or stepparent, and, after notifying their supervisor - two days per calendar year - this may be used in one-half shift increments;
- (10) child custody hearing - one day per calendar year;
- (11) employee or employee's child is a victim of domestic violence - five days per calendar year.

(b) Two weeks' notice is required for leave under (a)(1), (2), (5) and (6).

(c) For the purpose of (a)(2), (4), (5), (6), (7), (8), (9), and (10), leave with pay will be only for the workday on which the situation occurs.

(d) For the purpose of determining eligibility for special leave under (a)(5), an employee will qualify if they are maintaining a self-contained household and if they are changing their place of residence which necessitates the moving of household furniture and effects during their normal workday, and if they have not already qualified for special leave under (a)(5) on two occasions within the preceding 12 months.

(e) For the purpose of special leave under (a)(11), the employee may choose to take the leave with pay intermittently up to three days or in one continuous period.

20.3 Family Illness

(a) In the case of illness or hospitalization of the employee's spouse or a dependent child of an employee, and when no one at the employee's home other than the employee can provide for their needs, the employee shall be entitled, after notifying their supervisor, to use up to a maximum of two days' paid leave at any one time for this purpose. Effective January 1, 2026, an employee shall be entitled to use a maximum of three days paid leave at any one time for this purpose.

(b) The Employer may request a report from a qualified medical practitioner when it appears that a pattern of consistent absence is developing.

(c) For the purpose of this clause, "child" includes a child over the age of 18 residing in the employee's household who is permanently dependent on the employee due to mental or physical impairment.

20.4 Full-Time Public Duties

The Employer shall grant, on written request, leave of absence without pay:

(a) for employees to seek election in a municipal, aboriginal community government, provincial, or federal election for a maximum period of 90 days;

(b) for employees elected to a public office for a maximum period of five years.

20.5 Leave for Court Appearances

(a) The Employer shall grant paid leave to employees, other than employees on leave without pay, who serve as jurors or witnesses in a court action, provided such court action is not occasioned by the employee's private affairs.

(b) In cases where an employee's private affairs have occasioned a court appearance, such leave to attend at court shall be without pay.

(c) An employee in receipt of their regular earnings while serving at court shall remit to the Employer all monies paid to them by the court, except travelling and meal allowances not reimbursed by the Employer.

(d) In the event an accused employee is jailed pending a court appearance, such leave of absence shall be without pay.

(e) For all the above leaves, the employee shall advise their supervisor as soon as they are aware that such leave is required.

20.6 Leave for Writing Examinations

Leave of absence with pay shall be granted to allow employees time to write examinations for courses approved by the Employer. Employees shall advise the Employer of the time and place of the examination when they are made aware of the time and place.

20.7 Leave for Taking Courses

(a) An employee shall be granted leave with pay to take courses at the request of the Employer. The Employer shall bear the full cost of the course, including tuition fees, entrance or registration fees, laboratory fees, and course-required books, necessary travelling and subsistence expenses, and other legitimate expenses where applicable. Fees are to be paid by the Employer when due.

(b) A regular employee may be granted leave without pay, or leave with partial pay, to take courses, including cultural education courses, in which the employee wishes to enroll.

20.8 Educational Leave

Educational leave granted by the Employer to regular employees requesting such leave shall be in accordance with the following provisions:

(a) The duration of educational leave granted to regular employees to take advanced or special training which will be of benefit to the employee or the Employer may be for varying periods up to one year, which may be renewed by mutual agreement.

(b) In certain cases, educational leave may be approved for programs of independent study and (or) research when the criteria for evaluating the employee's performance on such leave can be clearly established and can be shown to be of significant benefit to the employee and the Employer.

(c) Applications for educational leave for periods of four months or longer must be submitted to the appropriate ministry or agency two months prior to the beginning of the requested leave period.

(d) Applications for leave of periods of less than four months should be submitted to the Ministry

with as much lead time as practical.

(e) After consideration by the Ministry, all applications for educational leave of four months or longer shall be forwarded to the Ministry Joint Committee established in Article 29 for review, together with

the decision of the Ministry, no later than two months from the date of submission. If the Committee decides that the Ministry acted on an application for educational leave in a manner which may be in conflict with the established criteria, it may request that the decision be reconsidered. The employee shall be informed of the decision no later than three months from the date of submission. If an application for leave is denied, the employee shall be given the reasons in writing by the Employer. If an employee wishes to grieve the Ministry decision, the grievance shall commence at Step 2 of the grievance procedure.

(f) An employee granted educational leave under this clause shall receive up to 100% of their basic pay.

(g) An employee granted educational leave under this clause shall be required to sign a statement with a copy to the employee to the effect that, on the completion of the training, they will remain in the service of the Province of British Columbia for a period equivalent to three times the length of their educational leave multiplied by the percentage of basic pay.

(h) Should they leave the service of the province before this period expires, they shall refund to the province the total cost of their training including allowances and expenses on a pro rata basis.

(i) An employee granted educational leave without pay shall be required to sign a statement to the effect that on completion of the training they will remain in the service for a period equivalent to the leave granted or refund any financial assistance granted under this clause on a pro rata basis.

(j) Subject to operational requirements and budgetary considerations, educational leave will be granted to the maximum number of employees who make application.

(k) Termination of employment by the employee or by the Employer for just cause will nullify any obligation of assistance by the Employer under this clause.

(l) If an employee fails to return to work on the pre-arranged date without reasonable cause, the employee shall be required to repay in full all monies paid under this clause.

(m) In the event that an individual receives outside support, such as a scholarship, fellowship, or bursary, the total of outside support plus salary support shall not exceed the individual's basic pay for the period of study leave. In the event of such combined support exceeding the basic pay, the excess amount shall be deducted from the employee's salary. It is the responsibility of the employee to report all additional sources of support to the Employer.

20.9 Elections

Any employee eligible to vote in a federal, aboriginal community government, provincial, or municipal election or a referendum shall have three or four consecutive clear hours, as prescribed by the applicable statute, during the hours in which the polls are open in which to cast their ballot.

20.10 General Leave

Notwithstanding any provision for leave in this agreement, the Employer may grant a leave of absence without pay to an employee requesting leave for an emergency or other unusual circumstances. A leave of absence may also be granted for any other reason in which case approval shall not be unreasonably withheld. All requests and approvals for leave shall be in writing. Upon request, the Employer will give written reasons for withholding approval.

20.11 Leave for Medical and Dental Care

- (a) Where it is not possible to schedule medical and/or dental appointments or appointments with a registered midwife outside regularly scheduled working hours, reasonable time off for such appointments for employees or for dependent children shall be permitted, but where any such absence exceeds two hours, the full-time absence shall be charged to the entitlement described in Clause 20.12. "Medical, dental and/or registered midwife appointments" include only those services covered by the BC Medical Services Plan, the Public Service Dental Plan, the Extended Health Benefit Plan and assessment appointments with the Employee and Family Assistance Program.
- (b) Employees in areas where adequate medical and dental facilities are not available shall be allowed to deduct from their credit described in Clause 20.12 the necessary time including travel and treatment time up to a maximum of three days to receive medical and dental care at the nearest medical centre for the employee, their spouse, dependent child and a dependent parent permanently residing in the employee's household or with whom the employee permanently resides. The Employer may request a certificate of a qualified medical or dental practitioner, as the case may be, stating that treatment could not be provided by facilities or services available at the employee's place of residence. An employee on leave provided by this clause shall be entitled to reimbursement of reasonable receipted expenses for accommodation and travel to a maximum of \$606.06 effective April 1, 2024; effective April 1, 2026, the rate shall be \$700 per calendar year.
- (c) An employee otherwise entitled to leave pursuant to (b) above who chooses to travel on a vacation day or a day of rest or to remain at work and not accompany their spouse, dependent child or dependent parent, as provided in (b) above, may claim the reimbursement of receipted expenses under the conditions stipulated.
- (d) Employees in receipt of STIP benefits who would otherwise qualify for leave under this clause shall be eligible to claim expenses in the manner described above.
- (e) Where leave pursuant to (b) above would be reduced, the Employer may approve airfare payment for the employee in lieu of the \$606.06 effective April 1, 2024, reimbursement; effective April 1, 2026, the rate shall be \$700 once per calendar year.
- (f) For the purpose of this clause, "child" includes a child over the age of 18 residing in the employee's household who is permanently dependent on the employee due to mental or physical impairment.

20.12 Maximum Leave Entitlement

Leaves taken under Clauses 20.2, 20.3, 20.11 and 20.21 shall not exceed a total of 70 hours per calendar year, unless additional special leave is approved by the Employer.

20.13 Emergency Service Leave

Where employees' services are required for emergency operations by request from the Provincial Emergency Program or appropriate police authority, leave from work as required may be granted without loss of basic pay. If any remuneration, other than for expenses, is received, it shall be remitted to the Employer.

20.14 Canadian Armed Forces and Canadian Coast Guard Auxiliary

- (a) Employees who participate in activities related to the Reserve Component of the Canadian Armed

Forces may be granted leave of absence as follows:

(1) With pay - where an employee is required to take annual training with Her Majesty's reserve forces provided any remuneration from the Government of Canada is remitted to the Employer;

(2) Without pay - where an employee participates in a program of training for the purpose of qualifying for a higher rank; or

(3) Without pay - where an employee, as a delegate, attends meetings of service associations or conferences related to the Canadian Armed Forces.

(b) Employees who volunteer in activities related to the Canadian Coast Guard Auxiliary may be granted leave of absence without pay to participate in training, or to attend regional association meetings as a board member, or conferences as a delegate. Any remuneration received from the Government of Canada for the purpose of activities related to the Canadian Armed Forces or the Canadian Coast Guard Auxiliary, may be retained by the employee when on leave of absence without pay, or where they choose to use part or all of their annual vacation entitlement for these activities, or where they elect to take leave of absence without pay for annual training as stipulated in (a)(1) above.

20.15 Donor Leave

The Employer and the Union encourage employees to register as organ donors. An employee shall be granted the necessary leave of absence with pay for the purpose of donating bone marrow or an organ.

20.16 Other Religious Observances

(a) Employees who are members of non-Christian religions are entitled to up to three days leave without pay per calendar year to observe spiritual or holy days. Such leave shall not be unreasonably withheld.

(b) A minimum of two weeks' notice is required for leave under this provision. Where two weeks' notice is not possible due to the unpredictable nature of the spiritual or holy days, then as much notice as possible shall be provided.

(c) Employees granted leave under this provision may utilize or reschedule CTO, ETO, unused vacation or lieu days.

20.17 Extended Child Care Leave

Upon completion of maternity, adoption and/or parental leave, including any extension to such leaves, a regular employee will be entitled, upon written application, to a leave of absence without pay to care for the child. Subject to Clause 11.3(a), the following conditions shall apply:

(a) The employee's application shall be submitted to the Employer at least four weeks prior to the expiration of Article 21 - Maternity, Parental and Pre-Adoption Leave.

(b) The combined length of leaves under this clause and under Article 21 shall not exceed 18 months.

(c) The employee's return to work requirements of Clauses 21.8(b) and 21.11 shall be deferred until the expiration of this leave. Notification of return to work and return to work shall be subject to Clause 21.9.

(d) Upon return to work from this leave, the employee shall be placed in their former position or in a position of equal rank and basic pay.

20.18 Compassionate Care Leave

An employee who is entitled to compassionate care benefits under the Employment Insurance Act is entitled to a leave of absence without pay of up to 27 weeks for the purpose of providing care or support to a gravely ill family member at risk of dying within 26 weeks. Notwithstanding Clause 11.3(a), there will be no interruption in the accrual of seniority or eligibility for benefits provided for under Article 25.

20.19 Leave Respecting Death of Child

An employee is entitled to leave of absence without pay of up to 104 weeks if they are entitled to leave respecting death of child under the Employment Standards Act and such leave shall be in accordance with the Employment Standards Act. Notwithstanding Clause 11.3(a), there will be no interruption in the accrual of seniority or eligibility for benefits provided for under Article 25.

20.20 Leave Respecting Disappearance of Child

An employee is entitled to a leave of absence without pay of up to 52 weeks if they are entitled to leave respecting disappearance of child under the Employment Standards Act and such leave shall be in accordance with the Employment Standards Act. Notwithstanding Clause 11.3(a), there will be no interruption in the accrual of seniority or eligibility for benefits provided for under Article 25.

20.21 Supplemental Leave

(*)An employee shall be entitled to two days of supplemental leave at their regular rate of pay per calendar year. These days are subject to operational requirements and cannot be attached to other leaves of absence, including vacation and paid statutory holidays. This may be used in one-half shift increments. Effective April 1, 2026, these days may be attached to paid statutory holidays.

20.22 Cultural Leave for Indigenous Employees

(a) Indigenous employees are entitled to up to two days leave with pay per calendar year to observe or participate in traditional Indigenous activities that connect these employees to their culture and language.

(b) A minimum of two weeks' notice is required for leave under this provision. Where two weeks' notice is not possible due to the unpredictable nature of the event, then as much notice as possible shall be provided. Such leave shall not be unreasonably withheld.

ARTICLE 21 - MATERNITY, PARENTAL AND PRE-ADOPTION LEAVE

21.1 Maternity Leave

(a) An employee is entitled to maternity leave of up to 17 consecutive weeks without pay.

(b) An employee shall notify the Employer in writing of the expected date of birth. Such notice will be given at least 10 weeks prior to the expected date of birth.

(c) The period of maternity leave may commence up to thirteen weeks prior to the expected date of birth.

(d) If an employee is absent because they are not able to perform their full duties within the six weeks

leading up to the birth and the employee does not return to work before the birth, then the maternity leave is deemed to have commenced on the first day of the absence. The Employer may require the employee to provide a note from a duly qualified medical practitioner or registered midwife regarding the absence and clearing the employee to return to full duties.

(e) An employee shall notify the Employer in writing at least four weeks before the employee proposes to begin maternity leave unless the employee provides a written note by a duly qualified medical practitioner or registered midwife stating they are unable to perform their full duties.

(f) The parties agree that Clause 1.7 applies.

21.2 Parental Leave

(a) Upon written request an employee shall be entitled to parental leave of up to 63 consecutive weeks without pay.

(b) Where both parents are employees of the Employer, they shall each qualify for up to 63 consecutive weeks without pay.

(c) Such written request pursuant to (a) above must be made at least four weeks prior to the proposed leave commencement date.

(d) Leave taken under this clause shall commence:

(1) in the case of a birth parent, immediately following the conclusion of leave taken pursuant to Clause 21.1;

(2) in the case of the other parent, immediately following the birth or placement of the adoptive child;

(3) the commencement of the leave taken pursuant to (1) or (2) above may be deferred by mutual agreement. Such agreement shall not be unreasonably withheld. However, the leave must begin within 78 weeks after the birth of the child(ren) or placement of the adoptive child(ren). Such leave request must be supported by appropriate documentation.

21.3 Maximum Combined Entitlement

An employee's combined entitlement to leave pursuant to 21.1 and 21.2 is limited to 78 weeks.

21.4 Benefit Waiting Period Allowance

(a) An employee who qualifies for and takes leave pursuant to 21.1 or 21.2 and is required by Employment Insurance to serve a one-week waiting period for Employment Insurance Maternity/Parental benefits, shall be paid a leave allowance equivalent to one week at 85% of the employee's basic pay.

(b) An employee who qualifies for and takes leave pursuant to 21.1 or 21.2 and takes the maximum leave entitlement, shall be paid a leave allowance equivalent to one week at 85% of the employee's basic pay for the last week of the leave entitlement.

21.5 Maternity Leave Allowance

(a) An employee who qualifies for maternity leave pursuant to Clause 21.1, shall be paid a maternity

leave allowance in accordance with the Supplemental Employment Benefit (SEB) Plan. In order to receive this allowance, the employee must provide to the Employer, proof that the employee has applied for and is eligible to receive employment insurance benefits pursuant to the Employment Insurance Act. An employee disentitled or disqualified from receiving employment insurance benefits is not eligible for maternity leave allowance.

(b) Pursuant to the Supplemental Employment Benefit (SEB) Plan, the maternity leave allowance will consist of 15 weekly payments equivalent to the difference between the employment insurance gross benefits and any other earnings received by the employee and 85% of the employee's basic pay.

21.6 Parental Leave Allowance

(a) An employee who qualifies for parental leave pursuant to Clause 21.2, shall be paid a parental leave allowance in accordance with the Supplemental Employment Benefit (SEB) Plan. In order to receive this allowance, the employee must provide to the Employer proof of application and eligibility to receive employment insurance benefits pursuant to the Employment Insurance Act. An employee disentitled or disqualified from receiving employment insurance benefits is not eligible for parental leave allowance.

(b) Pursuant to the Supplemental Employment Benefit (SEB) Plan, for those who opt for standard parental leave, the standard parental leave allowance will consist of a maximum of 35 weekly payments, equivalent to the difference between the employment insurance gross benefits and any other earnings received by the employee and 75% of the employee's basic pay. Where both parents are employees of the Employer, the employees shall determine the apportionment of the 35 weeks standard parental leave allowance between them.

(c) Pursuant to the Supplemental Employment Benefit (SEB) Plan, for those who opt for extended parental leave, the extended parental leave allowance will consist of a maximum of 61 weekly payments equivalent to the overall amount the employee would have received with 35 weekly payments calculated under the standard parental leave allowance. Where both parents are employees of the Employer, the employees shall determine the apportionment of the 35 weekly payments spread out over 61 weeks extended parental leave between them.

(d) An employee's election of either standard or extended parental leave allowance is irrevocable.

21.7 Pre-Placement Adoption Leave

Upon request and with appropriate documentation, an employee is entitled to pre-adoption leave without pay of up to seven weeks (245 work hours) per calendar year with an allowance of 85% of their basic pay during the leave period. The leave may be taken intermittently and only for the purpose of:

(a) attending mandatory pre-placement visits with the prospective adoptive child;
(b) to complete the legal process required by the child's or children's country, including travel, for an international adoption while the employee is in that country. Leave under this provision will end with the placement of the adoptive child(ren). Pre-placement visits are not normally required where the adoption is a direct placement. Examples of direct placement adoptions are:

- (1) adoptions by a family member;
- (2) adoptions by the partner of a birth parent; and,
- (3) adoptions by foster parents if the child or children were living with the foster parents immediately before the adoption process.

21.8 Benefits Continuation

For leaves taken pursuant to Clauses 21.1, 21.2, and 21.7 the Employer shall maintain coverage for medical, extended health, dental, group life and long-term disability, and shall pay the Employer's share of these premiums.

21.9 Deemed Resignation

An employee shall be deemed to have resigned on the date following the conclusion of their leave pursuant to Clauses 21.1, 21.2, or 21.7 unless they advised the Employer of their intent to return to work one month prior to the expiration of the leave taken pursuant to Article 21 - Maternity, Parental and Pre-Adoption Leave or Clause 20.17 or if they do not return to work after having given such advice.

21.10 Entitlements Upon Return to Work

(a) An employee who returns to work after the expiration of maternity, parental, or pre-adoption leaves shall retain the seniority the employee had accumulated prior to commencing the leave and shall be credited with seniority for the period of time covered by the leave.

(b) On return from maternity, parental, or pre-adoption leaves, an employee shall be placed in the employee's former position or in a position of equal rank and basic pay.

(c) Notwithstanding Clauses 18.1(b) and 18.6, vacation entitlements and vacation pay shall continue to accrue while an employee is on leave pursuant to Clause 21.1 providing:

- (1) the employee returns to work for a period of not less than six months, and
- (2) the employee has not received parental allowance pursuant to 21.6; and,
- (3) the employee was employed prior to March 28, 2001.

Notwithstanding Clause 18.6(a) vacation earned pursuant to this clause may be carried over to the following year, or be paid out, at the employee's option.

(d) Employees who are unable to complete the return to work period in (c) as a result of proceeding on maternity, parental or pre-adoption leave shall be credited with their earned vacation entitlements and vacation pay providing the employee returns to work for a period of not less than six months following the expiration of the subsequent maternity, parental or pre-adoption leave.

21.11 Maternity and/or Parental and/or Pre-Adoption Leave Allowance Repayment

(a) To be entitled to the maternity, parental, benefit waiting period and/or pre-adoption leave allowances pursuant to 21.4, 21.5, 21.6 and/or 21.7, an employee must sign an agreement that they will return to work and remain in the Employer's employ for a period of at least six months or equivalent to the leaves taken, whichever is longer, after their return to work.

(b) Should the employee fail to return to work and remain in the employ of the Employer for the return to work period in (a) above, the employee shall reimburse the Employer for the maternity, parental, benefit waiting period and/or pre-adoption leave allowance received under Clauses 21.4, 21.5, 21.6 and/or 21.7 above on a pro rata basis.

21.12 Benefits Upon Layoff

Regular employees who have completed three months of service and are receiving an allowance pursuant to Clause 21.4, 21.5 and/or 21.6 shall continue to receive that allowance upon layoff, until the allowance has been exhausted, provided the notice of layoff is given after the commencement of the leave.

ARTICLE 22 - OCCUPATIONAL HEALTH AND SAFETY

22.1 Statutory Compliance

The Union and the Employer agree to cooperate fully in matters pertaining to the prevention of incidents/accidents and occupational disease and in the promotion of the health and safety of all employees. There shall be full compliance with all applicable statutes and regulations pertaining to the working environment.

22.2 Provincial Joint Occupational Health and Safety Committee

There shall be established a joint committee composed of five representatives of the Employer and five representatives of the Union, which shall meet on a quarterly basis. Employees shall be on leave of absence without loss of basic pay for time spent on this committee. The Committee's responsibilities will be:

- (a) To review reports on matters referred by Occupational Health and Safety Committees or by ministry Joint Committees and make recommendations to the Bargaining Principals regarding occupational health and safety matters;
- (b) To monitor and assess results of the Training Program for Occupational Health and Safety Committee members;
- (c) To review ministry and employer policies regarding the approval for ergonomic equipment;
- (d) To make recommendations on appropriate recognition events to mark the April 28th National Day of Mourning to honour workers killed or injured on the job;
- (e) To make recommendations on corporate critical incident stress management best practices, recognizing that some ministries have effective critical incident stress debriefing management programs in place currently;
- (f) To make recommendations to the Principals and to ministries on matters covered under Part 4 of the Occupational Health and Safety Regulation, under WorkSafeBC that pertain to Work Area Requirements, Indoor Air Quality, Illumination, Occupational Environment Requirements.

22.3 Joint Occupational Health and Safety Committees

The parties agree that the intent of this agreement is to ensure that all employees shall have the maximum possible access to the Occupational Health and Safety Committee structure. Local Occupational Health and Safety Committees will be established and operated as outlined below:

- (a) Union representatives shall be employees at the workplace appointed by the Union, and employer representatives shall be appointed by the Employer. Where a union representative is transferred or resigns the Union Co-Chairperson of the Occupational Health and Safety Committee will notify the Union Coordinator of Occupational Health and Safety. Where an employer representative is transferred or resigns the Employer Co-Chairperson will notify the appropriate employer workplace health and safety representative.
- (b) The Committees will function in accordance with the regulations made pursuant to the Workers Compensation Act, and will participate in developing a program to reduce risk of occupational injury and illness. All minutes of the meetings of the Committees shall be recorded on a mutually agreed to form and shall be sent to the Union and the Employer.
- (c) (1) Each ministry shall initiate and maintain, at the regular place of employment, Local Occupational Health and Safety Committees where there is:
 - (i) a workforce of 10 or more workers in an operation or work area classified

as moderate hazard by Schedule 3-A Minimum Levels of First Aid in the Occupational Health and Safety Regulation, or (ii) a workforce of 25 or more workers in an operation or work area classified as low hazard by Schedule 3-A Minimum Levels of First Aid in the Occupational Health and Safety Regulation. (iii) Where ministry workforce numbers are less than the minimum requirements of (i) and (ii), local committees may be established to encompass more than one worksite within a headquarters or geographic location. Such committees shall respect ministry administrative management areas. Worksite combinations may be mutually agreed at the local level. Where mutual agreement cannot be reached at the local level, then either party may refer the matter to the Provincial Joint Occupational Health and Safety Committee established in Clause 22.2. (iv) Notwithstanding (iii) above, Local Occupational Health and Safety Committees may, by mutual agreement between the designated representatives of the parties, extend the jurisdictional area for committee representation.

(2) At any worksite where a committee has not been established pursuant to (1) above, a less formal program shall be maintained in accordance with the Occupational Health and Safety Regulation, Part 3, Section 3.2. For the purpose of assisting in the administration of this program, the Employer will recognize an employee at that worksite designated by the Union who will function as a safety representative of the employees. Records of the meetings and matters discussed shall be forwarded to the Union and the nearest local committee established in (1) above within the Ministry administrative management area.

(3) Local Occupational Health and Safety Committees may encompass more than one component.

(d) Employees who are representatives of the Committee shall not suffer any loss of basic pay for the time spent attending a committee meeting, job site inspection incident/accident investigation, or other duties in accordance with WCB Regulations.

(e) Committee meetings shall be scheduled during normal working hours whenever practicable. Time spent by designated committee members attending meetings held on their days of rest or outside their regularly scheduled hours of work shall not be considered time worked, but such committee members shall receive equivalent time off at straight-time.

(f) Other committee business in accordance with (d) above shall be scheduled during normal working hours whenever practicable. When no other union designated committee member or union designated employee is available, time spent by employees attending to this committee business on their days of rest or outside their regularly scheduled hours of work shall not be considered time worked but such employees shall receive equivalent time off at straight-time.

(g) Where more than one ministry occupies a facility in common, a committee may be established by mutual agreement to encompass more than one ministry. Where mutual agreement cannot be reached, then either party may refer the matter to the Provincial Joint Occupational Health and Safety Committee established pursuant to Clause 22.2 for resolution.

22.4 Unsafe Work Conditions

No employee shall be disciplined for refusal to work on an assignment which, in the opinion of:

- (a) a member of the Local Occupational Health and Safety Committee, or
- (b) a person designated by a safety committee, or
- (c) a safety officer, or
- (d) a steward at a worksite where there is no safety committee,

after an on-site inspection and following discussion with a representative of the Employer, does not meet the standards established pursuant to the Workers Compensation Act. Where an employee acts in compliance with Occupational Health and Safety Regulation, Part 3, Section 3.12, they shall not be subject to disciplinary action.

22.5 Investigation of Incidents/Accidents

(a) Pursuant to Part 2 Division 10 · Employer Accident Reporting, Investigation and Related Prohibitions of the Workers Compensation Act, all incidents/accidents shall be investigated jointly by at least one representative designated by the BCGEU and one management representative.

(b) Reports shall be submitted on a PSC 38 (incidents/accident investigation form) which may be amended by mutual agreement and copies sent to:

- (1) Workers' Compensation Board
- (2) Occupational Health and Safety Committee
- (3) Employer Designate(s)
- (4) BCGEU Designate(s).

Nothing in this clause restricts the right of the Employer to require the management representative in (a) above, if a member of the bargaining unit, to complete other reports related to the incident/accident under investigation.

(c) In the event of a fatality of a BCGEU member, the Ministry shall immediately notify the President, or designate, of the nature and circumstances of the accident and arrange as soon as possible for a joint investigation.

22.6 Occupational First Aid Requirements and Courses

(a) The Union and the Employer agree that First Aid Regulations made pursuant to the Occupational Health and Safety Regulations, Occupational First Aid, Section 3.14 - 3.21 shall be fully complied with.

(b) Where the Employer requires an employee to perform first aid duties in addition to the normal requirements of the job, the cost of obtaining and renewing the Occupational First Aid Certificate shall be borne by the Employer, and leave to take the necessary courses shall be granted with pay.

(c) Employees required to possess a First Aid Certificate and who are designated to act as the First Aid Attendant in addition to their normal job responsibilities shall receive the following allowance on the basis of the level of certificate which they hold:

· Level 3 Occupational First Aid Certificate · Effective April 1, 2025:	\$72.49 per biweekly period
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· Advanced First Aid Certificate

· Effective April 1, 2025: \$72.49 per biweekly period

· Level 2 Occupational First Aid Certificate · Effective April 1, 2025: \$54.59 per biweekly period

· Intermediate First Aid Certificate · Effective April 1, 2025: \$54.59 per biweekly period

The allowance shall be prorated for partial months. For the purpose of calculating the hourly rate, the biweekly allowance shall be divided by 70; however, no employee shall receive more than the monthly allowance for the level of certificate which they hold. Employees designated to act as the First Aid Attendant in addition to their normal job duties will receive their full monthly allowance while on approved leave with pay of up to 10 days or while on vacation leave with pay. Where the Employer has an additional requirement for a first aid attendant on a temporary basis, then provided the employee acts as the First Aid Attendant for a minimum of 10 workdays in any month, they shall receive the full monthly allowance.

(d) (1) In order to meet the requirements of (a) above, the Employer will designate in order of seniority from among those regular employees holding an appropriate First Aid Certificate to act as the First Aid Attendant in addition to the normal requirements of the job.

(2) Where no employee within the work unit possesses a First Aid Certificate, the opportunity

to obtain a certificate will be offered to regular employees within the work unit in order of service seniority, provided the employee can meet the requirements of the WCB Regulations to undertake the training in order to obtain a First Aid Certificate.

(3) In the event that the procedures outlined above do not meet the requirements of (a), the Union will assist the Employer to meet their obligations by approaching regular employees in the work unit on behalf of the Employer.

(4) Where (d)(1), (2) and (3) do not meet, within a reasonable period of time, the requirements of the Employer to achieve (a) above, the Employer may:

(i) recall a qualified auxiliary employee in order of seniority from those holding the appropriate First Aid Certificate, and/or (ii) include a First Aid Certificate as a desirable qualification on a posting pursuant to Clause 12.1.

(5) Failing (4) above, the Employer may require the most senior regular employee within the work unit who can meet the requirements of the WCB Regulations to undertake occupational first aid training in order to obtain a certificate.

22.7 Injury Pay Provision

An employee who is injured on the job during working hours and is required to leave for treatment or is sent home for such injury shall receive payment for the remainder of their shift without deduction from short-term disability leave.

22.8 Transportation of Accident Victims

Transportation to the nearest physician or hospital for employees requiring medical care as a result of an on-the-job accident shall be at the expense of the Employer. The Employer shall ensure that adequate arrangements are made for the employee to return to the job site, assembly point or current local accommodation whichever is most appropriate to the employee's condition. Transportation will be provided or paid by the Employer.

22.9 Dangerous Goods, Special Wastes, Pesticides and Harmful Substances

Where employees are required to work with or are exposed to any dangerous good, special waste, pesticide or harmful substance, the Employer shall ensure that the employees are adequately trained in the identification, safe handling, use, storage, and/or disposal of same.

22.10 Working Alone or in Isolation

(a) Where employees are required to work alone or in isolation, they shall be supplied with an effective communications device, including but not limited to, radio satellite, cellular or radio-telephone communications or have a pre-arranged "employee check" made at specified intervals and at specified locations.

(b) The Employer recognizes the need for coordination with operators on "radio controlled" industrial roads and agrees to make such arrangements as are required in particular circumstances to establish as safe a working environment as possible when employees are required to use such roads. Such arrangements may include radio equipment with the appropriate frequency where the use of the frequency has been authorized by the licensed user of that frequency. The Employer agrees to make every reasonable effort to obtain such authorization from the licensed user of that frequency.

22.11 Communicable Diseases

(a) The parties to this agreement share a desire to prevent acquisition and transmission of communicable disease where employees may come into contact with a person and/or possessions of a person with a communicable disease.

(b) In respect of communicable diseases, the Provincial Joint Occupational Health and Safety Committee will consider, review and make recommendations to the Principals on issues including:

(1) preventative protocol measures, including education, hygiene, protective equipment/apparel and vaccinations;

(2) post-exposure protocols;

(3) measures necessary for the establishment of a work environment with minimal risk to exposure to or infection by communicable diseases.

(c) Officials of the BC Centre for Disease Control will be utilized for the purpose of accessing expertise in this area. Other consultants may be utilized, as deemed appropriate by the Committee.

(d) Where a communicable disease policy is established the Local Occupational Health and Safety Committee or union designated safety representative shall be consulted regarding the worksite specific application of the policy.

(e) Where officials of the BC Centre for Disease Control recommend that a vaccination is required as a preventative measure, such vaccination shall be made available to the employee at the Employer's expense.

22.12 Workplace Violence

(a) It is recognized that at certain worksites or in certain work situations employees may be at risk of physical violence or verbal abuse from clients, persons in care or custody, or the public.

(b) Where such potential exists:

(1) employees at those worksites or in those work situations shall receive training in the recognition and management of such incidents;

(2) applicable physical and procedural measures to protect employees shall be implemented.

(c) The Local Occupational Health and Safety Committee or union designated safety representative shall be consulted regarding the curriculum of training and the applicable physical and procedural measures referred to in (b) above.

(d) The Provincial Joint Occupational Health and Safety Committee shall jointly develop a new or approve an existing training package on risk assessment.

(e) Employees shall be informed concerning the potential for physical violence or verbal abuse from a client, a person in care or custody, or another member of the public, subject to statutory limitation.

(f) Immediate critical incident stress debriefing and post traumatic counselling shall be made available for employees who have suffered as a result of violence. Leave required to attend such debriefing or counselling sessions will be without loss of pay.

22.13 Pollution Control

The Employer and the Union agree to limit all forms of environmental pollution.

22.14 Training Program for Occupational Health and Safety Committee Members

- (a) Training of Provincial Joint Occupational Health and Safety Committee members will be undertaken using the training program jointly developed by the Provincial Joint Committee. Amendment of course material when required shall be by mutual agreement only. The Employer agrees to create educational materials for managers and supervisors on the purpose of the joint training program and importance of facilitators' in meeting the joint program's objectives.
- (b) The program will provide two days training for all OH&S Committee members and designated safety representatives pursuant to Clause 22.3(c)(2) within six months of appointment. The Provincial Joint Occupational Health and Safety Committee will determine the priority areas for scheduling of training.
- (c) The program shall, at a minimum, reflect the requirements and standards for a health and safety program recommended by the Workers' Compensation Board.
- (d) The training shall be carried out jointly by teams of qualified union and employer representatives, and will utilize various other appropriate instructional formats as may be agreed. Instructors shall receive appropriate training, as agreed to by the parties, in occupational health and safety and instructional techniques.
- (e) Union instructors shall be selected by the Union.
- (f) Union instructors, safety committee members and designated safety representatives attending or delivering the training including necessary travel time will be on leave of absence without loss of basic pay and shall be reimbursed for expenses by the Employer.

22.15 Skin Protection From Ultra Violet Radiation

The Local Occupational Health and Safety Committees will identify situations where employee duties will involve unavoidable exposure to ultra-violet radiation for periods of time that would require an appropriate broad-spectrum sunscreen. The Local Occupational Health and Safety Committee shall provide employees with appropriate information on the necessity to wear suitable clothing and to avoid ultra-violet radiation in order to prevent illness or injury.

22.16 Employee Safety Travelling To and From Work

In accordance with the regulations established by the Workers' Compensation Board the parties will instruct their representatives on Local Occupational Health and Safety Committees to review the matter of employee safety while travelling to or from their workplace. The Committees will make recommendations regarding the establishment of policies and/or procedures to eliminate or minimize such risk to employees. Where elimination of such risk is not reasonably possible, the Committees shall make recommendations to either manage or avoid the risk.

22.17 Strain Injury Prevention

- (a) The parties agree that there is a shared interest in minimizing and/or eliminating musculoskeletal strain injuries or illnesses which are work related.
- (b) Local Occupational Health and Safety Committees (or union and employer designated safety representatives) shall, in the performance of regular worksite inspections, identify the following risk factors which may contribute to risk:
- (1) the work methods and practices;
 - (2) the layout and condition of the workplace and workstation;
 - (3) the characteristics of objects or equipment handled;

- (4) the environmental conditions;
- (5) the physical demands of work;

in a manner consistent with generic guidelines developed by the Provincial Joint Occupational Health and Safety Committee.

(c) Where new equipment will be introduced to the workplace, or during the design and planning stages of new or renovated workplaces or workstations, the Employer shall seek the appropriate advice with respect to the risk factors noted in (b). Such advice will be sought from resources which will include a joint occupational health and safety committee or designated safety representatives.

ARTICLE 23 - TECHNOLOGICAL CHANGE

23.1 Mutual Recognition

(a) Both parties acknowledge the overall advantages and necessity of technological change and the ongoing requirement to facilitate technological change in the Employer's operations.

(b) The parties recognize the need to develop orderly procedures to facilitate adjustments to and implementation of changes in technology.

(c) In light of this mutual recognition the parties have agreed to the following:

23.2 Notice of Technological Change

(a) For the purpose of technological change as defined in Section 1 of the Public Service Labour Relations Act, the Employer agrees to provide the Union with as much notice as possible, but in any event not less than 60 days' notice of a technological change.

(b) Upon receipt of a notice of technological change pursuant to Clause 23.2(a) the Joint Committee established under Article 29 - Ministry Joint Committee, shall meet to consult on the impact of the proposed change.

(c) The written notice identified in Clause 23.2(a) will provide the following information:

- (1) the nature of the change(s);
- (2) the anticipated date(s) on which the Employer plans to effect change(s);
- (3) the location(s) and number(s) of employees likely to be directly affected pursuant to (d) below.

(d) Where notice of technological change has been given pursuant to Clause 23.2(a):

(1) Regular employees who are assigned by the Employer to work with the new technology shall receive a period of training and familiarization. Employees involved in training under this clause shall receive their basic pay for the period of training. Where the employee cannot meet job requirements upon completion of the training and familiarization period, the employee shall be offered either the vacancy options, early retirement or severance pay provisions of Article 13 - Layoff and Recall.

(2) To absorb those regular employees who are not assigned by the Employer to work with the new technology or who are displaced because of such technological change, the Ministry will endeavour to utilize normal turnover of employees within the Ministry geographic location in which the change occurs, to the extent that turnover occurs during the period in which a technological change is being implemented.

(3) When necessary to reduce staff due to technological change, it will be done as provided for in Article 13 - Layoff and Recall or Article 31 - Auxiliary Employees, as appropriate.

23.3 Technological Change Definition

For purposes of this article, "Technological Change" shall not include normal layoffs resulting from a reduction of the amount of work required to be done.

23.4 Technological Change Short Notice

Notwithstanding Clause 23.2(a), the parties recognize that there may be circumstances of statutory obligation where it is not possible to provide the notice set forth in this article. In such circumstances, notice shall be provided as soon as possible.

23.5 Sharing of Information

The parties recognize the value of maintaining ongoing communication and consultation concerning changes to workplace technology, other than technological change as defined in the Public Service Labour Relations Act and provided for in Clause 23.2(a). Accordingly, the parties agree, pursuant to Article 29 - Ministry Joint Committee, to meet to exchange information with respect to such changes at the request of either party.

ARTICLE 24 - CONTRACTING OUT

The Employer agrees not to contract out any work presently performed by employees covered by this agreement which would result in the laying off of such employees.

ARTICLE 25 - HEALTH AND WELFARE

25.1 Basic Medical Insurance

All regular employees, whether full-time or part-time, may choose to be covered by the Public Service Medical Plan, for which the British Columbia Medical Plan is the licensed carrier. Benefits and premium rates shall be in accordance with the existing policy of the plan. The Employer will pay 100% of the regular premium.

25.2 Extended Health Care Plan

The Employer shall pay the monthly premium for regular employees entitled to coverage under a mutually acceptable extended health care plan.

25.3 Dental Plan

(a) The Employer shall pay the monthly premium for employees entitled to coverage under a mutually acceptable plan which provides:

- (1) Part A, 100% coverage;
 - (2) Part B, 65% coverage
 - (3) Part C, 55% coverage.
- (b) Orthodontic services are subject to a lifetime maximum payment of \$3,500 per patient.

25.4 Group Life

(a) The Employer shall provide a mutually acceptable group life plan with benefits equivalent to three

times an employee's annual salary, with a minimum of \$100,000. The Employee Basic Life Insurance includes provisions for accidental dismemberment, loss of sight, and an advance payment for terminally ill employees as described in Information Appendix 1 - Employee Basic Life Insurance. The Employer shall pay 100% of the premium on the base \$100,000 and the employee shall pay the premium for any insurance over the base minimum.

(b) Employees shall as a condition of employment, enrol in the Employee Basic Life Insurance and shall have the appropriate taxable benefit and, in applicable, premium deducted from their pay.

(c) The Employer shall offer the following optional plans for employees to purchase through payroll deduction:

(1) Optional Family Funeral Benefit (formerly called Optional Spouse and Dependent Life Insurance);

(2) Optional Life Insurance for employee, spouse and dependent children;

(3) Optional Accidental Death and Dismemberment Insurance for employee, spouse and dependent children.

25.5 Air Travel Insurance

(a) In the event of death or disability incurred while travelling by aircraft on business of the government, regular and auxiliary employees will be covered by the terms and conditions of the government blanket insurance policy. The existing benefits will not be decreased during the life of this agreement.

(b) The amounts specified in the policy will be paid to employees in case of disability; and in the case of death, to the employee's beneficiary as designated under the Group Life Plan, if any, or in the absence of such beneficiary, to the employee's estate.

(c) Coverage shall commence from the place of employment or residence, whichever may last occur, and end upon returning to the regular place of employment or residence, whichever may occur first. Employees are not covered while piloting an aircraft in the course of their duties unless employed or paid as a pilot, or unless otherwise authorized.

25.6 Employment Insurance

Employment insurance coverage will be provided during the life of this agreement for regular and auxiliary employees who would, if employed by a private employer, be eligible for such coverage under the provisions of the Employment Insurance Act.

25.7 Medical Examination

Where the Employer requires an employee to submit to a medical examination or medical interview, it shall be at the Employer's expense and on the Employer's time, other than a medical examination under

Appendix 4, Section 1.4.

25.8 Legislative Changes

If the premium paid by the Employer for any employee benefit stipulated in this agreement is reduced as a result of any legislative or other action by the government of British Columbia, the amount of the saving shall be used to increase other benefits available to the employees, as may be mutually agreed to between the parties. * See Memorandum of Understanding 13, Re Article 25.8 - Legislative Changes for clarity on the application of this article.

25.9 Employee and Family Assistance Program

(a) A province-wide Employee and Family Assistance Program for employees and members of their immediate family, with whom the employee normally resides, shall be provided.

(b) This employer-funded, confidential, assessment/referral service will be monitored by a joint committee. The Committee shall consist of six members, three members appointed by the Employer and three members by the Union. Employees representing the Union on this joint committee shall be on leave of absence without loss of basic pay for time on this committee.

(c) The Employer will consult with the Union regarding the selection of a service provider. The Employer will not select a service provider to which the Union has reasonable objections.

(d) The Joint Committee shall develop an awareness package that can be incorporated into existing supervisor and union training programs.

25.10 Health and Welfare Plans

(a) A copy of the master contracts with the carriers for the extended health care, dental and group life plans shall be sent to the President of the Union.

(b) The Employer will consult the Union before developing any brochure explaining the highlights of the plans for distribution to employees.

(c) The cost of such a brochure shall be borne by the Employer.

(d) The Employer will seek the Union's input prior to initiating any procurement process to select a service provider for the Health and Welfare Plans listed in (a) above.

25.11 Designation of Spouse

Where an employee has designated a common-law spouse for benefit coverage under this agreement and the employee wishes to designate another common-law spouse, a period of 12 months must elapse before the newly designated common-law spouse (and eligible dependent(s), if any) are entitled to benefit coverage.

ARTICLE 26 - WORK CLOTHING

26.1 Provision and Maintenance of Work Clothing

Matters pertaining to the provision and maintenance of work clothing shall be in accordance with the terms of the Component Agreements, except those matters provided for in Article 26 herein.

26.2 Purchase of Work Clothing

The Union and the Employer agree that preference will be given to BC suppliers when clothing or wearing apparel is purchased by the Employer. The aims of this policy are:

- (a) to encourage business operations within BC;
- (b) to foster new job-creating enterprises throughout the province; and,
- (c) to promote growth and stability in BC.

For the term of this agreement, where the Employer can demonstrate to the Union that where an article of clothing or wearing apparel:

- (1) is manufactured in BC; or
- (2) creates new jobs in BC at the provincial-industry standard rate of pay, the Union will consider the requirements of this clause have been met.

26.3 Replacement Provisions

(a) An employee who is in receipt of an issue of uniform/clothing will have replacement made when they surrender unserviceable items previously issued.

(b) Replacement shall be made such that the number of said items in an employee's possession is equal to the number of said items provided for in the current component agreement.

ARTICLE 27 - PAYMENT OF WAGES AND ALLOWANCES

Note: The 2024 allowances will be increased by the percentage of the combined GWI and COLA.

27.1 Equal Pay

The Employer shall not discriminate between male and female employees by employing a person of one sex for any work at a rate of pay that is less than the rate of pay at which a person of the other sex is employed for similar or substantially similar work.

27.2 Paydays

(a) Employees shall be paid biweekly every second Friday. Auxiliary employees shall receive their pay no later than four weeks after they commence employment. Terminating employees will receive their final pay within eight days of the end of their final pay period.

(b) A comprehensive statement detailing all payments, allowances and deductions shall be provided in each pay period. All premiums and allowances payable shall be paid out no later than the payday at the end of the second biweekly pay period after the pay period in which the premium was earned.

(c) The Employer shall provide for the direct deposit (electronic funds transfer) of the employee's pay in a participating chartered bank, trust company or credit union of the employee's choice on or before the appropriate payday. Employee participation shall be compulsory except where access to a financial institution with capability of accepting direct deposit is not available.

(d) If the pay is not available on the payday, the Employer shall arrange for the employee to be provided on the payday with an adequate advance on their salary.

27.3 Rates of Pay

(a) Employees shall be paid in accordance with the rates of pay negotiated by the parties to this agreement, subject to Clause 27. 7 and Appendix 3E - Rates of Pay for Apprentices.

(b) The distribution of pay shall be done in such a manner that the details of the pay shall be confidential.

(c) Increase rates of pay for classifications listed in Appendix 3 starting the first pay period after the following dates:

Date	Percentage Increase	Increase rates of pay by 3%.
April 1, 2025	April 1, 2025	Increase rates of pay by 3%.
April 1, 2026	Increase rates of pay by 3%	Increase rates of pay by 3% April 1, 2027
2028	Increase rates of pay by 3%	Increase rates of pay by 3% April 1, 2028

27.4 Substitution Pay

(a) An employee will be granted substitution pay where the employee is:

(1) designated to perform the principal duties of or temporarily substitute in a higher paying position, or

(2) assigned to perform duties of a higher paying position which would warrant a higher classification.

(b) The employee shall receive the rate for the job, where a single rate is established. If a salary range is established, they shall receive the minimum rate of the new salary range or the rate in the new salary

range which is the closest step to 8% above their current rate, whichever is greater, but not more than the top of the new salary range. Employees on short-term disability leave, special leave, or any other paid leave of absence will be entitled to the basic rates of pay they received prior to substituting in a higher position.

(c) Substitution pay is not payable when an employee has not been designated or assigned by the Employer to substitute, pursuant to (a)(1) or (2) above, or where an employee's current position normally requires periodic substitution in the higher position as defined in the functional job description.

(d) Where this job description requires periodic substitution:

(1) substitution pay shall not be payable for periods of substitution of 70 consecutive work hours or less in the higher position;

(2) substitution in excess of the 70 consecutive work hours shall be payable from the commencement of the first shift of substitution;

(3) substitution is not payable for any period of substitution during vacation relief in the higher position.

(e) Payment for leave under Clauses 20.1 and 20.2 will be made at an employee's basic pay, except if an employee has been working in a higher paid position than their regular position for a majority of their regularly scheduled hours in the four pay periods preceding their leave, in which case they shall receive the higher rate.

(f) If an employee substitutes in a higher paying classification where the salary placement in the salary range is less than the salary they would have received if substituting in a classification between their current classification and the substituting classification, then the salary placement will be equivalent to the higher rate. This shall only apply to classifications in the same classification series or the classification series in which the employee is substituting. An employee shall not receive a salary greater than the maximum of the range of the classification in which the employee is substituting.

(g) Grievances concerning (a) above, that are filed at arbitration, may be referred by either party to the expedited classification appeal process where the dispute is a disagreement on the classification level.

(h) An included employee who substitutes in an excluded position for a period up to 20 working days shall remain in the bargaining unit for the duration of the temporary assignment. For periods of substitution exceeding 20 working days, an employee shall be temporarily appointed and will be excluded for the entire duration of the appointment period.

27.5 Rate of Pay on Reclassification or Promotion

(a) When an employee is promoted or reclassified to a higher-paying position in the salary schedule, the employee will receive the rate for the position if a single salary, or, in the case of positions on a salary range, will receive the rate in the salary range which is the closest step to 8% above their previous rate, or the minimum of the new range, whichever is greater, but not more than the top of the new salary range.

(b) If an employee is promoted or reclassified to a higher paying classification where the salary placement in the salary range is less than the salary they would have received if substituting in a classification between their current classification and the new position, then the salary placement will be equivalent to the higher rate. This shall only apply to classifications in the same classification series or the classification series to which the employee is reclassified or promoted. An employee shall not

receive a salary greater than the maximum of the range of the classification to which the employee is promoted or reclassified. Future increments, if any, shall be to the next higher step in the range of the classification to which the employee has been promoted or reclassified.

(c) The above does not apply to new classifications established pursuant to Clause 28.2.

27.6 Pay on Temporary Assignment

A regular employee temporarily assigned by the Employer to a position with a rate of pay lower than their regular rate of pay shall maintain their regular rate of pay.

27.7 Salary Protection and Downward Reclassification of Position

(a) An employee shall not have their salary reduced by reason of:

- (1) a change in the classification of their position; or
- (2) placement into another position with a lower maximum salary,

that is caused other than by the employee. That employee shall not receive negotiated salary increases until the salary of the employee's new classification equals or exceeds the salary which the employee is receiving. When the salary of the employee's new classification equals or exceeds the salary which the employee is receiving, the employee's salary will be implemented at the maximum step of their new classification. That employee shall receive the full negotiated salary increases for their new classification thereafter.

(b) Such changes in classifications or placements made pursuant to Article 13 - Layoff and Recall, and/or Clause 29.4(b) are covered by (a) above.

27.8 Vehicle Allowances

Vehicle allowances for all distances travelled on government business shall be paid to employees required to use their own vehicles in the performance of their duties. The allowance shall cover distance to and from the employee's place of residence up to a total maximum of 32 kilometers, only when the employee is required to have their vehicle at work for use in the performance of their duties. Vehicle allowance shall be 65¢ per km, effective April 1, 2025, 67¢ effective April 1, 2026, 69¢ effective April 1, 2027, and 71¢ effective April 1, 2028.

27.9 Meal Allowances

Employees on travel status away from their headquarters shall be entitled to a meal allowance for the time spent away from headquarters.						
Meal	April 1, 2025	April 1, 2026	April 1, 2027	April 1, 2028	Breakfast	\$15.02
\$15.47	\$15.93	\$16.41	Lunch	\$17.38	\$17.90	\$18.44
Dinner	\$30.03	\$30.93	\$31.86	\$32.82		\$18.99

27.10 Isolation Travel Allowance

(a) An isolation travel allowance of \$7.66 effective April 1, 2025; \$7.89 effective April 1, 2026; \$8.13 effective April 1, 2027, and \$8.37 effective April 1, 2028 per point per month shall be paid to each eligible employee. Equivalent biweekly rates will be as shown in Appendix 8 - Biweekly Pay Conversion Schedule Isolation Travel Allowance.

(b) The basis of payment shall be in accordance with the formula devised by the Joint Committee on Isolation Travel Allowances and the revised point-ratings resulting from the general review carried out by the Committee based on the 1976 census, until March 31, 1983 after which time payment shall be in accordance with agreement reached by the Principals in (c) below.

(c) The Joint Committee on Isolation Travel Allowances will make a general review of the point ratings assigned each location based on the 1991 census and submit its report to the Principals not later than March 31, 1995.

(d) Current employees in locations, the point ratings of which are reduced below 11 points as the result of the above review or, as a result of the review pursuant to (e) below, will continue to receive, until March 31, 1995, the amount of travel allowance they were receiving prior to the review. Effective April 1, 1995 and each April 1 thereafter, the amount of travel allowance will be reduced by 20% of that amount while they remain employed at that location.

(e) The Committee established in (c) above shall review alternatives to the existing isolation travel allowance and make recommendations to the Bargaining Principals that ensure that issues related to recruitment, retention and isolation are reviewed within funding available.

(f) Employees representing the Union on this joint committee shall be on leave of absence without loss of basic pay for time spent on this committee.

27.11 Transportation for Employees

Transportation will be provided to employees who are required to work other than their normal working hours, and who must travel to or from their home during the hours between 11:30 p.m. and 6:00 a.m. and when convenient public transportation or other transportation facilities are not available. An employee shall be reimbursed for the cost of commercial transportation within their headquarters area, upon presentation of receipts.

27.12 Cashier Policy

Cashiers who make excessive and too frequent financial transaction errors shall be:

- (a) provided with further training as a cashier; or
- (b) provided retraining with a view to placement in a more suitable position; or
- (c) liable for disciplinary action provided there was no success in (a) or (b).

27.13 Abnormal Working Conditions

Premium rates for abnormal working conditions shall be in accordance with the provisions of the Component Agreements.

27.14 Upgrading Qualifications

Where the Employer requires an employee to upgrade their skills or qualifications in order to operate or maintain new equipment, the cost of training and normal living and travel expenses as laid down in this agreement will be borne by the Employer.

27.15 Accommodation, Board and Lodging

Accommodation, board and lodging allowances for employees required to work away from their headquarters shall be paid in accordance with Memorandum of Understanding 3 - Board and Lodging and Relocation Expenses.

27.16 Relocation Expenses

(a) Except as provided in (b) below, regular employees and eligible auxiliary employees who have to move from one geographic location to another after winning a competition, or at the Employer's request, shall be entitled to relocation expenses in accordance with MOU 3. Employees shall not be entitled to relocation expenses where their new worksite is closer to their current residence.

(b) Where an employee receives relocation expenses as a result of winning a competition, and subsequently resigns within the two-year period immediately following the relocation, they will be required to reimburse the Employer expenses paid on a pro rata basis.

(c) The provisions of (b) above do not apply to employees who resign in order to care for a dependent child or who resign or are deemed to have resigned pursuant to Clause 12.8, Article 13 or 36.

27.17 Relocation at Time of Retirement

Where an employee, who has been relocated by the Employer or through a competition to an isolated location, gives not less than six months' notice prior to retirement to relocate elsewhere in the province, the Employer will pay the cost of moving the employee's household goods and effects in accordance with that part of the relevant regulations in effect at the time of the employee's retirement, providing that:

(a) The employee shall have served a minimum of three years in the isolated location.

(b) The employee actually moves to a location in the province within three months of the month in which they cease to be actively employed in the Public Service.

(c) For the purposes of this clause, the term "isolated location" shall include all the locations on the Isolation Index, or as altered by mutual agreement from time to time.

(d) For the purposes of this clause, the term "retirement" shall refer to an employee who is scheduled to retire and to receive a pension benefit under the Public Service Pension Plan Rules.

27.18 Retirement Allowance and Pre-Retirement Leave

(a) Upon retirement from service, an employee who has completed 20 years of service with the Employer, and who under the provisions of the Public Service Pension Plan Rules is entitled to receive a pension benefit on retirement, is entitled to an amount equal to their salary for one month, and for each full year of service exceeding 20 years but not exceeding 30 years, is entitled to an additional amount equal to one-fifth of their monthly salary. The employee may opt to take the allowance as equivalent paid leave of absence to be taken immediately prior to retirement.

(b) (1) An employee scheduled to retire and to receive a pension benefit under the Public Service Pension Plan Rules, shall be entitled to:

(i) a special paid leave for a period equivalent to 50% of their accumulated sick bank credit, to be taken immediately prior to retirement; or (ii) a special cash payment of an amount equivalent to the cash value of 50% of their accumulated sick bank credit, to be paid immediately prior to retirement and based upon their current rate of pay.

(2) Sick bank credit for the purpose of this clause means credit accumulated prior to January 1, 1978, which has not been utilized prior to retirement.

(3) Where an employee is permitted to purchase a period of war service under the Public Service Pension Plan Rules at retirement, they may use all or part of their entitlement for the purchase of war service.

27.19 Salary Rate Upon Employment

The hiring rate of pay for a new employee shall not be higher than the rate of pay for an existing employee in the same classification within the Ministry and geographic location with similar work experience, training, and education.

27.20 Telephone Allowance

Employees on travel status who are required to obtain overnight accommodation shall be reimbursed upon production of receipts for one five-minute telephone call home, to or within British Columbia, for each night away.

27.21 Salary Rate on Demotion

When an employee is demoted the employee shall receive the rate for the position if a single salary. If a salary range is established, the maximum reduction shall be the closest step to 8%, but where the differential between the employee's salary before demotion and the maximum salary of the lower position is greater than 8%, the new salary shall be the maximum of the new position.

27.22 Hourly, Daily and Partial Month Calculations

The formula for paying a biweekly or hourly salary is as follows: Annual Salary = Biweekly Salary 26.0893

Monthly Salary x 12 mos. = Biweekly Salary 26.0893

Biweekly Salary = Hourly Rate 70

The daily rate shall be determined by multiplying the number of regularly scheduled hours in the employee's day shift by the hourly rate. For the purposes of converting a biweekly rate to a monthly rate, the formula will be as follows: Biweekly Rate x 26.0893 12

The formula for paying a partial salary to employees paid on a biweekly basis is: Salary = hours worked and paid holidays x biweekly salary divided by hours scheduled and paid holiday (paid holiday equals 7 hours). When an article in this agreement or a component agreement has a reference to payments at the "end of the month following the month" in which an event occurs, payment will be "at the end of the second pay period following the pay period" in which the event occurs. Similarly, a reference to payments on specified dates will mean payment on the closest pay period payday to the specified date.

27.23 Special Vacation Transportation Subsidy for Severely Isolated Locations

(a) Employees at severely isolated locations with access to major centres only possible by water or

extended travel over roads which are unpaved, shall receive once in each calendar year, a special subsidy to assist them with transportation expenses for themselves and their dependents.

(b) This subsidy shall be in the amount of \$588.90 effective April 1, 2025; \$606.57 effective April 1, 2026; \$624.77 effective April 1, 2027, and \$643.51 effective April 1, 2028, and is only payable in the event that the employee actually leaves the isolated area.

(c) For the purposes of definition under (a) above the specific locations not exceeding 50, on the Isolation Index have been identified by the Joint Committee on Isolation Allowances and are listed in

Appendix 6. These locations will not be changed without mutual agreement.

27.24 Child Care Expenses

(a) Where an employee is requested or required by the Employer to attend:

- (1) Employer endorsed education, training and career development activities, or
- (2) Employer sponsored activities,

which are not included in the normal duties of the employee's job, and are outside their headquarters or geographic location, such that the employee incurs additional child care expenses, the employee shall be reimbursed for the additional child care expense up to \$72.10 effective April 1, 2025; \$74.26 effective April 1, 2026; \$76.49 effective April 1, 2027, and \$78.78 effective April 1, 2028 per day upon production of a receipt.

(b) Where an employee, who is not on leave of absence, attends a course approved by the Employer outside the employee's normal scheduled workday such that the employee incurs additional child care expenses, the employee shall be reimbursed for the additional child care expense up to \$30.90 effective April 1, 2025; \$31.83 effective April 1, 2026; \$32.78 effective April 1, 2027, and \$33.76 effective April 1, 2028 per day upon production of a receipt. This reimbursement shall not exceed 15 days per calendar year.

(c) Reimbursement in (a) or (b) shall only apply where no one else at the employee's home can provide the child care.

(d) The receipt shall be a signed statement including the date(s), the hourly rate charged, the hours of care provided and shall identify the caregiver/agency.

27.25 Lodging Allowance

Employees on travel status who stay in non-commercial lodging shall be entitled to claim:

- (a) Effective April 1, 2025: \$39.56; and,
- (b) Effective April 1, 2026: \$40.75; and,
- (c) Effective April 1, 2027: \$41.97; and,
- (d) Effective April 1, 2028: \$43.23

per day except where the lodging is supplied by the Employer. An employee submitting a lodging allowance claim shall not be entitled to reimbursement for commercial lodging costs for the same period.

27.26 Qualified Registered Professional Fees

Regular employees who have completed their probationary period and who are required as a condition of employment to maintain membership in an association as a qualified registered professional shall be reimbursed in full for annual membership or licensing fees (not to exceed 2024 fee schedule). · Effective April 1, 2025, the maximum will not exceed 2024 fee schedule; · Effective April 1, 2026, the maximum amount will be the 2024 fee schedule plus an additional 4%; · Effective April 1, 2027, the maximum amount will be the 2026 reimbursable rate increased by an additional 4%; · Effective April 1, 2028, the maximum amount will be the 2027 reimbursable rate increased by an additional 4%.

This clause applies to the following: · Certified General Accountants · Certified Management Accountants · Chartered Professional Accountants · Chartered Accountants · Registered Forest Technologists · Registered Professional Biologists · Registered Professional Planners · Registered Dietitians · Property Negotiators · Qualified Exercise Professionals · Clinical Exercise Physiologists · Registered Pharmacy Technicians

27.27 Travel Expense Reimbursement

The Employer shall provide for the direct deposit (electronic funds transfer) of travel expense reimbursement in a participating chartered bank, trust company or credit union of the employee's choice. Employee participation shall be compulsory except where access to a financial institution with capability of accepting direct deposit is not available.

27.28 Overpayment

When an employee has been overpaid, the Employer must take the following steps before recovery action is implemented:

- (a) provide the employee with the reason for the overpayment;
- (b) advise the employee of the intention to recover the overpayment;
- (c) where the amount of the overpayment is in excess of \$50, recovery action will be limited to 10% of the biweekly rate, or at the rate at which the overpayment occurred, whichever is less, unless the employee indicates they would wish to repay at a greater percentage. The repayment period will not exceed three years, except by mutual agreement by the parties.

27.29 Minimum Wage Plus Dues

Notwithstanding the wage schedule in this agreement, the minimum hourly pay rate for any position in the bargaining unit will be the current BC Minimum Wage plus 1.9%, rounded up to the nearest penny.

ARTICLE 28 - CLASSIFICATION AND RECLASSIFICATION

Pursuant to Memorandum of Understanding 43, the parties are developing a new Job Evaluation Plan to be inserted into Article 28 in the next collective agreement.

ARTICLE 29 - MINISTRY JOINT COMMITTEE

29.1 Establishment of Joint Committee

There shall be established for each ministry, at least one joint committee composed of members equal in number, represented by the Employer and the Union to meet at the request of either party. The minimum size of this committee shall be two union representatives and two senior employer representatives, and the maximum size shall be four union representatives and four employer representatives. This committee is encouraged to call upon additional persons for technical information or advice. The Committee may establish subcommittees or ad hoc committees as it deems necessary and shall set guidelines and operating procedures for such committees. Employees appointed to the Joint Committee shall be from the Ministry concerned. Agendas for all meetings will be set two weeks in advance, except as otherwise agreed by the Co-Chairpersons.

29.2 Meetings of Committee

The Joint Committee shall meet at least once every 60 days or at the call of either party at a mutually agreeable time and place. Employees shall not suffer any loss of basic pay for time spent on this committee.

29.3 Chairperson of Committee

An employer representative and a union representative shall alternate in presiding over meetings.

29.4 Responsibilities of Committee

(a) The Committee shall not have jurisdiction over wages or any other matter of collective bargaining, including the administration of this agreement. The Committee shall not supersede the activities of any other committee of the Union or of the Employer and shall not have the power to bind either the Union or its members or the Employer to any decisions or conclusions reached in their discussions.

(b) In the event of any substantial re-organization in a ministry which results in redundancy, relocation or reclassification, the Committee shall meet in order for the Employer to consult with the Union.

(c) Following a consultative and collaborative leadership approach, the Committee shall also have the power to make recommendations to the Union and the Employer on the following general matters:

(1) reviewing matters, other than grievances, relating to the maintenance of good relations between the parties;

(2) discussing issues relating to the workplace that affect the parties or any employee bound by this agreement;

(3) correcting conditions causing grievances and misunderstanding;

(4) reviewing ways in which the Employer can reduce workplace consumption of non-renewable and renewable resources, increase the amount of material that is reused in the workplace and implement recycling programs;

(5) reviewing matters unresolved and referred to it by a Local Occupational Health and Safety Committee except where that local committee is comprised of representatives of more than one ministry. Upon receipt of such a referral the Ministry Committee Co-Chairpersons shall notify the Provincial Joint Occupational Health and Safety Committee Co-Chairpersons. The committee may make recommendations regarding health and safety issues to the Provincial Joint Occupational Health and Safety Committee. Those portions of ministry Joint Committee and Subcommittee minutes and/or other record of proceedings, which address occupational health and safety issues, shall be forwarded to the Co-Chairpersons of the Provincial Joint Occupational Health and Safety Committee, or their designates;

(6) reviewing organizational health issues relating to the recruitment and retention of employees and discussing hiring updates;

- (7) making recommendations on the criteria for the approval of applications pursuant to Clause 20.8(e);
- (8) discussing opportunities to improve service to the public, which may include ministry contracting practices;
- (9) discussing ministry specific pilot projects being considered for provincial roll-outs;
- (10) discussing changes being considered to current special programs and positions within the ministry.

29.5 Dispute Resolution

Issues unresolved at the Ministry Joint Committee may be referred by mutual agreement to the Public Service Bargaining Principals.

ARTICLE 30 - SECONDMENT

30.1 Definition

"Secondment" means a process by which the Employer may assign an employee to another agency, board, society, commission, or employer not subject to the Public Service Labour Relations Act.

30.2 Notice of Secondment

The Employer agrees to make every effort to provide an employee with four weeks' written notice of secondment. Where possible, the written notice of secondment shall indicate the term of secondment. Ministries will copy the President of the Union on all notices of secondments.

30.3 Provisions of BCGEU Agreements to Apply

The provisions of the applicable current union/employer collective agreements will apply to seconded employees. The agency, board, society, commission, or employer to which the employee is seconded will receive written notice of this article and will be provided with copies of relevant agreements.

30.4 Employer's Representative Designated to Handle Grievances at the 2nd Step

The Employer will inform the employee of the Employer's representative designated to handle grievances at the second step. Where a seconded employee has a grievance and their supervisor is not appointed to the Public Service, the employee will discuss the grievance with their supervisor. Failing resolution, the employee may submit a written grievance, through a steward nominated by the Union, to the second step of the grievance procedure.

ARTICLE 31 - AUXILIARY EMPLOYEES

31.1 Auxiliary Employees

(a) An auxiliary employee shall receive a letter of appointment clearly stating their employment status and expected duration of employment.

(b) Auxiliary employees who have worked 1827 hours in 33 pay periods and who are employed for

work which is of a continuous full-time or continuous part-time nature, shall be converted to regular status effective the beginning of the month following the month in which they attain the required hours.

(c) For the purposes of (b) above and Clauses 31.6 - Application of Agreement, 31.9 - Medical, Dental and Group Life Insurance, 31.11 - Annual Vacations and 31.12 - Eligibility Requirements for Benefits, hours worked shall include:

- (1) hours worked at the straight-time rate;
 - (2) hours compensated in accordance with Clause 31.10 - Designated Paid Holidays;
 - (3) hours that a seniority rated auxiliary employee cannot work because they are on a recognized WCB claim arising from their employment with the government to a maximum of 420 hours of missed work opportunity within 14 calendar weeks from the beginning of the claim;
 - (4) annual vacation pursuant to Clause 31.11(d) - Annual Vacations;
 - (5) compensatory time off provided the employee has worked 1827 hours in 33 pay periods;
 - (6) missed work opportunities during leaves pursuant to Clause 2.10(a) - Time Off for Union Business - Without pay, except that during the first 33 pay periods of employment such credit shall be limited to 105 hours;
 - (7) leaves pursuant to Clause 2.10(b) - Time Off for Union Business - With pay;
- Notwithstanding (3) above, an auxiliary employee eligible for conversion to regular status shall not be converted until the employee has returned to active employment for 140 hours. The effective date of such conversion shall be the first of the month following the date on which eligibility for conversion occurs.

(d) For the purposes of (b) above and Clauses 31.6 - Application of Agreement, 31.9 - Medical, Dental and Group Life Insurance, 31.11 - Annual Vacations and 31.12 - Eligibility Requirements for Benefits, hours beyond the 420 hours in (c)(3) above, that an auxiliary employee cannot work because they are on a recognized WCB claim arising from their employment with the government are not added to the 1827 or 1200 hours nor are the days charged against the 33 or 26 pay periods.

31.2 In-Service Status for Applying for Regular Positions

(a) Auxiliary employees who have worked in excess of 30 days (210 hours) will be recognized as in-service applicants when applying for regular positions.

(b) Subject to Clause 31.4 - Loss of Seniority, an auxiliary employee who has worked in excess of 30 days (210 hours) prior to application for a regular position, or an auxiliary employee who is on layoff status and who has worked in excess of 30 days (210 hours) prior to being laid off, will have their length of service as an auxiliary employee recognized in accordance with Section 8(2) of the Public Service Act.

(c) Auxiliary employees who have worked in excess of 30 days (210 hours) as outlined in (b) above and who have to move from one geographic location to another after winning a competition, or at the Employer's request, shall be entitled to relocation expenses in accordance with Clause 27.16 - Relocation Expenses.

(d) Auxiliary employees will retain in-service status for one year following layoff under Article 31.4(c).

31.3 Seniority

(a) (1) For the purpose of layoff and recall and other seniority related provisions of this agreement, an auxiliary employee who has worked in excess of 30 days shall accumulate service and classification seniority within a ministry seniority unit, as defined in the Component Agreement, on the basis of:

- (i) all hours worked at the straight-time rate;

(ii) designated paid holidays or days off in lieu in accordance with Clause 31.10 - Designated Paid Holidays; (iii) annual vacation in accordance with Clause 31.11(d) - Annual Vacations; (iv) leave pursuant to Clause 31.12 - Eligibility Requirements for Benefits or Clause 31.6(c) - Application of Agreement;

(v) compensatory time off provided the employee has worked 1827 hours in 33 pay periods; (vi) missed work opportunities during leaves pursuant to Clause 2.10(a) - Time Off for Union Business - Without pay except that during the first 33 pay periods of employment such credit shall be limited to 105 hours; (vii) leaves pursuant to Clause 2.10(b) - Time Off for Union Business - With pay.

(2) The total hours above shall be converted to a seven-hour shift to establish seniority.

(3) Upon completing 30 workdays (seven-hour shifts), an auxiliary employee's seniority shall include the accumulated 30 workdays.

(b) Subject to Clause 31.4 - Loss of Seniority, service and classification seniority of an auxiliary employee shall transfer with them if they are moved by the Employer from one ministry seniority unit to another.

(c) Auxiliary employees who are on a claim recognized by the Workers' Compensation Board which arises out of a work-related injury while employed by the government, shall earn seniority for all hours the employee would have worked had they not been injured and been able to stay on the job.

(d) A current service seniority list shall be posted in the seniority unit by December 31, March 31, June 30 and September 30. Such list posting may be electronic. Upon request, a copy of the service seniority list shall be provided to the steward.

31.4 Loss of Seniority

An auxiliary employee will lose their service and classification seniority when:

- (a) they are terminated for just cause;
- (b) they voluntarily terminate or abandon their position;
- (c) they are on layoff for more than nine months;
- (d) they are unavailable for, or decline, four offers of re-employment as provided in Clause 31.5 - Layoff and Recall; or
- (e) they become a regular employee.

31.5 Layoff and Recall

(a) Layoff of auxiliary employees shall be by classification in reverse order of service seniority within a ministry seniority unit as defined in component agreements.

(b) Auxiliary employees on layoff shall be recalled in order of service seniority within a ministry seniority unit, provided the auxiliary employee is qualified to carry out the work which is available.

(c) Notwithstanding (a) above, auxiliary employees hired for seasonal work or a term certain shall be laid off upon completion of the season or term and shall be subject to recall procedures in accordance with (b) above.

(d) Auxiliary employees hired pursuant to Article 34 - Special Employment Programs, or for special projects, as mutually agreed to between the Employer and the Union, shall be considered terminated for cause in accordance with Clause 31.4(a) - Loss of Seniority upon completion of their project or program. The Employer will provide the Union with a copy of each appointment letter for employees hired under Clause 31.5(d) - Layoff and Recall, within 30 days of the appointment.

(e) Ministries will schedule time periods during which auxiliary employees on layoff will be contacted as work is available. These scheduled time periods will be established by seniority units based on the scheduling patterns for that unit, such that auxiliary employees will not be required to be available more than three hours on any one day or for more than one period per shift, at their contact point established pursuant to (g) below. Calls made to auxiliary employees outside of the scheduled time periods will be treated in accordance with the applicable sections of this article.

(f) Auxiliary employees will be advised, in writing, of the scheduled time periods and of any changes thereto. Auxiliary employees, on layoff, are required to be personally available at their contact point during these scheduled time periods. The exceptions to this provision are detailed in (h) and (j) below.

(g) Auxiliary employees will provide a direct communication link that will give them personal contact with their work unit/recall section. This communication link must be appropriate to the Ministry's operation and may include telephone, radio telephone, pager, public media, on call boards, written communication, etc.

(h) (1) Where a written communication link is established, a single attempt by registered mail will be made to contact the auxiliary employees.

(2) Where telephone/radio telephone communication is used, two attempts, at least five minutes apart, will be made to contact the auxiliary employees.

(3) Where a pager is used, a single attempt will be made and the auxiliary employee must respond to the Employer within five minutes of the page. Notwithstanding the above, in the case of an emergency situation, a single verbal attempt will be made to contact the auxiliary employees.

(i) Auxiliary employees are responsible for advising their work unit/recall section, in writing, of their current phone number, address, radio call numbers, etc., as established in (g) above, and for the accuracy and completeness of the information provided. Where public communication or display media are used by the Ministry to advise auxiliary employees of work available, the auxiliary employees will check such media in the manner indicated by the Ministry. Auxiliary employees are responsible for maintaining the necessary equipment required to receive notice, in an operable condition, except where such maintenance is beyond their control.

(j) Auxiliary employees on layoff who experience problems with their communication link established under (g) above, or who will not be available at their contact point during the scheduled time period for those reasons outlined in (n) below, are required to contact their work unit/recall section in advance of the scheduled time periods as designated by the Ministry. The auxiliary employees may be required to contact their work unit/recall section during the scheduled time period to obtain a specific work schedule, etc.

(k) Ministries unable to contact auxiliary employees during the scheduled time periods established in (e) above, will immediately advise the employees by registered mail of the date, time and result of the contact attempt(s), and that they are considered to have been unavailable for work for purposes of Clause 31.4(d) - Loss of Seniority. Ministries unable to contact auxiliary employees outside of the scheduled time periods will not count such unavailability for purposes of Clause 31.4(d) - Loss of Seniority except as specified in (l) below.

(l) Where auxiliary employees are contacted outside of the scheduled time periods and decline work in an emergency situation, other than for reasons outlined in (n) below, they will be considered to have declined work for purposes of Clause 31.4(d) - Loss of Seniority.

(m) Where auxiliary employees are contacted during the scheduled time periods established in (e) above, and decline the work offered, such decline will be considered to be a decline for purposes of Clause 31.4(d) - Loss of Seniority.

(n) Auxiliary employees who are unavailable in the following circumstances, and who call in to their

work unit/recall section at the times designated by the Ministry, will not have the decline or unavailability count as an occurrence for purposes of Clause 31.4(d) - Loss of Seniority:

- (1) absence on a WCB claim;
- (2) maternity leave, parental leave or adoption leave;
- (3) absence on bereavement as per Clause 31.6(c) - Application of Agreement;
- (4) leave to participate in activities of a Reserve Component of the Canadian Armed Forces;
- (5) illness; proof of illness may be required if the absence is greater than five days or where it appears a pattern of consistent or frequent absence is developing;
- (6) illness of, or inability to obtain child care for a dependent child of an auxiliary employee, where no one other than the employee can care for the child. Proof of illness or inability to obtain child care may be required if a pattern of consistent absence is developing. Such leave will not exceed two days;
- (7) union leave per Clause 2.10 - Time Off for Union Business;
- (8) jury duty;
- (9) medical or dental appointments;
- (10) approved leave under Clause 31.11(b) - Annual Vacations;
- (11) an offer of work which is less than 3½ hours duration;
- (12) an offer of work which would constitute a short changeover (Clause 15.4 - Short Changeover Premium). Employees who decline work pursuant to (11) or (12) will remain eligible to be recalled for other available work on the same day and to accept or decline that work in accordance with the terms of this agreement.

(o) Auxiliary employees subject to recall shall lose their service and classification seniority and shall be considered terminated for just cause where they are unavailable for or decline work on four separate occasions² in the calendar periods between April 1 and September 30 inclusive or October 1 and March 31 inclusive.

(p) (1) Auxiliary employees, with the agreement of the Employer, may specify days and/or times of availability. Such agreed to days and/or times and any agreed to alterations thereto, shall be in writing and include the days and/or times, and effective date.

(2) Where a recall for work on such days and/or times occurs, it shall be made on the basis of seniority and in accordance with the provisions of (b) and (e) through (n) above.

(3) Should an auxiliary employee wish to revert from having specified days and/or times of availability to full availability, the employee may do so by providing the Employer with 10 days written notice.

(q) Auxiliary employees unavailable for, or declining work offered to them, will not accumulate service or classification seniority for the hours that might have been worked. This may result in changes in ranking on the seniority list as junior employees work these hours.

(r) A ministry is not required to recall auxiliary employees who have already accumulated 1827 hours in 26 pay periods.

(s) (1) Auxiliary employees who report for work at the call of the Employer shall be paid for all hours worked with a minimum of two hours pay at their regular rate unless the employee is unfit

² It is understood that only one decline/unavailability may be counted per calendar day and when an employee declines or is unavailable for recall for work during a calendar day, the Employer shall not be required to make further offers of work to the employee for the calendar day which the employee has declined or been unavailable for.

to perform their duties or has failed to comply with the Industrial Health and Safety Regulations of the Workers' Compensation Board.

(2) Where an employee commences work they shall receive three and one-half hours pay at their regular rate unless:

(i) their work is suspended for reasons completely beyond the control of the Employer; or (ii) the duration of the work assignment is known in advance by the employee; (iii) in which instances the provisions of (s)(1) shall apply.

(t) Auxiliary employees who are unable to return to either full or modified duties after a period of 30 months from the start of their absence with no reasonable prospect of return will lose their service and classification seniority and will be considered an administrative termination.

31.6 Application of Agreement

(a) Except as otherwise noted in this article, the provisions of Article 11 - Seniority, Article 13 - Layoff and Recall, Article 17 - Paid Holidays, Article 18 - Annual Vacations, Article 19 - Short-Term and Long-Term Illness & Injury and Long-Term Disability, Article 20 - Special and Other Leave, Article 21 - Maternity, Parental and Pre-Adoption Leave, and Article 25 - Health and Welfare, do not apply to auxiliary employees. The provisions of other articles apply to auxiliary employees, except as otherwise indicated.

(b) Any auxiliary employee who is eligible to vote in a federal, provincial, aboriginal community government or municipal election or a referendum shall have three or four consecutive clear hours, as prescribed by the applicable statute, during the hours in which the polls are open in which to cast their ballot.

(c) Where leave from work is required, auxiliary employees shall be entitled to the provisions of Clause 20.1 (Bereavement Leave).

(d) Maternity and parental leave for auxiliary employees with less than 1827 hours worked in 33 pay periods shall be in accordance with the Employment Standards Act.

31.7 Health and Welfare

In lieu of health and welfare benefits, auxiliary employees shall receive compensation of:		Date	Rate per hour
Max biweekly April 1, 2025	94¢	\$65.80 April 1, 2026	97¢
\$1.00	\$70.00 April 1, 2028	\$1.03	\$72.10

31.8 Auxiliary Illness and Injury Leave and Weekly Indemnity

(a) Auxiliary employees who have completed 90 consecutive days of employment, and who are not eligible for benefits pursuant to Clause 31.12 - Eligibility Requirements for Benefits, shall be entitled to up to five days of paid illness and injury leave.

(b) Auxiliary employees are eligible for weekly indemnity benefits upon accumulation of 400 hours of auxiliary seniority. Once established, eligibility for weekly indemnity is retained unless the auxiliary employee loses auxiliary seniority. Weekly indemnity benefits are payable for each period of illness up

to a maximum of 15 weeks at 60% of the auxiliary employee's normal average earnings. Normal average earnings are calculated by averaging the total of the straight-time compensation and the compensation paid in accordance with Clause 31.7 - Health and Welfare in the six most recent biweekly pay periods in which earnings occurred. The period of weekly indemnity benefits up to a maximum of 15 weeks will be reduced by the period of any leave taken under (a) above respecting each case of illness.

(c) The benefit waiting period in each case of illness will be seven calendar days. This means that benefits will be paid from the eighth day of illness. Leave taken under (a) is not subject to the benefit waiting period.

(d) Subject to Clause 31.8(c) - Weekly Indemnity, full benefits will be reinstated:

(1) in the case of new illness, after the auxiliary employee returns to active employment following the most recent absence due to illness and accumulates 150 more hours of auxiliary seniority;

(2) in the case of a recurrence of a previous illness, after the auxiliary employee returns to active employment following the most recent absence due to that illness and accumulates 400 more hours of auxiliary seniority.

(e) The payment of benefits to a person who is laid off or separated prior to termination of their illness shall be continued after the layoff or separation until the total number of weeks for which benefits have been paid in respect of that illness is 15 weeks or the duration of the illness, whichever occurs first, except that benefits will cease on the effective date of a scheduled layoff or separation, if the illness occurs two months (or less) before that layoff or separation, provided that notice of the layoff or separation was given prior to the occurrence of the illness.

(f) The benefits described in this clause shall not be available to an auxiliary employee whose illness, injury, or personal circumstances may be described by any one of the following conditions:

- (1) who is not under the care of a licensed physician;
- (2) whose illness is occupational and is covered by Workers' Compensation;
- (3) whose illness results from service in the Armed Forces;
- (4) whose illness results from riots, wars or participation in disorderly conduct;
- (5) who is ill during a period of paid vacation;
- (6) whose illness is sustained while they are committing a criminal offence;
- (7) who is engaged in an employment for a wage or profit;
- (8) who is ill during a strike or lockout at the place where they were employed if that illness commences during the strike or lockout;

(9) who is serving a prison sentence;

(10) who would not be entitled to benefits payable pursuant to Part I of the Employment Insurance Act because they are not in Canada;

(11) who is absent from work because of plastic surgery performed solely for cosmetic purposes except where the need for surgery is attributable to an illness or injury.

(g) The parties agree that the complete premium reduction from the Human Resources Development Canada accruing through the improved sick leave plan and the weekly indemnity plan will be returned to the Employer. This is in exchange for the implementation of the above-mentioned plans.

31.9 Medical, Dental and Group Life Insurance

(a) Auxiliary employees will be eligible for coverage under Clauses 25.1 - Basic Medical

Insurance, 25.2 - Extended Health Care Plan, 25.3 - Dental Plan, 25.4 - Group Life and 25.9 - Employee and Family Assistance Program after completion of 1827 hours worked in 33 pay periods or after working three consecutive years without loss of seniority and maintaining 1200 hours worked at the straight-time rate within the previous 26 pay periods. Such auxiliary employees eligible for benefits under this clause will not receive the payment under Clause 31.7 - Health and Welfare.

(b) An auxiliary employee will cease to be entitled to coverage under (a) above when they lose their seniority in accordance with Clause 31.4(a), (b), (c) or (d) - Loss of Seniority.

(c) Auxiliary employees qualified under (a) above shall be entitled to maintain coverage under such plans for a maximum period of six consecutive months immediately following the month in which the layoff occurs by paying the premium themselves.

(d) When an auxiliary employee on layoff, who has previously qualified under (a) above and has not ceased to be entitled under (b) above, is recalled, the employee shall immediately be entitled to the benefits under (a) above.

31.10 Designated Paid Holidays

(a) Auxiliary employees shall be compensated for the paid holiday who have:

(1) worked, or received pay at straight-time rates for the day before and the day after a paid holiday; or

(2) worked, or received pay at straight-time rates for 15 of the previous 30 days; or

(3) worked, or received pay for at least 105 hours at the straight-time rate in the previous 30 days. This clause shall not apply to employees who have been terminated and not on layoff status.

(b) An auxiliary employee who is qualified under (a) to receive compensation for the paid holiday but does not work on the paid holiday, shall receive compensation for the day based on the following formula: straight-time hours paid in the previous 30 calendar days divided by the straight-time hours of work of a full-time employee for the same 30 calendar day period multiplied by the hourly rate multiplied by seven.

(c) An auxiliary who is qualified in (a) to receive compensation for the holiday and who works on that day shall be compensated at the same rate as regular employees in the same situation, as outlined in Article 17 - Paid Holidays. The day off in lieu provided through the application of Article 17 - Paid Holidays shall be compensated on the basis of the formula in (b) above.

(d) Auxiliary employees who work on the designated holiday, but do not meet the conditions of (a) above shall receive straight-time for hours worked on the holiday.

31.11 Annual Vacations

(a) Auxiliary employees will be entitled to receive vacation pay at the rate of six percent of their regular earnings. Auxiliary employees shall receive their earned vacation biweekly.

(b) Auxiliary employees after six months from their date of hire, may elect to take a leave of absence without pay of up to 15 workdays, not to exceed 105 hours, in any calendar year. An employee seeking such unpaid leave shall make application, in writing, a minimum of seven workdays prior to the requested leave.

(c) The granting and scheduling of any such leave shall be subject to operational requirements, the vacation schedules of employees and provided there is no increased cost to the Employer. The days need not be consecutive.

(d) Auxiliary employees who have completed 1827 hours worked in 33 pay periods shall be eligible

for annual vacation leave in accordance with the provisions of this clause and Clause 18.1 - Annual Vacation Entitlement, except that the first vacation year is the calendar year in which the anniversary of eligibility occurs. Auxiliary employees eligible for annual vacation shall not be entitled to vacation pay as in (a) above or leave in accordance with (b) above.

(e) The calendar year in which an employee qualifies for vacation leave under (d) will be considered the first partial year of service for purposes of vacation entitlement.

(f) Upon qualifying for vacation leave an auxiliary employee will be paid any earned vacation pay owing to that date and thereafter will earn vacation leave in accordance with Clause 18.2 - Vacation Earnings for Partial Years.

(g) Vacation leave shall be scheduled in accordance with the provisions of the applicable component agreement, except that employees hired for vacation relief or for seasonal operations may be restricted as to the time of year they may schedule vacation.

(h) Vacation schedules, once approved by the Employer, may be rescheduled if it is displaced by an emergency or because the employee is absent on an approved WCB claim.

(i) Auxiliary employees who qualify for vacation leave shall be covered by the provisions of Clauses 18.4 - Vacation Pay, 18.6 - Vacation Carryover, 18.7 - Callback From Vacation, 18.8 - Vacation Leave on Retirement and 18.9 - Vacation Credits Upon Death.

31.12 Eligibility Requirements for Benefits

Auxiliary employees will qualify for short-term illness and injury plan (STIIP) - Appendix 4, Part 1, Clauses 20.2 - Special Leave, 20.3 - Family Illness, 20.4 - Full-Time Public Duties, 20.5 - Leave for Court Appearances, 20.9 - Elections, 20.11 - Leave for Medical and Dental Care, 20.12 - Maximum Leave Entitlement, 20.13 - Emergency Service Leave, 20.18 - Compassionate Care Leave, 20.21 - Supplemental Leave, 20.22 - Cultural Leave for Indigenous Employees, and Article 21 - Maternity, Parental and Pre-Adoption Leave as follows:

(a) An employee will be entitled to benefits under this clause after completion of 1827 hours worked in 33 pay periods.

(b) An auxiliary employee will cease to be entitled to coverage when they:

(1) fail to maintain 1200 hours worked at the straight-time rate within the previous 26 pay periods except as provided under Article 21 - Maternity, Parental and Pre-Adoption Leave;

(2) lose their seniority in accordance with Clause 31.4(a), (b), (c), or (d) - Loss of Seniority.

(c) Benefits will not be paid on layoff except as provided in Appendix 4, Section 1.9 - Benefits Upon Layoff or Separation.

(d) Auxiliary employees on layoff or subject to recall will not be eligible for benefits until after their return to work and subject to meeting the eligibility requirements. ("Return to work" is understood to mean the employee completed at least one-half of a scheduled workday or shift.)

(e) Where there is no established work schedule the calculation of hours for the purposes of STIIP benefits shall be based on the average number of hours worked during the six pay periods immediately preceding absence due to illness.

(f) The maximum six-month period identified in Appendix 4, Part 1 shall be a maximum seven-month period. 31.13

(a) Auxiliary employees on layoff and subject to recall and who are unavailable to work due to illness or injury and who call in to their work unit/recall section at the times designated by the Ministry, will be eligible for STIIP benefits provided a less senior auxiliary employee is recalled to do the available work. STIIP benefit entitlement will be based on the hours worked by the junior employee replacing the senior employee making the STIIP claim.

(b) Notwithstanding 31.5(n)(5), auxiliary employees claiming entitlement to STIIP pursuant to this clause, may be required to provide the Employer proof of illness for each claim in accordance with

Appendix 4, 1.4 criteria.

(c) STIIP benefits under this clause are only payable to one auxiliary employee per recalled position in accordance with (1) above.

(d) Auxiliary employees making a STIIP claim must call in to their work unit/recall section on a daily basis, unless the employee making a claim for STIIP provides acceptable medical documentation supporting an extended absence.

ARTICLE 32 - GENERAL CONDITIONS

32.1 Child Care Facility

(a) The Employer and the Union agree to establish a joint committee to facilitate the establishment of community based child care centres.

(b) The Joint Committee shall be composed of four union representatives and four employer representatives. The designates of each party shall be gender balanced. Employees representing the Union on this joint committee shall be on leave of absence without loss of basic pay for time on this committee.

(c) The Joint Committee may facilitate the establishment of community based child care facilities where viable.

(d) The Joint Committee may establish subcommittees where appropriate to facilitate objectives of this clause.

(e) The Joint Committee shall include representation and participation from interested community based groups or organizations. The Committee shall determine which community based groups or organizations shall be represented.

(f) The Joint Committee may seek the advice and support of other Public Service program areas including but not limited to the Ministry of Women's Equality, the Ministry for Children and Families, BCBC and the Employee Benefit Trust.

(g) Where suitable space is available in a government owned or leased facility without major or structural modification, the space may be made available for the purpose of establishing the community based child care facility. The Employer's sole financial responsibility is limited to the provision of such space.

32.2 Commuting

(a) The Employer shall actively participate in environmentally sustainable employee transit programs which encourage employees to use public transit, cycling and/or to carpool to their worksites.

(b) The Employer and the Union agree that there shall be no change in parking regulations and policies except by mutual agreement of the parties.

(c) A joint employer/union parking committee shall be established to study the matter of employee parking and commuting and make recommendations to the parties.

32.3 Tools and Allowances

All matters with respect to the provision of tools and allowances shall be in accordance with the terms of the Component Agreements.

32.4 Comprehensive Insurance

The Employer agrees to provide comprehensive insurance covering tools, reference texts, and instruments owned by the employees and required to be used in the performance of their duties at the request of the Employer.

32.5 Indemnity

(a) Civil Action - except where there has been flagrant or wilful negligence on the part of an employee, the Employer agrees not to seek indemnity against an employee whose actions result in a judgment against the Employer. The Employer agrees to pay any judgment against an employee arising out of the performance of their duties. The Employer also agrees to pay any legal costs incurred in the proceedings including those of the employee.

(b) Criminal Actions - where an employee is charged with an offence resulting directly from the performance of their duties and is subsequently not found guilty, the employee shall be reimbursed for reasonable legal fees as long as the performance of their duties was not dishonest, malicious or otherwise in bad faith.

(c) Canada Shipping Act - where an employee is called before a hearing held under the Canada Shipping Act resulting directly from the performance of their duties, the employee shall be reimbursed for reasonable legal fees as long as the performance of their duties was not dishonest, malicious or otherwise in bad faith.

(d) At the option of the Employer, the Employer may provide for legal services in the defence of any legal proceedings involving the employee (so long as no conflict of interest arises between the Employer and the employee) or pay the legal fees of counsel chosen by an employee.

(e) Where an employee is required to defend their professional actions arising out of the performance of their duties, in a proceeding before their professional licensing body, the Employer will provide either legal counsel or, at the Employer's option, reimbursement of reasonable legal fees

incurred in such defence as long as the performance of their duties was not dishonest, malicious or otherwise in bad faith.

(f) In order that the above provisions shall be binding upon the Employer, the employee shall notify the Employer immediately, in writing, of any incident or course of events which may lead to legal action against them, and the intention or knowledge of such possible legal action is evidenced by any of the following circumstances:

(1) when the employee is first approached by any person or organization notifying them of intended legal action against them;

(2) when the employee themselves require or retain legal counsel in regard to the incident or course of events;

- (3) where any investigative body or authority first notifies the employee of any investigation or other proceeding which might lead to legal action against the employee;
- (4) when information first becomes known to the employee in the light of which it is a reasonable assumption that the employee would conclude that they might be the object of legal action; or
- (5) when the employee receives notice of any legal proceeding of any nature or kind.

32.6 Payroll Deductions

An employee shall be entitled to have deductions from their salary assigned for the purchase of an RRSP of the employee's choice.

32.7 Political Activity

(a) Municipal, School Board and Aboriginal Community Government Offices:

(1) Employees may seek election to municipal, school board or aboriginal community government offices, provided that:

- (i) the duties of the municipal, school board or aboriginal community government office other than regular council or board meetings do not impinge on normal working hours as a Public Service employee;
- (ii) there is no conflict of interest between the duties of the municipal, school board or aboriginal community government office and the duties of the Public Service position.

(2) Where the municipal council, school board or aboriginal community government or committees of these bodies hold meetings during the employee's normal working hours, the Ministry shall grant leave without pay to attend such meetings.

(3) Where leave without pay is granted to attend committee meetings, such leave shall be in accordance with Clause 20.10, and provided that such leave shall not exceed one-half shift per week.

(4) The employee shall provide at least one week's written notice to the Ministry.

(b) Federal and Provincial Offices:

There are no restrictions other than the oath of office on employees engaging in political activities on their own time as campaign workers. If an employee is nominated as a candidate for election, the employee shall be granted leave without pay in accordance with Clause 20.4(a) to engage in the election

campaign. If elected, the employee shall be granted leave of absence in accordance with Clause 20.4(b). If not elected, the employee shall be allowed to return to their former position.

32.8 Copies of Agreements

(a) The Union and the Employer desire every employee to be familiar with the provisions of this agreement, and their rights and obligations under it. For this reason, the Union and the Employer will make the online agreement available to all employees. Any printing costs must be mutually agreed to by the Bargaining Principals in advance and those costs shall be borne equally by the parties. Where required, the Union shall distribute the collective agreements to its members.

(b) The cover of the agreement shall read as follows:

TWENTIETH MAIN PUBLIC SERVICE AGREEMENT between the GOVERNMENT OF THE PROVINCE OF BRITISH COLUMBIA represented by the BC PUBLIC SERVICE AGENCY and the B.C. GENERAL EMPLOYEES' UNION (BCGEU) Effective from April 1, 2025 to March 31, 2029

- (c) If printed, all agreements shall be printed in a union shop and shall bear a recognized union label.
- (d) The Employer will make available the online main and relevant component agreement within 90 days of finalizing the camera ready draft. Ninety days may be waived in extenuating circumstances.

32.9 Travel Advance

Employees not covered by a work party advance, and who do not qualify to obtain a corporate card, will be provided with an adequate travel advance if they are required to proceed on travel status. The amount of advance will be determined by such factors as time away from headquarters and the frequency of reimbursement.

32.10 Transfer of Employees Out of the Public Service Bargaining Unit

When the parties are made aware that employees will be transferred out of the Public Service bargaining unit to another government, a corporation, board, agency, or commission, a joint employer/union committee shall immediately be established. The Committee shall be established to facilitate the orderly transfer of employees. Where such transfers occur, those transferred employees will be recognized as in-service applicants when applying for regular positions in government for a period of two years from the effective date of the transfer. This provision applies where coverage of the Employer in the Public Service Act is revoked by Order-in-Council or legislation. This clause does not cover secondment of employees.

32.11 Private Vehicle Damage

Where an employee's vehicle is damaged by a person in the care or custody of the Employer, or as a direct result of the employee being employed by the Employer, the Employer shall reimburse the employee the lesser of actual vehicle damage repair costs, or the cost of any deductible portion of insurance coverage on that vehicle up to a maximum of \$749.09 effective April 1, 2025; \$771.56 effective April 1, 2026; \$794.71 effective April 1, 2027, and \$818.55 effective April 1, 2028.

32.12 Personal Property Damage

(a) Where an employee's personal possession(s) is/are damaged by a person in the care or custody of the Employer, the Employer shall pay, up to a maximum of \$197.48 effective April 1, 2025; \$203.40 effective April 1, 2026; \$209.50 effective April 1, 2027 and \$215.79 effective April 1, 2028, the replacement costs or personal deductible insurance, provided such personal possessions are of a type suitable for use while on duty. This provision shall not apply to articles of clothing.

(b) On request, and with reasonable notice, the Employer shall provide a secure space for employees to store such personal possessions, wallets and/or purses when the employees are at their worksite.

32.13 Disclosure of Information

The Employer and the Union recognize that it is in the public interest for employees to be able to disclose information regarding breaches of a statute, danger to public health and safety or a significant danger to the environment. No employee shall be disciplined for bringing forth in good faith an allegation of wrongdoing in accordance with the following procedure:

- (a) An employee shall direct their concern or allegation to the employee's immediate supervisor.
- (b) If the employee feels that their allegation has not been adequately addressed at this level or if the allegation relates directly to the immediate supervisor, the employee may refer the matter in writing to the next level of excluded management not directly involved in the matter.
- (c) The written notice should provide full particulars of the allegation including the name(s) of

individual(s) involved, the date(s) the wrongdoing is alleged to have occurred and any supporting documentation in the employee's possession, or of which the employee is aware.

(d) The excluded manager will acknowledge, in writing, receipt of the employee's notice and will investigate and take such action as may be required respecting the allegation. If the employee feels that their allegation has not been adequately addressed at this level, they will so advise the excluded manager prior to proceeding to the next level of this process.

(e) Where the employee is not satisfied that the allegation has been resolved or is not satisfied with the timeliness of the response at any level, the employee may refer the matter in writing to their deputy minister, including the detailed information outlined above.

(f) Where an allegation involves the Deputy Minister, the employee shall forward their allegation to the Deputy Minister to the Premier.

(g) These procedures do not relieve an employee from the requirements of their Oath of Office, nor do these procedures restrict the employee from exercising their rights or obligations under any applicable statute.

32.14 Electronic Monitoring

(a) Monitoring equipment may be used to protect the safety of employees, clients and persons in the care or custody of the province or to protect the assets or property of the province.

(b) Monitoring equipment will not be installed by the Employer in staff washrooms or lunch rooms.

ARTICLE 33 - EMPLOYMENT EQUITY

(a) The government of British Columbia is committed to providing a work environment free of any form of adverse discrimination.

(b) The parties hereto subscribe to the principles of the Human Rights Code of British Columbia.

(c) The parties recognize the need to implement Reconciliation, Equity, Diversity and Inclusion (REDI) programs in the Public Service.

(d) The goals of the REDI programs are to create a workforce which, at all levels, is representative of the diverse population it serves; and to ensure that individuals are not denied employment, advancement or training opportunities within the Public Service for reasons unrelated to ability to do the job.

(e) Regulations, policies and procedures with respect to recruitment, selection and promotion shall facilitate:

(1) opportunities for external recruitment and internal advancement to develop a public service that is representative of the diversity of the people of British Columbia; and,

(2) the long-term career development and advancement of employees appointed under the Public Service Act.

(f) There shall be a union/management steering committee on employment equity (UMSCEE). The BCGEU will be a member of UMSCEE.

(g) The Steering Committee is authorized to:

(1) advise the Employer on employment equity issues and initiatives;

- (2) review ministry action plans;
- (3) monitor progress of ministry action plans;
- (4) ensure that a government-wide progress report is provided to the Head of the BC Public Service Agency and the Union; and,

(5) to review best practices to support workers with disabilities and review systemic barriers to employment affecting workers with disabilities;

(6) review and advise on ministry action plans to increase the representation number of Indigenous and racialized employees.

(h) Employees representing the Union on this steering committee shall be on leave of absence without loss of basic pay for time on this committee.

ARTICLE 34 - SPECIAL EMPLOYMENT PROGRAMS

34.1 Public Service Employment Program

(a) The objectives of the Public Service Employment Program are:

(1) to provide a training program leading to long-term employment for persons with disabilities and disadvantaged persons;

(2) to increase awareness among employers of the value of hiring persons with disabilities and disadvantaged persons;

(3) to increase the personal development and work skills of persons with disabilities and disadvantaged persons;

(4) to encourage the employment of persons with disabilities and disadvantaged persons in the Public Service. The purpose of the program is to provide training for employment in the Public Service for those clients of the Employment Program for Persons with Disabilities (EPPD), Ministry of Social Development and Poverty Reduction, or the Ministry the EPPD is associated with, who experience difficulty in competing in the labour market; to provide training and encourage the development of skills which will assist those clients to overcome such difficulty and so become active participants in the labour force. Before placement in the provincial government under this program, each person must be a registered client of the Employment Program for Persons with Disabilities (EPPD), Ministry of Social Development and Poverty Reduction, or the Ministry the EPPD is associated with, and must have received a job readiness assessment. Only those clients assessed as not job-ready will be eligible under this program. Each position will be designed with a training outline and will indicate a proposed time by which training will be completed.

(b) Clients on the Public Service Employment Program will be given special jobs not normally carried out by the employees in the bargaining unit, or jobs where they are not expected to carry out the principal duties of that job.

(c) There will be an initial training work term not to exceed six continuous months of employment. At the completion of this 910 hours' work term, an assessment of the abilities and skills of each individual will be made. If the client is deemed not yet "job-ready", they may be eligible for an extension under the training program, not to exceed six months. Pay for the initial work term and the period of extension, if required, will be at the levels shown in Appendix 3F.

(d) Clients on the training program will be considered auxiliary employees. Benefits in the Main

Agreement will apply. The training program will be considered as a special program and Clause 31.5(d) will apply. Notwithstanding Clause 31.5(d), once clients have completed their work assignments under the program, they will be considered to have in-service status for the purpose of applying on competitions only. The in-service status shall remain in effect for nine months after completion of their final work assignment under the Program.

(e) Notwithstanding any other provision of this collective agreement, the Employer may conclude a client's participation in the Program at any time for good and sufficient reasons.

(f) Notwithstanding Article 10 - Dismissal, Suspension and Discipline, and Clause 28.3, if there is a dispute regarding the reasons in (e) above, or a dispute as to whether a client hired under this program should be classified in accordance with (b) above, the matter shall be referred to an agreed arbitrator.

(g) Clients shall be classified and paid in accordance with Appendix 3F.

(h) The hours of work for these employees will be as per the hours in the work unit.

34.2 Co-operative Education Training Program

The purpose is to establish the salary rate and working conditions for students hired under the Co-operative Education Training Program within the provincial government.

(a) Employees hired under the Co-operative Education Training Program will be considered auxiliary employees and receive the appropriate benefits as per this agreement.

(b) The program will be restricted to persons registered in a recognized cooperative education program at a participating post-secondary institution. The length of appointment for students under this article will correspond to the requirements of their academic program.

(c) Co-op education will be considered supernumerary to the established workforce. As such, Clause 31.5(d) will apply to these programs.

(d) No employees hired under this program will be employed where it would result in a layoff or failure to recall a qualified employee.

(e) Employees hired under this program will be classified and paid in accordance with Appendix 3F at Co-op Level 1 or Co-op Level 2 as appropriate.

(f) The standard hours of work for employees under this program will be seven hours per day and 35 hours per week.

(g) The standard hours of work may be varied by mutual agreement at the local level, consistent with local hours of work agreements, provided that no employee works more than 10 hours in one day and 70 hours in a biweekly period.

(h) Employees hired under the Co-operative Education Training Program shall be assigned work that augments their field of study.

(i) Notwithstanding Clause 31.5(d), co-op students will be considered to have in-service status for the sole purpose of applying on competitions only for a period of one year after the successful completion of their co-op term.

(j) Years of continuous service in Clause 12.3(b) will include service contributed under their co-op term(s), provided the employee has maintained in-service status and the gap between the end date of their last co-op term and the closing date of the competition is less than one year.

34.3 Student Employment Program

The purpose is to establish the salary and working conditions for students hired by the Employer under the student employment programs, including environmental student teams.

(a) Employees hired to carry out the principal duties of a job covered by a public service classification specification shall be classified accordingly and paid according to the rate established for that position.

(b) Employees hired under this program will be classified and paid a biweekly salary in accordance with Appendix 3F.

(c) Employees hired under this program will be considered auxiliary employees and receive the appropriate benefits as per this agreement. No student will be hired under this program to perform work previously done by an employee on layoff or for which an employee on layoff has right of recall.

(d) Notwithstanding Clause 28.3, if there is a dispute as to whether an employee hired under this program should be classified in accordance with (a) or (b), the dispute shall be referred to an adjudication committee for final resolution. The Committee shall be composed of a single adjudicator and two assessors - one appointed by each of the parties to this agreement.

(e) The program will be considered a special employment program and Clause 31.5(d) will apply.

(f) The hours of work shall average 35 hours per week and shall be consistent with the hours of work established for the work group to which the employee is assigned.

(g) The hours of work may be varied by mutual agreement between the Union and the Employer provided that no employee works more than 10 hours in one day or 70 hours in a biweekly period.

(h) Notwithstanding Clause 31.5(d), students will be considered to have in-service status for the sole purpose of applying on competitions only for a period of one year after the successful completion of the program.

(i) Years of continuous service in Clause 12.3(b) will include service contributed under the program, provided the employee has maintained in-service status and the gap between the end date of the program and the closing date of the competition is less than one year.

34.4 Indigenous Youth Internship Program

The Indigenous Youth Internship Program provides opportunities for Indigenous youth to contribute and improve relationship-building between Indigenous communities/organizations and the Provincial Government. This encourages Indigenous youth to grow their careers within the BC Public Service or Indigenous organizations.

(a) Interns employed under the Indigenous Youth Internship Program (IYIP) shall be paid in accordance with Appendix 3F.

(b) Notwithstanding Clause 31.5(d), IYIP graduates will be considered to have in-service status for the sole purpose of applying on competitions only for a period of two years after the completion of their internship. Existing participants, as of April 1, 2019, shall retain in-service status for a period of five years.

(c) Years of continuous service in Clause 12.3(b) will include service contributed under the program, provided the employee has maintained in-service status and the gap between the end date of the program and the closing date of the competition is less than two years. For existing participants as of April 1, 2019, the gap between the end date of the program and the closing date of the competition shall be less than five years.

(d) An Indigenous person who is currently employed as a regular employee who has completed probation within the BC Public Service may apply for the Program. If accepted to the Program, they shall be approved to participate on a temporary assignment and they will retain their regular status. Upon completion of the Program, they will return to their base or an equivalent position.

34.5 Public Service Internship Program

The Public Service Internship Program provides recent graduates from post-secondary universities and colleges with direct work experience and an orientation to government. This encourages them to consider a career in the public service.

(a) Employees hired under this program will be considered auxiliary employees.

(b) Employees hired under this program must have completed their relevant program training in the last year.

(c) Employees hired under this program will be classified and paid a biweekly salary in accordance with Appendix 3F.

(d) Program terms are 12 months in duration.

(e) Notwithstanding Clause 31.5(d), graduates hired under this program will be considered to have in-service status for the sole purpose of applying on competitions beginning eight weeks prior to the end of the program and extending to a period of one year after completing the program. Employees must complete the program prior to starting new employment within the BC Public Service.

(f) Years of continuous service in Clause 12.3(b) will include service contributed under the program, provided the employee has maintained in-service status and the gap between the end date of the program and the closing date of the competition is less than one year.

34.6 Work-Able Accessible Employment Program

The parties agree to establish an employment program for individuals who self-identify as a person with a disability to support the recruitment and retention of people with disabilities in order to leverage a diverse and inclusive workforce.

(a) Program terms are up to 24 months in duration.

(b) Employees in this program will be considered auxiliary employees hired under the Main Agreement. They will be paid in accordance with Appendix 3F - Public Service Internship Program (Grid 15).

(c) The program is open to recent (within three years) post-secondary graduates who self-identify as a person with a disability seeking to develop job specific skills and expertise while integrating post-secondary education.

(d) Work tasks will be temporary and distinct from day to day duties of a classified position. No persons will be hired under this program to perform work previously done by an employee on layoff or for which an employee on layoff has a right of recall.

(e) Notwithstanding Clause 31.5(d), persons hired under this employment program will be considered to have in-service status for the sole purpose of applying on competitions beginning twenty weeks prior to the end of the program and extending to a period of two years after successful completion of the program.

(f) Years of continuous service in Clause 12.3(b) will include service contributed under the program, provided the employee has maintained in-service status and the gap between the end date of the program and the closing date of the competition is less than two years.

34.7 Science Policy Fellowship Program

The Science Policy Fellowship Program provides academic researchers (PhDs), with direct work experience and an orientation to government. This encourages them to consider a career in the public service.

(a) Employees hired under this program will be considered auxiliary employees and receive the appropriate benefits as per this agreement.

(b) Program terms are 12 months in duration.

(c) Employees hired under this program will be classified and paid a biweekly salary in accordance with Appendix 3F.

(d) Notwithstanding Clause 31.5(d), employees hired under this program will be considered to have in-service status for the sole purpose of applying on competitions only for a period of one year after the completion of the program.

(e) Years of continuous service in Clause 12.3(b) will include service contributed in the program, provided the employee has maintained in-service status and the gap between the end date of the program and the closing date of the competition is less than one year.

ARTICLE 35 - SAFEGUARDING VULNERABLE PEOPLE

35.1 Purpose

The parties recognize that within the Public Service there are employees whose work assignment brings them in contact with vulnerable individuals. It is in the public interest that such employees do not have a history of behaviour which is incompatible with such assignments. The parties recognize that an employee's privacy and reputation must be recognized and protected. Accordingly, information gathered to establish suitability for work assignments which include contact with vulnerable individuals is to be treated with confidentiality to the fullest extent compatible with meeting the government's responsibility of safeguarding vulnerable people. Vulnerable people includes adults with physical/mental disabilities, and includes children.

35.2 Confidential Disclosures

(a) Within 20 days of a request by the Employer an employee shall provide the Employer with such authorization and information as the police may require in order to establish whether a record exists in areas of crime incompatible with such assignments. The Employer shall not be entitled to consider police records other than those arising from the above-mentioned crimes.

(b) Refusal to provide the necessary information shall render the employee ineligible to work with vulnerable people. Upon failure or refusal to provide the necessary information the employee shall be given 20 workdays' notice of removal from the assignment. Such employees shall have the options outlined in Article 13. During the notice period the employee shall be assigned duties which do not involve vulnerable people or will be paid in lieu of work. Where an employee provides false or misleading information, the Employer may take appropriate action. Such action shall only be for just cause and may be grieved pursuant to Article 8.

(c) Within 30 days of the signing of this agreement, the Principals shall mutually agree to a third party who will be responsible for the following:

- (1) To receive police records as requested by the Employer.
- (2) To forward such records to the Employer without information which identifies the

employee while retaining a cross-reference means of identification.

(3) Upon request of the Deputy Minister, to provide the employee name corresponding to a record and to notify the employee.

(d) Where a deputy minister has called for an employee name, the employee shall have an opportunity to make written explanation regarding the record as it relates to their suitability. The decision that an employee is not cleared for work in a position of trust will be made by the Deputy Minister of the employing ministry. Where the Deputy Minister has called for an employee name and decides that the record does not render the employee unsuitable, the record shall be destroyed.

(e) Upon the decision of the Deputy Minister that an employee is not cleared for work with vulnerable people, the employee shall be given 20 workdays' notice of removal from the assignment. Such

employees shall have the options outlined in Article 13. During the notice period the employee shall be assigned duties which do not involve vulnerable people or will be paid in lieu of work. The decision of the Deputy Minister shall be subject to the grievance procedure commencing at Step 2 within 30 days of the written decision being received.

ARTICLE 36 - LIMITED EMPLOYMENT AND PRIVATIZATION

36.1 Limited Employment

(a) Definitions - in Clause 36.1 of this article:

"Limited Term Employee" means:

(1) a person appointed pursuant to Section 1(1)(j) of the Public Service Labour Relations Act ("PSLRA") or;

(2) a person described in Appendix II, "Excluded Classes", of the Main Agreement between the Employer and the Union as "persons appointed on a temporary limited basis for a specific term of less than 31 calendar days pursuant to Section 1(1)(j) of the PSLRA".

(b) Reporting Procedures

(1) The Employer agrees to provide the Union with a copy of all letters appointing a person pursuant to Section 1(1)(j) of the PSLRA within 10 calendar days of such appointments. The appointment notice shall contain the following information:

(i) the date the appointment is to commence;

(ii) the date the employment is to terminate or is intended to terminate; (iii) the work location and classification of work to be performed.

(2) (i) The Employer agrees to provide the Union with written reports every three months of each calendar year regarding usage of service of employees from employment agencies. (ii) Reports will be forwarded as follows: a. by April 30 for the period January 1 to March 31; b. by July 31 for the period April 1 to June 30; c. by October 31 for the period July 1 to September 30; d. by January 31 for the period October 1 to December 31. (iii) Each report shall include: a. the name of the employment agency and individual concerned; b. the location and ministry at which such services are provided; c. the dates of utilization.

(c) Limited Term Employee

(1) No individual will be permitted to work on a subsequent appointment of less than 31 days

without the elapse of a period of 31 days since the expiry of that individual's most recent appointment of less than 31 days. If a person is appointed pursuant to Section 1(1)(j) of the PSLRA and the person's appointment extends beyond 30 days, that person shall be re-appointed as an

auxiliary employee effective the date the appointment is extended, however, seniority shall be credited for hours worked pursuant to the Section 1(1)(j) appointment.

(2) For the purposes of Clause 36.1 of this article non-working periods in excess of seven days within a period of 90 days shall not be counted for purposes of calculating whether an appointment is for a period of less than 31 days.

(d) Employment Agencies

(1) An "employment agency" is defined as a person or business organization who is in the business of recruiting and providing the services of individuals to other persons or organizations, including the Employer.

(2) No assignment of work to any one individual from an employment agency shall exceed 30 days.

(e) Combination Usage

The Employer agrees that it will not utilize limited-term employees and individuals from employment agency(s) or a combination of either, in succession to perform the same duties for a period in excess of 30 days within a period of 90 days.

(f) Waiver

Nothing in this article prohibits the Union from waiving any term or condition of this article. A waiver may only be granted by the President of the Union in writing, and such waivers will not be unreasonably withheld. The President of the Union shall respond to requests for a waiver within 10 calendar days of a request.

36.2 Privatization

(a) Definitions - in Clause 36.2 of this article:

"Privatization" means a disposition of assets and/or arrangements for the delivery of services identified in a minute of the Executive Council as a privatization. "Privatization Impact Review Committee" means a committee of three representatives of the Employer and three representatives of the Union that will meet within 10 calendar days of the announcement of a planned privatization. "Private Employer" means an employer other than the government of the Province of British Columbia.

(b) Privatization Impact Review Committee

(1) The Privatization Impact Review Committee will meet to examine a privatization or planned privatization. The Employer will inform the Privatization Impact Review Committee of the number and work locations of employees affected by a privatization or planned privatization.

(2) The Privatization Impact Review Committee will meet to review and examine a privatization or planned privatization.

(3) The Privatization Impact Review Committee will examine the privatization or planned privatization to determine the impact of the privatization upon the members of the bargaining unit.

(4) Within 14 days of meeting pursuant to (b)(2), members of the Privatization Impact Review Committee may make a written report to the Deputy Minister of the Ministry in which a

privatization or planned privatization will occur regarding the impact of the privatization or planned privatization upon members of the bargaining unit and may make written recommendations intended to ameliorate the impact of privatization upon the members of the bargaining unit.

(c) Employee Options

(1) In the event that a privatization proceeds and the service and/or operation is privatized, employees who have been offered continued employment with the private employer will have the option of remaining employees of the Employer in accordance with this article, or becoming employees of the private employer.

(2) Regular employees affected by privatization who have not been offered continued employment with the private employer shall be placed in accordance with their service seniority in the following sequence:

(i) The employee shall select an available comparable vacancy or displacement in accordance with a) through h) below. The employee must possess the skill and ability to perform the job after a period of job orientation.

Vacancy/ same comparable Displace	a) same b) same e) same	Vacancy Vacancy other h)	Geographic Classification comparable same Displace	Displacement same c) other f) comparable	a) Displace Vacancy other	Location same comparable	b) same d) other g)	Vacancy Displace
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For purposes of this clause, a regular employee may only access (iv) a) below or displace another regular employee if the displacing employee has three or more years of service seniority and the employee being displaced has less than three years of service seniority. (ii) If an employee cannot be placed in accordance with (i) above, they may select an available comparable vacancy which they will be able to perform with a period of training and familiarization. Where an employee is being placed in such a position, the Joint Committee may also consider other training where it is complementary to current in-service training. (iii) The Joint Committee under Clause 36.3 of this article shall provide for continuing consultation and cooperation between the parties and shall assist with the placement of employees. (iv) If the employee is not placed under (i), (ii) or (iii) above the employee may select either: a. temporary assignment to a job within the geographic limitations developed by the Joint Committee for a period of six months. In such circumstances the employee's rate of pay shall be maintained and any negotiated increases shall apply for the period of the temporary assignment, or;

b. severance pay based upon three weeks' current salary for each year (1827 hours at straight-time rate) of regular service seniority to a maximum of 12 months' current salary. c. an employee may choose to take the options available to employees as outlined in Clause 13.3. d. job offers pursuant to (i) above: · If an employee refuses one job offer in the same classification and the same geographic location, they will be deemed to have resigned but may, if eligible, claim early retirement. · If an employee refuses one job offer in a different classification in the same geographic location, and with a salary or maximum step pay range the same as their existing position, they shall claim early retirement or severance pay as outlined in (b) above. · If an employee refuses a maximum of two job offers in a different geographic location or with a salary or maximum step pay range comparable to their existing position they shall claim early retirement or severance pay as outlined in (b) above. e. An employee who fails to select an available comparable vacancy or displacement, or fails to elect between early retirement or severance pay shall be paid severance pay as outlined in this article.

(v) Upon the expiry of the six-month period referred to in (iv) a) above, the Joint Committee may require placement of the employee in an available comparable vacancy. If the employee refuses placement under this provision, they shall be deemed to have resigned their employment and shall accept severance pay. (vi) An employee who is placed, refuses placement or is displaced shall not be considered to be laid off under this agreement, however regular employees displaced may exercise rights pursuant to Clause 13.2.

(3) Regular employees affected by privatization who have been offered continued employment with the private employer but who elect to remain as employees of the Employer shall be placed in vacancies in accordance with their service seniority as follows:

(i) the employee shall follow the procedures in (2)(i), (ii) and (iii) above.

(ii) upon the expiry of the six-month period referred to in (2)(iv) a) above, the Joint Committee may require placement of the employee in an available comparable vacancy. If the employee refuses placement under this provision, they shall be deemed to have resigned their employment. (iii) an employee who is deemed to have resigned under (ii) above shall not be considered to be laid off under this agreement.

(4) (i) A regular employee who continues employment with a private employer may, within 24 months of leaving employment with the Employer, apply for job vacancies with the Employer and, for the purpose of such application only, their employment with the Employer will be deemed to have continued uninterrupted.

(ii) If, within a three-year period after a service or operation is privatized, the private employer providing such service or operation ceases such operation, then the Employer shall ensure that the privatized employee's employment is maintained.

(iii) In the event that the first contract with the private employer is not renewed, then employees who had accepted continued employment shall have the right to bid back to vacancies with the Employer for the next ensuing 12 months.

(5) In this article "comparable" includes a job with a salary range not more than four grid levels below the employee's original classification.

(6) Where a privatization occurs, the Employer shall maintain funds sufficient to satisfy an amount equivalent to severance pay existing at the date of privatization which will be payable upon the occurrence of circumstances referred to in (4)(ii) or (iii), in an escrowed account.

(7) Where an auxiliary employee either is not offered employment with a private employer or elects to remain an employee of the Employer, the Joint Committee shall have the authority to place the auxiliary employee in such manner as it deems fit in accordance with the principles of this article.

36.3 Referral of Disputes

(a) A joint committee shall be constituted to hear and determine any dispute between the parties over the application, interpretation, operation or alleged violation of this article.

(b) The Joint Committee shall consist of five representatives, two appointed by the Union, two appointed by the Employer, and a chairperson. The Chairperson shall be appointed jointly by the parties.

(c) The Joint Committee shall not have the authority to amend, modify, or otherwise alter this article or the Main Agreement.

(d) If the Joint Committee is unable to resolve any disputes over the interpretation, application, operation or alleged violation of this article, and any dispute related to the placement of employees under Clause 36.2 of this article, the Chairperson of the Committee shall, at the request of either party, sit as an arbitrator over all disputes pertaining to this article.

(e) The Joint Committee shall have the authority, in such circumstances as they deem appropriate, to:

(1) relieve against the limitations contained in Clause 36.2(c)(2)(iv), and

(2) define "comparable" for the purposes of Clause 36.2(c)(2) as follows:

"comparable" includes a job with a salary range not more than four grid levels below or one grid level above the employee's original classification. Where this definition is used, an employee shall not utilize the displacement/bumping options of Clause 36.2(c)(2) to obtain a promotion.

ARTICLE 37 - TERM OF AGREEMENT

37.1 Duration

This agreement shall be binding and remain in effect to midnight March 31, 2029.

37.2 Notice to Bargain

(a) This agreement may be opened for collective bargaining by either party giving written notice to the other party on or after January 1, 2029, but in any event not later than midnight, January 31, 2029.

(b) Where no notice is given by either party prior to January 31, 2029, both parties shall be deemed to have given notice under this clause on January 31, 2029, and thereupon Clause 37.3 applies.

(c) All notices on behalf of the Union shall be given by the President of the Union and similar notices on behalf of the Employer shall be given by the Head of the BC Public Service Agency.

(d) By mutual consent the parties may agree to bargain prior to January 1, 2029.

37.3 Commencement of Bargaining

Where a party to this agreement has given notice under Clause 37.2, the parties shall, within 14 days after the notice was given, commence collective bargaining.

37.4 Change in Agreement

Any change deemed necessary in this agreement may be made by mutual agreement at any time during the life of this agreement.

37.5 Agreement to Continue in Force

Both parties shall adhere fully to the terms of this agreement during the period of bona fide collective bargaining.

37.6 Effective Date of Agreement

The provisions of this agreement, except as otherwise specified, shall come into force and effect April 1, 2025.

SIGNED ON BEHALF OF BY:	SIGNED ON BEHALF OF THE UNION BY:	THE EMPLOYER
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Paul Finch	Alyson Blackstock President	Assistant Deputy Minister, PSA
Maria Middlemiss	Korina Tsui Treasurer	Executive Director, PSA
Dean Purdy	Christy Howis Correctional and Sheriff Services	Director, PSA
Kusam Doal	John Ginther Retail Stores & Warehouse	Director, PSA
Judy Fox-McGuire	Ellen Hrad Social, Information & Health Services	Director, PSA
Mona Dykes	Teresa Chow Social, Information & Health Services	Compensation Advisor, PSA
DJ Pohl	Samantha Thatcher Administrative Professionals	Director, PSA

Faith Johnston	Kimberley Bowman Administrative Professionals	Divisional Coordinator, PSA
Sebastian Kallos	Doug Forsdick Environment, Technical & Operations	Provincial Director, PSSG
Rob Davis LDB	Erin Moore Environment, Technical & Operations	Chief Human Resources Officer, BC

_____	_____	Lindsay Buss
Richelle Chambers Lead Negotiator &	Executive Director, SDPR Director, Negotiations	

_____	_____	Larisa Mills
Greg Kondas Staff Representative	Deputy Chief, ENV	

_____	_____	Holly Reid
Dave Fleming Communications Officer	Director, FOR	

_____	_____	Sumiko Marshall
Diane Bruce Administrative Assistant	Executive Director, MCFD	

_____	Fiona Mercer Employee Relations Support Analyst, PSA
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_____	Brenden Hartridge Employee Relations Support Analyst, PSA
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Date: _____

APPENDICES

APPENDIX 1

Ministries, Boards and Agencies This agreement applies to all employees within the B.C. General Employees' Union bargaining unit who are employed in all ministries of the government of the Province of British Columbia. It also applies to all employees within the B.C. General Employees' Union bargaining unit employed in other boards, agencies or commissions which have been designated by Order-in-Council pursuant to Section 3 of the Public Service Act or whose enabling legislation provides for the appointment of employees pursuant to the Public Service Act. These include: Agricultural Land Commission BC Review Board BC Coroners Service BC Farm Industry Review Board BC Pension Corporation Destination British Columbia Forest Practices Board Islands Trust Office of Police Complaints Commissioner Workers' Compensation Appeal Tribunal The parties agree that prior to:

(1) the devolution or transfer of any of any employees out of the Public Service bargaining unit pursuant to Clause 32.10, or

(2) removal of Public Service Act application by Order-in-Council for agencies listed in this appendix

the Employer will give a minimum of 60 days' notice to the Union before job offers are made and the transfer/removal occurs in order that discussion under Clause 32.10 will occur.

APPENDIX 2

Note: Band A are senior executive positions that are classified above Strategic Leadership. These positions report directly to a Deputy Minister or Associate Deputy Minister, but do not include Assistant Deputy Ministers. Two excluded management positions and one Senior Executive Assistant for each Associate Deputy Minister and Deputy Minister. One Executive Coordinator and one Executive Administrative Assistant for each Assistant Deputy Minister. One administrative support position for each personnel office of a ministry. Persons locally engaged outside of British Columbia. Persons appointed on a temporary limited basis for a specific term of less than 31 calendar days, pursuant to Section 1(1)(j) of the Public Service Labour Relations Act. All new positions classified at the Band 5 and 6 levels.

	Effective	April 6,	2025 Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly G1	1	39,129.78
	3,260.82		1,499.84	21.4263						
1	42,055.17		3,504.60	1,611.97	23.0281	2	43,126.92	3,593.91	1,653.05	23.6150
	44,234.67		3,686.22	1,695.51	24.2216	4	45,378.42	3,781.54	1,739.35	24.8479
	3,924.33		1,805.03	25.7861						
1	43,126.92		3,593.91	1,653.05	23.6150	2	44,234.67	3,686.22	1,695.51	24.2216
	45,378.42		3,781.54	1,739.35	24.8479	4	46,560.01	3,880.00	1,784.64	25.4949
	4,027.51		1,852.49	26.4641						
1	44,234.67		3,686.22	1,695.51	24.2216	2	45,378.42	3,781.54	1,739.35	24.8479
	46,560.01		3,880.00	1,784.64	25.4949	4	47,781.77	3,981.81	1,831.47	26.1639
	4,134.20		1,901.56	27.1651						
1	45,378.42		3,781.54	1,739.35	24.8479	2	46,560.01	3,880.00	1,784.64	25.4949
	47,781.77		3,981.81	1,831.47	26.1639	4	49,044.49	4,087.04	1,879.87	26.8553
	4,244.53		1,952.31	27.8901						

1 46,560.01 3,880.00 1,784.64 25.4949 2 47,781.77 3,981.81 1,831.47 26.1639 5 3
49,044.49 4,087.04 1,879.87 26.8553 4 50,349.74 4,195.81 1,929.90 27.5700 5 52,300.44
4,358.37 2,004.67 28.6381

1 47,781.77 3,981.81 1,831.47 26.1639 2 49,044.49 4,087.04 1,879.87 26.8553 6 3
50,349.74 4,195.81 1,929.90 27.5700 4 51,696.47 4,308.04 1,981.52 28.3074 5 53,713.17
4,476.10 2,058.82 29.4117

1 49,044.49 4,087.04 1,879.87 26.8553 2 50,349.74 4,195.81 1,929.90 27.5700 7 3
51,696.47 4,308.04 1,981.52 28.3074 4 53,091.46 4,424.29 2,034.99 29.0713 5 55,174.17
4,597.85 2,114.82 30.2117

Effective April 6, 2025 Grid Level Step Annual Monthly Bi-weekly Hourly 1 50,349.74 4,195.81
1,929.90 27.5700 2 51,696.47 4,308.04 1,981.52 28.3074 8 3 53,091.46 4,424.29 2,034.99
29.0713 4 54,530.81 4,544.23 2,090.16 29.8594 5 56,682.40 4,723.53 2,172.63 31.0376

1 51,696.47 4,308.04 1,981.52 28.3074 2 53,091.46 4,424.29 2,034.99 29.0713 9 3
54,530.81 4,544.23 2,090.16 29.8594 4 56,018.94 4,668.25 2,147.20 30.6743 5 58,242.54
4,853.55 2,232.43 31.8919

1 53,091.46 4,424.29 2,034.99 29.0713 2 54,530.81 4,544.23 2,090.16 29.8594 10 3
56,018.94 4,668.25 2,147.20 30.6743 4 57,556.13 4,796.34 2,206.12 31.5160 5 59,852.51
4,987.71 2,294.14 32.7734

1 54,530.81 4,544.23 2,090.16 29.8594 2 56,018.94 4,668.25 2,147.20 30.6743 11 3
57,556.13 4,796.34 2,206.12 31.5160 4 59,144.96 4,928.75 2,267.02 32.3860 5 61,517.26
5,126.44 2,357.95 33.6850

1 56,018.94 4,668.25 2,147.20 30.6743 2 57,556.13 4,796.34 2,206.12 31.5160 12 3
59,144.96 4,928.75 2,267.02 32.3860 4 60,785.98 5,065.50 2,329.92 33.2846 5 63,237.85
5,269.82 2,423.90 34.6271

1 57,556.13 4,796.34 2,206.12 31.5160 2 59,144.96 4,928.75 2,267.02 32.3860 13 3
60,785.98 5,065.50 2,329.92 33.2846 4 62,482.31 5,206.86 2,394.94 34.2134 5 65,015.84
5,417.99 2,492.05 35.6007

1 59,144.96 4,928.75 2,267.02 32.3860 2 60,785.98 5,065.50 2,329.92 33.2846 14 3
62,482.31 5,206.86 2,394.94 34.2134 4 64,236.55 5,353.05 2,462.18 35.1740 5 66,852.53
5,571.04 2,562.45 36.6064

1 60,785.98 5,065.50 2,329.92 33.2846 2 62,482.31 5,206.86 2,394.94 34.2134 15 3
64,236.55 5,353.05 2,462.18 35.1740 4 66,047.41 5,503.95 2,531.59 36.1656

Effective April 6, 2025 Grid Level Step Annual Monthly Bi-weekly Hourly 5 68,752.09 5,729.34
2,635.26 37.6466

1 62,482.31 5,206.86 2,394.94 34.2134 2 64,236.55 5,353.05 2,462.18 35.1740 16 3
66,047.41 5,503.95 2,531.59 36.1656 4 67,920.36 5,660.03 2,603.38 37.1911 5 70,714.00
5,892.83 2,710.46 38.7209

1	64,236.55	5,353.05	2,462.18	35.1740	2	66,047.41	5,503.95	2,531.59	36.1656	17	3
67,920.36	5,660.03	2,603.38	37.1911	4	69,854.62	5,821.22	2,677.52	38.2503	5	72,739.84	
6,061.65	2,788.11	39.8301									

1	66,047.41	5,503.95	2,531.59	36.1656	2	67,920.36	5,660.03	2,603.38	37.1911	18	3
69,854.62	5,821.22	2,677.52	38.2503	4	71,853.58	5,987.80	2,754.14	39.3449	5	74,854.64	
6,237.89	2,869.17	40.9881									

1	67,920.36	5,660.03	2,603.38	37.1911	2	69,854.62	5,821.22	2,677.52	38.2503	19	3
71,853.58	5,987.80	2,754.14	39.3449	4	73,924.81	6,160.40	2,833.53	40.4790	5	77,061.53	
6,421.79	2,953.76	42.1966									

1	69,854.62	5,821.22	2,677.52	38.2503	2	71,853.58	5,987.80	2,754.14	39.3449	20	3
73,924.81	6,160.40	2,833.53	40.4790	4	76,103.27	6,341.94	2,917.03	41.6719	5	79,343.04	
6,611.92	3,041.21	43.4459									

1	71,853.58	5,987.80	2,754.14	39.3449	2	73,924.81	6,160.40	2,833.53	40.4790	21	3
76,103.27	6,341.94	2,917.03	41.6719	4	78,353.21	6,529.43	3,003.27	42.9039	5	81,702.30	
6,808.53	3,131.64	44.7377									

1	73,924.81	6,160.40	2,833.53	40.4790	2	76,103.27	6,341.94	2,917.03	41.6719	22	3
78,353.21	6,529.43	3,003.27	42.9039	4	80,678.55	6,723.21	3,092.40	44.1771	5	84,136.43	
7,011.37	3,224.94	46.0706									

Effective April 6, 2025	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	1	76,103.27	6,341.94		
2,917.03	41.6719	2	78,353.21	6,529.43	3,003.27	42.9039	23	3	80,678.55	6,723.21	3,092.40
44.1771	4	83,081.38	6,923.45	3,184.50	45.4929	5	86,655.87	7,221.32	3,321.51	47.4501	

1	78,353.21	6,529.43	3,003.27	42.9039	2	80,678.55	6,723.21	3,092.40	44.1771	24	3
83,081.38	6,923.45	3,184.50	45.4929	4	85,563.77	7,130.31	3,279.65	46.8521	5	89,258.28	
7,438.19	3,421.26	48.8751									

1	80,678.55	6,723.21	3,092.40	44.1771	2	83,081.38	6,923.45	3,184.50	45.4929	25	3
85,563.77	7,130.31	3,279.65	46.8521	4	88,130.18	7,344.18	3,378.02	48.2574	5	91,946.52	
7,662.21	3,524.30	50.3471									

1	83,081.38	6,923.45	3,184.50	45.4929	2	85,563.77	7,130.31	3,279.65	46.8521	26	3
88,130.18	7,344.18	3,378.02	48.2574	4	90,782.15	7,565.18	3,479.67	49.7096	5	94,725.03	
7,893.75	3,630.80	51.8686									

1	85,563.77	7,130.31	3,279.65	46.8521	2	88,130.18	7,344.18	3,378.02	48.2574	27	3
90,782.15	7,565.18	3,479.67	49.7096	4	93,521.01	7,793.42	3,584.65	51.2093	5	97,595.11	
8,132.93	3,740.81	53.4401									

1	88,130.18	7,344.18	3,378.02	48.2574	2	90,782.15	7,565.18	3,479.67	49.7096	28	3
93,521.01	7,793.42	3,584.65	51.2093	4	96,351.44	8,029.29	3,693.14	52.7591	5	100,562.25	
8,380.19	3,854.54	55.0649									

1	90,782.15	7,565.18	3,479.67	49.7096	2	93,521.01	7,793.42	3,584.65	51.2093	29	3
96,351.44	8,029.29	3,693.14	52.7591	4	99,277.61	8,273.13	3,805.30	54.3614	5	103,628.26	
8,635.69	3,972.06	56.7437									

1	93,521.01	7,793.42	3,584.65	51.2093	2	96,351.44	8,029.29	3,693.14	52.7591	30	3
	99,277.61	8,273.13	3,805.30	54.3614	4	102,370.24	8,530.85	3,923.84	56.0549		

Effective April 6, 2025	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	5	106,795.77	8,899.65
	4,093.47	58.4781							

1	96,351.44	8,029.29	3,693.14	52.7591	2	99,277.61	8,273.13	3,805.30	54.3614	31	3
	102,370.24	8,530.85	3,923.84	56.0549	4	105,564.61	8,797.05	4,046.28	57.8040	5	110,135.72
	9,177.98	4,221.49	60.3070								

1	99,277.61	8,273.13	3,805.30	54.3614	2	102,370.24	8,530.85	3,923.84	56.0549	32	3
	105,564.61	8,797.05	4,046.28	57.8040	4	108,863.08	9,071.92	4,172.71	59.6101	5	113,586.81
	9,465.57	4,353.77	62.1967								

1	102,370.24	8,530.85	3,923.84	56.0549	2	105,564.61	8,797.05	4,046.28	57.8040	33	3
	108,863.08	9,071.92	4,172.71	59.6101	4	112,270.87	9,355.91	4,303.33	61.4761	5	117,148.52
	9,762.38	4,490.29	64.1470								

Effective April 5, 2026	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	G1	1	40,303.79
	3,358.65	1,544.84	22.0691						

1	43,316.85	3,609.74	1,660.33	23.7190	2	44,420.69	3,701.72	1,702.64	24.3234	1	3
	45,561.83	3,796.82	1,746.38	24.9483	4	46,739.76	3,894.98	1,791.53	25.5933	5	48,504.70
	4,042.06	1,859.18	26.5597								

1	44,420.69	3,701.72	1,702.64	24.3234	2	45,561.83	3,796.82	1,746.38	24.9483	2	3
	46,739.76	3,894.98	1,791.53	25.5933	4	47,956.83	3,996.40	1,838.18	26.2597	5	49,779.95
	4,148.33	1,908.06	27.2580								

1	45,561.83	3,796.82	1,746.38	24.9483	2	46,739.76	3,894.98	1,791.53	25.5933	3	3
	47,956.83	3,996.40	1,838.18	26.2597	4	49,215.12	4,101.26	1,886.41	26.9487	5	51,098.76
	4,258.23	1,958.61	27.9801								

1	46,739.76	3,894.98	1,791.53	25.5933	2	47,956.83	3,996.40	1,838.18	26.2597	4	3
	49,215.12	4,101.26	1,886.41	26.9487							

Effective April 5, 2026	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	4	50,515.93	4,209.66
	1,936.27	27.6610	5	52,462.45	4,371.87	2,010.88	28.7269		

1	47,956.83	3,996.40	1,838.18	26.2597	2	49,215.12	4,101.26	1,886.41	26.9487	5	3
	50,515.93	4,209.66	1,936.27	27.6610	4	51,860.31	4,321.69	1,987.80	28.3971	5	53,869.45
	4,489.12	2,064.81	29.4973								

1	49,215.12	4,101.26	1,886.41	26.9487	2	50,515.93	4,209.66	1,936.27	27.6610	6	3
	51,860.31	4,321.69	1,987.80	28.3971	4	53,247.48	4,437.29	2,040.97	29.1567	5	55,324.45
	4,610.37	2,120.58	30.2940								

1	50,515.93	4,209.66	1,936.27	27.6610	2	51,860.31	4,321.69	1,987.80	28.3971	7	3
	53,247.48	4,437.29	2,040.97	29.1567	4	54,684.22	4,557.02	2,096.04	29.9434	5	56,829.28
	4,735.77	2,178.26	31.1180								

1	51,860.31	4,321.69	1,987.80	28.3971	2	53,247.48	4,437.29	2,040.97	29.1567	8	3
54,684.22	4,557.02	2,096.04	29.9434	4	56,166.61	4,680.55	2,152.86	30.7551	5	58,382.90	
4,865.24	2,237.81	31.9687									

1	53,247.48	4,437.29	2,040.97	29.1567	2	54,684.22	4,557.02	2,096.04	29.9434	9	3
56,166.61	4,680.55	2,152.86	30.7551	4	57,699.62	4,808.30	2,211.62	31.5946	5	59,989.74	
4,999.15	2,299.40	32.8486									

1	54,864.22	4,557.02	2,096.04	29.9434	2	56,166.61	4,680.55	2,152.86	30.7551	10	3
57,699.62	4,808.30	2,211.62	31.5946	4	59,282.72	4,940.23	2,272.30	32.4614	5	61,647.97	
5,137.33	2,362.96	33.7566									

1	56,166.61	4,680.55	2,152.86	30.7551	2	57,699.62	4,808.30	2,211.62	31.5946	11	3
59,282.72	4,940.23	2,272.30	32.4614	4	60,919.30	5,076.61	2,335.03	33.3576	5	63,362.82	
5,280.24	2,428.69	34.6956									

1	57,699.62	4,808.30	2,211.62	31.5946	2	59,282.72	4,940.23	2,272.30	32.4614	12	3
60,919.30	5,076.61	2,335.03	33.3576								

Effective April 5, 2026	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	4	62,609.62	5,217.47
2,399.82	34.2831	5	65,135.07	5,427.92	2,496.62	35.6660			

1	59,282.72	4,940.23	2,272.30	32.4614	2	60,919.30	5,076.61	2,335.03	33.3576	13	3
62,609.62	5,217.47	2,399.82	34.2831	4	64,356.82	5,363.07	2,466.79	35.2399	5	66,966.28	
5,580.52	2,566.81	36.6687									

1	60,919.30	5,076.61	2,335.03	33.3576	2	62,609.62	5,217.47	2,399.82	34.2831	14	3
64,356.82	5,363.07	2,466.79	35.2399	4	66,163.77	5,513.65	2,536.05	36.2293	5	68,858.01	
5,738.17	2,639.32	37.7046									

1	62,609.62	5,217.47	2,399.82	34.2831	2	64,356.82	5,363.07	2,466.79	35.2399	15	3
66,163.77	5,513.65	2,536.05	36.2293	4	68,028.89	5,669.07	2,607.54	37.2506	5	70,814.71	
5,901.23	2,714.32	38.7760									

1	64,356.82	5,363.07	2,466.79	35.2399	2	66,163.77	5,513.65	2,536.05	36.2293	16	3
68,028.89	5,669.07	2,607.54	37.2506	4	69,957.94	5,829.83	2,681.48	38.3069	5	72,835.33	
6,069.61	2,791.77	39.8824									

1	66,163.77	5,513.65	2,536.05	36.2293	2	68,028.89	5,669.07	2,607.54	37.2506	17	3
69,957.94	5,829.83	2,681.48	38.3069	4	71,950.38	5,995.87	2,757.85	39.3979	5	74,921.95	
6,243.50	2,871.75	41.0250									

1	68,028.89	5,669.07	2,607.54	37.2506	2	69,957.94	5,829.83	2,681.48	38.3069	18	3
71,950.38	5,995.87	2,757.85	39.3979	4	74,009.08	6,167.42	2,836.76	40.5251	5	77,100.40	
6,425.03	2,955.25	42.2179									

1	69,957.94	5,829.83	2,681.48	38.3069	2	71,950.38	5,995.87	2,757.85	39.3979	19	3
74,009.08	6,167.42	2,836.76	40.5251	4	76,142.67	6,345.22	2,918.54	41.6934	5	79,373.30	
6,614.44	3,042.37	43.4624									

1	71,950.38	5,995.87	2,757.85	39.3979	2	74,009.08	6,167.42	2,836.76	40.5251	20	3
76,142.67	6,345.22	2,918.54	41.6934								

Effective April 5, 2026 Grid Level Step Annual Monthly Bi-weekly Hourly 4 78,386.35 6,532.20
3,004.54 42.9220 5 81,723.43 6,810.29 3,132.45 44.7493

1 74,009.08 6,167.42 2,836.76 40.5251 2 76,142.67 6,345.22 2,918.54 41.6934 21 3
78,386.35 6,532.20 3,004.54 42.9220 4 80,703.86 6,725.32 3,093.37 44.1910 5 84,153.39
7,012.78 3,225.59 46.0799

1 76,142.67 6,345.22 2,918.54 41.6934 2 78,386.35 6,532.20 3,004.54 42.9220 22 3
80,703.86 6,725.32 3,093.37 44.1910 4 83,098.86 6,924.91 3,185.17 45.5024 5 86,660.57
7,221.71 3,321.69 47.4527

1 78,386.35 6,532.20 3,004.54 42.9220 2 80,703.86 6,725.32 3,093.37 44.1910 23 3
83,098.86 6,924.91 3,185.17 45.5024 4 85,573.95 7,131.16 3,280.04 46.8577 5 89,255.67
7,437.97 3,421.16 48.8737

1 80,703.86 6,725.32 3,093.37 44.1910 2 83,098.86 6,924.91 3,185.17 45.5024 24 3
85,573.95 7,131.16 3,280.04 46.8577 4 88,130.70 7,344.23 3,378.04 48.2577 5 91,936.08
7,661.34 3,523.90 50.3414

1 83,098.86 6,924.91 3,185.17 45.5024 2 85,573.95 7,131.16 3,280.04 46.8577 25 3
88,130.70 7,344.23 3,378.04 48.2577 4 90,774.07 7,564.51 3,479.36 49.7051 5 94,704.94
7,892.08 3,630.03 51.8576

1 85,573.95 7,131.16 3,280.04 46.8577 2 88,130.70 7,344.23 3,378.04 48.2577 26 3
90,774.07 7,564.51 3,479.36 49.7051 4 93,505.62 7,792.14 3,584.06 51.2009 5 97,566.68
8,130.56 3,739.72 53.4246

1 88,130.70 7,344.23 3,378.04 48.2577 2 90,774.07 7,564.51 3,479.36 49.7051 27 3
93,505.62 7,792.14 3,584.06 51.2009 4 96,326.65 8,027.22 3,692.19 52.7456 5 100,522.86
8,376.91 3,853.03 55.0433

1 90,774.07 7,564.51 3,479.36 49.7051 2 93,505.62 7,792.14 3,584.06 51.2009 28 3
96,326.65 8,027.22 3,692.19 52.7456

Effective April 5, 2026 Grid Level Step Annual Monthly Bi-weekly Hourly 4 99,241.87 8,270.16
3,803.93 54.3419 5 103,579.22 8,631.60 3,970.18 56.7169

1 93,505.62 7,792.14 3,584.06 51.2009 2 96,326.65 8,027.22 3,692.19 52.7456 29 3
99,241.87 8,270.16 3,803.93 54.3419 4 102,255.97 8,521.33 3,919.46 55.9923 5 106,737.07
8,894.76 4,091.22 58.4460

1 96,326.65 8,027.22 3,692.19 52.7456 2 99,241.87 8,270.16 3,803.93 54.3419 30 3
102,255.97 8,521.33 3,919.46 55.9923 4 105,441.47 8,786.79 4,041.56 57.7366 5 109,999.53
9,166.63 4,216.27 60.2324

1 99,241.87 8,270.16 3,803.93 54.3419 2 102,255.97 8,521.33 3,919.46 55.9923 31 3
105,441.47 8,786.79 4,041.56 57.7366 4 108,731.59 9,060.97 4,167.67 59.5381 5 113,439.67
9,453.31 4,348.13 62.1161

1	102,255.97	8,521.33	3,919.46	55.9923	2	105,441.47	8,786.79	4,041.56	57.7366	32	3
	108,731.59	9,060.97	4,167.67	59.5381	4	112,128.94	9,344.08	4,297.89	61.3984	5	116,994.34
	9,749.53	4,484.38	64.0626								

1	105,441.47	8,786.79	4,041.56	57.7366	2	108,731.59	9,060.97	4,167.67	59.5381	33	3
	112,128.94	9,344.08	4,297.89	61.3984	4	115,639.00	9,636.58	4,432.43	63.3204	5	120,663.01
	10,055.25	4,625.00	66.0714								

1	108,731.59	9,060.97	4,167.67	59.5381	2	112,128.94	9,344.08	4,297.89	61.3984	34	3
	115,627.26	9,635.61	4,431.98	63.3140	4	119,234.88	9,936.24	4,570.26	65.2894	5	124,409.70
	10,367.48	4,768.61	68.1230								

1	112,128.94	9,344.08	4,297.89	61.3984	2	115,627.26	9,635.61	4,431.98	63.3140	35	3
	119,234.88	9,936.24	4,570.26	65.2894	4	122,954.96	10,246.25	4,712.85	67.3264	5	128,291.26
	10,690.94	4,917.39	70.2484								

Effective April 4, 2027	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	G1	1	41,513.03
	3,459.42	1,591.19	22.7313						

1	44,616.36	3,718.03	1,710.14	24.4306	2	45,753.33	3,812.78	1,753.72	25.0531	1	3
	46,928.65	3,910.72	1,798.77	25.6967	4	48,142.06	4,011.84	1,845.28	26.3611	5	49,959.97
	4,163.33	1,914.96	27.3566								

1	45,753.33	3,812.78	1,753.72	25.0531	2	46,928.65	3,910.72	1,798.77	25.6967	2	3
	48,142.06	4,011.84	1,845.28	26.3611	4	49,395.65	4,116.30	1,893.33	27.0476	5	51,273.30
	4,272.78	1,965.30	28.0757								

1	46,928.65	3,910.72	1,798.77	25.6967	2	48,142.06	4,011.84	1,845.28	26.3611	3	3
	49,395.65	4,116.30	1,893.33	27.0476	4	50,691.51	4,224.29	1,943.00	27.7571	5	52,631.77
	4,385.98	2,017.37	28.8196								

1	48,142.06	4,011.84	1,845.28	26.3611	2	49,395.65	4,116.30	1,893.33	27.0476	4	3
	50,691.51	4,224.29	1,943.00	27.7571	4	52,031.46	4,335.96	1,994.36	28.4909	5	54,036.42
	4,503.04	2,071.21	29.5887								

1	49,395.65	4,116.30	1,893.33	27.0476	2	50,691.51	4,224.29	1,943.00	27.7571	5	3
	52,031.46	4,335.96	1,994.36	28.4909	4	53,416.02	4,451.34	2,047.43	29.2490	5	55,485.42
	4,623.79	2,126.75	30.3821								

1	50,691.51	4,224.29	1,943.00	27.7571	2	52,031.46	4,335.96	1,994.36	28.4909	6	3
	53,416.02	4,451.34	2,047.43	29.2490	4	54,844.93	4,570.41	2,102.20	30.0314	5	56,984.25
	4,748.69	2,184.20	31.2029								

1	52,031.46	4,335.96	1,994.36	28.4909	2	53,416.02	4,451.34	2,047.43	29.2490	7	3
	54,844.93	4,570.41	2,102.20	30.0314	4	56,324.71	4,693.73	2,158.92	30.8417	5	58,534.21
	4,877.85	2,243.61	32.0516								

1	53,416.02	4,451.34	2,047.43	29.2490	2	54,844.93	4,570.41	2,102.20	30.0314	8	3
	56,324.71	4,693.73	2,158.92	30.8417	4	57,851.72	4,820.98	2,217.45	31.6779		

Effective April 4, 2027	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	5	60,134.27	5,011.19
	2,304.94	32.9277							

1 54,844.93 4,570.41 2,102.20 30.0314 2 56,324.71 4,693.73 2,158.92 30.8417 9 3
57,851.72 4,820.98 2,217.45 31.6779 4 59,430.64 4,952.55 2,277.97 32.5424 5 61,789.38
5,149.12 2,368.38 33.8340

1 56,324.71 4,693.73 2,158.92 30.8417 2 57,851.72 4,820.98 2,217.45 31.6779 10 3
59,430.64 4,952.55 2,277.97 32.5424 4 61,061.22 5,088.44 2,340.47 33.4353 5 63,497.44
5,291.45 2,433.85 34.7693

1 57,851.72 4,820.98 2,217.45 31.6779 2 59,430.64 4,952.55 2,277.97 32.5424 11 3
61,061.22 5,088.44 2,340.47 33.4353 4 62,746.85 5,228.90 2,405.08 34.3583 5 65,263.69
5,438.64 2,501.55 35.7364

1 59,430.64 4,952.55 2,277.97 32.5424 2 61,061.22 5,088.44 2,340.47 33.4353 12 3
62,746.85 5,228.90 2,405.08 34.3583 4 64,487.79 5,373.98 2,471.81 35.3116 5 67,089.16
5,590.76 2,571.52 36.7360

1 61,061.22 5,088.44 2,340.47 33.4353 2 62,746.85 5,228.90 2,405.08 34.3583 13 3
64,487.79 5,373.98 2,471.81 35.3116 4 66,287.43 5,523.95 2,540.79 36.2970 5 68,975.15
5,747.93 2,643.81 37.7687

1 62,746.85 5,228.90 2,405.08 34.3583 2 64,487.79 5,373.98 2,471.81 35.3116 14 3
66,287.43 5,523.95 2,540.79 36.2970 4 68,148.64 5,679.05 2,612.13 37.3161 5 70,923.76
5,910.31 2,718.50 38.8357

1 64,487.79 5,373.98 2,471.81 35.3116 2 66,287.43 5,523.95 2,540.79 36.2970 15 3
68,148.64 5,679.05 2,612.13 37.3161 4 70,069.86 5,839.16 2,685.77 38.3681 5 72,939.16
6,078.26 2,795.75 39.9393

1 66,287.43 5,523.95 2,540.79 36.2970 2 68,148.64 5,679.05 2,612.13 37.3161 16 3
70,069.86 5,839.16 2,685.77 38.3681 4 72,056.56 6,004.71 2,761.92 39.4560

Effective April 4, 2027 Grid Level Step Annual Monthly Bi-weekly Hourly 5 75,020.30 6,251.69
2,875.52 41.0789

1 68,148.64 5,679.05 2,612.13 37.3161 2 70,069.86 5,839.16 2,685.77 38.3681 17 3
72,056.56 6,004.71 2,761.92 39.4560 4 74,109.00 6,175.75 2,840.59 40.5799 5 77,169.54
6,430.80 2,957.90 42.2557

1 70,069.86 5,839.16 2,685.77 38.3681 2 72,056.56 6,004.71 2,761.92 39.4560 18 3
74,109.00 6,175.75 2,840.59 40.5799 4 76,229.28 6,352.44 2,921.86 41.7409 5 79,413.48
6,617.79 3,043.91 43.4844

1 72,056.56 6,004.71 2,761.92 39.4560 2 74,109.00 6,175.75 2,840.59 40.5799 19 3
76,229.28 6,352.44 2,921.86 41.7409 4 78,427.04 6,535.59 3,006.10 42.9443 5 81,754.47
6,812.87 3,133.64 44.7663

1 74,109.00 6,175.75 2,840.59 40.5799 2 76,229.28 6,352.44 2,921.86 41.7409 20 3
78,427.04 6,535.59 3,006.10 42.9443 4 80,738.03 6,728.17 3,094.68 44.2097 5 84,175.04
7,014.59 3,226.42 46.0917

1	108,604.80	9,050.40	4,162.81	59.4687	2	111,993.54	9,332.80	4,292.70	61.3243	33	3
	115,492.90	9,624.41	4,426.83	63.2404	4	119,108.09	9,925.67	4,565.40	65.2200	5	124,282.90
	10,356.91	4,763.75	68.0536								

1	111,993.54	9,332.80	4,292.70	61.3243	2	115,492.90	9,624.41	4,426.83	63.2404	34	3
	119,096.09	9,924.67	4,564.94	65.2134	4	122,811.99	10,234.33	4,707.37	67.2481	5	128,142.03
	10,678.50	4,911.67	70.1667								

1	115,492.90	9,624.41	4,426.83	63.2404	2	119,096.09	9,924.67	4,564.94	65.2134	35	3
	122,811.99	10,234.33	4,707.37	67.2481	4	126,643.72	10,553.64	4,854.24	69.3463	5	132,139.96
	11,011.66	5,064.91	72.3559								

Effective April 2, 2028	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	G1	1	42,758.54
	3,563.21	1,638.93	23.4133						

1	45,954.74	3,829.56	1,761.44	25.1634	2	47,125.89	3,927.16	1,806.33	25.8047	1	3
	48,336.43	4,028.04	1,852.73	26.4676	4	49,586.37	4,132.20	1,900.64	27.1520	5	51,458.80
	4,288.23	1,972.41	28.1773	6	51,716.04	4,309.67	1,982.27	28.3181			

1	47,125.89	3,927.16	1,806.33	25.8047	2	48,336.43	4,028.04	1,852.73	26.4676	2	3
	49,586.37	4,132.20	1,900.64	27.1520	4	50,877.53	4,239.79	1,950.13	27.8590	5	52,811.53
	4,400.96	2,024.26	28.9180	6	53,075.55	4,422.96	2,034.38	29.0626			

1	48,336.43	4,028.04	1,852.73	26.4676	2	49,586.37	4,132.20	1,900.64	27.1520	3	3
	50,877.53	4,239.79	1,950.13	27.8590	4	52,212.26	4,351.02	2,001.29	28.5899	5	54,210.70
	4,517.56	2,077.89	29.6841	6	54,481.76	4,540.15	2,088.28	29.8326			

1	49,586.37	4,132.20	1,900.64	27.1520	2	50,877.53	4,239.79	1,950.13	27.8590		
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Effective April 2, 2028	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	4	3	52,212.26	4,351.02
	2,001.29	28.5899	4	53,592.38	4,466.03	2,054.19	29.3456	5	55,657.61	4,638.13
	6	55,935.98	4,661.33	2,144.02	30.6289				2,133.35	30.4764

1	50,877.53	4,239.79	1,950.13	27.8590	2	52,212.26	4,351.02	2,001.29	28.5899	5	3
	53,592.38	4,466.03	2,054.19	29.3456	4	55,018.42	4,584.87	2,108.85	30.1264	5	57,149.92
	4,762.49	2,190.55	31.2936	6	57,435.59	4,786.30	2,201.50	31.4500			

1	52,212.26	4,351.02	2,001.29	28.5899	2	53,592.38	4,466.03	2,054.19	29.3456	6	3
	55,018.42	4,584.87	2,108.85	30.1264	4	56,490.38	4,707.53	2,165.27	30.9324	5	58,693.88
	4,891.16	2,249.73	32.1390	6	58,987.39	4,915.62	2,260.98	32.2997			

1	53,592.38	4,466.03	2,054.19	29.3456	2	55,018.42	4,584.87	2,108.85	30.1264	7	3
	56,490.38	4,707.53	2,165.27	30.9324	4	58,014.52	4,834.54	2,223.69	31.7670	5	60,290.29
	5,024.19	2,310.92	33.0131	6	60,591.62	5,049.30	2,322.47	33.1781			

1	55,018.42	4,584.87	2,108.85	30.1264	2	56,490.38	4,707.53	2,165.27	30.9324	8	3
	58,014.52	4,834.54	2,223.69	31.7670	4	59,587.18	4,965.60	2,283.97	32.6281	5	61,938.35
	5,161.53	2,374.09	33.9156	6	62,248.03	5,187.34	2,385.96	34.0851			

1	56,490.38	4,707.53	2,165.27	30.9324	2	58,014.52	4,834.54	2,223.69	31.7670	9	3
	59,587.18	4,965.60	2,283.97	32.6281	4	61,213.59	5,101.13	2,346.31	33.5187	5	63,643.02
	5,303.59	2,439.43	34.8490	6	63,961.31	5,330.11	2,451.63	35.0233			

1	58,014.52	4,834.54	2,223.69	31.7670	2	59,587.18	4,965.60	2,283.97	32.6281	10	3
61,213.59	5,101.13	2,346.31	33.5187	4	62,892.95	5,241.08	2,410.68	34.4383	5	65,402.48	
5,450.21	2,506.87	35.8124	6	65,729.38	5,477.45	2,519.40	35.9914				

1	59,587.18	4,965.60	2,283.97	32.6281
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Effective April 2, 2028	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly 2	61,213.59	5,101.13			
2,346.31	33.5187	11	3	62,892.95	5,241.08	2,410.68	34.4383	4	64,629.20	5,385.77	2,477.23
35.3890	5	67,221.69	5,601.81	2,576.60	36.8086	6	67,557.72	5,629.81	2,589.48	36.9926	

1	61,213.59	5,101.13	2,346.31	33.5187	2	62,892.95	5,241.08	2,410.68	34.4383	12	3
64,629.20	5,385.77	2,477.23	35.3890	4	66,422.31	5,535.19	2,545.96	36.3709	5	69,101.95	
5,758.50	2,648.67	37.8381	6	69,447.37	5,787.28	2,661.91	38.0273				

1	62,892.95	5,241.08	2,410.68	34.4383	2	64,629.20	5,385.77	2,477.23	35.3890	13	3
66,422.31	5,535.19	2,545.96	36.3709	4	68,275.96	5,689.66	2,617.01	37.3859	5	71,044.29	
5,920.36	2,723.12	38.9017	6	71,399.63	5,949.97	2,736.74	39.0963				

1	64,629.20	5,385.77	2,477.23	35.3890	2	66,422.31	5,535.19	2,545.96	36.3709	14	3
68,275.96	5,689.66	2,617.01	37.3859	4	70,193.00	5,849.42	2,690.49	38.4356	5	73,051.61	
6,087.63	2,800.06	40.0009	6	73,416.86	6,118.07	2,814.06	40.2009				

1	66,422.31	5,535.19	2,545.96	36.3709	2	68,275.96	5,689.66	2,617.01	37.3859	15	3
70,193.00	5,849.42	2,690.49	38.4356	4	72,171.87	6,014.32	2,766.34	39.5191	5	75,127.27	
6,260.61	2,879.62	41.1374	6	75,502.96	6,291.91	2,894.02	41.3431				

1	68,275.96	5,689.66	2,617.01	37.3859	2	70,193.00	5,849.42	2,690.49	38.4356	16	3
72,171.87	6,014.32	2,766.34	39.5191	4	74,218.32	6,184.86	2,844.78	40.6397	5	77,271.03	
6,439.25	2,961.79	42.3113	6	77,657.41	6,471.45	2,976.60	42.5229				

1	70,193.00	5,849.42	2,690.49	38.4356	2	72,171.87	6,014.32	2,766.34	39.5191	17	3
74,218.32	6,184.86	2,844.78	40.6397	4	76,332.33	6,361.03	2,925.81	41.7973	5	79,484.70	
6,623.73	3,046.64	43.5234	6	79,882.04	6,656.84	3,061.87	43.7410				

Effective April 2, 2028	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly 1	72,171.87	6,014.32			
2,766.34	39.5191	2	74,218.32	6,184.86	2,844.78	40.6397	18	3	76,332.33	6,361.03	2,925.81
41.7973	4	78,516.27	6,543.02	3,009.52	42.9931	5	81,795.96	6,816.33	3,135.23	44.7890	6
82,205.04	6,850.42	3,150.91	45.0130								

1	74,218.32	6,184.86	2,844.78	40.6397	2	76,332.33	6,361.03	2,925.81	41.7973	19	3
78,516.27	6,543.02	3,009.52	42.9931	4	80,779.78	6,731.65	3,096.28	44.2326	5	84,207.13	
7,017.26	3,227.65	46.1093	6	84,628.21	7,052.35	3,243.79	46.3399				

1	76,332.33	6,361.03	2,925.81	41.7973	2	78,516.27	6,543.02	3,009.52	42.9931	20	3
80,779.78	6,731.65	3,096.28	44.2326	4	83,160.17	6,930.01	3,187.52	45.5360	5	86,700.22	
7,225.02	3,323.21	47.4744	6	87,133.83	7,261.15	3,339.83	47.7119				

1	78,516.27	6,543.02	3,009.52	42.9931	2	80,779.78	6,731.65	3,096.28	44.2326	21	3
83,160.17	6,930.01	3,187.52	45.5360	4	85,618.82	7,134.90	3,281.76	46.8823	5	89,278.37	
7,439.86	3,422.03	48.8861	6	89,724.76	7,477.06	3,439.14	49.1306				

1	80,779.78	6,731.65	3,096.28	44.2326	2	83,160.17	6,930.01	3,187.52	45.5360	22	3
85,618.82	7,134.90	3,281.76	46.8823	4	88,159.66	7,346.64	3,379.15	48.2736	5	91,938.17	
7,661.51	3,523.98	50.3426	6	92,397.86	7,699.82	3,541.60	50.5943				

1	83,160.17	6,930.01	3,187.52	45.5360	2	85,618.82	7,134.90	3,281.76	46.8823	23	3
88,159.66	7,346.64	3,379.15	48.2736	4	90,785.29	7,565.44	3,479.79	49.7113	5	94,691.11	
7,890.93	3,629.50	51.8500	6	95,164.64	7,930.39	3,647.65	52.1093				

1	85,618.82	7,134.90	3,281.76	46.8823	2	88,159.66	7,346.64	3,379.15	48.2736	24	3
90,785.29	7,565.44	3,479.79	49.7113	4	93,497.79	7,791.48	3,583.76	51.1966	5	97,535.11	
8,127.93	3,738.51	53.4073	6	98,022.72	8,168.56	3,757.20	53.6743				

Effective April 2, 2028	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly
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1	88,159.66	7,346.64	3,379.15	48.2736	2	90,785.29	7,565.44	3,479.79	49.7113	25	3
93,497.79	7,791.48	3,583.76	51.1966	4	96,302.13	8,025.18	3,691.25	52.7321	5	100,472.50	
8,372.71	3,851.10	55.0157	6	100,974.98	8,414.58	3,870.36	55.2909				

1	90,785.29	7,565.44	3,479.79	49.7113	2	93,497.79	7,791.48	3,583.76	51.1966	26	3
96,302.13	8,025.18	3,691.25	52.7321	4	99,200.13	8,266.68	3,802.33	54.3190	5	103,508.52	
8,625.71	3,967.47	56.6781	6	104,026.13	8,668.84	3,987.31	56.9616				

1	93,497.79	7,791.48	3,583.76	51.1966	2	96,302.13	8,025.18	3,691.25	52.7321	27	3
99,200.13	8,266.68	3,802.33	54.3190	4	102,193.09	8,516.09	3,917.05	55.9579	5	106,644.71	
8,887.06	4,087.68	58.3954	6	107,177.98	8,931.50	4,108.12	58.6874				

1	96,302.13	8,025.18	3,691.25	52.7321	2	99,200.13	8,266.68	3,802.33	54.3190	28	3
102,193.09	8,516.09	3,917.05	55.9579	4	105,285.72	8,773.81	4,035.59	57.6513	5	109,887.35	
9,157.28	4,211.97	60.1710	6	110,436.79	9,203.07	4,233.03	60.4719				

1	99,200.13	8,266.68	3,802.33	54.3190	2	102,193.03	8,516.09	3,917.05	55.9579	29	3
105,285.72	8,773.81	4,035.59	57.6513	4	108,483.22	9,040.27	4,158.15	59.4021	5	113,237.48	
9,436.46	4,340.38	62.0054	6	113,803.61	9,483.63	4,362.08	62.3154				

1	102,193.09	8,516.09	3,917.05	55.9579	2	105,285.72	8,773.81	4,035.59	57.6513	30	3
108,483.22	9,040.27	4,158.15	59.4021	4	111,862.83	9,321.90	4,287.69	61.2527	5	116,698.48	
9,724.87	4,473.04	63.9006	6	117,282.10	9,773.51	4,495.41	64.2201				

1	105,285.72	8,773.81	4,035.59	57.6513	2	108,483.22	9,040.27	4,158.15	59.4021	31	3
111,862.83	9,321.90	4,287.69	61.2527	4	115,353.32	9,612.78	4,421.48	63.1640	5	120,348.11	
10,029.01	4,612.93	65.8990									

Effective April 2, 2028	Grid Level	Step	Annual	Monthly	Bi-weekly	Hourly	6	120,949.73	10,079.14
4,635.99	66.2284								

1	108,483.22	9,040.27	4,158.15	59.4021	2	111,862.83	9,321.90	4,287.69	61.2527	32	3
115,353.32	9,612.78	4,421.48	63.1640	4	118,957.55	9,913.13	4,559.63	65.1376	5		
124,119.32	10,343.28	4,757.48	67.9640	6	124,739.99	10,395.00	4,781.27	68.3039			

1	111,862.83	9,321.90	4,287.69	61.2527	2	115,353.32	9,612.78	4,421.48	63.1640	33	3
118,957.55	9,913.13	4,559.63	65.1376	4	122,681.28	10,223.44	4,702.36	67.1766	5		
128,011.32	10,667.61	4,906.66	70.0951	6	128,651.30	10,720.94	4,931.19	70.4456			

1	115,353.32	9,612.78	4,421.48	63.1640	2	118,957.55	9,913.13	4,559.63	65.1376	34	3
	122,669.02	10,222.42	4,701.89	67.1699	4	126,496.32	10,541.36	4,848.59	69.2656	5	
	131,986.29	10,998.86	5,059.02	72.2717	6	132,646.35	11,053.86	5,084.32	72.6331		

1	118,957.55	9,913.13	4,559.63	65.1376	2	122,669.02	10,222.42	4,701.89	67.1699	35	3
	126,496.32	10,541.36	4,848.59	69.2656	4	130,443.11	10,870.26	4,999.87	71.4267	5	
	136,104.23	11,342.02	5,216.86	74.5266	6	136,784.63	11,398.72	5,242.94	74.8991		

Effective April 1, 2028, the Employer will introduce a new step 6 for all grid levels in the agreement. The value of step 6 will be the value of step 5 increased by 0.5%.

Upon the effective date of introduction to the new step 6, the following shall apply:

- (1) Full-time employees who have been in step 5 for a minimum of 12 months will move to step 6. All other full-time employees will move to step 6 the first day of the full pay period following their 12- month anniversary in step 5.
- (2) Part-time and auxiliary employees who have accumulated a minimum of 1827 hours in step 5 will move to step 6. All other part-time and auxiliary employees will move to step 6 the first day of the pay period following the accumulation of 1827 hours in step 5.
- (3) All substitutions, promotions, demotions, and reclassifications after the applicable effective date, will utilize all active steps of Appendix 3A.
- (4) Employees on a leave of absence without pay, maternity, adoption, parental, or educational leave, that lasts more than 30 consecutive days will have their step 6 increment date deferred by the period of the leave of absence.

APPENDIX 3C

Classification Titles and Grid Ranges Explanatory Notes: 1. Salary administration provisions related to the various growth classifications are set out in

Appendix L, MOU re: PSJEP.

CLASSIFICATION TITLE	UNION	GRID COMP	RANGE	Activity Worker R15
SIH 15 Activity Worker R24		SIH	24	
Administrative Officer R15		AP	15	Administrative Officer R18
AP 18 Administrative Officer R21		AP	21	Administrative Officer R24
AP 24 Administrative Officer R27		AP	27	Administrative Officer R30
AP 30				
Administrative Officer (IO) R18		AP	18	Administrative Officer (IPM) R24
AP 24 Administrative Officer (PO) R27		AP	27	
Archivist R18	SIH	18	Archivist R21	SIH
21 Archivist R24	SIH	24	Archivist R27	
SIH 27				

Assistant Manager R15 RSW 16			RSW		15 Assistant Manager R16	
Assistant Shipper R15			RSW		15	
Biologist R18 21 Biologist R24 ETO 27 Biologist R30			ETO ETO		18 Biologist R21 24 Biologist R27 ETO 30	ETO
Building Maintenance Worker R9			ETO		9	
Building Security Officer R9			ETO		9	
CLASSIFICATION TITLE	UNION	GRID	COMP	RANGE	Building Security Officer R12	ETO
12 Building Security Officer R15			ETO	15		
Child Care Counsellor R12 Counsellor R18 SIH 24		SIH		12 Child Care Counsellor R15 18 Child Care Counsellor R21	SIH SIH	15 Child Care 21 Child Care Counsellor R24
Clerk R9 AP 15	AP			9 Clerk R12	AP	12 Clerk R15
Clerk Postal R6 AP 12 Clerk Postal R15	AP			6 Clerk Postal R9 AP 15	AP	9 Clerk Postal R12
Clerk Stenographer R9 R15	AP	15	AP	9 Clerk Stenographer R12	AP	12 Clerk Stenographer
Clinician R27	SIH			27 Clinician R30	SIH	30
Commercial Transport Inspector (Growth to R18) 15 Commercial Transport Inspector R18 Commercial Transport Inspector (Scale Supv) R21		ETO ETO ETO		12, 14, 15 Commercial Transport Inspector R15 18 Commercial Transport Inspector R21 21 Commercial Transport Inspector R24		ETO ETO ETO
Communication Officer R15 Communications Officer R21 Communications Officer R27		SIH SIH SIH		15 Communications Officer R18 21 Communications Officer R24 27 Communications Officer R30	SIH SIH SIH	18 24 30
Community Program Officer (Growth to R15 EAW) SIH 15 Community Program Officer R15		SIH SIH		11,12,13 Community Program Officer (EAW) R15 15		
CLASSIFICATION TITLE	UNION	GRID	COMP	RANGE	Community Program Officer (EO) R15	SIH
15 Community Program Officer R18			SIH	18 Community Program Officer (FMW) R18	SIH	18
Community Program Officer (IA) R18			SIH	18 Community Program Officer (IA) R21	SIH	21
Community Program Officer (IA) R24			SIH	24		
Community Program Officer (CVWS) R15			SIH	15 Community Program Officer (CVWS) R24	SIH	24
Concession Clerk R6			RSW	6		

Conservation Officer R18 Officer · Instructor R21 ETO 27 Conservation Officer R30	ETO 21 Conservation Officer R24 ETO 30	ETO 18 Conservation Officer R21 ETO 24 Conservation Officer R27
Control Tower Operator R9	ETO 9	
Coordinator of Volunteers R12	AP 12 Coordinator of Volunteers R15	AP 15
Correctional Services (Growth to R18)	CSS 16, 17	
Correctional Services R18 Services R24 CSS 24	CSS 18 Correctional Services R21 Correctional Services R27 CSS 27	CSS 21 Correctional
Court Clerk R9	AP 9 Court Clerk R12	AP 12
Deputy Sheriff Recruit R9	CSS 9	
Deputy Sheriff R18 R21 CSS 21 Deputy Sheriff R24	CSS 18 Deputy Sheriff (ICM/PIO) R18 Deputy Sheriff Instructor R21 CSS 24 Deputy Sheriff R27	CSS 18 Deputy Sheriff Deputy Sheriff Senior Intelligence CSS 27
CLASSIFICATION TITLE UNION GRID COMP RANGE		
Dietitian R24 SIH 30	SIH 24 Dietitian R27	SIH 27 Dietitian R30
Economist R21 SIH 27 Economist R30	SIH 21 Economist R24 SIH 30 Economist R33	SIH 24 Economist R27 SIH 33
Education Officer R24 SIH 30	SIH 24 Education Officer R27	SIH 27 Education Officer R30
Engineering Resource Aide R6 Resource Aide R12 ETO 12	ETO 6 Engineering Resource Aide R9	ETO 9 Engineering
Financial Officer R15 AP 21 Financial Officer R24 R30 AP 30	AP 15 Financial Officer R18 AP 24 Financial Officer R27	AP 18 Financial Officer R21 AP 27 Financial Officer
Financial Officer (Tax Audit) R24 (Tax Audit) R30 AP 30	AP 24 Financial Officer (Tax Audit) R27	AP 27 Financial Officer
Financial Officer (TMA) R18 (TMA) R24 AP 30 Financial Officer (TMA) R33	AP 18 Financial Officer (TMA) R21 AP 24 Financial Officer (TMA) R27 AP 33	AP 21 Financial Officer 27 Financial Officer (TMA) R30
Fish & Wildlife Assistant R6	ETO 6 Fish & Wildlife Assistant R9	ETO 9
Food Production (Camp Cook) R9	ETO 9	
Food Production Services R9	SIH 9 Food Production Services R12	SIH 12

CLASSIFICATION TITLE	UNION	GRID	COMP	RANGE	Food Production Services R15	SIH	15 Food
Production Services R18		SIH	18				
Foreman (RSW) R16		RSW	16				
Foreman R15		ETO	15	Foreman R18		ETO	18
Forest Technician R6		ETO	6	Forest Technician R9		ETO	9
Health Care Worker R9		SIH	9	Health Care Worker R12		SIH	12
Heritage Resources Officer R15		ETO	15	Heritage Resources Officer R18		ETO	18
Resources Officer R21		ETO	21	Heritage Resources Officer R24		ETO	24
R27		ETO	27	Heritage Resources Officer R30		ETO	30
Information Systems R9		AP	9	Information Systems R12		AP	12
SIH 15 Information Systems R18				SIH 18 Information Systems R21		SIH	21
Systems R24		SIH	24	Information Systems R27		SIH	27
SIH 30				Information Systems R30			
Inspector - Fire Commissioner's Office R21		ETO	21	Inspector - Fire Commissioner's Office R24		ETO	24
- Fire Commissioner's Officer R27		ETO	27				
Inspector - Mechanical Motor Vehicles R21		ETO	21	Inspector - Mechanical Motor Vehicles R24		ETO	24
Inspector - Mechanical Motor Vehicles R27		ETO	27	Inspector - Mechanical Motor Vehicles R30		ETO	30
Instructor (Corrections) R18		CSS	18	Instructor (Corrections) R21		CSS	21
- Supervisor R24		CSS	24				
CLASSIFICATION TITLE	UNION	GRID	COMP	RANGE			
Laboratory Assistant R9		ETO	9	Laboratory Assistant R12		ETO	12
Laboratory/Health Science Officer R15		ETO	15	Laboratory/Health Science Officer R18		ETO	
18 Laboratory/Health Science Officer R21		ETO	21	Laboratory/Health Science Officer R24		ETO	
24 Laboratory/Health Science Officer R27		ETO	27	Laboratory/Health Science Officer R30		ETO	
30							
Labourer R6		ETO	6				
Librarian R15		SIH	15	Librarian R21		SIH	21
SIH 24 Librarian R27				SIH 27 Librarian R30		SIH	30
Machine Operator R6		ETO	6	Machine Operator R9		ETO	9
Operator R12		ETO	12	Machine Operator R15		ETO	15
Manager R15		RSW	15	Manager R18		RSW	18
Occupational Therapist R21		SIH	21	Occupational Therapist R24		SIH	24
Occupational Therapist R27		SIH	27				
Office Assistant R6		AP	6	Office Assistant R9		AP	9

Paralegal Growth (Growth to 18, commences at Step 3) AP 14,15,16,17 Paralegal R18 (commences at Step 3)
AP 18

Park Assistant R6 ETO 6 Park Assistant R9 ETO 9 Park Assistant
R12 ETO 12 Park Assistant R15 ETO 15

Photo Arts Technician R15 ETO 15

CLASSIFICATION TITLE UNION GRID COMP RANGE Photo Arts Technician R18 ETO 18
Photo Arts Technician R21 ETO 21 Photo Arts Technician R24 ETO 24

Planning Officer R18 ETO 18 Planning Officer R21 ETO 21 Planning Officer
R24 ETO 24 Planning Officer R27 ETO 27 Planning Officer R30
ETO 30

Policy Analyst - Economics R27 SIH 27 Policy Analyst - Economics R30 SIH 30 Policy
Analyst - Economics R33 SIH 33

Policy Analyst - Finance R27 AP 27 Policy Analyst - Finance R30 AP 30 Policy Analyst -
Finance R33 AP 33

Policy Analyst - Science R27 ETO 27 Policy Analyst - Science R30 ETO 30 Policy Analyst
- Science R33 ETO 33

Policy Analyst - Social Information & Health R27 SIH 27 Policy Analyst - Social Information & Health R30 SIH 30
Policy Analyst - Social Information & Health R33 SIH 33

Printing Operator R9 ETO 9 Printing Operator R12 ETO 12

Probation Interviewer R12 SIH 12 Probation Interviewer R15 SIH 15

Psychologist R21 SIH 21 Psychologist R24 SIH 24 Psychologist R27
SIH 27 Psychologist R30 SIH 30

Psychologist Assistant R15 SIH 15 Psychologist Assistant R18 SIH 18

Rehabilitation Consultant R21 SIH 21

CLASSIFICATION TITLE UNION GRID COMP RANGE Research Officer R15 SIH 15
Research Officer R18 SIH 18 Research Officer R21 SIH 21 Research Officer R24
SIH 24 Research Officer R27 SIH 27 Research Officer R30 SIH 30

Safety Officer R18 ETO 18 Safety Officer R21 ETO 21

Science Officer R30 ETO 30

Scientific/Technical Officer R12 ETO 12 Scientific/Technical Officer R15 ETO 15
Scientific/Technical Officer R18 ETO 18 Scientific/Technical Officer R21 ETO 21
Scientific/Technical Officer R24 ETO 24 Scientific/Technical Officer R27 ETO 27
Scientific/Technical Officer R30 ETO 30

Scientific/Technical Officer (FWF) R24	ETO	24	Scientific/Technical Officer (FWF) R27	ETO	27
Scientific/Technical Officer (Resource) R12	ETO	12	Scientific/Technical Officer (Resource) R15	ETO	15
Scientific/Technical Officer (Resource) R18	ETO	18	Scientific/Technical Officer (Resource) R21	ETO	21
Scientific/Technical Officer (Resource) R24	ETO	24	Scientific/Technical Officer (Resource) R27	ETO	27
Scientific/Technical Officer (Resource) R30	ETO	30			
Shipper R15	RSW	15			
Sign Fabricator R15	ETO	15			
Social Program Officer R15	SIH	15	Social Program Officer R18	SIH	18
Officer (Growth to R24)	SIH	22, 23	Social Program Officer R21	SIH	21
SIH 24 Social Program Officer R27			Social Program Officer R30	SIH	30
Social Program Officer (Child Protection) R24	SIH	24			
CLASSIFICATION TITLE	UNION	GRID COMP	RANGE	Social Program Officer (Child Protection) R27	
SIH 27					
Social Program Officer (CYMH) R24		SIH	24	Social Program Officer (CYMH) R27	SIH 27
Social Program Officer (CYMH) R30		SIH	30		
Social Worker Assistant R15		SIH	15		
Stockworker R6	AP	6	Stockworker R9	AP	9
AP 12 Stockworker R15		AP	15	Stockworker R18	AP 18
Supervisor R12	RSW	12	Supervisor R15 (grid 14 to grid 15 @ April 1, 2021)	RSW	15
Technical Assistant R12	ETO	12			
Technical Enforcement Officer R12	ETO	12	Technical Enforcement Officer R15	ETO	15
Technical Enforcement Officer R18	ETO	18	Technical Enforcement Officer R21	ETO	21
Technical Enforcement Officer R24	ETO	24	Technical Enforcement Officer R27	ETO	27
Training Consultant (Growth to R18)	SIH	13,14,15	Training Consultant R18	SIH	18
Utility Worker R12	ETO	12	Utility Worker R15	ETO	15
Vocational Counsellor R18	SIH	18	Vocational Counsellor R21	SIH	21
Yardworker R6	ETO	6			

APPENDIX 3D

Active Trades Classifications - Chart 1 Note: only the top step of the grid indicated is used.

The following appendix is an alphabetic listing of all active Trades classification titles and the grid range which applies to each classification as of April 1, 2003. The grid range for some positions or classifications may change due to the application of the Public Service Job Evaluation Plan during the term of this agreement.

Trade Senior	Trade Principal	Trade Apprentice	Trade Journeyman	Trade Leadhand	Trade Classification/Title Supervisor	Supervisor	Supervisor
Carpenter		-	18	20	23	23	-
Electrician		-	18	20	23	23	-
Electronics Security		-	-	20	23	-	-
Gardener		-	14	-	16	-	-
Graphics/Printer		-	14	15	-	-	-
Mechanic Heavy Vehicle & % of 18			18	-	-	-	- Equipment
Mechanic Light Vehicle & -			14	-	-	-	- Equipment

APPENDIX 3D

Active Trades Classifications - Chart 2 Note: only the top step of the grid indicated is used.

The following appendix is an alphabetic listing of all active Trades classification titles and the grid range which applies to each classification as of April 1, 2017. The grid range for some positions or classifications may change due to the application of the Public Service Job Evaluation Plan during the term of this agreement.

Trade Senior	Trade Principal	Trade Apprentice	Trade Journeyman	Trade Leadhand	Trade Classification/Title Supervisor	Supervisor	Supervisor
Carpenter		-	18	21	24	24	-
Electrician		-	18	21	24	24	-
Electronics Security		-	-	21	24	-	-
Gardener		-	14	-	18	-	-
Graphics/Printer		-	14	15	-	-	-
Mechanic Heavy Vehicle & -			18	-	-	-	- Equipment
Mechanic Light Vehicle & -			14	-	-	-	- Equipment

APPENDIX 3E

Rates of Pay for Apprentices Two-year Apprenticeship Program 1st year 65% of certified journeyman rate. 2nd year 90% of certified journeyman rate. Three-year Apprenticeship Program 1st year 65% of certified journeyman rate. 2nd year 75% of certified journeyman rate. 3rd year 90% of certified journeyman rate. Four-year Apprenticeship Program 1st year 65% of certified journeyman rate. 2nd year 70% of certified journeyman rate. 3rd year 80% of certified journeyman rate. 4th year 90% of certified journeyman rate. Five-year Apprenticeship Program 1st year 65% of certified journeyman rate. 2nd year 70% of certified journeyman rate. 3rd year 75% of certified journeyman rate. 4th year 85% of certified journeyman rate. 5th year 90% of certified journeyman rate.

APPENDIX 3F

Special Employment Program Rates

Steps Used Definition

Grid

1 3 5

Youth Employment Program - Level 1 Students enrolled in full-time studies at an accredited educational institution within the past 12 months at Grade 12 or below

Youth Employment Program - Level 2 Students enrolled in full-time studies at an accredited educational institution within the past 12 months at a post-secondary level.

Public Service Employment Program - Level 1 Employees without a post-secondary degree or certificate working in their initial work term.

Steps Used Definition

Grid 1 3 5

Public Service Employment Program - Level 2 Level 1 employees working in a subsequent work term. Co-op Education Training Program - Level 1

Employees registered in a recognized co-operative education program at a participating post-secondary institution, who are working towards a diploma or Bachelor's degree. 6 - X - First Nations Forest Technicians Training Program: Provided at Nicola Valley Institute of Training from 4 to 6 months.

Public Service Employment Program - Level 3 Employees who have completed a post-secondary degree or certificate (minimum 2-year course) classification and are placed into training positions where they are performing work consistent with the education level. 12 - X - Employees with a degree or certificate who are not performing work consistent with their educational level shall be placed into Level 1.

Steps Used Definition

Grid 1 3 5

Co-op Education Training Program - Level 2 Employees registered in a recognized cooperative education program at a participating post-secondary 12 - X -

institution, who are working towards a post-graduate degree.

Indigenous Youth Internship Program Indigenous youth aged 29 and under residing in BC, with a minimum of grade 12 and some post-secondary education or equivalent education/work/volunteer experience, with demonstrated leadership potential.

Public Service Internship Program Employees who are recent graduates from a university or who have received a college diploma or 15 certificate and who are hired as part of an Internship Program. X - -

Steps Used Definition

Grid 1 3 5

Work-Ability Graduate Internship Program Work-Ability is a 12-month BC Public Service paid work experience program for recent post-secondary 15 X - - graduates with disabilities.

Science Fellowship Program A 12-month fellowship that fosters relationships between government decision makers and academic 30 researchers to help support policy changes. X - -

APPENDIX 3G

Classification Titles, Grid Levels and Salary Grid Retail Stores and Warehouse Explanatory Notes: 1. The rates of pay outlined in this appendix apply to all appointments of auxiliary and regular employees November 24, 2003 and thereafter. 2. Auxiliary Store Clerks and Auxiliary Warehouseworkers paid at grid level G2 work 913 straight-time hours in each step before progressing to the next step level. Effective April 1, 2023 this clause no longer applies. 3. Auxiliary Store Clerks and Auxiliary Warehouseworkers at grid level G2 will progress to grid level G3, step 1, upon completion of 913 straight-time hours at step 5 of grid level G2. Effective April 1, 2023 Auxiliary Store Clerks and Auxiliary Warehouseworkers at grid level G2 will progress to grid level G3, step 1. Progression to the next steps thereafter will be based on the completion of 1827 straight-time hours.

Classification Title Union Comp Grid Level Product Consultant G11 (eliminated @ March 31, 2023)
RSW G12 Product Consultant G11 to G12 (April 1, 2023)

Store Clerk G2 (Auxiliary) (eliminated @ March 31, 2023) RSW G2
Store Clerk G3 (Regular) (Auxiliary as of April 1, 2023) RSW G3
Seasonal Employee G1 (RS&W Component Agreement, MOU 3) RSW G1 (eliminated @ March 31, 2024)
Warehouseworker G2 (Auxiliary) (eliminated @ March 31, 2023) RSW G2
Warehouseworker G3 (Regular) (Auxiliary as of April 1, 2023) RSW G3
Warehouseworker G4 (Regular) RSW G4

RETAIL STORES & WAREHOUSE - WAGE SCALE

Effective April 6, 2025	Grid Level	Step	Annual	Monthly	Biweekly	Hourly	G1	1	39,129.78
3,260.82	1,499.84	21.4263							

3 Respecting employees classified as Store Clerk R9, Product Consultant R13, Warehouseworker R9 and Warehouseworker R11 employed prior to November 24, 2003, see Concluding Explanatory Notes at page 146.

Effective April 6, 2025	Grid Level	Step	Annual	Monthly	Biweekly	Hourly	1	42,055.17	3,504.60
1,611.97	23.0281	2	43,126.92	3,593.91	1,653.05	23.6150	G2	3	44,234.67
24.2216	4	45,378.42	3,781.54	1,739.35	24.8479	5	46,560.01	3,880.00	1,784.64
									25.4949
1	49,044.49	4,087.04	1,879.87	26.8553	2	50,349.74	4,195.81	1,929.90	27.5700
51,696.47	4,308.04	1,981.52	28.3074	4	53,713.17	4,476.10	2,058.82	29.4117	5
4,597.85	2,114.82	30.2117							
1	51,696.47	4,308.04	1,981.52	28.3074	2	53,091.46	4,424.29	2,034.99	29.0713
54,530.81	4,544.23	2,090.16	29.8594	4	56,018.94	4,668.25	2,147.20	30.6743	5
4,853.55	2,232.43	31.8919							
1	56,018.94	4,668.25	2,147.20	30.6743	2	57,556.13	4,796.34	2,206.12	31.5160
59,144.96	4,928.75	2,267.02	32.3860	4	60,785.98	5,065.50	2,329.92	33.2846	5
5,269.82	2,423.90	34.6271							

Effective April 5, 2026 Grid Level Step Annual Monthly Bi-weekly Hourly G1 1 40,303.79 3,358.65
1,544.84 22.0691

1 43,316.85 3,609.74 1,660.33 23.7190 2 44,420.69 3,701.72 1,702.64 24.3234 G2 3
45,561.83 3,796.82 1,746.38 24.9483 4 46,739.76 3,894.98 1,791.53 25.5933 5 47,956.83 3,996.40
1,838.18 26.2597

1 50,515.93 4,209.66 1,936.27 27.6610 2 51,860.31 4,321.69 1,987.80 28.3971 G3 3
53,247.48 4,437.29 2,040.97 29.1567 4 55,324.45 4,610.37 2,120.58 30.2940 5 56,829.28 4,735.77
2,178.26 31.1180

1 53,247.48 4,437.29 2,040.97 29.1567 2 54,684.22 4,557.02 2,096.04 29.9434 G4 3
56,166.61 4,680.55 2,152.86 30.7551 4 57,699.62 4,808.30 2,211.62 31.5946 5 59,989.74 4,999.15
2,299.40 32.8486

Effective April 5, 2026 Grid Level Step Annual Monthly Bi-weekly Hourly 1 57,699.62 4,808.30
2,211.62 31.5946 2 59,282.72 4,940.23 2,272.30 32.4614 G12 3 60,919.30 5,076.61 2,335.03
33.3576 4 62,609.62 5,217.47 2,399.82 34.2831 5 65,135.07 5,427.92 2,496.62 35.6660

Effective April 4, 2027 Grid Level Step Annual Monthly Bi-weekly Hourly G1 1 41,513.03 3,459.42
1,591.19 22.7313

1 44,616.36 3,718.03 1,710.14 24.4306 2 45,753.33 3,812.78 1,753.72 25.0531 G2 3
46,928.65 3,910.72 1,798.77 25.6967 4 48,142.06 4,011.84 1,845.28 26.3611 5 49,395.65
4,116.30 1,893.33 27.0476

1 52,031.46 4,335.96 1,994.36 28.4909 2 53,416.02 4,451.34 2,047.43 29.2490 G3 3
54,844.93 4,570.41 2,102.20 30.0314 4 56,984.25 4,748.69 2,184.20 31.2029 5 58,534.21
4,877.85 2,243.61 32.0516

1 54,844.93 4,570.41 2,102.20 30.0314 2 56,324.71 4,693.73 2,158.92 30.8417 G4 3
57,851.72 4,820.98 2,217.45 31.6779 4 59,430.64 4,952.55 2,277.97 32.5424 5 61,789.38
5,149.12 2,368.38 33.8340

1 59,430.64 4,952.55 2,277.97 32.5424 2 61,061.22 5,088.44 2,340.47 33.4353 G12 3
62,746.85 5,228.90 2,405.08 34.3583 4 64,487.79 5,373.98 2,471.81 35.3116 5 67,089.16
5,590.76 2,571.52 36.7360

Effective April 2, 2028 Grid Level Step Annual Monthly Bi-weekly Hourly G1 1 42,758.54 3,563.21
1,638.93 23.4133

1 45,954.74 3,829.56 1,761.44 25.1634 2 47,125.89 3,927.16 1,806.33 25.8047 G2 3
48,336.43 4,028.04 1,852.73 26.4676 4 49,586.37 4,132.20 1,900.64 27.1520 5 50,877.53
4,239.79 1,950.13 27.8590 6 51,131.90 4,260.99 1,959.88 27.9983

1 53,592.38 4,466.03 2,054.19 29.3456 2 55,018.42 4,584.87 2,108.85 30.1264

Effective April 2, 2028 Grid Level Step Annual Monthly Bi-weekly Hourly G3 3 56,490.38
4,707.53 2,165.27 30.9324 4 58,693.88 4,891.16 2,249.73 32.1390 5 60,290.29 5,024.19
2,310.92 33.0131 6 60,591.62 5,049.30 2,322.47 33.1781

1	56,490.38	4,707.53	2,165.27	30.9324	2	58,014.52	4,834.54	2,223.69	31.7670	G4
3	59,587.18	4,965.60	2,283.97	32.6281	4	61,213.59	5,101.13	2,346.31	33.5187	5
63,643.02	5,303.59	2,439.43	34.8490	6	63,961.31	5,330.11	2,451.63	35.0233		
1	61,213.59	5,101.13	2,346.31	33.5187	2	62,892.95	5,241.08	2,410.68	34.4383	G12
3	64,629.20	5,385.77	2,477.23	35.3890	4	66,422.31	5,535.19	2,545.96	36.3709	5
69,101.95	5,758.50	2,648.67	37.8381	6	69,447.37	5,787.28	2,661.91	38.0273		

Concluding Explanatory Notes: a. Current regular employees classified as Store Clerk R9 on November 24, 2003, and working in the store system, will have their classification maintained at grid 9 so long as they occupy such a position. b. Current auxiliary employees who are working in the store system on November 24, 2003, will have their current classification maintained at grid 9 as long as they continue to be employed as an auxiliary Store Clerk. Auxiliary Store Clerks classified at grid 9 who are appointed to a regular Store Clerk position will be placed on the grid (Appendix 3B) at the closest step not less than their current rate of pay. c. Current regular employees classified as Warehouse worker R9 and Warehouse worker R11 on November 24, 2003, and working in the warehouse operations, will have their classification maintained at grid 9 and grid 11 respectively so long as they occupy such a position. d. Current auxiliary employees who are working as Warehouse workers R9 in warehouse operations on November 24, 2003, will have their current classification maintained at grid 9 as long as they continue to be employed as an auxiliary Warehouse worker R9. Auxiliary Warehouse workers R9 who are appointed to a regular Warehouse worker R9 position will be placed on the grid (Appendix 3B) at the closest step not less than their current rate of pay. e. Current Product Consultants R13, who are regular status as of November 24, 2003, and working in the store system, will have their classification maintained at grid 13 so long as they occupy such a position.

APPENDIX 4

Short and Long-Term Disability

Part I - Short-Term Illness and Injury Plan

1.1 Eligibility and Entitlement

(a) All employees (auxiliary or regular) who have been employed for ninety consecutive days of employment shall be entitled to up to five days of paid illness or injury leave.

(b) Additional Short Term Illness and Injury Plan Benefits may follow provided the employee has met all the eligibility and entitlement requirements under (c) to (i). The STIIP benefit periods that follow in (c), (d), (e) and (i) will be adjusted to be inclusive of any period of leave taken under (a).

(c) Regular employees shall be covered by the Short-Term Illness and Injury Plan upon completion of six months of active service with the Employer.

(d) Regular employees with less than six months of service who are unable to work because of illness or injury are entitled to six days coverage at 75% pay in any one calendar year.

(e) Regular employees with three months but less than six months of service will be entitled to 15 weeks (75 workdays) of coverage, consisting of the above six days, or what remains of the six days entitlement, at 75% pay, and the remainder of the 15 weeks at two-thirds of pay, not to exceed the Employment Insurance maximum weekly sickness benefit.

(f) (1) Notwithstanding (c), (d) and (e) above, where a regular employee is on a claim recognized by the Workers' Compensation Board while the employee was on the Employer's business, they shall be entitled to leave with pay up to 130 days for any one claim in lieu of benefits as outlined in Section 1.2. Such leave period will run concurrent with the related STIIP period.

- (2) Employer and employee contributions and deductions for pension benefits and employment insurance during the period of absence will comply with statutory requirements.
- (3) During the leave period, the employee will receive net take-home pay equal to wage loss benefits (inclusive of any earnings over and above basic pay) as calculated by the WCB, less any voluntary deductions and those employee deductions referenced in (2) above.
- (4) If net take-home pay as calculated in (3) above is less than the employee would receive if they had continued to work, the Employer will top up so there is no difference in net take-home pay.
- (5) The compensation payable by the Workers' Compensation Board shall be remitted to the Employer.
- (g) Pay for a regular part-time employee under this plan shall be based on their part-time percentage of full-time employment at date of present appointment.
- (h) For the purpose of calculating six days per calendar year, one day shall be considered to be one day regardless of the regularly scheduled workday. Calculation for part-time employees and partial days will be on a prorated basis.
- (i) The maximum six-month period identified in Appendix 4, Part 1 shall be a maximum seven-month period for auxiliary employees who qualify for benefits pursuant to the Main Agreement, Article 31.12.

1.2 Short-Term Plan Benefit

- (a) In the event an employee is unable to work because of illness or injury they will be entitled to a benefit of 75% of pay for a period not to exceed six months from date of absence (Short-Term Plan period). The Short-Term Plan period of six months is inclusive of leave under Appendix 4, Part 1, 1.1(a).
- (b) The 75% benefit may be supplemented, at the employee's option, at the rate of 25% of actual duration of absence due to illness or injury by the use of the following in descending order:
 - (1) Accumulated sick leave credit under the old sick leave plan;
 - (2) Compensatory Time Off (CTO);
 - (3) Banked Earned Time Off (ETO), excepting where scheduled in a shift schedule;
 - (4) Earned vacation entitlement;
 - (5) Unearned vacation entitlement to a maximum of 70 hours.

1.3 Recurring Disabilities

- (a) Employees who return to work after being absent because of illness or injury, and within 21 calendar days again become unable to work because of illness or injury, are considered to still be within the original Short-Term Plan period as defined in Section 1.2(a).
- (b) Employees who return to work after being absent because of illness or injury, and after 21 calendar days become unable to work because of illness or injury, will be entitled to a further six-month period of benefits under this plan, except as provided in (c) below, where the Short-Term Plan period shall continue to be as defined in Section 1.2(a).
- (c) Where an employee is returning to work after a period of illness or injury and where the

Rehabilitation Committee has approved such return on a trial basis for assessment and/or rehabilitation purposes, the Short-Term Plan period shall continue to be as defined in Section 1.2(a). Such trial period must be approved during the period the employee is receiving short-term benefits, however, the end of the trial period can go beyond the Short-Term Plan benefit period.

(d) Employees who return to work after a period of illness or injury and who do not work the same number of hours that were scheduled prior to the illness or injury shall receive prorated benefits under this plan, however, not beyond six calendar months from the initial date of absence as defined in Section 1.2(a), if absence is due to illness or injury.

1.4 Doctor's Certificate of Inability to Work

The Employer may require an employee who is unable to work because of illness or injury to provide a statement from:

(a) a medical practitioner qualified and licensed to practise in the province of BC; or
(b) where necessary, from a medical practitioner qualified and licensed to practise in the province of Alberta or the Yukon; or

(c) the consulting physician to whom the employee is referred by the medical practitioner in (a) or (b) above; or

(d) a nurse practitioner qualified and licensed to practice in the province of BC, providing medical evidence of the employee's inability to work in any of the following circumstances:

(1) where the employee has been absent for ten consecutive scheduled days of work;
(2) on the third (or more) separate absence occurring in a six-month period which may indicate a pattern of concern;

(3) where at least 30 days have elapsed since the last statement was obtained and the employee has been in receipt of plan benefits throughout that period and there is a reason to believe the employee's prognosis has changed.

(e) notwithstanding above, employees who receive confirmation from the plan carrier that they are accepted for LTD during the STIP period will not be required to provide additional doctor's certificates to the Employer to confirm plan benefits, except when required for return-to-work planning.

(f) in circumstances where a statement of illness or injury is required, and where a nurse practitioner or medical practitioner cannot be seen within a reasonable amount of time, the Employer may accept a statement, consistent with the professional scope of practice, from a physiotherapist, chiropractor, or registered psychologist qualified and licensed to practice in BC, but only within the first 30 calendar days from the start of the illness or injury. This does not limit or restrict the Employer's ability to request a statement from a medical practitioner or nurse practitioner at any time during the benefit period. With the exception of the STO2 and doctor's certificates referenced above, where the Employer requires a medical assessment from the employee's medical practitioner, a nurse practitioner, physiotherapist, chiropractor, or registered psychologist specifying the employee's employment limitations and/or capabilities, the employee will be reimbursed, upon production of receipt, for 50% of the cost of the medical assessment. Effective April 1, 2020, the employee will be reimbursed, upon production of receipt, for 50% of the cost of all of the medical certificates referenced above. Benefits will cease to be paid when an employee fails to provide satisfactory evidence of medical disability during the benefit period.

1.5 Integration With Other Disability Income

Short-term benefits will be reduced by all other disability income benefits to which the absent employee is entitled except disability income which was being received prior to the illness or injury resulting in the employee being absent from work and which is unrelated to the illness or injury causing the current absence and the one-quarter day accumulation that is being used to supplement the plan, pursuant to Section 1.2(b). Other disability income benefits will include:

(a) any amount the absent employee receives from any group insurance, wage continuation or pension plan of the Employer;

(b) any amount of disability income provided by any compulsory Act or law, except employment insurance sickness benefits and WCB benefits payable in accordance with Section 1.1(d);

(c) any periodic benefit payment from the Canada or Quebec Pension Plan or other social security plan of any country. Notwithstanding the above, in the case of ICBC Weekly Indemnity payments or, in the case of personal insurance coverage integration will apply to the extent that the combination of Plan benefits and ICBC Weekly Indemnity payments, or personal insurance disability income benefits exceed either:

(1) 100% of pay; or

(2) the applicable benefit percentage of the individual's average total monthly income in the 12-month period immediately preceding commencement of the disability, whichever is the greater. Where this provision is to apply, the employee will be required to provide satisfactory evidence of their total monthly income. Notwithstanding the above, where an employee makes a successful wage loss claim against a third party for an injury for which the employee received or would receive STIIP benefits, the Employer will be entitled

to recover or decrease Plan benefits by an amount equal to the amount that Plan benefits in combination with the wage loss claim paid exceed 100% of pay. This section does not apply to a war disability pension paid under an Act of the governments of Canada or other Commonwealth countries.

1.6 Benefits Not Paid During Certain Periods

Benefits will not be paid when an employee is:

(a) receiving designated paid holiday pay;

(b) engaged in an occupation for wage or profit;

(c) on strike or is locked out unless the strike or lockout occurred after the illness or injury resulting in the employee being absent from work;

(d) serving a prison sentence;

(e) on suspension;

(f) on paid absence in the period immediately preceding retirement;

(g) on any leave of absence without pay.

Notwithstanding (g) above, where an illness or injury occurs during a period of approved:

(1) educational leave;

(2) general leave of absence not exceeding 30 days;

(3) maternity leave, parental leave, or adoption leave

which prevents the employee from returning to work on the scheduled date of return, the Short-Term Plan will be effective from the date of disability due to illness or injury and benefits will be paid for the balance of the six-month period remaining from the scheduled date of return to work.

(h) not actively engaged in a treatment program where the employee's physician determines it to be appropriate to be involved in such a program. An employee shall be afforded the opportunity to demonstrate there were reasonable grounds for not being engaged in a treatment program.

1.7 Employee to Inform Employer

The employee shall inform the Employer as soon as possible of their inability to report to work because of illness or injury. The employee shall inform the Employer of the date of return to duty, in advance of that date, in order that relief scheduled for that employee can be notified.

1.8 EIC Premium

The parties agree that the complete premium reduction from Human Resources Development Canada Insurance Commission accruing through the improved illness and injury plan will be returned to the Employer.

1.9 Benefits Upon Layoff or Separation

(a) Subject to (b) and (c) below, regular employees who have completed three months of service and who are receiving benefits pursuant to Section 1.1(e), 1.1(f), or 1.2 shall continue to receive such benefits upon layoff or separation until the termination of the illness or until the maximum benefit entitlement has been granted, whichever comes first, if the notice of layoff or separation is given after the commencement of the illness for which the benefits are being paid.

(b) In the event that layoff or separation notice was given prior to the commencement of the illness, benefits will cease on the effective date of the layoff or separation only if the illness commenced within two months of the effective date of the layoff or separation.

(c) Benefits will continue to be paid in accordance with (a) above for which notice of layoff or separation was given prior to the commencement of the illness and if the illness commenced more than two months before the effective date of the layoff or separation. Part II - Long-Term Disability Plan

2.1 Eligibility

(a) (1) Regular full-time employees shall be covered by the Long-Term Disability Plan upon completion of six months active employment with the Employer. To be covered by the Plan, a regular part-time employee must be working in a position that requires at least half-time work on a regularly scheduled basis, and must have completed six months active service in such a position. Employees must submit their LTD Plan application within four weeks following the end of the STIIP period. An employee who fails to submit their application for LTD benefits within four weeks of the end of the STIIP period will be presumed to have abandoned their claim for LTD benefits. An employee shall be afforded the opportunity to rebut such presumption to the Plan Administrator and demonstrate that there were reasonable grounds for not having applied for LTD benefits within the prescribed time period.

(2) Where an employee is converted from auxiliary to regular status, plan coverage shall commence the earlier of (a)(1) above, or upon the completion of six months of full-time, unbroken employment from the date the employee qualified for Short-Term Illness and Injury Plan benefits under Clause 31.12.

(b) An employee who is not actively at work because of illness or injury on the workday coincident with, or immediately preceding, the date they would otherwise have become eligible for coverage under the Plan will not be eligible for coverage until the date the employee returns to active employment.

(c) Coverage in the plan is a condition of employment.

2.2 Long-Term Disability Benefit

In the event an employee, while covered under this plan, becomes totally disabled as a result of an illness or injury, then, after the employee has been totally disabled for six months, including periods approved in Sections 1.3(a) and (c), they shall be eligible to receive a monthly benefit as follows:

(a) While the employee has a sick bank balance to be used on a day-for-day basis, full monthly earnings will continue until the sick bank is exhausted, and Section 2.6 will not apply.

(b) When an employee has no sick bank, or after it is exhausted, the employee shall receive a monthly benefit equal to the sum of: Effective April 1, 2025

- (1) 70% of the first \$3,180.09 of monthly earnings; and,
 - (2) 50% of the monthly earnings above \$3,180.09.
- Effective April 1, 2026

- (1) 70% of the first \$3,275.49 of monthly earnings; and,
 - (2) 50% of the monthly earnings above \$3,275.49.
- Effective April 1, 2027

- (1) 70% of the first \$3,373.76 of monthly earnings; and,
 - (2) 50% of the monthly earnings above \$3,373.76.
- Effective April 1, 2028

- (1) 70% of the first \$3,474.97 of monthly earnings; and,
- (2) 50% of the monthly earnings above \$3,474.97.

For the purposes of the above, earnings shall mean basic monthly earnings as at the date of disability as determined by the Employer. Annual increases to (b)(1)(2) will be calculated by applying a percentage increase equivalent to the annual percentage general wage increase for all employees under the collective agreement. It is understood that the adjustment in (b)(1)(2) will only apply to new claims to set the benefit amount to be paid at the beginning of each LTD claim and into the future and that Appendix 4, 2.18 - Benefit Level will not also apply at the time the benefit level is set. The basic monthly earnings as at the date of disability shall be the salary in effect for the last month of the Short-Term Plan period, or equivalent six-month period, taking into consideration any retroactive adjustments. The date of disability for determining the commencement of the first 25 months of disability shall be the day following the last month of the Short-Term Plan period, or an equivalent six- month period.

(c) The long-term disability benefit payment will be made as long as an employee remains totally disabled in accordance with Section 2.3, and will cease on the date the employee recovers, or at the end of the month in which the employee reaches age 65, or resigns or dies, whichever occurs first.

(d) An employee in receipt of long-term disability benefits will be considered an employee for pension benefits and will continue to be covered by group life, extended health, dental and medical plans. Employees also remain eligible for Article 27.18 - Retirement Allowance and Pre-Retirement Leave provided the employee has completed 20 years of service prior to receipt of long-term disability benefits and they otherwise meet the requirements of Article 27.18. Employees will not be covered by any other portion of a collective agreement but will retain the right of access to a rehabilitation committee established thereunder and will retain seniority rights should they return to employment within nine months following cessation of benefits. A temporary assignment or auxiliary appointment will not disqualify an employee from the nine-month access period.

(e) When an employee is in receipt of the benefit described in (b) above, contributions required for benefit plans in (d) above and contributions for pension benefits will be waived by the Employer.

(f) An employee engaged in rehabilitative employment with the Employer and who is receiving

partial long-term disability benefit payments will have contributions required for benefit plans in (d) above and contributions for pension benefits waived by the Employer, except that pension benefit contributions shall be deducted from any salary received from the Employer to cover the period of rehabilitative employment.

(g) Where (f) above applies, employees shall be entitled to up to five days of paid illness or injury leave, in each calendar year.

2.3 Total Disability

(a) Total disability, as used in this plan, means the complete inability because of an accident or sickness of a covered employee to perform all the duties of their own occupation for the first 25 months of disability except where accommodation has been made which enables an employee to work:

- (1) in their own occupation, or
- (2) in a job other than their own occupation.

Where accommodation has been made which enables an employee to return to work they will not be considered totally disabled and the rate of pay shall be the rate for the job. If the rate of pay for this job is less than the rate of pay of the employee at the date of disability, the employee's salary will be protected in accordance with Clause 27.7(a) at the employee's basic rate at the date of disability. After the first 25 months of total disability, where accommodation has been made that enables an employee to return to a job other than their own occupation, the employee will not be considered totally disabled and their basic rate shall be the basic rate for the job or 75% of the basic rate of their own occupation, whichever is greater. After the first 25 months of total disability, employees able by reason of education, training or experience to perform the duties of a gainful occupation for which the rate of pay is not less than 75% of the current rate of pay of their regular occupation at date of disability will not be considered totally disabled and will therefore not be eligible for benefits under this Long-Term Disability Plan.

(b) During a period of total disability an employee must be under the regular and personal care of a legally qualified doctor of medicine or a nurse practitioner.

(c) (1) If an employee becomes totally disabled and during this period of total disability engages in rehabilitative employment, where they are unable to perform the principal duties of their previous classification, the employee may earn in combination with benefits from this plan up to 100% of their earnings at the date of disability. In the event that income from rehabilitative employment and the benefit paid under this plan exceed 100% of the employee's earnings at date of disability, the benefit from this plan will be further reduced by the excess amount.

(2) If an employee is able to perform the principal duties of the position they are placed into on rehabilitative employment, the employee may earn, in combination with benefits from this plan, up to 100% of their earnings at the date of disability or the position's current rate of pay, whichever is greater. "Rehabilitative employment" shall mean any occupation or employment for wage or profit or any course or training that entitles the disabled employee to an allowance, provided such rehabilitative employment has the approval of the employee's doctor and the Employer. The rehabilitative employment of a disabled employee will continue until such time as the employee's earnings from rehabilitative employment reach 100% of the employee's earnings at the date of disability but in no event for more than 25 months from the date benefit payments commence. If earnings are received by an employee during a period of total disability and if such earnings are derived from employment which has not been approved of as rehabilitative employment by their doctor and the Employer, then the regular monthly benefit from the Plan will be reduced by 100% of such earnings if the monthly earnings are in excess of \$200 per month.

(3) In the event that an employee has been classified as totally disabled for all occupations and engages in approved rehabilitative employment, the provisions of (1) and (2) above apply except that the rehabilitative employment may continue for 25 months from the date rehabilitative employment commenced.

(4) In the case where rehabilitative employment has been approved while an employee is

receiving a benefit under the provisions of Section 2.2(a), the provisions of Section 2.3(c)(1) shall not apply until the employee is receiving a benefit under Section 2.2(b).

2.4 Exclusions from Coverage

The Long-Term Disability Plan does not cover total disabilities resulting from:

- (a) war, insurrection, rebellion, or service in the Armed Forces of any country after the commencement of this plan;
- (b) voluntary participation in a riot or civil commotion except while an employee is in the course of performing the duties of their regular occupation.

2.5 Pre-Existing Conditions

An employee shall not be entitled to long-term disability benefits from this plan if their total disability resulted from an illness or injury with respect to which medical treatment, services or supplies were received in the 90-day period prior to the date of hire unless they have completed 12 consecutive months of service after the date of hire during which time they have not been absent from work due to the aforementioned illness or injury with respect to which medical treatment, services or supplies were received. This clause does not apply to present employees who have been continuously employed for a period of five years immediately preceding this claim.

2.6 Integration With Other Disability Income

In the event a totally disabled employee is entitled to any other income as a result of the same accident, sickness, mental or nervous disorder that caused them to be eligible to receive benefits from this plan, the benefits from this plan will be reduced by 100% of such other disability income. Other disability income shall include, but not necessarily be limited to:

- (a) any amount payable under the Workers Compensation Act or Law or any other legislation of similar purpose; and,
- (b) any amount the disabled employee receives from any group insurance, wage continuation or pension plan of the Employer that provides disability or retirement income; and,
- (c) any amount of disability income provided by any compulsory Act or law; and,
- (d) any periodic primary benefit payment from the Canada or Quebec Pension Plans or other similar social security plan of any country to which the disabled employee is entitled or to which they would be entitled if their application for such a benefit were approved; and,
- (e) any amount of disability income provided by any group or association disability plan to which the disabled employee might belong or subscribe. The amount by which the disability benefit from this plan is reduced by other disability income will normally be the amount to which the disabled employee is entitled upon becoming first eligible for such other disability income. Future increases in such other disability income resulting from increases in the

Canadian Consumer Price Index or similar indexing arrangements will not further reduce the benefit from this plan. Notwithstanding the above, in the case of ICBC Weekly Indemnity payments or, in the case of personal insurance coverage, integration will apply to the extent that the combination of Plan benefits and ICBC Weekly Indemnity payments or, personal insurance disability income benefits exceed either:

- (1) 100% of basic pay; or
- (2) the applicable benefit percentage of the individual average total monthly income in

the 12-month period immediately preceding commencement of the disability, whichever is the greater. Where this provision is to apply the employee will be required to provide satisfactory evidence of their total monthly income. Notwithstanding the above, where an employee makes a successful wage loss claim against a third party for an injury for which the employee received or would receive LTD benefits, the Employer will be entitled to recover or decrease Plan benefits by an amount equal to the amount that Plan benefits in combination with the wage loss claim paid exceed 100% of pay subject to the following:

- (1) The amount of plan benefit recovered or decreased will be reduced limited to the legal fees attributed to the Employer's share of total claim recovery.
- (2) The existence of an action commenced by or on behalf of an employee does not preclude the Employer from joining the employee's action or commencing an action on its own behalf respecting the benefits paid.
- (3) Where the Employer or the employee intends to commence or join such an action, they shall advise the other in writing of that intention. This section does not apply to a war disability pension paid under an Act of the governments of Canada or other Commonwealth countries.

2.7 Successive Disabilities

(a) If, following a period of six months where an employee is unable to work because of illness or injury, including leave periods which run concurrent with those six months as noted in 1.1(f)(1) and 1.6(g), and regardless if benefits are paid from Parts I or II of this plan, an employee returns to work on a full-time basis for a continuous period of six months or more, any subsequent total disability suffered by that employee, whether related to the preceding disability or not, shall be considered a new disability and the disabled employee shall be entitled to benefit payments in accordance with the provisions of this plan.

(b) In the event the period during which such an employee has returned to work is less than six months and the employee again suffers a total disability and that is related to the preceding disability, the subsequent disability shall be deemed a continuation of the preceding disability, and the disabled employee shall be entitled to benefit payments in accordance with the provisions of this plan as though they had not returned to work.

(c) Should such an employee suffer a subsequent disability that is unrelated to the previous disability, the subsequent disability shall be considered a new disability and the employee shall be entitled to benefit payments in accordance with the provisions of this plan.

(d) Limitation of benefits for successive disabilities in (b) and (c) above must be determined within one year from the date of absence due to successive disability.

2.8 Cessation of Benefits

An employee shall cease to be eligible for benefits of this plan at the earliest of the following dates:

(a) at the end of the month in which the employee reaches their 65th birthday (60th birthday for correctional centre employees);

(b) on the date of commencement of paid absence prior to retirement;

(c) on the date of termination of employment with the Employer.

Benefits will not be paid when an employee is serving a prison sentence. Cessation of active employment as a regular employee shall be considered termination of employment except when an employee is on authorized leave of absence with or without pay.

2.9 Leave of Absence

Employees on leave of absence without pay may opt to retain coverage under the plan and shall pay the full premium, except when on approved Maternity Leave. Coverage will be permitted for a period of 18 months of absence without pay except that if the leave is for educational purposes the maximum period will be extended to two years. If an employee on leave of absence without pay or with partial pay, who has elected coverage under this plan, becomes disabled, benefits under this plan will be based upon monthly earnings immediately prior to the current leave of absence.

2.10 Benefits Upon Plan Termination

In the event this Long-Term Disability Plan is terminated, the benefit payments shall continue to be paid in accordance with the provisions of this plan to disabled employees who became disabled while covered by this plan prior to its termination.

2.11 Contributions

The cost of this plan will be borne by the Employer.

2.12 Waiver of Contributions

Employee contributions to this plan shall be waived with respect to disabled employees during the time such an employee is in receipt of disability benefit payments from this plan.

2.13 Claims

(a) Long-term disability claims will be adjudicated and paid by a claims-paying agent to be appointed by the Employer. In the event a covered employee disputes the decision of the claims-paying agent regarding a claim for benefits under this plan, the employee may arrange to have their claim reviewed by a claims review committee composed of three medical doctors; one designated by the claimant, one by the Employer, and a third agreed to by the first two. Written notice of a disputed claim or an appeal under this plan shall be sent to the Plan Administrator.

(b) (1) Written notice of an appeal must be submitted to the Plan Administrator within 60 days from the date the claims-paying agent rejected the claim. Due to extenuating circumstances, the time frame may be extended by the Plan Administrator.

(2) Where the claims-paying agent denies benefits due to insufficient medical evidence being provided, an employee will have 60 days in which to provide satisfactory medical evidence to support their claim.

In such circumstances the 60-day appeal period in (1) above will not commence until the claims paying agent renders its decision based on the medical evidence provided. Where the employee fails to provide further satisfactory medical evidence within the 60-day period, the claim will be deemed to have been denied and the appeal period in (1) above shall commence.

(c) The expenses incurred by a claims review committee will be paid by the Plan.

(d) Where an employee has disputed the decision of the claims-paying agent and is awaiting the outcome of a review or an appeal, the employee will be considered to be on leave of absence without pay during the portion of the waiting period when they are not receiving pay or benefit allowance. During the waiting period an employee will continue to be covered by group life, extended health, dental and medical plans.

(e) LTD benefits received will be reduced by the same amount of benefits received for the same

period under the Employment and Assistance Act and/or the Employment and Assistance for Persons with Disabilities Act (referenced in this section as the "Acts"), except where the benefits received for that period under these Acts are repaid to government. Where the employee has been deemed eligible for benefits under these Acts, which benefits exceed the LTD benefits level, LTD benefits will not be subject to reduction for that additional amount.

2.14 Physical Examination

The Employer, at its own expense, shall have the right and be given the opportunity to have a medical doctor appointed by the Employer examine, as often as it may reasonably require, any employee whose illness or injury is the basis of claim upon this plan.

2.15 Canadian Currency

All monies payable to or from this plan shall be payable in Canada in Canadian currency.

2.16 Administration

The Employer will be the administrator of the Plan. All questions arising as to the interpretation of this plan shall be subject to the grievance and arbitration procedures in Articles 8 and 9 of the Main Agreement.

2.17 Implementation by Regulation

The provisions of this plan shall become part of a memorandum of agreement between the parties and will be implemented by regulation.

2.18 Benefit Level

Persons receiving benefits shall receive the same increases to their benefit level as do the employees covered by the terms and conditions of this collective agreement receive in wage increases. Part III - Rehabilitation Rehabilitation Committee

(1) It is the intent of both parties to encourage and facilitate the early return to gainful employment of employees who have been ill or injured. To this end, a rehabilitation committee will be established as follows:

(a) The Committee shall consist of five members, two appointed by the Employer, two appointed by the Union and a mutually agreed upon chairperson. A secretary shall be appointed to assist in the administration of the Committee.

(b) The Committee shall review cases of regular employees who have completed their initial probationary period and are no longer capable of performing the duties of their own occupation due to illness or injury. Such employees shall make application for rehabilitation pursuant to Appendix 4, Part III - Rehabilitation.

(c) The Committee shall also review cases of all employees who have become incapacitated through industrial injury or illness. Following the review of such cases the Committee, taking into account the best interests of the employee and the Employer, shall make recommendations to the Head of the BC Public Service Agency.

(d) The Committee shall also review cases of regular employees who have completed their initial probationary period who request a transfer on compassionate grounds. Following the review of such cases, the Committee, taking into account the best interests of the employee and the Employer, shall make recommendations to the Head of the BC Public Service Agency.

(e) Where the Committee is unable to decide upon recommendations for a particular case, the

matter shall be referred to the Bargaining Principals for final disposition.

(f) The Rehabilitation Committee shall meet not less than once a month during working hours, and leave without loss of pay shall be granted to committee members. Minutes of all meetings shall be taken by the secretary and copies shall be provided to the Employer and the Union.

(g) Members of the Committee are committed to maintain confidentiality of medical and other information received in their capacity as committee members.

(2) In the event that a regular employee becomes incapacitated through accident or sickness and they are unable to perform all the duties of their own occupation, the following shall apply:

(a) For the purpose of this section, incapacity shall mean where the employee is unable to perform all the duties of their own occupation as defined in Section 2.3(a) of the Long-Term Disability Plan.

(b) Where the employee meets the definition in (a) above, the Employer shall provide the employee with an application to the Rehabilitation Committee. An employee who fails to:

(1) sign the application form;

(2) make themselves reasonably available and co-operate with a reasonable rehabilitation/return to work process;

(3) actively engage in a treatment program where the employee's physician determines it to be appropriate to be involved in such a program shall have benefits suspended. Prior to having benefits suspended, an employee shall be afforded an opportunity to demonstrate that there were reasonable grounds for failing to meet the above obligations.

(c) The application shall be completed and returned to the Secretary to the Rehabilitation Committee within 10 workdays. The Committee members shall be provided with copies of the application.

(d) The Rehabilitation Committee will, based on the information, coordinate the necessary medical and/or vocational assessments and determine the following:

(1) if the application is properly before the Committee;

(2) based on the assessment, determine whether the employee is immediately capable of performing modified, alternative or rehabilitative employment;

(3) if no to (2) above the Committee may, based on the assessments, implement the necessary training to place the employee in alternative or rehabilitative employment;

(4) In considering modified, alternative or rehabilitative employment, the Committee may provide advice and make recommendations to the Ministry to return the incapacitated employee to work considering the following accommodations:

(i) modification of the duties of the employee's job;

(ii) flexibility in scheduling hours of work within existing hours of operation; (iii) provision of technical or mechanical aids.

(5) where the employee is considered capable of performing alternative employment or once the rehabilitative employment is considered to be successful, and the employee is therefore able to perform the duties of a gainful occupation, they shall be subject to Article 13 - Layoff and Recall of the Main Agreement excluding displacement options pursuant to Clauses 13.3 and 13.4(c)(2).

(e) (1) An employee in receipt of STIP benefits, whose prognosis for return to work exceeds eight weeks, may be referred to the Rehabilitation Committee if the Occupational Health and Rehabilitation determines it is medically appropriate to do so.

(2) In those cases where a return to their own occupation is unlikely, employees may be referred, by either party to the Rehabilitation Committee while on STIP. In such cases, Part III (2)(c), and (d) will apply.

(f) Where an employee has a physical occupational illness or injury, the Ministry will, where feasible, accommodate the employee's incapacity so as to avoid a time loss illness or injury. Where a time loss illness or injury occurs, the compensation payable shall be in accordance with the applicable terms of

Appendix 4.

(g) Where the Ministry has concerns with a recommendation made in accordance with (d)(4) above, the concern will be reviewed with the Rehabilitation Committee.

APPENDIX 6

Locations Approved for Special Vacation Transportation (Clause 27.23)

Alice Arm	Mahatta River
Anahim Lake	Muncho Lake
Bella Massett	Atnarko Camp
Meziadin Lake	Atlin
Coola	Naden Harbour
Bob Quinn Lake	Nass Valley
Cassiar	Chamiss Bay
115 Mile Creek	Dease Lake
Port Clements	Dinan Bay
Queen Charlotte City	Driftwood
Racing River	Germansen Landing
Sewell Inlet	Good Hope
Lake	Stewardson Inlet
Hyland River	Stone Mountain Park
Ingenika	Summit Lake (Alaska Hwy.)
Kemano	Tatla Lake
Kingcome Inlet	Tattoga Camp
Kledo	Creek
Telegraph Creek	Leo Creek
Toba Inlet	Liard River (Hot Springs)
Waglisa	Louise Island
Ware Lovell Cove	Watson Lake
Lower Post	Welwood Camp

APPENDIX 8

Biweekly Pay Conversion Schedule Isolation Travel Allowance

Based on \$7.66 per point per month April 1, 2027

Based on \$7.89 per point per month Effective April 1, 2028

Based on \$8.13 per point per month Effective April 1, 2025

Based on \$8.37 per point per month Effective April 1, 2026

Effective

Biweekly Rate	Biweekly Rate	Points Rate	Biweekly Rate	Points Rate	Biweekly Points	Points Rate	Points Rate	Points Rate	Points Rate	Points Rate	Points Rate
12	42.28	12	43.55	12	44.87	12	46.20	13	45.80	13	47.18
13	48.61	13	50.05	14	49.33	14	50.81	14	52.35	14	53.90
15	52.85	15	54.44	15	56.09	15	57.75	16	56.37	16	58.07
16	59.83	16	61.60	17	59.90	17	61.69	17	63.57	17	65.45
18	63.42	18	65.32	18	67.31	18	69.30	19	66.94	19	68.95
19	71.05	19	73.15								

Based on \$7.66 per point per month April 1, 2027

Based on \$7.89 per point per month Effective April 1, 2028

Based on \$8.13 per point per month Effective April 1, 2025

Based on \$8.37 per point per month Effective April 1, 2026

Effective

Biweekly Rate	Biweekly Rate	Points	Biweekly Rate	Points	Biweekly Rate	Points	Biweekly Rate	Points	Biweekly Rate	Points	Biweekly Rate	Points
21	73.99	21	76.21	21	78.53	21	80.85	22	77.51	22	79.84	22
82.27	22	84.70	23	81.04	23	83.47	23	86.01	23	88.55	24	84.56
24	87.10	24	89.75	24	92.40	25	88.08	25	90.73	25	93.49	25
96.25	26	91.61	26	94.36	26	97.23	26	100.10	27	95.13	27	97.98
27	100.97	27	103.95	28	98.65	28	101.61	28	104.70	28	107.80	29
102.18	29	105.24	29	108.44	29	111.65	30	105.70	30	108.87	30	
112.18	30	115.50	31	109.22	31	112.50	31	115.92	31	119.35	32	
112.75	32	116.13	32	119.66	32	123.20	33	116.27	33	119.76	33	
123.40	33	127.05	34	119.79	34	123.39	34	127.14	34	130.90	35	
123.31	35	127.02	35	130.88	35	134.74	36	126.84	36	130.65	36	
134.62	36	138.59	37	130.36	37	134.28	37	138.36	37	142.44	38	
133.88	38	137.90	38	142.10	38	146.29	39	137.41	39	141.53	39	
145.84	39	150.14										

INFORMATION APPENDIX I

Re: Employee Basic Life Insurance The Employee Basic Life Insurance shall include the following provisions: 1. Accidental Dismemberment and Loss of Sight with the following benefits: · Loss of both hands or feet - the principal sum; · Loss of sight of both eyes - the principal sum; · Loss of one hand and one foot - the principal sum; · Loss of one hand or one foot and sight of one eye - the principal sum; · Loss of one hand or one foot - one-half of the principal sum; · Loss of the sight of one eye - one-half of principal sum. 2. Advance Payment of Group Life Benefits for Terminally Ill Employees The guidelines regarding payment of group life benefits for terminally ill employees pursuant to Clause 25.4(a) are as follows:

- Death must be "expected" within 24 months. The employee's attending physician will be required to provide sufficient medical information, including the employee's diagnosis and prognosis, to allow the group life insurance carrier to assess the life expectancy.
- Requests for advance payments must be in writing.
- Authorization from the Employer must be submitted with the employee's request.
- The amount of the payment will be 50% of the life insurance coverage, subject to a maximum of \$50,000.
- A signed release will be obtained from the insured employee prior to payment being made. A release is not required from designated revocable beneficiaries as they have no legal rights to life insurance proceeds until after the insured's death. Situations involving irrevocable beneficiaries or divorce judgments will require special releases.

INFORMATION APPENDIX II

Re: Flexible Work Arrangements Policy Directive 6.1 1. Purpose The objective of this policy is to provide parameters and guidance regarding flexible working arrangements, specifically telework and job sharing. Additional flexible work arrangements such as flextime, modified workweek and deferred salary leave are available as detailed in relevant guidelines and collective agreements. 2. Goal This policy supports the BC Public Service's goal of a flexible and motivating work environment. 3. Application and Scope This policy applies to regular employees covered by the Public Service Act. 4. Principles The government is committed to flexible work arrangements that are advantageous to both the Employer and employees. It supports collaborative and participative processes that encourage flexibility, innovation, work/life balance and the enhancement of productivity and organizational success. 5. Mandatory Requirements

5.1 General

Flexible work arrangements are not appropriate for all regular employees. They are neither an obligation nor a right. Participation in flexible work arrangements is voluntary and is not a condition of employment.

5.2 Telework

Telework is a working arrangement where employees work away from their official workplace for a portion of their regular workweek. Either the employee or the Employer may initiate flexible work arrangements. Telework arrangements usually involve employees working at their homes, but the

employee's point of assembly, headquarters or geographic location continues to be the official workplace, regardless of where they may work on a particular day. Telework Arrangements Prior to approving a telework agreement, managers are to:

- determine that the telework arrangement will meet the provisions of this policy and relevant collective agreements (if applicable);
- establish that teleworking is operationally feasible and it makes sense, from an operational perspective, to have the work done at the teleworkplace;
- ensure that services and/or productivity are maintained or improved;
- determine that no additional net costs will be generated and upfront costs can be recouped over a reasonable period;
- establish that the teleworkplace meets all requirements of WCB Industrial Health and Safety Regulations; and,
- include an inventory of all ministry assets provided by the Employer and ensure it is updated as required. Telework equipment, supplies and furniture remain the property of the Employer and must be returned if the telework arrangement or employment is terminated. On entering into a telework agreement, employees will agree to:

- maintain the teleworkplace (such as homeowner or tenant insurance, heat and hydro);
- provide dedicated office space for use during teleworking days and maintain the office space in a clean, professional and safe condition;
- allow joint teleworkplace visits by ministry personnel and union representatives (including local occupational health and safety committee members), upon reasonable notice;
- secure and protect the property, documents and information belonging to the Employer. Employees will not be liable for loss or damage to such property or information except where the employee has failed to take reasonable precautions to secure it, or where the loss or damage is the result of a wilful act by the employee or a member of their family;
- follow safe work practices and ensure prompt notification to appropriate ministry personnel of any job related accidents that occur at the teleworkplace; and,
- ensure that any meetings with clients are not held in the employee's teleworkplace.

5.3 Job Sharing

Job Share is an arrangement between two employees (partners) who perform the duties of a position previously performed by one full-time employee. Job Share situations are not promotional opportunities; therefore half of a job share cannot be posted or advertised as a promotional opportunity. Partners in a job share proposal must both be qualified for the position and at the same level, or a higher classification than the position to be shared. The partners are appointed to and paid at the classification level of the shared position. Job Share arrangements are at the discretion of the excluded manager responsible for the position. Job Share arrangements can be considered where one of the partners proposing the job share already occupies the full-time position under consideration, or where two partners propose to share a vacant position that is at a classification level that is the same or lower than the partners' current positions.

Job Share arrangements may be approved on a trial basis for a three month period to enable all the parties to assess whether the job share arrangement is suitable. Initiation of Job Share Arrangements Job Sharing proposals must be submitted in writing to the excluded manager for approval and must include the following:

- identification of the partners and the position to be shared, including classification levels;
- a written statement signed by both partners requesting part-time employment to job share as outlined in the proposal;
- information on the qualifications and experience of the proposed partners;
- a description of how job duties and responsibilities will be shared and workload priorities determined on an ongoing basis;
- a proposal on how extended absences may be covered;
- details on arrangements to communicate necessary information to each other, clients, colleagues and the supervisor; and,
- preferred start date and work schedules (subject to relevant collective agreements, if applicable).

If approved, the job share proposal is confirmed in writing and becomes the job share agreement. The job sharing partners are then appointed as part-time employees and are subject to the applicable policies (eg., Recruitment, Selection and Appointment, Lateral Transfer and Demotion). Benefits are in accordance with those approved for part-time employees. Most benefits are prorated based on the number of hours the partner works; some benefits are paid in full to both partners. The appointment letter should address the terms and conditions of employment and the agreed to terms of the job share arrangement. If the Ministry intends to increase either partner's hours of work due to operational requirements or as the result of the extended absence of the other partner, it must be stated in the appointment letter. Acceptance of the appointment must be in writing. Changes to Job Share Arrangements Changes to job share arrangements may be initiated by either the Employer or the employee. All changes must be in writing and approved by the responsible excluded manager. If the appointment letter states that the employee's hours may be increased, this is not meant to be a permanent change in hours unless requested by the employee and approved by the excluded manager, nor is it meant to limit the excluded manager's responsibility to determine how operational requirements will be met on each occasion. Partners will give as much notice as possible of an extended absence or change to a job share arrangement so the supervisor can give adequate notice before increasing a partner's hours of work. Termination of Job Share Arrangements The job share arrangement may be terminated, in writing, by either the Employer or the employee. The Employer may terminate a job sharing arrangement for bona fide operational reasons. If the Employer terminates the job sharing agreement:

- it is the Employer's responsibility to find part-time work for employees who do not wish regular full-time work. This may include a new job share arrangement if there is a suitable vacant position and the supervisor/manager of that position agrees. If either partner terminates the job share arrangement:
- the remaining partner may request to fill the position full-time;
- the remaining partner may find another job share partner (through solicitation of interest or the Job Share Registry) and develop a new job share proposal for approval by the excluded manager;
- the excluded manager has the option of creating two part-time positions and posting one of them (half a job share cannot be posted as a promotional opportunity). In this case, the manager would not have the ability to increase the remaining part-time employee's hours to cover extended absences without the employee's agreement; and,
- the Employer will endeavour to find a suitable position for the remaining job sharing partner; however, the onus is on the remaining employee to find alternative employment.

6. Legislative Authorities Public Service Act 7. Other References · @Your Service Flexible Work Options Toolkit http://www2.gov.bc.ca/myhr/content_hub.page?ContentID=456376ec-d56b-0e8d-0be7-e08e23acf7b8

- BC Public Service Agency's public website: <https://www.bcpublicserviceagency.gov.bc.ca/>

INFORMATION APPENDIX III

Re: Suspension Without Pay The BC Public Service's policy regarding suspensions pending the outcome of an investigation requires that the individual remains on pay, except where all four of the following criteria are met: 1. The level of alleged misconduct is considered to be high and would result in a lengthy suspension or termination if substantiated; 2. The preliminary evidence gathered in relation to the allegation(s) at the time of temporary suspension is compelling; 3. The nature of, or circumstances giving rise to, the alleged misconduct cannot be reasonably interpreted to be motivated solely by altruistic reasons or in the name of serving the public good, e.g. whistleblowing or protecting the environment; 4. A suspension without pay must not negatively impact the conduct of the investigation. Suspensions pending the outcome of an investigation on a without pay basis require the authorization of the Assistant Deputy Minister, Employee Relations.

MEMORANDUM OF UNDERSTANDING 1

Re: Employment Security 1. During the term of this memorandum of understanding the Employer agrees not to exercise its right to cause a layoff which results in the cessation of employment for an employee in the Public Service Bargaining Unit who has regular status as of April 1, 2025. Such employees are grandparented with the provisions of this memorandum. 2. This memorandum does not apply to regular employees who are normally subject to layoff because of business cycle or seasonal work. 3. In order for the Employer to satisfy the provision of point 1 above, the Union recognizes that workforce adjustment activity will be necessary whether due to reorganization, program termination, relocation, closures, etc. 4. JWASC will coordinate such workforce adjustment activity in accordance with its mandate as outlined in Clause 13.2. 5. In order to facilitate the Employer's commitment and workforce adjustment measures necessary as a result of this commitment, it is agreed that, following the application of Phase 1 (Clause 13.1):

(a) A regular employee with less than three years' service seniority who refuses one reasonable offer of continued employment will be deemed to have resigned.

(b) A regular employee with three or more years' service seniority who refuses an offer of continued employment at the same classification level and same geographic location will be deemed to have resigned.

(c) A regular employee with three or more years' service seniority who refuses one offer of continued employment in a different classification (with the same maximum salary) in the same geographic location, will be deemed to have resigned with applicable severance pay.

(d) A regular employee with three or more years' service seniority who refuses two job offers in a different geographic location or with a comparable pay range will be deemed to have resigned with applicable severance pay. Where a regular employee with three or more years' service seniority refuses one job offer in their same geographic location pursuant to (c) above or refuses their final job offer pursuant to (d) above in their same geographic location, the number of weeks of severance pay shall be reduced by an amount equivalent to the number of weeks the employee has remained on pay after expiry of the six week notice period in 13.4(b). 6. The determination of employees to be subject to workforce adjustment will be consistent with the seniority provisions of Article 13. 7. Greater than three year regulars are entitled to displace less than three year regulars pursuant to Article 13. Employees who do not immediately exercise their option to displace will not be covered by the security provisions of this memorandum and Clause 13.4 shall apply. Less than three year regulars are entitled to the auxiliary recall option in lieu of a reasonable offer of continued employment. 8. Regular employees with more than three years' service seniority who are placed pursuant to this memorandum shall have their salary protected pursuant to Clause 27.7 of the Main Agreement. 9. It is understood that if an employee is impacted in subsequent layoffs/workforce adjustment within a three-year period that their original headquarters remains the same unless they have relocated.

An employee intending to rely on this provision must advise the Employer within 30 days of receiving a job offer. 10. The Chairperson of the Article 13 Joint Committee shall, at the request of either party, sit as an arbitrator over all disputes pertaining to the application or interpretation of this memorandum of understanding after the parties have reviewed and attempted to resolve the dispute. 11. The provisions of Article 13 shall be subject to the provisions of this memorandum of understanding. 12. This memorandum remains in force and effect for the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 2

Re: The Authority of the Article 13 Joint Committee The structure of the layoff and recall/employment security provisions of the Main Agreement are such that those regular employees with three or more years of service seniority have stronger security than regular employees with less than three years seniority. Likewise, all regular employees have stronger security than auxiliary employees. Consistent with the above, the parties acknowledge that the Article 13 Joint Committee may need to exercise its discretion as provided for in Clause 13.5(c) in order to maintain the employment of regular employees over auxiliary employees, including regulars with less than three years seniority. This letter will be effective from the date of ratification until the expiration of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 3

DEFINITIONS

For the purpose of these regulations: "stationary employees" are employees who occupy positions that require them to:

- (a) carry out their duties on a day-to-day basis at their headquarters; and/or,
- (b) travel from their headquarters for short periods of time; and/or,
- (c) travel from their headquarters more or less on a continuous basis, but whose assignments are of sufficiently short duration so that temporary headquarters cannot be practically assigned; "mobile employees" are those that occupy positions requiring assignment to a "temporary" headquarters for a significant period of time for each specific project and who are required to carry out their duties on a day-to-day basis from their assigned temporary headquarters; these employees are usually required to change their temporary headquarters on a continual basis and would not be domiciled at a permanent headquarters; "field status employees" are those who are normally required to work away from their point of assembly and who, on a day-to-day basis, do not work in an office, institution, plant, or other similar fixed location which is their normal point of assembly;

"seasonal field employees" are those employees who occupy positions which permit them to be normally domiciled at their permanent headquarters but who are assigned field duties on a seasonal basis, returning to their permanent headquarters when not working in the field; "permanent camp" is a camp which will be established and occupied continuously for more than one year; "seasonal camp" is a camp that will be established and occupied less than five months and is usually comprised of tents and, where feasible, trailers; "fly or sub-base camp" is a camp that will be established and occupied on a very temporary basis, is mobile in nature, and is generally isolated with very restricted access; "local hire" is a person who is hired or is domiciled within 80 kilometers of the job site by means of the shortest road route; "travel status" with respect to an employee means absence of the employee from the employee's designated headquarters or geographic location on government business with the approval of the Employer, but travel status does not apply to employees temporarily assigned to a position outside of the designated headquarters or to field status employees; "headquarters or geographic location" is that area within a radius of 32 kilometers where employees ordinarily perform their duties. When employees are relocated, the headquarters area may be redefined where exceptional circumstances such as unusual road conditions exist; "dependents" for the purpose of definition, dependents are spouse, dependent children and anyone for whom the employee claims exemption on Federal Income Tax returns; "private dwelling house" refers to the single family residence of the employee on a reasonable amount of property required to support such a house, owned by the employee and/or the spouse, and for which evidence of title can be provided. "House", "residence" and "property" refer solely to the property occupied as the principal residence of the employee at the time of relocation, including mobile homes. "reasonable amount of property" where an employee elects to purchase a dwelling house on a piece of property that would not be considered a "reasonable amount" (ie., hobby farm, etc.), the following formula shall be used to determine the value of the private dwelling house for legal fee reimbursement purposes:

- (a) value of an average serviced lot in or close to the nearest town;
- (b) assessed value of actual house on site;
- (c) total added value in (a) and (b).

Part I - Board and Lodging Regulations

1.1 Board and Lodging Allowances

- (a) Local Hire:

No board and lodging will be supplied or no living allowance will be paid to persons hired locally for a project. Should such persons be transferred to another project where the distance involved requires the persons to reside away from their original point of domicile, then board and lodging allowances will apply.

- (b) Employees at Their Headquarters:

No board and lodging will be supplied, or living allowance or meals and/or accommodation paid to employees while at their permanent place of residence or to "stationary" or "seasonal field" employees

while at their permanent headquarters, except as specifically authorized by the Main Agreement or any component agreement.

(c) Travel Status:

The following class of employees, under the stated conditions, shall be entitled to the current meal allowance and accommodation reimbursement, or the current private accommodation allowance in lieu of accommodation reimbursement:

(1) "stationary" employees who are required to travel away from their permanent headquarters up to a maximum of 60 days at one location on a continuous basis;

(2) "mobile" employees who are required to travel away from their temporary headquarters, or, who are moving from one assigned temporary headquarters to another, and for a period up to 30 days at the beginning of each assignment to enable them to arrange suitable longer-term accommodation;

(3) "seasonal field" employees who are required to travel away from their permanent headquarters up to a maximum of 60 days at one location on a continuous basis, or, who are required to travel away from their assigned temporary headquarters for short periods up to a maximum of 30 days at one location on a continuous basis, or, who are moving from one assigned temporary headquarters to another, for a period up to 30 days at the beginning of each assignment to enable them to arrange suitable longer term accommodation, or until the Employer makes other arrangements such as providing board and lodging using community services or camp facilities;

(4) Notwithstanding any provisions contained in (c)(1), (2), or (3) above, travel status will not apply where the Employer decides to provide for or supplies free board and lodging.

(d) Board and Lodging:

The following class of employees, when not on travel status, and under the conditions stated, shall be entitled to board and lodging supplied by the Employer in either employer-operated camps or by means of local community services:

(1) "stationary" employees assigned to a temporary headquarters;

(2) "mobile" employees assigned to a temporary headquarters;

(3) "seasonal field" employees assigned to a temporary headquarters.

(e) Per Diem Living Allowance:

The per diem living allowance is intended to cover only those living costs which are considered over and above normal for those employees whose positions require mobility or require that the employee live in the field thereby making it impractical to establish a relatively permanent residence or reside at their permanent residence.

(1) Where employees would otherwise be entitled to travel status under Subsection (c) or board and lodging supplied under (d) above, employees may elect a per diem living allowance in lieu of travel status or board and lodging supplied, in which case employees shall be responsible to find and pay for their own accommodation and make and pay for their own board

arrangements; however, where the Employer establishes a camp, employees will be obligated to receive board and lodging using camp facilities at the Employer's option.

(2) The election of the per diem allowance by employees shall not result in greater transportation costs to the Employer than would have resulted if board and lodging was supplied by the Employer.

(3) Where employees are entitled, the per diem living allowance will be \$50.59 effective

April 1, 2025; \$52.11 effective April 1, 2026; \$53.67 effective April 1, 2027; and \$55.28 effective April 1, 2028 per day for each calendar day in the month. This will be paid via the payroll (subject to income tax) one month in arrears to enable the pay offices to calculate the correct entitlement. This allowance will be paid for the periods employed on the job and will include days of rest, statutory and declared holidays, short-term illness and injury absence, approved WCB leave with pay, other approved leave of absence with or without pay for periods up to five days. Without limiting or extending the provisions of this section, the per diem allowances will not be payable during the following periods:

(i) non-approved unpaid absences from the job including abutting weekends;
(ii) unpaid WCB leave and unpaid absence due to illness or injury in excess of five days, except that where such conditions occur and the employee remains at the job area, then board and lodgings will be supplied by the Employer, but not beyond the period of hire or 20 days, whichever is the lesser; (iii) while on educational leave with or without pay; (iv) termination pay for vacation and pre-retirement leave upon retirement;

(v) while employees are away from the job under Clause 13.3(b) and Clauses 13.5(a) to (f) of the Environment, Technical and Operations Component Agreement, Clause 14.1 of the Administrative Professionals Component Agreement, and any similar clause under any of the other component agreements; (vi) while employees are moving from one job site to another or from one headquarters to another and on travel status.

(4) Where employees have elected free board and lodging it is understood and agreed that 50% of the per diem living allowance will be payable where the Employer is unable to supply board but lodging is supplied.

(5) Where employees have elected the per diem allowance, it is understood and agreed that, in the following situations, 50% of the per diem allowance will be payable where the employee and the Employer mutually agree that it is necessary to retain employees' accommodation at designated headquarters, and in such cases the Employer's agreement shall not be unreasonably withheld:

(i) where employees are temporarily assigned away from designated headquarters and are on travel status or supplied with free board and lodging; (ii) where employees are on annual holidays, banked holidays, or compensatory time off with pay; for the purposes of calculating the allowance, holiday, or compensatory time off will be considered to commence on the first working day off the job, and will end the day before the employee's return to work; (iii) where employees are on leave with pay for union business;

(iv) where employees are in receipt of STIIP in excess of five consecutive days, on approved WCB leave with pay in excess of five consecutive days or on other approved leaves of absence with or without pay for periods in excess of five consecutive days. Where the employee and employer do not find it necessary to retain accommodation at the employee's headquarters under the circumstances outlined in this section, then no per diem allowance is payable.

(6) It is understood that the Employer will advise employees in advance as to what type of board and lodging facilities are or will be made available, and employees will advise in writing if requested, prior to final arrangements being made, whether or not they wish to accept board and lodging supplied or elect the per diem living allowance. The decision reached will remain in effect for the duration of the project, except that changes may be made by mutual agreement.

(7) Where employees have elected the per diem living allowance, it is understood and agreed that the Employer will be required to provide sufficient notice in writing of the termination date of the project to enable employees to avoid possible duplication of accommodation payments. In the event the project terminates earlier than the notice date given, employees shall be entitled, upon production of receipts, to any duplication accommodation costs incurred directly resulting from the insufficient notice. Where the project terminates later than the notice date given, employees shall be entitled, upon production of receipt, to any abnormal increase of costs in accommodation, or any duplication of accommodation costs, directly resulting from extending the termination date of the project. This would not include normal increases in rent that may be experienced during the extended period.

1.2 Moving of Trailers and Household Effects

It is understood and agreed that it is necessary for some "mobile", "seasonal field", and "stationary" employees to move from one assignment to another to carry out their normal duties. In these cases, the regular relocation expenses will not apply, instead, the Employer shall be responsible for arranging and paying for the moving of an employee's single wide mobile trailer or home up to the maximum width allowed on the highway with a permit, and one vehicle, and/or household effects.

1.3 Type of Accommodation

It is agreed and understood that where the Employer supplies lodging using community services whenever possible, the employee will be entitled to single accommodation, and the sharing of a room with other employees will not be required except under unusual circumstances, such as where sufficient accommodation is not available. Where employees are sharing accommodation with persons other than employees entitled to lodging, or where an employee chooses to use accommodation in excess of single accommodation, the employee will be responsible for all lodging costs in excess of the single accommodation rate.

1.4 Permanent Camp

Where a "stationary" employee's permanent headquarters is at a permanent camp, the employee will be required to pay for board and lodging supplied. The rate will be \$236.90 effective April 1, 2025; \$244 effective April 1, 2026; \$251.32 effective April 1, 2027; and \$258.86 effective April 1, 2028, per month or proportion thereof for a partial month. Where lodging only is supplied, the rate will be \$72.10 effective April 1, 2025; \$74.26 effective April 1, 2026; \$76.49 effective April 1, 2027; and \$78.78 effective April 1, 2028 per month or \$2.42 effective April 1, 2025; \$2.49 effective April 1, 2026; \$2.56 effective April 1, 2027; and \$2.64 effective April 1, 2028 per day. Where board only is supplied, the rate will be \$160.68 effective April 1, 2025; \$165.50 effective April 1, 2026; \$170.47 effective April 1, 2027; and \$175.58 effective April 1, 2028

per month, or \$5.36 effective April 1, 2025; \$5.52 effective April 1, 2026; \$5.69 effective April 1, 2027; and \$5.86 effective April 1, 2028 per day, or \$1.80 per meal effective April 1, 2025; \$1.85 effective April 1, 2026; \$1.91 effective April 1, 2027; and \$1.97 effective April 1, 2028. This regulation, however, will not alter any existing arrangements whereby the employee bids on a posted competition with the proviso that free board and lodging would be supplied at the permanent headquarters.

Part II - Relocation Expenses

2.1 Policy

(a) Relocation expenses will apply:

- (1) to regular employees and to auxiliary employees who qualify pursuant to Clause 31.2 who have to move from one headquarters or geographic location to another after completing their probation period and after winning an in-service competition where the position is permanently located at another headquarters or geographic location;
- (2) to employees who have to move from one headquarters or geographic location to another at the Employer's request to fill a position which is permanently located at another headquarters or geographic location.

(b) Relocation expenses will not apply, but instead the applicable travelling, living and moving expenses provided under the Treasury Board Order on Board and Lodging will apply to the following groups of employees who will not be considered to be on relocation:

- (1) to field status, mobile and other employees whose normal duties require moves from one temporary headquarters to another or from one assignment to another;

(2) to field status, mobile and other employees who are successful applicants for posted positions, where such positions are not permanently located at one headquarters or geographic location, such as is the usual case with field crew positions;

(3) to apprentice employees when there is a pre-programmed change in their headquarters or geographic location.

(c) To employees entitled to relocation expenses, the Employer will pay travelling, living and moving expenses on relocation in accordance with the following provisions.

2.2 Travel Expenses on Relocation

(a) Initial Trip to Seek New Accommodation

The Employer shall grant, with no loss of basic pay, prior to relocation, at a time mutually agreeable to the Employer and the employee, up to five days plus reasonable travel time, to an employee being relocated and shall reimburse the employee for travel expenses for the employee and spouse in accordance with Treasury Board Order on Travel Expenses. Any time beyond specified time may be charged against the employee's annual vacation credits, however, expenses will not be payable. This leave must be for the specific purpose of locating accommodation, with the intent, in as many instances as possible, that furniture and household effects may be delivered directly to the new residence.

(b) Travelling Expenses Moving to New Location

The Employer shall provide reimbursement of travel expenses incurred during relocation for employees and dependents, for the actual travel time, plus accommodation and meals up to seven days at the new

location when employees are unable to move into the new accommodation. Such expense allowances will be in accordance with the current Treasury Board Order on Travel Expenses. Meals: Adults - full rate Children 12 and under - one-half rate Motel or Hotel - on production of receipts Private lodging: at old or new location - current rate

(c) Where dependents of an employee relocate at a time different than the employee, the Employer shall reimburse the employee for their dependents' travel expenses, meals and accommodation incurred while travelling to the new headquarters area. In such cases where the employee remains eligible for benefits pursuant to Section 2.3, the employee will be reimbursed for their dependents' meals at the new location for a period of up to seven days. The above allowances will be in accordance with the current Treasury Board Order on Travel Expenses.

2.3 Living Expenses Upon Relocation at New Location

After the first seven days has expired at the new location and the employee can establish to the satisfaction of the Employer that there is no suitable housing available, then:

(a) the Employer shall pay an employee not accompanied by dependents at the new location, a living allowance of \$31.21 effective April 1, 2025; \$32.15 effective April 1, 2026; \$33.11 effective April 1, 2027; and \$34.10 effective April 1, 2028 per day up to a maximum of 30 days; or

(b) the Employer shall pay an employee accompanied by dependents at the new location, a living allowance of \$37.45 effective April 1, 2025; \$38.57 effective April 1, 2026; \$39.73 effective April 1, 2027; and \$40.92 effective April 1, 2028 per day up to maximum of 60 days;

(c) where an employee is receiving the payment in (a) above and is later joined by their dependents at the new location and the employee is still eligible for payment under this Section, the payment shall be as in (b) above. However, the maximum period of payment under (a) and (b) shall not exceed 60 days.

2.4 Moving of Household Effects and Chattels

On relocation, the Employer shall arrange and pay for the following:

- (a) moving of household effects and chattels up to 8,165 kg. including any item(s) which the contracted mover will accept as part of a load which includes household appliances and furniture, hobbies, boats, outboard motors and pianos;
- (b) comprehensive insurance to adequately protect the employee's household effects and chattels during the move up to a maximum of \$74,791.01 effective April 1, 2025; \$77,034.74 effective April 1, 2026; \$79,345.78 effective April 1, 2027; and \$81,726.15 effective April 1, 2028.
- (c) where necessary, insured storage up to two months, upon production of receipts;
- (d) the packing and unpacking of the employee's household effects and chattels;
- (e) when an employee is being relocated and opts to move their own household effects and chattels, the employee shall receive one of the following allowances:
 - (1) \$624.24 effective April 1, 2025; \$642.97 effective April 1, 2026; \$662.26 effective April 1, 2027 and \$682.13 effective April 1, 2028 for a move not exceeding a distance of 240 kilometers;
 - (2) \$1,001.14 effective April 1, 2025; \$1,031.17 effective April 1, 2026; \$1,062.11 effective April 1, 2027 and \$1,093.97 effective April 1, 2028 for a move which exceeds a distance of 240 kilometers;
 - (3) \$312.12 effective April 1, 2025; \$321.48 effective April 1, 2026; \$331.12 effective April 1, 2027; and \$341.05 effective April 1, 2028 where the employee is entitled to receive the amount pursuant to Section 2.7(d).
- (f) where the employee exercises an option pursuant to (e) above then the provisions of (a) and (d) above shall not apply.

2.5 Moving of Mobile Homes

(a) On relocation, an employee who owns a mobile home may opt to have their mobile home moved by the Employer in either of the following circumstances:

- (1) where the employee's new headquarters area is on the list of isolated areas, providing no suitable accommodation is available; or
- (2) where an employee is living in a mobile home which was moved to its present location by the Employer, and the employee's headquarters prior to the impending relocation is named on the list of isolated locations.

(b) Where an employee's mobile home is moved by the Employer under this section then the Employer shall also arrange and pay for the following:

- (1) moving of single wide mobile trailer or home up to the maximum width allowed on the highway with a permit including any skirting, cabanas or attachments. Where mobile homes in excess of the above are involved, the Employer will pay:
 - (i) the equivalent cost of moving a single wide mobile trailer or home up to the maximum width allowed on highways with a permit; or (ii) the real estate and legal fees involved in selling the extra wide trailer up to a maximum of \$6,242.40 effective April 1, 2025; \$6,429.67 effective April 1, 2026; \$6,622.56 effective April 1, 2027 and \$6,821.24 effective April 1, 2028;

(2) comprehensive insurance to adequately protect the employee's household effects, chattels and trailer during the move up to a maximum of \$74,791.01 effective April 1, 2025; \$77,034.74 effective April 1, 2026; \$79,345.78 effective April 1, 2027 and \$81,726.15 effective April 1, 2028;

(3) the setting up and levelling of a mobile home or double-wide, at the new location to a maximum of \$730.24 effective April 1, 2025; \$752.15 effective April 1, 2026; \$774.71 effective April 1, 2027 and \$797.95 effective April 1, 2028 upon production of receipts;

(4) the packing and unpacking of the employee's household effects and chattels if required.

(c) Where an employee is living in a mobile home and is not included in (a) above, and chooses to move the mobile home to the new headquarters area, the employee shall be entitled to reimbursement for costs covered in (b) above up to a maximum of \$3,121.20 effective April 1, 2025; \$3,214.84 effective April 1, 2026; \$3,311.28 effective April 1, 2027 and \$3,410.62 effective April 1, 2028 upon production of receipts.

(d) Where the employee opts under this section to have a mobile home moved, there shall be no entitlement to the provisions of Sections 2.4 and 2.10.

2.6 Moving of Personal Vehicles Upon Relocation

The Employer shall reimburse employees for the cost of transporting one personal vehicle and one trailer towed by the personal vehicle. The vehicle and trailer, where applicable, may be driven in which case current vehicle allowance rates for the vehicle only will apply, or, vehicle and trailer, where applicable may be shipped by rail or boat, in which case the cost of the least expensive method will be paid. In addition, the Employer will pay for any additional transportation charges such as ferry fares for the vehicle and trailer with or without load.

2.7 Incidental Expenses on Relocation

The Employer shall pay to the employee upon relocation only one of the following amounts, to cover incidental expenses on relocation, and once the employee has claimed one allowance no alternate further claim may be made:

(a) when an employee purchases a private dwelling house in the new location - \$747.91 effective April 1, 2025; \$770.35 effective April 1, 2026; \$793.46 effective April 1, 2027; and \$817.27 effective April 1, 2028;

(b) when the employee is moving to rental accommodation in the new location - \$371.01 effective April 1, 2025; \$382.14 effective April 1, 2026; \$393.60 effective April 1, 2027 and \$405.41 effective April 1, 2028;

(c) when an employee is moving with a mobile home - \$247.33 effective April 1, 2025; \$254.75 effective April 1, 2026; \$262.39 effective April 1, 2027; and \$270.26 effective April 1, 2028;

(d) when the employee is moving to room and board - \$180.21 effective April 1, 2025; \$185.62 effective April 1, 2026; \$191.19 effective April 1, 2027 and \$196.93 effective April 1, 2028. The application for incidental expenses on relocation must be made by the employee on the appropriate form within 60 days of the employee's arrival at the new location, unless there is no available suitable housing, in which case application must be made within 60 days of suitable housing becoming available.

2.8 Notice to Employee Upon Relocation

It is understood and agreed that the Employer will provide employees with reasonable notice of the relocation effective date, and wherever possible, at least one month's notice shall be given. Where less than one month's notice is given, or the relocation date is altered either earlier or later than the relocation effective date given which directly results in duplication of rent costs to the employee, then the Employer agrees to reimburse the employee, upon production of receipts, for the duplicate rent payments at the new location.

2.9 Requested Relocation by Employee

Where an employee requests a relocation from one headquarters or geographic location to another, all travelling and living expenses incurred in such a move are the responsibility of the employee.

2.10 Real Estate and Legal Fees

On relocation or within one year of the effective date of relocation, an employee who purchases and/or sells their private dwelling house, will be entitled to claim for the following expenses upon production of receipts:

(a) Reimbursement of fees to a maximum of \$11,118.54 effective April 1, 2025; \$11,452.10 effective April 1, 2026; \$11,795.66 effective April 1, 2027; and \$12,149.53 effective April 1, 2028, charged by a

real estate agency for the selling of the employee's private dwelling home in which they resided immediately prior to relocation.

(b) An employee who has sold their own home without the aid of a realtor shall be entitled to claim \$2,496.96 effective April 1, 2025; \$2,571.87 effective April 1, 2026; \$2,649.03 effective April 1, 2027 and \$2,728.50 effective April 1, 2028.

(c) Allowance for legal fees encumbered upon the employee because of the purchase of their private dwelling house in which they live after relocation will be paid in accordance with the following: · 1% of the first \$51,500 effective April 1, 2025; \$53,045 effective April 1, 2026; \$54,636.35 effective April 1, 2027; and \$56,275.44 effective April 1, 2028, of the purchase price; · one-half of 1% of any amount of the purchase price above \$50,000 \$51,500 effective April 1, 2025; \$53,045 effective April 1, 2026; \$54,636.35 effective April 1, 2027; and \$56,275.44 effective April 1, 2028; · the total cost to the Employer under Part (c) shall not exceed \$1,307.37 effective April 1, 2025; \$1,346.59 effective April 1, 2026; \$1386.99 effective April 1, 2027; and \$1,428.60 effective April 1, 2028.

(d) Where an employee purchases a reasonable amount of property, secures a joint mortgage (land and private dwelling) and begins construction within six months of relocation (ie., foundation poured), they shall be entitled to reimbursement of legal fees not to exceed the amount specified in (c) above. In these circumstances, the reimbursement shall be for one transaction only.

(e) The employee may only claim legal fee reimbursement in either (c) or (d) above, not both.
Part III Where a regular employee is required to relocate:

(a) as a result of the Employer moving its operation from one geographic location to another (see Main Agreement, Clause 12.8);

(b) as a result of accepting a placement pursuant to Article 13, provided the employee is in receipt of layoff notice;

(c) as a result of a placement pursuant to Article 36;
the employee will be entitled to the following reimbursements in addition to the provisions of MOU 3 Part II, upon production of receipts:

(a) real estate commission fees not to exceed \$18,727.20 effective April 1, 2025; \$19,289.01 effective April 1, 2026; \$19,867.68 effective April 1, 2027; and \$20,463.71 effective April 1, 2028. Where a claim is made under this section, there shall be no entitlement to MOU 3, Part II, 2.10(a);

(b) except where the terms of the employee's mortgage allow the employee to transfer the mortgage to a new residence without penalty, the mortgage discharge fee not to exceed \$249.69 effective April 1, 2025; \$257.18 effective April 1, 2026; \$264.90 effective April 1, 2027; and \$272.85 effective April 1, 2028 and mortgage pre-payment penalty, if any;

(c) survey certificate fee as required for the acquisition of a mortgage/purchase of a private dwelling at the new location;

(d) interim financing fees and/or interest charges incurred for the purchase of the private dwelling house in the new location for a maximum period of 60 days. The employee shall provide the necessary

documentation to demonstrate that such interim financing arrangements were incurred and/or duplicate mortgage payments have been made. Part III does not apply where the employee's private dwelling in which they resided immediately prior to relocation is not sold.

MEMORANDUM OF UNDERSTANDING 4

Re: Alternative Service Delivery (ASD) and Privatization Initiatives The Employer agrees that the number of impacted employees resulting from ASD initiatives outlined in

Memorandum of Understanding 6 and Privatization initiatives pursuant to Clause 36.2 Privatization will

not exceed 900 during the term of the 20th Main Agreement. The memorandum of understanding will be in force and effect for the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 5

Re: Privatization and Alternative Service Delivery (ASD) This memorandum of understanding pertains to contracts for ASD initiatives pursuant to Memorandum of Understanding 6 and contracts which have been minuted as a privatization pursuant to Article 36 of the Main Agreement which expire and are re-tendered during the term of the 20th Main Agreement. If re-tendered the Employer will stipulate that the successful bidder will offer employment to incumbent members of the previous employer's operation to fill available employment opportunities which are not assigned to the bidder's current employees. Such offers shall be made in order of seniority to staff currently performing the work of the available positions. This memorandum of understanding will remain in effect for the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 6

Re: Alternative Service Delivery (ASD) This will confirm our agreement regarding the government of BC's Alternative Service Delivery (ASD) initiatives. These initiatives concern programs and staff which are predominantly in the Greater Victoria area. For these initiatives it is agreed that: 1. The parties recognize that these employees should be encouraged to accept employment with the successful bidder and that those employees requiring placement within the Employer's operations should co-operate fully to have their placement concluded as expeditiously as possible. 2. Where incumbent staff are employed by the successful bidder, the bidder may apply to the Public Service Pension Plan (PSPP) for enrolment as an employer in the PSPP. 3. Employees who are not employed by the successful bidder will be covered by Main Agreement Article 36. 4. Should any employee not have their placement resolved within 60 days, either party may refer the employee's placement to the Joint Committee pursuant to Article 36. In the circumstance of an ASD

initiative within the Capital Regional District (CRD), the Joint Committee may only require placement of an employee into a position within the employee's headquarters. 5. Where Section 35 of the Labour Relations Code applies, the successful proponent will recognize the existing union certification and meet with the Union prior to the transfer of the program for the purpose of consolidating the current main and applicable component agreements into one amended agreement which is relevant to the sector. If an extension of the term of the agreement is required, the parties shall agree on appropriate amendments including compensation. It is agreed that a desired outcome is an agreement with at least two years duration from the date of disposition of the program to expiry of the agreement. 6. Where no employees accept employment with the successful bidder and the employees have exhausted their rights under the collective agreement, the Union will refrain from pursuing a declaration of successor status. 7. Employees in these program areas are eligible for the Early Retirement Incentive Plan (ERIP) and Voluntary Departure Program (VDP) as outlined in this memorandum of understanding for a two-month period prior to the anticipated disposition date of the program(s) of the ASD initiative. 8. An employee receiving severance payment shall repay the payment if employed or contracted by the successful bidder or re-employed or contracted by the province during the period equivalent to the severance pay. 9. Where the provisions of Main Agreement Article 36 modify or are in conflict with the terms of this memorandum of understanding, the terms of this memorandum of understanding will prevail. 10. Respecting ERIP and VDP for ASD initiatives as outlined below:

A. Eligibility The parties agree that regular employees in the Public Service Bargaining Unit in program areas identified as an ASD initiative which is to proceed to a successful bidder will be eligible for an ERIP and a VDP as outlined below.

B. Early Retirement Incentive Plan (ERIP)

(i) This ERIP is available to eligible employees who are at least 55 years of age on or before their ASD Initiative's effective date of disposition or have sufficient pre-retirement leave into the future to reach their 55th birthday. (ii) For employees meeting the above criteria, ERIP shall provide for an unreduced pension if age plus years of contributory service add up to 80 (Rule of 80). For those employees eligible to retire whose combined age and service add up to less than 80, pension is reduced by 3% for every year their age is less than 60 or their age plus service is less than 80, whichever is the lesser. (iii) In addition, employees approved for ERIP will also receive a lump sum payment equal to six months base salary which may be used as pre-retirement leave. Benefits under this provision shall not exceed the time that would be required to reach the employee's maximum retirement age.

C. Voluntary Departure Program (VDP)

(i) A VDP is available to eligible employees who are not eligible to retire under ERIP because they are not 55 years of age or do not have sufficient pre-retirement leave to reach their 55th birthday.

(ii) For employees meeting the above criteria the VDP shall provide for a lump sum payment of three weeks of base pay for every year (1827 hours at straight-time rate) of service seniority, or major part thereof, as a regular employee to a maximum of 12 months base pay.

D. Timing These programs will be made available prior to the disposition date for the ASD initiative. The Employer may establish reasonable timeframes for employees to exercise their options to retire or sever under these voluntary programs. The employees last day at work under ERIP, last day on pay under VDP must be no later than the effective date of disposition. An option elected under this clause is irrevocable for 90 days or other period as agreed by the Privatization Impact Review Committee.

E. Funding The cost of the ERIP and the VDP shall be borne by the applicable ministry and shall not be charged to the PSPP.

F. General

(i) An employee receiving a lump sum payment or severance payment shall repay the payment if employed or contracted by the successful bidder or re-employed or contracted by the Province during the period equivalent to lump sum payment or severance pay. (ii) Eligible employees who take advantage of ERIP or VDP shall waive their rights to any severance payment pursuant to Articles 12, 13 and 36 of the Main Agreement. This memorandum remains in force and effect for the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 7

Re: Early Retirement Incentive Plan (ERIP) and Voluntary Departure Program (VDP) for Privatization 1. Eligibility The parties agree that regular employees in the Public Service Bargaining Unit whose work has been privatized pursuant to Main Agreement, Article 36 will be eligible for an Early Retirement Incentive Plan (ERIP) and a Voluntary Departure Program (VDP) as outlined below. 2. Early Retirement Incentive Plan (ERIP)

(a) This ERIP is available to eligible employees who are at least 55 years of age (50 for staff working in Corrections Centre) on or before the effective date of privatization or have sufficient pre-retirement leave into the future to reach their 55th birthday (50th birthday for staff working in a Corrections Centre).

(b) For employees meeting the above criteria, ERIP shall provide for an unreduced pension if age plus years of contributory service add up to 80 (Rule of 80). For those employees eligible to retire whose combined age and service add up to less than 80, pension is reduced by 3% for every year their age is less than 60 (55 for staff working in a Corrections Centre) or their age plus service is less than 80, whichever is the lesser.

(c) In addition, eligible employees who qualify under (a) above and who are not offered a job with the private employer will also receive a lump sum payment equal to six months base salary which may be used as pre-retirement leave if they resign their employment and proceed to retirement. Benefits

under this provision shall not exceed the time that would be required to reach the employee's maximum retirement age. 3. Voluntary Departure Program (VDP)

(a) A VDP is available to eligible employees who are not eligible to retire under ERIP because they are not 55 years of age (50 for staff working in a Corrections Centre) or do not have sufficient pre-retirement leave to reach their 55th birthday (50th birthday for staff working in a Corrections Centre).

(b) For employees meeting the above criteria the VDP shall provide for a lump sum payment of three weeks of base pay for every year (1827 hours at straight-time rate) of service seniority, or major part thereof, as a regular employee to a maximum of 12 months base pay. 4. Timing These programs will be made available prior to the effective date of privatization. The Employer may establish reasonable timeframes for employees to exercise their options to retire or sever under these voluntary programs. The employee's last day at work under ERIP, last day on pay under VDP must be no later than the effective date of privatization. An option elected under this clause is irrevocable for 90 days or other period as agreed by the Privatization Impact Review Committee. 5. Funding The cost of the ERIP and the VDP shall be borne by the applicable ministry and shall not be charged to the PSPP. 6. General

(a) An employee receiving a lump sum payment or severance payment shall repay the payment if employed or contracted by the private employer or re-employed or contracted by the Province during the period equivalent to lump sum payment or severance pay.

(b) Eligible employees who take advantage of ERIP or VDP shall waive their rights to any severance payment pursuant to Articles 12, 13 and 36 of the Main Agreement. 7. Term This memorandum remains in force and effect for the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 9

Re: Clause 32.10, Article 36 and Memorandum of Understanding 6 The parties agree to apply the following provisions to employees who accept an offer of continued employment with another employer as referenced in Clause 32.10, Article 36 or Memorandum of Understanding 6. 1. In-Service Status A regular employee shall be recognized as having in-service status for the purpose of applying on postings for regular positions in government. This in-service status will be recognized for a period of two years after the effective date of the transfer to the successful proponent, private employer or organization. For the purpose of such application only, their employment with the Employer will be deemed to have continued uninterrupted.

2. Reversal of Process If, within a five-year period after date of disposition (Name of Initiative) Operation is returned to the Province, employees engaged in the returning Operation, who were employed by the Province at the time of disposition, will be returned to the Province. 3. Seniority Reinstatement If re-employment occurs pursuant to (1) or (2) above, employees shall retain seniority earned while as a member of the Public Service Bargaining Unit, and shall be credited with seniority earned with the successful proponent, private employer or organization for the purposes of layoff and recall and other seniority related provisions. 4. Benefit Entitlement If re-employment occurs pursuant to (1) or (2) above, employment will be deemed continuous for purposes of benefit entitlements under Article 25. 5. Duration This memorandum remains in force and effect for the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 10

Re: Early Retirement Incentive Plan - for LTD Employees A. Early Retirement Incentive Plan (ERIP) 1. An Early Retirement Incentive Plan will be developed and offered to employees who:

(a) are in receipt of long-term disability benefits, under the Totally Disabled Any Occupation provision;

(b) are at least 55 years of age (50 for staff working in Corrections Center) at the time of the offering;

(c) have actuarial disabled life reserve (DLR) values, at the time of offering, which exceeds the lump sum value of one year of LTD benefits; and,

(d) are participating in the Public Service Pension Plan and eligible for retirement benefits under that plan. 2. For employees meeting the above criteria and subject to the Employer's approval, ERIP shall provide for a lump sum payment equal to six months base salary based upon the employees salary as at the date of disability. Benefits under this provision shall not exceed the time that would be required to reach the employee's maximum retirement age. The Employer can be directed to pay the lump sum to another designate by the employee. 3. Employees who receive the ERIP will not be eligible for benefits from Article 27.18 Retirement Allowance and Pre-Retirement Leave. 4. The Employer will consult with the Union with respect to timing and duration of the program. 5. The cost of ERIP shall be borne by the Employer and shall not be charged to the Public Service Pension Plan.

B. Miscellaneous 1. ERIP is voluntary and employees are entitled to remain on LTD provided they continue to meet the provisions of the LTD Plan. 2. The employee's entitlement to benefits under the LTD Plan shall, provided the employee remains eligible as per the definition of Totally Disabled Any Occupation, continue during the period of time that his/her application for retirement is being processed. 3. The LTD benefits will end on the date of commencement of paid absence prior to retirement in accordance with Appendix 4, Section 2.8 (b) Cessation of Benefits. 4. The Employer will notify the Union of employees who have been offered ERIP. 5. This Memorandum shall remain in effect during the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 11

Re: Devolution/Transfer of Ministry of Children and Family Development Programs 1. Given that the government intends to devolve/transfer responsibility from the Ministry of Children and Family Development to authorities that will be created under statute, and; 2. Given that the parties share an interest in facilitating employees being able to follow the work to the authorities, the following provisions have been agreed upon and the Employer and the Union will cooperate. 3. It is acknowledged that, subject to Section 35 of the Labour Relations Code, each authority will be a successor employer. Consolidated agreement 4. Where Section 35 of the Labour Relations Code applies, each authority will recognize the existing union certification and meet with the Union prior to the transfer of the program for the purpose of consolidating the current main and applicable component agreements into one amended agreement for each of the following: the provincial community living services authority; regional children and family services authorities; and, aboriginal children and family services authorities which is relevant and applicable to each employer. If an extension of the term of the agreement is required, the parties will agree on appropriate amendments including compensation. It is agreed that a desired outcome is an agreement with at least two years' duration from the date of disposition of the program to expiry of the agreement. Security and Transfer Provisions 5. In-Service Status

(a) A regular employee who transfers to an authority will be recognized as having in-service status for the purpose of applying on postings for regular positions in the Province. This in-service status will be recognized for a period of two years after the effective date of the transfer of that employee. For the purpose of such application only, their employment with the Employer will be deemed to have continued uninterrupted. During the two years, transferred employees will receive credit for their years of continuous service with the Province prior to transfer for purposes of Public Service job competitions.

(b) Where an employee has applied on a position as provided in (a) above, their years of continuous service in the Public Service to the date at transfer from the Public Service shall be considered as provided by Clause 12.3 - Selection Procedure of the Thirteenth Master Agreement.

(c) Notwithstanding (a) and (b) above, a transferred former employee who is an unsuccessful applicant to a posted position does not have the right to appeal the results of the competition. 6. In negotiating the consolidated agreements referred to in Section 4, the authorities will agree to incorporate access to employment with other authorities on an inter-authority basis, subject to the cultural and program requirements of aboriginal authorities. Access to employment will include inter-authority in-service recognition for posted positions, transfers and vacancies on labour adjustment. 7. In the application of Section 6, an employee who is hired into a vacant position with an authority and who was employed by another authority at the time of hire will be credited with the employee's continuous service with the predecessor community living, regional or aboriginal authority, including previous continuous service with government for the purpose of seniority-related provisions of the collective agreement applying to an authority, including layoff and recall. Employment Security 8. Where an employee follows the work to an authority and is subsequently subject to layoff, then the Employer shall ensure that the employee's employment is maintained until March 30, 2006 or one year from the date of transfer of the program responsibilities to an authority, whichever is later. Application of Article 36 9. The placement provisions of Main Agreement, Article 36, not the Memorandum of Understanding regarding Employment Security will apply to employees who are offered and decline employment with an authority. Employees hired after the date of ratification will be subject to the provisions of Article 13/31 as applicable.

MEMORANDUM OF UNDERSTANDING 12

Re: Joint Advisory Committee 1. There shall be a joint advisory committee which shall consist of three representatives appointed by the Employer and three representatives appointed by the Union. The Employer and the Union may each appoint one alternate committee member. The purpose of the Committee shall be to consider and make recommendations to the Bargaining Principals on all matters related to the effective administration of the Short-Term Illness and Injury Plan and Long-Term Disability Plan and the Rehabilitation Committee to consider and make recommendations to the Bargaining Principals on any questions which may arise related to interpretation or application of the wording of Appendix 4. 2. The Joint Advisory Committee will make recommendations concerning the Rehabilitation Committee in order to: (a) · improve access to the rehabilitation process for employees incapacitated for their own occupation through illness or injury; · improve rehabilitation programs to return employees to their own or other occupations as soon as possible; · identify and address systemic causes of illness and injury and consequent STIIP/LTD usage.

(b) Clearly establish responsibility for case management with the Committee providing advice and recommendations as required. Such recommendations may include: · improved placement options for those employees who are capable of performing alternative employment, in addition to the recommendations identified in Appendix 4, Part III (2)(d)(4). Disability Case Management representatives are to be designated as employer representatives to the Committee.

(c) Ensure sharing of all information pertinent to a case with the parties involved (union, employer, Occupational Health and Rehabilitation, insurance carrier). Develop confidentiality standards specific to the process and consistent with the current legislation to protect the privacy of information shared.

(d) Review current forms used for STIIP and LTD and Rehabilitation in order to make them simpler and more effective and/or eliminate duplication. 3. The parties share a desire to minimize health risks and improve absenteeism rates due to illness and injury and agree to jointly explore programs and processes to obtain that goal. Therefore, the Joint Advisory Committee shall:

(a) review and make recommendations to the Bargaining Principals regarding ministries and/or branches and regions within ministries where implementation of a program modelled on the Employee Assistance and Health Promotion Program (piloted by Region 2 of the Ministry of Social Development and Economic Security) or other similar programs, may be reasonably expected to have a positive impact on employee health and absenteeism rates; and,

(b) review and make recommendations to the Bargaining Principals regarding establishment or modification of musculoskeletal and other injury and illness prevention programs in areas where the incidence of such injury warrants further prevention activity.

(c) review and make recommendations to the Bargaining Principals on an earlier and consistently applied adjudication of benefits during the STIIP period by the LTD benefit carrier under a mutually agreed plan. The Joint Advisory Committee shall consult with the Provincial Joint Occupational Health and Safety Committee, the Rehabilitation Committee and/or Ministry Joint Committees, as appropriate. 4. The parties agree to refer the STIIP issues below to the Joint Union/Employer STIIP Committee created as a pilot project for the duration of the 20th Main Agreement.

(a) ensure appropriate and consistent adjudication of STIIP claims;

(b) ensure that requests for additional information on STO2 forms are processed expeditiously and limited to instances where the information is objectively incomplete; and,

(c) promote opportunities for voluntary rehabilitation initiatives that enable earlier return to work.

Where STIIP benefits have been denied and/or management is not accepting doctors' certificates which the Union believes are adequate and meet the criteria for information required consistent with the mutually agreed STO2, Part B Instruction Form, and where in the Union's view the Employer's response/position is unacceptable, the Joint Union/Employer STIIP Committee will expeditiously address the issue. This is not intended to circumvent the grievance process outlined in the collective agreement.

Re: Article 25.8 - Legislative Changes Changes to the Employer health tax or any other premium imposed for purposes similar to the Medical Services Plan premium are excluded and will not be required to be used to increase other employee benefits. If the Employer health tax is eliminated and not replaced with another form of employer paid benefits, Article 25.8 will be triggered. If Article 25.8 is triggered, the liability arising from the amount of savings from the legislative changes to the MSP is based on 2017. The parties will endeavour to mutually agree on the liability arising from the MSP savings based on 2017 projected forward. If the parties cannot agree, any party may refer the matter to arbitration. The liability arising in this Memorandum of Understanding shall expire at the end of the 20th Main Agreement unless renewed by mutual agreement of the parties.

MEMORANDUM OF UNDERSTANDING 15

Re: The Application of Main Agreement Clause 13.3(a)(4) and Main Agreement Article 19 Regular employees who have opted for auxiliary recall and who are unable to work on recall or during the recall period due to illness or injury will be covered by Appendix 4, Part I STIIP, provided: 1. They meet all the conditions of the Plan, and 2. No other employee aside from the regular incumbent is in receipt of STIIP in respect of that work. Notwithstanding Appendix 4, the extent of the STIIP benefit only covers the period of lost work opportunity.

MEMORANDUM OF UNDERSTANDING 16

Re: Auxiliary Employees - STIIP Subject to the eligibility requirements of Clause 31.12, auxiliary employees will continue to be covered by the provisions of Appendix 4, Part I as outlined in the 13th Master Agreement signed May 23, 2001 (ie., seven months).

MEMORANDUM OF UNDERSTANDING 17

Re: Vacation Adjustments for Remote Locations The parties agree that recruitment and retention is an issue in certain geographical locations. Employees who reside and work in the following locations will be provided an extra vacation day, effective the 2010 vacation year: Alert Bay Alexis Creek Atlin Bella Coola (including Hagensborg & Waglisla) Burns Lake Chetwynd Dawson Creek Dease Lake Fort St. James Fort St. John Fort Nelson Fraser Lake Gold River Haida Gwaii

Hazelton Houston Hudson's Hope Kitimat McBride Mackenzie New Denver
Port Alice Port Hardy Port McNeill Prince Rupert Smithers Stewart Terrace Tumbler Ridge
Valemount

MEMORANDUM OF UNDERSTANDING 18

Re: A Joint Committee for Case Managing and Adjudicating Exclusion Requests The parties agree that this memorandum of understanding will supplement Main Agreement Clause 2.1 - Bargaining Unit Defined.

(a) Committee Purpose

A joint committee will be constituted to provide a venue to address positions which the Employer seeks to have excluded from the bargaining unit. Such positions may be encumbered or vacant.

(b) Committee Composition

(1) The Joint Committee will consist of five representatives, two appointed by the Union, two appointed by the Employer, and a chairperson.

(2) The Chairperson will be appointed jointly by the parties (to be negotiated).

(3) The Union and employer will each appoint representatives who are knowledgeable with

the process to the Joint Committee.

(4) The Chairperson of the Joint Committee will, at the request of either party, sit as facilitator/arbitrator over all disputes pertaining to the appropriateness of any exclusion request before the Joint Committee.

(c) Committee Procedure

(1) The parties will jointly establish terms of reference for use by the Committee.

(2) In determining eligibility for exclusion the following factors must be considered:

(a) Section 11(3) of the Public Service Labour Relations Act;

(b) Clause 2.1 of the collective agreement;

(c) BC Labour Relations Board and arbitration decisions;

(d) Similar positions in government; and,

(e) Previous decisions of the Joint Committee.

(3) The Joint Committee will establish a schedule of a minimum of six JEC (Joint Exclusion Committee) meeting dates of the Employer and union representative annually by mutual agreement, to review and make decisions. The Joint Committee may also schedule JEC meetings outside of the annual schedule by mutual agreement to hear individual or a group of exclusion requests that may need to be heard sooner than the set dates or for any other reason. These meetings may occur in person or via video conference.

(4) Decisions of the Joint Committee will be without prejudice to positions either party may take on any position. Communications between the parties in the committee process leading to previous decisions are privileged and are inadmissible in subsequent committee processes.

(5) Where the Employer determines that a particular matter is more properly processed in accordance with Clause 2.1, it will so notify the Union and this memorandum will not apply.

(6) The Chair will issue a precedential decision with a complete but brief written explanation within seven days of the Committee meeting.

(7) The parties will share equally in all costs associated with the Chairperson and other costs.

(8) The Committee will establish a schedule of monthly case conference meeting dates by mutual agreement attended by representatives of the Union and the Employer. These meetings may occur by phone or via video conference.

(9) By mutual agreement, where it makes sense to hold special or dedicated sessions (such as a major reorganization or the introduction of a new program), such meetings may be added to the schedule or conducted by teleconference. The parties will endeavour to schedule these meetings as soon as possible.

(10) If it is determined that union dues are owed, dues shall be paid by the Employer to the Union within 60 days.

(d) Requests for Exclusions

Bands 1 - 3 All new exclusion requests will be submitted to the union representatives. Each submission will include:

(a) job description with the management compensation framework finalized;

(b) a copy of the job description for the position which supervises the applied for position;

(c) incumbent name, if applicable;

(d) organization chart for the relevant program;

(e) clear statement as to the legal basis or reason for exclusion;

(f) any other information deemed necessary by the Committee such as precedential

decisions and access to appropriate supervisory managers who may provide relevant information to the Committee. Should the Union disagree that the position is properly excluded, it will notify the Employer within 21 days. The Union shall provide the reasoning for how the position fails to meet the exclusion eligibility requirements. Should the Union fail to do so, the position will be deemed to be excluded. Should the Employer wish to pursue the exclusion, the Employer shall, within 30 days, place the request on the agenda for one of the next three scheduled case conference meetings, unless the Employer and Union mutually agree otherwise. Should the Employer fail to do so, the exclusion request will be deemed to have been abandoned on a without prejudice basis.

Following case conference, should the Union disagree that the position is properly excluded, it will notify the Employer within 21 days. The Union shall provide the reasoning for how the position fails to meet the exclusion eligibility requirements. Should the Union fail to do so, the position will be deemed to be excluded. Should the Employer wish to pursue the exclusion, it shall advise the Union and within 30 days the request will be placed on the agenda for one of the next three scheduled JEC meetings, unless the Employer and Union mutually agree otherwise. Should the Employer fail to do so, the exclusion request will be deemed to have been abandoned on a without prejudice basis. Should the exclusion request remain unresolved following review by the JEC and the Employer wish to pursue the exclusion, the Employer will advise the Union in writing within 30 days and the request will be referred to the Chairperson pursuant to (b)(4). Should the Employer fail to advise the Union of their decision within the 30 days, the request will be deemed to be abandoned on a without prejudice basis.

(e) Band 4 - Reverse Onus - Notification of Exclusion to Union

The Reverse Onus process applies to new Band 4 positions. The Reverse Onus process will not apply to positions currently classified within the bargaining unit. The PSA will provide notification of exclusion request to the union representatives. The notification will include:

- (a) job description with the management compensation framework finalized;
- (b) a copy of the job description for the position which supervises the applied for position;
- (c) incumbent name, if applicable, or the date the position is anticipated to be filled;
- (d) organization chart for the relevant program;
- (e) clear statement as to how the position meets the Reverse Onus criteria; and,
- (f) any other information deemed necessary.

Should the Union wish to dispute the exclusion, the Union will advise the Employer in writing within 14 days and may refer the matter to the Chairperson pursuant to (b)(4). Should the Chairperson find that the position is not properly excluded from the Union, the Employer will pay two times the union dues from the time the position was encumbered and until the current incumbent exits the position, at which time the position will be returned to the bargaining unit.

MEMORANDUM OF UNDERSTANDING 19

Re: Seniority for Voluntary Transfer of Auxiliary Employees An auxiliary employee who voluntarily transfers to a new auxiliary position in their same classification in a different location, will retain their accrued hours worked for the purpose of placement on the salary

grid, benefit entitlement and vacation accrual. The Employer will no longer require auxiliary employees to sign a letter of resignation when moving from one geographic location to another. Upon relocation, an auxiliary employee moving to a new auxiliary position in a different location will not have their seniority transferred for the purposes of recall in the new location, except as provided by Clause 31.3(b).

MEMORANDUM OF UNDERSTANDING 20

Re: Project Employees The parties agree to establish a pilot project to provide an alternate means of undertaking time limited project work. It is anticipated that this pilot will also facilitate a reduction in the number of contractors engaged to do work which could be performed by employees. To meet these objectives, the following provisions will apply:

- (1) Project employees will be engaged for projects of 12 to 24 months' duration. Where a project employee is retained beyond the 24 month maximum, they will be deemed a regular employee from their initial date of hire.
- (2) Project employees' terms and conditions of employment shall be those applicable to regular employees under this agreement except as provided in this memorandum. In-service status shall not apply except as provided pursuant to #3 below.
- (3) At the completion of the project, such employees will receive severance pay in the amount of three weeks' pay per year of project service or portion thereof. Project employees will have no residual rights in respect of the application of any provision of the Main Agreement following severance, except that in-service status will apply for the six months following. A project employee shall repay severance if re-employed or contracted during the period equivalent to the severance pay.
- (4) Projects for which these employees may be hired shall be as mutually agreed by the Principals, or their designates, within five workdays or request, where possible, but no later than 10 workdays.
- (5) The Employer will provide copies of appointment letters, including the names of project employees and duration of the project, to the Union.

MEMORANDUM OF UNDERSTANDING 21

Re: Memorandum of Understanding Respecting The Public Service Job Evaluation Plan 1. Effective August 1, 2026, amend Appendix L of the Memorandum of Understanding respecting the Public Service Job Evaluation Plan, as follows: Growth Plan to the Social Program Officer (SPO) R24 Level Full Working Level SPO R24 grid 24, Step 1 Level 2 grid 23, Step 1 913 hours Level 1 grid 23, Step 1

913 hours Training Placement grid 21, Step 1 6 months

2. Effective August 1, 2026, amend Appendix L of the Memorandum of Understanding respecting the Public Service Job Evaluation Plan, as follows: Growth Plan to the Correctional Services (CS) R18 Full Working Level Correctional Services (Growth) level grid 18, Step 1 Level 2 grid 17, Step 1 913 hours Level 1 grid 17, Step 1 913 hours Training placement grid 14, Step 1 6 months Until training is completed (up to approximately 6 months). After completion of training, employees move to the appropriate level of the model.

Note: The Parties agree to conduct a review of any other Growth Series previously agreed to by the Parties within 6 months of ratification. 3. Effective April 1, 2022, amend Appendix B of the Memorandum of Understanding respecting the Public Service Job Evaluation Plan, as follows: Point Bands Current Point Revised Point Grid Level

Impact Band Ranges	Band Ranges 12	370 to 459	370 to 459	Increase grid level from 11 to 12 15
460 to 544	460 to 624	Increase grid level from 13 to 15		

MEMORANDUM OF UNDERSTANDING 22

Re: Market Adjustments (MA) The parties recognize that recruitment and retention challenges with specific bargaining unit positions may occur over the life of the collective agreement. The intention of this memorandum is to provide an expeditious means of addressing salary issues which may be associated with such recruitment and retention challenges. Market adjustment(s) subject to this memorandum are guided by the following:

1. Positions identified to receive an MA may include specialized and/or unique positions that are not part of a larger generic group; or the recruitment challenge can be directly linked to the geographic location of the work. 2. The MA is included in all calculations involving base pay. 3. An eligible employee in receipt of salary protection pursuant to Clause 27.7 will have the MA reduced by the corresponding amount of salary protection. 4. Once a market adjustment has been implemented it cannot be removed from an eligible regular employee pursuant to #5 below so long as they remain in the position and the principal duties of the position remain unchanged. 5. Any market adjustment is subject to mutual agreement between the Bargaining Principals. The Employer may terminate the payment of any MA with 60 days' notice to the Union. Upon expiry or termination date, the terminated MA will not be applied to employees newly hired into the position. This memorandum supersedes and nullifies any former agreement(s) respecting the matter of temporary market or wage adjustments. The parties agree to market adjustments as per the attached Appendices A and B to expire in accordance with #5 above. Note: For the purposes of this memorandum, references to ministries include all Agencies, Boards and Commissions that are subject to the 20th Main Agreement. Note: Market adjustments cannot be removed by the Employer prior to March 31, 2031. This shall apply to all temporary market adjustments and market adjustments instituted as part of the 20th Main Public Service Collective Agreement.

APPENDIX A TO MOU

Re: Market Adjustments

Position / Classification	MA %	Effective Date			
1 Information Systems R24	6.6	Dec 10, 2000	Information Systems R24	9.9	Apr 1, 2024
Information Systems R27	6.6	Dec 10, 2000	Information Systems R27	9.9	Apr 1, 2021
Information Systems R30	9.9	Dec 10, 2000	2 Economist R27	3.3	Apr 1, 2001
Economist R30	6.6	Apr 1, 2001	Economist R33	6.6	Apr 1, 2001
3 Policy Analyst R27	3.3	Apr 1, 2001	Policy Analyst R30	6.6	Apr 1, 2001
Financial Officer R18 *	6.6	Apr 2, 2006	Financial Officer R21 *	6.6	Apr 2, 2006
Financial Officer R24 *	6.6	Apr 2, 2006	Financial Officer R27 *	6.6	Apr 2, 2006
Financial Officer R30 *	6.6	Apr 2, 2006	Financial Officer R33 *	6.6	Jan 15, 2020
5 Tax Auditor R24 *	6.6	Apr 2, 2006	Tax Auditor R27 *	6.6	Apr 1, 2001
Auditor R30 *	6.6	Apr 1, 2001			
6 Education Officer R27	3.3	Apr 1, 2001	7 Planning Officer R27	3.3	Apr 1, 2001
Planning Officer R30	3.3	Apr 1, 2001	8 Project Officer - Environmental	6.6	Apr 2, 2006
Assessment Office (AO R27) 9			Intellectual Property Managers,	9.9	Apr 2, 2006
Biologist R27	3.3	Apr 1, 2007	Biologist R30	3.3	Apr 1, 2007
Transport Inspector	3.3	Apr 1, 2007	R21 (Scale Supervisor)		
			10 IPP, L&CS (AO R24)		
			11 Commercial		

*The MA applies solely to those positions where a recognized accounting designation (ie., CPA, CMA, CGA, CA) is a requirement of the position and the incumbent possesses such designation.

APPENDIX B TO MOU 22

With MA Classification Title	MA	Paid At	Effective Date
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1 Correctional Services (Youth Custody) R18 +1 grid Grid 19 Apr 1, 2015 Correctional Services (Youth Custody) R18 +4 grids Grid 22 July 1, 2026 Correctional Services (Youth Custody) R18 +5 grids Grid 23 April 1, 2028 Correctional Services (Adult Custody) R18 +2 grids Grid 20 Apr 1, 2019 Correctional Services (Adult Custody) R18 +3 grids Grid 21 Apr 1, 2020 Correctional Services (Adult Custody) R18 +6 grids Grid 24 July 1, 2026 Correctional Services R21 +1 grid Grid 22 Sept 28, 2008 Correctional Services R21 +4 grids Grid 25 July 1, 2026 Correctional Services R24 +2 grids Grid 26 Apr 1, 2022 Correctional Services R24 +5 grids Grid 29 July 1, 2026 Correctional Services R27 +1 grid Grid 28 Sept 28, 2008 Correctional Services R27 +4 grids Grid 31 July 1, 2026

2 Correctional Services G11 - Step 1 +1 grid Grid 12 - Step 1 Sept 28, 2008 Correctional Services G12 - Step 1 +1 grid Grid 13 - Step 1 Sept 28, 2008 Correctional Services G13 - Step 1 +1 grid Grid 14 - Step 1 Sept 28, 2008

3 Instructor (Corrections) R18 +4 grids Grid 22 Apr 1, 2019 Instructor (Corrections) R18 +7 grids Grid 25 July 1, 2026 Instructor (Corrections) R21 +3 grids Grid 24 Sept 28, 2008 Instructor (Corrections) R21 +6 grids Grid 27 July 1, 2026

4 Deputy Sheriff R18 +1 grid Grid 19 Apr 1, 2019 Deputy Sheriff R18 +2 grids Grid 20 Apr 1, 2020 Deputy Sheriff R18 +3 grids Grid 21 Apr 1, 2021 Deputy Sheriff R18 +6 grids Grid 24 July 1, 2026 Deputy Sheriff (ICM/PIO) R18 +2 grids Grid 20 Apr 1, 2019 Deputy Sheriff (ICM/PIO) R18 +3 grids Grid 21 Apr 1, 2020 Deputy Sheriff (ICM/PIO) R18 +4 grids Grid 22 Apr 1, 2021 Deputy Sheriff (ICM/PIO) R18 +7 grids Grid 25 July 1, 2026 Deputy Sheriff R21 +2 grids Grid 23 Apr 1, 2019 Deputy Sheriff R21 +3 grids Grid 24 Apr 1, 2020 Deputy Sheriff R21 +6 grids Grid 27 July 1, 2026 Deputy Sheriff R21 +7 grids Grid 28 April 1, 2028 Deputy Sheriff R24 +2 grids Grid 26 Apr 1, 2022 Deputy Sheriff R24 +5 grids Grid 29 July 1, 2026 Deputy Sheriff R27 +1 grid Grid 28 Apr 1, 2022 Deputy Sheriff R27 +4 grids Grid 31 July 1, 2026

5 Instructor (Sheriff) R21 +3 grids Grid 24 Sept 28, 2008 Instructor (Sheriff) R21 +6 grids Grid 27 July 1, 2026

6 Deputy Sheriff Senior Intelligence Officer R21 +5 grids Grid 26 Apr 1, 2022 Deputy Sheriff Senior Intelligence Officer R21 +8 grids Grid 29 July 1, 2026

7 Conservation Officer - Instructor R21 +3 grids Grid 24 Apr 1, 2012

8 Fire Weather Forecaster R241 +3 grids Grid 27 Apr 1, 2015 Fire Weather Forecaster R272 +3 grids Grid 30 Sept 1, 2020

9 Social Program Officer R24 +1 grid Grid 25 Apr 1, 2023 Social Program Officer R24 · REVOL +4 grids Grid 28 July 1, 2026 Probation Officers12

10 Social Program Officer (CYMH) R21 +1 grid Grid 22 April 1, 2028 Social Program Officer (CYMH) R25 +1 grid Grid 25 Nov 1, 2016 Social Program Officer (CYMH) R24 +4 grids Grid 28 Apr 1, 2023 Social Program Officer (CYMH) R24 +5 grids Grid 29 April 1, 2028

11 Social Program Officer (CYMH) R27 +3 grids Grid 30 Apr 1, 2023 Social Program Officer (CYMH) R27 +5 grids Grid 32 April 1, 2028 Social Program Officer (CYMH) R30 +2 grids Grid 32 Apr 1, 2023 Social Program Officer (CYMH) R30 +3 grids Grid 33 April 1, 2028

12 Social Program Officer (Child Protection) R24 +3 grids Grid 27 May 1, 2023 Social Program Officer (Child Protection) R27 +1 grid Grid 28 May 1, 2023

13 Meat Hygiene and Agri-food Inspectors and +1 grid Grid 22 Apr 1, 2021 Seafood Inspectors R213

14 Agri-food Inspection Supervisor R274 +1 grid Grid 28 Apr 1, 2021

15 Court Clerk R12 +3 grids Grid 15 Apr 1, 2022 Court Clerk R12 +4 grids
Grid 16 Dec 1, 2025 Court Clerk R1213 +4 grids Grid 17 April 4, 2027

16 Senior Legal Analyst R155 +1 grid Grid 16 April 1, 2025

17 Community Program Officer (EAW) R15 +1 grid Grid 16 April 1, 2025

18 Inspector Mechanical Motor Vehicles R21 +1 grid Grid 22 April 1, 2025

19 Paralegal R18 +1 grid Grid 19 April 1, 2026 Paralegal R21 +1 grid Grid
22 April 1, 2026

20 Product Consultant R12 +1 grid Grid 13 April 1, 2026 Product Consultant R12 +1 grid
Grid 14 April 1, 2027

21 Forest Technician R9 +2 grids Grid 12 April 1, 2027

22 Legal Assistant R126 +1 grid Grid 13 Sept 1, 2027

23 Fire Crew Leaders R157 +1 grid Grid 16 April 1, 2028

24 Fire Crew Supervisors and Wildfire +3 grids Grid 21 April 1, 2028 Assistants R188

25 Wildfire Technicians R219 +3 grids Grid 24 April 1, 2028 Wildfire Officers R2410 +3
grids Grid 27 April 1, 2028 Senior Wildfire Officers and Wildfire +1 grid Grid 28 April 1, 2028 Superintendent
R2711

26 Social Program Officer Growth to 24 · Hard +1 grid Grid 24 April 1, 2026 to Recruit Communities Social Program
Officer R18 · Hard to Recruit +2 grids Grid 20 April 1, 2026 Communities Social Program Officer R21 · Hard to Recruit
+2 grids Grid 23 April 1, 2026 Communities Social Program Officer (CYMH) R21 - Hard to +3 grids Grid 24 April 1,
2028 Recruit Communities Social Program Officer R24 · Hard to Recruit +3 grids Grid 27 April 1, 2026 Communities
Social Program Officer (Child Protection) · +5 grids Grid 29 April 1, 2026 Hard to Recruit Communities Social Program
Officer (CYMH) R24 · Hard to +6 grids Grid 30 April 1, 2026 Recruit Communities Social Program Officer (CYMH)
R24 · Hard to +7 grids Grid 31 April 1, 2028 Recruit Communities Social Program Officer R27 · Hard to Recruit +2
grids Grid 29 April 1, 2026 Communities Social Program Officer R30 · Hard to Recruit +2 grids Grid 32 April 1, 2026
Communities Social Program Officer (CYMH) R30 · Hard to +4 grids Grid 34 April 1, 2026 Recruit Communities
Social Program Officer (CYMH) R30 · Hard to +5 grids Grid 35 April 1, 2028 Recruit Communities 1 Classified as
Scientific/Technical Officer (FWF) R24 2 Classified as Scientific/Technical Officer (FWF) R27 3 Classified as
Scientific/Technical Officer R21 4 Classified as Scientific/Technical Officer R27 5 Classified as Administrative Officer
(SLA) R15 6 Classified as Clerk R12 7 Classified as Scientific/Technical Officer R15

8 Classified as Scientific/Technical Officer R18 9 Classified as Scientific/Technical Officer R21 10 Classified as
Scientific/Technical Officer R24 11 Classified as Scientific/Technical Officer R27 12 specified Probation Officer positions
working in correctional centres within the Ministry of Public Safety and Solicitor General 13 adjusted for grid 12 to 13 pay
rate change

MEMORANDUM OF UNDERSTANDING 25

Re: Mental Health in the Workplace The Union and the Employer recognize the importance of supporting and promoting a psychologically healthy workplace and, as such, will continue to adhere to all applicable statutes, policies, guidelines, and regulations pertaining to the promotion of mental health. Mental health will continue to be incorporated into the Employer's Occupational Health and Safety Program. The parties recognize that an integrated approach where employees and the respective ministries share the responsibility for workplace mental health is essential. Accordingly, the Employer and Union will take steps to adopt the CSA Z1003 Psychological Health and Safety in the Workplace standard, in an ongoing process of continual improvement. Ministry leadership teams will be provided an orientation to The Standard as requested. A workforce mental health report outlining measures and accomplishments will be provided to the Article 29 and PJOHSC on an annual basis. The Employer will continue to support the provision of appropriate education and training in mental health for employees who are interested in taking such training. The Employer is committed to incorporating trauma informed practice and conflict resolution training in the workplace when developing or redeveloping existing programs or educational material. This memorandum remains in force and effect for the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 26

Re: MSDPR Pilot Project 1. (a) Effective September 1, 2019, the earned days off resulting from a modified workweek and/or shift pattern shall be scheduled evenly throughout the days of the workweek at the local level for all Employment and Assistance Workers (Community Program Officer R15). Such scheduling shall be on the basis of seniority.

(b) Once scheduled, an employee's earned day off will not be changed without mutual agreement with the employee.

(c) Prior to implementing the modified workweek, affected employees will be canvassed to see if they are interested in changing their earned days off schedule by seniority. 2. The Employer agrees to consult in a meaningful fashion with the Union about any service delivery changes resulting from the poverty reduction plan implementation. 3. The Employer agrees to engage the Union in a review of attrition and retention rates in MSDPR.

Explanatory note: the parties amended this MOU on December 18, 2019 with MOA ·Memorandum of Understanding (MOU) 26, Re: MSDPR Pilot Project·. The parties also augmented this MOU with MOA ·re: MSDPR Working from Home and MOU 26· dated July 22, 2020.

MEMORANDUM OF UNDERSTANDING 27

Re: Union/Management Joint Training In keeping with the intent of building constructive union-management relations the parties agree to jointly develop a training program to be delivered to both steward and manager Step 2 designates during the term of the 20th Main Agreement. The purpose of this training program is to develop an: · appreciation of the other party's rights, roles and responsibilities in the workplace; · understanding and application of the principles of problem solving; · understanding and applying the basic principles of labour relations; · understanding and applying basic elements of effective communication. The training shall be delivered through self-directed e-learning modules, developed by a team of qualified union and employer representatives. Following the introduction of the e-learning modules, the parties agree to jointly deliver virtual follow up sessions to supplement the e-learning, provided there is enough enrollment as mutually determined by the parties. In addition, for any follow up live delivery as agreed to by the parties, instructors shall receive appropriate training as agreed to by the parties. Once the number of instructors has been established by the parties, union instructors shall be selected by the Union. Union and management instructors who are members of the bargaining unit attending or delivering the training, including necessary travel time, will be on leave of absence without loss of basic pay and shall be reimbursed for expenses by the Employer. Stewards who attend training will be on leave of absence without loss of basic pay and shall be reimbursed for expenses by the Union.

MEMORANDUM OF UNDERSTANDING 28

Re: Protocol for Joint Union Management Training Initiatives The parties share a common interest in developing mechanisms to further facilitate the joint training initiatives specified in Articles 1 and 22. To progress in this area the parties will establish a joint union/management training steering committee. The purpose of the Committee is to provide support for joint training initiatives and advice on program content, delivery mechanisms and implementation as appropriate. The Committee will be comprised of three members appointed by the Union and three members appointed by the Employer and will be co-chaired. The role of the Committee in joint training initiatives is as follows:

- to support and assist in carrying out training needs identification as required;
- to provide input and advice on specific training proposals and initiatives;
- to review current and planned joint training initiatives and provide advice on implementation issues;
- to promote and support joint training initiatives;
- to review program evaluations and make recommendations on changes to the joint programs;
- to participate in training programs, as appropriate;
- with specific regard to Article 29, the Committee will develop a training program for members of ministry joint committees dealing with the role of such committees, conflict resolution, consensus building, joint problem solving, agenda development, minute recording and other issues mutually agreed to by the Committee. The Committee will meet within 60 days of the signing of this agreement and thereafter as required.

MEMORANDUM OF UNDERSTANDING 29

Re: Stewards at Step 2 of the Grievance Procedure The parties agree to the following provisions concerning the number of stewards, their jurisdiction and mandate at Step 2 of the grievance procedure: 1. The Union is entitled to at least one steward per worksite to represent employees at Step 2 of the grievance procedure. The parties may agree to additional stewards in large worksites or worksites with shift operations. 2. In the absence of a steward, another steward at the worksite will represent the employee at Step 2. 3. Where there is no steward at the worksite, another steward within the same ministry administrative management area will represent the employee at Step 2. 4. Where the steward within the same ministry administrative management area is outside of the grievor's geographic headquarters, another steward within the geographic headquarters may be used. It is understood that the use of this provision will be limited as much as possible and that any problems related to the administration of this provision will be referred to the joint committee in (8) below for resolution. 5. The mandate of the steward at Step 2 is to:

- (a) Present the grievance at Step 2.
- (b) Conduct the Step 2 meeting with the Step 2 designate. Where it is not feasible for the steward and Step 2 designate to meet personally, the Step 2 meeting may be conducted by phone.
- (c) Attempt to conclude the grievance at Step 2. It is understood that settlements reached in this process are without prejudice to the positions of either party respecting the issue in dispute. 6. When a steward is required to leave their worksite to present grievances at Step 2, permission to leave their work shall be obtained as required by Clause 2.6(c). 7. Nothing in this memorandum is meant to prevent or discourage the settlement of grievances at Step 1 of the grievance procedure.

8. There shall be a joint committee established to monitor the progress and administration of this memorandum with the goal of improving its operation, resolving problems or disputes, and gathering and sharing of relevant information. The Committee shall be comprised of two representatives of the Union and two representatives of the Employer.

MEMORANDUM OF UNDERSTANDING 30

Re: Priority Placement and Employment Equity The parties support the recruitment and development of a well-qualified and efficient Public Service that is representative of the diversity of the people of British Columbia and the training and development of employees to foster career development and advancement. The parties will cooperate in the identification and removal of barriers which restrict or inhibit people from being employed, advanced or trained in the Public Service. Some examples of typical barriers are: · discriminatory attitudes or behaviour such as bias, stereotyping and harassment by co-workers, supervisors and managers; · failure to appreciate cultural differences because of a lack of familiarity with the cultural values of the designated groups or the group's lack of familiarity with the cultural values of the Public Service; · lack of information about opportunities for employment, training, special projects or promotions, etc.; · physical barriers such as workplaces, facilities, jobs and tools that may need to be adapted for use by individuals from the designated groups; · systemic barriers such as employment policies, practices and systems which have an adverse impact on designated groups. An example of a systemic barrier is a qualification statement requiring years of experience rather than specifying the type and depth of experience that is needed. In order to meet the above objectives and those in Section 2 of the Public Service Act and to redress existing employment imbalances and disadvantages ministries may use remedial measures such as: · providing career counselling, mentorship programs, internship training opportunities or other developmental opportunities to employees; · outreach recruitment (including outreach to other ministries) encouraging members of designated groups to apply for jobs in the Public Service, providing them with information on employment opportunities, how to apply for positions, how to prepare for interviews, etc. Where the application of remedial measures outlined above do not meet the objectives of the Act, the Head of the BC Public Service Agency or their designate may, after consulting with the President of the B.C. General Employees' Union or their designate, in respect to a vacancy or class of vacancies in the Public Service Bargaining Unit, identify that applicants to a posting be:

- (a) limited to employees covered by Clauses 12.9, 13.3, 13.4, Article 36;
- (b) limited to employees to encourage career development and advancement;
- (c) limited to employees of a stated occupational group, position level or organizational unit;
- (d) limited to employees in a stated geographical area or locale.

Where the application of remedial measures outlined above do not meet the objectives of the Act, the Head of the BC Public Service Agency, or their designate, and the President of the B.C. General Employees' Union or their designate may mutually agree to limit or give preference in a manner intended to achieve employment equity objectives.

MEMORANDUM OF UNDERSTANDING 31

Re: Regular Part-time Employees The parties acknowledge that as a general principle throughout government service regular part-time employees should have access to increased hours of work opportunities up to full-time hours prior to auxiliary employees. In view of the above, the parties agree to renew pilot project(s) where regular part-time employees will be given the opportunity to accept work beyond their regular part-time schedule by mutual agreement. The parties also agree to establish a joint committee to monitor the implementation and success of the pilot project(s), which shall utilize the following approach:

(1) Regular part-time employees, with the agreement of the Employer, may specify that they wish to opt for temporary increased hours of work opportunities.

(2) Such agreements identified in (1) above shall be in writing and be effective for a six-month period commencing April 1, 2001.

(3) Where it is known for at least a week in advance that such temporary increased hours of work opportunity is available, the Employer, subject to operational requirements, will pre-schedule regular part-time employees on the basis of service seniority, prior to auxiliary employees, provided:

- (a) Opportunities for additional work assignments must be for at least a full block within a cycle (eg., five shifts on a 5:2 pattern; four shifts on a 4:3 pattern);
- (b) The maximum biweekly hours shall not exceed the regular full-time hours of a full-time

employee in the same work unit;

(c) There shall be no increased cost to the Employer, including but not limited to premiums or penalties attributed to going on or coming off the temporary increased hours of work schedule;

(d) Work assigned/offered must be within the same classification in which the regular part-time employee usually works as a regular part-time employee;

(e) Part-time employees whose part-time status is derived from a job share agreement shall not be entitled to increase their hours under this arrangement, except by mutual agreement.

(f) Lost work opportunities resulting from part-time regular employees accepting an increased hours of work opportunity or reverting to their part-time position following completion of the additional work assignment shall not be the Employer's responsibility.

(g) Employees who have worked an increased hours of work schedule for any period in excess of two calendar weeks and who are subsequently unable to report for work due to illness or injury during the period of increased hours of work, and are entitled to benefits pursuant to Appendix 4, will have their STIIP benefit calculated on the basis of the full-time work. This calculation based upon increased hours of work will continue for the duration of the increased hours of work and thereafter revert to a benefit based upon the employee's part-time appointment.

MEMORANDUM OF UNDERSTANDING 32

Re: Scheduling of Earned Time Off and Vacation on Layoff Auxiliary employees, and effective April 1, 2026, Seasonal Regular Employees under MOU 35, who have earned time off (ETO) will have their earned time off scheduled as time off commencing at the effective date of layoff. Auxiliary and Seasonal Regular employees may, on request, also schedule earned vacation credit commencing at the effective date of layoff. In such cases, the provisions of Clause 18.5 of the Main Agreement shall not apply. The Auxiliary and Seasonal Regular employee will not be subject to recall during the period of the scheduled earned time off or vacation. Employees on scheduled ETO or vacation past the effective date of layoff will not be grounds for a claim from another employee that they have been laid off out of order of seniority or that the employee had not been recalled in order of seniority.

MEMORANDUM OF UNDERSTANDING 33

Re: Gainsharing The parties acknowledge that suggestions for gainsharing improvements may arise or be negotiated at any time during the life of this agreement to provide additional (one-time, or ongoing) payments. Where such initiatives are identified, the Main Bargaining Principals will meet to review the proposal and consider whether it should be included within the scope of this memorandum.

MEMORANDUM OF UNDERSTANDING 35

Re: Seasonal Regular Employees - BC Wildfire Service The purpose of this Memorandum of Understanding is to address the employment status of certain auxiliary employees currently existing with BC Wildfire Service (·BCWS·).

1. Effective April 1, 2019: a. the Employer will offer an auxiliary employee who has accumulated 4263 auxiliary seniority hours in any classification and any seniority unit within BCWS, to convert to seasonal regular status with the BCWS (the ·Seasonal Regular Employees·); b. the 4263 auxiliary seniority hours will include all hours worked at straight time and designated paid holidays. It does not include any hours lost pursuant to Article 31.4 or any overtime hours worked/paid within BCWS; and, c. the auxiliary employee must accept the offer within 14 days of receipt and if the employee does not accept, the employee remains an auxiliary employee until the following year when the auxiliary employee may accept the Employer's offer for conversion to seasonal regular status. 2. In every year subsequent to 2019:

a. the Employer will offer an auxiliary employee who has accumulated 4263 auxiliary seniority hours in their current seniority unit to convert to seasonal regular status with the BCWS by February 1st of that year (the "Seasonal Regular Employees"); and, b. the auxiliary employee must accept the offer within 14 days of receipt and if the employee does not accept, the employee remains an auxiliary employee until the following year when the auxiliary employee may accept the Employer's offer for conversion to seasonal regular status. 3. The following terms and conditions of employment will apply to the Seasonal Regular Employees: a. The Seasonal Regular Employees will have regular status with corresponding pay and benefits in accordance with the Main and Component Agreements, with exceptions as indicated below. b. The Seasonal Regular Employees have an annual guaranteed six month term at full-time hours, which is equivalent to half-time on a regularly scheduled basis. c. The Seasonal Regular Employees are subject to recall and layoff pursuant to Main Agreement, Clause 31.5(b) and (c) - Layoff and Recall. In the event that the application of Clause 31.5(b) and (c) may result in an employee not maintaining the guaranteed annual term in 3(b) above, the Employer may recall the employee out of order of seniority in order to meet that commitment. d. The Seasonal Regular Employees' term will be determined based on operational demand and consistent with start and finishing dates as set out in the BCWS' Standard Operating Guideline for Recall of Auxiliary or its equivalent. The Seasonal Regular Employees will be considered on layoff at the end of the term. e. The Seasonal Regular Employees' auxiliary and regular seniority hours combined will be used as service seniority for the purpose of recall and layoff. f. The Employer will provide the Seasonal Regular Employees with notice by March 1st of every year of the start and finishing dates of the guaranteed six month term. g. The employees are required to report to work for the term set out in the notice in 1(f). Exceptions to this will be in accordance with applicable Main Agreement leave and notice provisions for regular employees. h. The Seasonal Regular Employees' term may be extended by mutual agreement between the affected employee and the Employer. The extensions will be offered to Seasonal Regular Employees on the basis of service seniority for the position and prior to auxiliary employees. Extensions do not obligate the Employer to increase the guaranteed length of term in subsequent years. i. The Seasonal Regular Employees' term will not exceed a total annual hours of work of 1827 hours in 26 pay periods. By mutual agreement, Seasonal Regular Employees' status may be changed to full time regular employees. j. The Seasonal Regular Employees will earn regular service for all hours worked at straight-time rates in accordance with Main Agreement, Clause 11.1 - Seniority Defined. k. Clause 14.2 of the Main Agreement does not apply to the Seasonal Regular Employees, with the exception of Clause 14.2(b).

l. Proration of service seniority, benefits, paid time off and other allowances are as described in Information Appendix A attached to this agreement. m. All earned CTO must be taken within the term it is earned and any remaining will be paid out if not used in that term. All earned annual leave and ETO may, at the employee's discretion, be taken immediately after the conclusion of the normal term, pursuant to MOU 32. Proration is based on the hours (which include the use of annual leave and ETO) less than 1827 in 26 pay periods. Any ETO or annual leave that would cause the hours worked to exceed 1827 in 26 pay periods will be paid out. n. The BCWS "Standard Operating Procedure - Pre-Employment Fire Crew Fitness Standard (WFX-FIT)" applies to Seasonal Regular Employees in positions which require the passing of the WFX-FIT Test, or the applicable fitness standard test as the case may be. The Employer is not obligated to find any other work for the Seasonal Regular Employee following failure to pass the WFX-FIT Test. The Seasonal Regular Employee will be deemed to have been ineligible for the work term and will be considered on layoff until a subsequent opportunity for work is available in that position which will be offered on the basis of seniority and prior to auxiliary employees. Should the subsequent opportunity be that same year, there is no guarantee of a six month continuous term. o. STIIP benefits will be calculated in accordance with Main Agreement, Appendix 4, Clause 1.1(e) unless an employee works a full-time schedule for any period in excess of two calendar weeks and is subsequently unable to report to work due to illness or injury during the period of scheduled full-time work, and is entitled to benefits pursuant to

Appendix 4. Such employee will have their STIIP benefit calculated on a basis of the

full-time work. This calculation based upon full-time work will continue for the duration of the scheduled full-time term and thereafter will revert to a benefit based upon the employees' regular part-time status (e.g. 0.5 FTE annually). p. Main Agreement, Appendix 4, Clause 1.9 will apply to STIIP benefits upon layoff. The layoff period will run concurrent with the STIIP period. Accordingly, Seasonal Regular Employees receiving benefits under Appendix 4, Clause 1.9 are not entitled to MOU 32. q. Eligibility for LTD will be in accordance with Clause 2.1 of Appendix 4 of the Main Agreement. r. The benefit level for LTD will be calculated on the basis of the formula outlined in

Appendix 4, Clause 2.2 of the Main Agreement.

s. The Seasonal Regular Employees' entitlement to Main Agreement, Article 20 - Special and Other Leave, will end when on layoff at the end of the term. t. The Seasonal Regular Employees are entitled to Main Agreement, Article 21 - Maternity, Parental and Pre-Placement Adoption Leave Allowance in accordance with Clause 21.12 of the Main Agreement. u. The employer-paid benefit coverage (i.e. basic medical, extended health and care, dental, group life, and LTD) for the Seasonal Regular Employees will be extended to the last day of the month following the month the employee is laid off. If the employee takes another auxiliary appointment outside BC Wildfire Service, subsequent to layoff, the extension of

the employer-paid benefit portion will not apply. The Seasonal Regular Employees may maintain their benefit coverage at their own expense by paying the premium themselves. 4. The Employer may continue to utilize the auxiliary category of employment as required. 5. Unless otherwise stated in this agreement, the Main and Component Agreements apply. 6. The Employer's offer to auxiliary employees to convert to seasonal regular status who have accumulated 4263 auxiliary seniority is capped at 500 Seasonal Regular Employees at any given time. 7. Issues arising from the implementation of this memorandum of understanding will be addressed by the Bargaining Principals.

APPENDIX A - SEASONAL REGULAR EMPLOYEES

Service, Benefits, Paid Time Off and Other Allowances Prorated: · Service seniority (one year of service seniority for every 1827 hours worked) · Vacation · Paid Holidays · Main Agreement, Article 20.12 - Maximum Leave Entitlement · STIIP · LTD · Public Service Pension Plan · Maternity, Parental, Pre-Placement Adoption Leave Allowance · Canada Pension Plan* · Employment Insurance* · WorkSafeBC* · Group Life* *Is only prorated to the extent that the benefit is based on the employee's part-time salary. Not Prorated: · Basic Medical Insurance · Extended Health Care Plan · Dental Plan · Air Travel Insurance Others: · Overtime (paid in accordance with Clause 16.10 of the Main Agreement) · Annual Increment (eligibility based on completion of 1827 hours since last increment)

MEMORANDUM OF UNDERSTANDING 36

Re: Health and Welfare Benefit Eligibility for Seasonal Auxiliary Employees In recognition of the unique working conditions faced by the seasonal auxiliary employees in the BC Wildfire Service, Park Rangers in the Ministry of Environment and Climate Change Strategy and Avalanche Crews in the Ministry of Transportation and Infrastructure, the parties agree to the following:

1. The employer-paid benefit portion for benefits under Clause 31.9 of the Main Agreement will be extended to the last day of the month following the month the employee is laid off. If the employee takes another auxiliary appointment outside BC Wildfire Service subsequent to layoff, the extension of the employer-paid benefit portion will not apply. 2. The current language, "Auxiliary employees qualified under (a) above shall be entitled to maintain coverage under such plans for a maximum period of six consecutive months immediately following the month in which the layoff occurs by paying the premium themselves" as provided in Clause 31.9(c) of the Main Agreement will be replaced by "Auxiliary employees qualified under (a) above shall be entitled to maintain coverage under such plans for a maximum period of six consecutive months immediately following the end of the month following their layoff date by paying the premium themselves". 3. Memorandum of Understanding 5 of the Environment, Technical and Operations Component and Letter of Understanding 2 of the Administrative Professionals Component regarding Health and Welfare Benefit Eligibility shall no longer apply to the seasonal auxiliary employees in the BC Wildfire Service, to Park Rangers in the Ministry of Environment and Climate Change Strategy and to Avalanche crews in the Ministry of Transportation and Infrastructure. 4. The current language, "after working three consecutive years without loss of seniority and maintaining 1200 hours worked at the straight-time rate within the previous 26 pay periods" as provided in Clause 31.9(a) will be replaced by "after commencing the second consecutive year of employment without loss of seniority and maintaining 500 hours worked at the straight-time rate within the previous 26 pay periods". For clarity:

· The amended eligibility for benefits will not apply to employees required to meet established physical fitness standards until they have successfully passed the physical fitness test. · This memorandum of understanding applies to seasonal auxiliary employees of BC Wildfire Service, and applies to Wildfire employees covered by the SIH, Administrative Professionals and ETO Components. · This memorandum of understanding also applies to Park Rangers in the Ministry of Environment and Avalanche Crews in the Ministry of Transportation and Infrastructure. · For all other auxiliary employees, the existing Main and Component language applies. · Employees who are hired by other ministries or branches subsequent to their layoff date from BC Wildfire Service, Avalanche Services, or Park Service will have their benefit hours applied for benefits applicable to that auxiliary position, but will not maintain benefits that apply only to employees of BC Wildfire Service, Avalanche Service or Park Service. Upon recall to BC Wildfire Service, Avalanche Service or Park Service, benefits will apply as though they had been laid off following the fire season.

MEMORANDUM OF UNDERSTANDING 37

Re: Liquor Distribution Branch (LDB) Letter of Commitment The Employer agrees that LDB retail operations will remain direct government employees for the duration of the 20th Main Agreement.

Retail Stores:

- (a) The LDB will maintain a minimum of 192 retail stores during the term of the 20th Main Agreement.
- (b) Where two retail stores are consolidated into a new Signature Store, the minimum number of retail stores pursuant to (a) above will be reduced by one. Cannabis Stores:

- (a) The LDB will maintain a minimum of 15 cannabis stores during the term of the 20 th Main Agreement. Distribution:

- (a) The LDB will continue to operate a province-wide distribution system for the term of the 20th Main Agreement. Note: As of the date of this MOU, the LDB has 198 retail stores, 25 of which are Signature Stores, and 39 cannabis stores. This memorandum of understanding is enforceable through commercial arbitration under the provisions of the Commercial Arbitration Act.

MEMORANDUM OF UNDERSTANDING 38

Re: Store Closures and Signature Store Openings and Impact on Employees Joint Committee The parties agree to use the Article 29 Joint Committee to provide a forum for the parties to proactively address human resource issues which arise as a result of store closures, amalgamations and the opening of Signature Stores. Process

- (1) Where a decision has been reached to close a retail store consistent with understandings between the parties, the LDB will notify the Union Committee representatives in writing.
- (2) The Joint Committee will convene within 14 days of the notice of the store closure.
- (3) The Committee, in the event of a planned Signature Store opening, will agree on an appropriate human resource approach to minimize impact on employees working in the affected stores. The Committee will implement labour realignment options such as:
 - (a) Temporary assignments
 - (b) Realignment of Recall Areas consistent with RS&W Clause 12.3(h)
 - (c) Transfer of vacancies
 - (d) Collective agreement modifications to facilitate appropriate labour realignment options.

MEMORANDUM OF UNDERSTANDING 39

Re: Sunday Openings and Store Consolidation Protocol The Employer and the Union are committed to working co-operatively to minimize adverse staffing impacts resulting from store closures and store consolidations into signature stores.

(1) All signature stores will open for business on Sunday to enhance employment opportunities and maximize operational efficiency.

(2) Except where not possible (ie) termination of a lease, the consolidation of stores into a signature store will not occur until the signature store opens for business. Where it is not possible, the LDB will advise the Joint Committee as soon as it is known. In this case, the Joint Committee will implement reasonable measures to mitigate any reduction in work available.

(3) Where two stores are combined into a signature store, the affected recall areas will be realigned as per Clause 12.3(h) of the RS&W Component Agreement.

MEMORANDUM OF UNDERSTANDING 40

Re: Pilot Project - Cross Ministry Eligibility Lists The parties agree to the following framework to establish, manage and implement cross ministry eligibility lists. This memorandum of understanding is intended to add flexibility to the Employer's hiring practices and increase the ability to hire in a more expeditious manner, as well as to increase employees' ability to access promotional and other opportunities throughout the BC Public Service. Cross ministry eligibility lists will be established, managed and implemented as follows:

(a) A cross ministry posting shall identify the known locations of opportunities available. The Employer will limit the eligibility lists to the locations identified in the posting. b) Postings to establish cross ministry eligibility lists shall be posted corporately and ministries will be encouraged to have cross ministry representation on the hiring panel. PSA representatives may also provide further hiring panel support to establish eligibility lists that will be applied corporately. c) Once a cross ministry eligibility list is established, the PSA will manage and implement the list. Lists will be kept confidential until a vacancy is confirmed and candidates from these lists will be referred to vacancies in rank order. A ministry other than the original hiring ministry is not required to use the eligibility list for a vacancy unless it requests a candidate from the PSA. Once a candidate has been requested by a ministry, they shall be required to fill the vacancy from the list. d) Candidates on the eligibility list will provide a list of their preferred geographical locations and have the right to refuse any position offered within their preferred geographic area once without being removed from the list. e) The PSA will track the creation, management and implementation of eligibility lists and provide an annual update to the Union. f) Cross ministry eligibility lists will be in effect for a maximum of 18 months from the date of the establishment of the list. g) Ministries and locations not identified in the original posting may request the next available candidate from the lists to fill a vacancy. Candidates who decline an offer from a ministry or location not originally identified on the posting will not be subject to (d) above. For clarity, this memorandum of understanding does not apply to eligibility lists for positions restricted to employees within a particular ministry. This memorandum of understanding will remain in effect for the term of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 41

Re: IYIP and Work-Able Accessible Employment Program - Pilot Project The purpose of this Memorandum of Understanding is to address benefits and leave entitlements for persons employed under the Indigenous Youth Internship Program (IYIP) and Work-Able Accessible Employment Program pursuant to Article 34. The parties recognize the unique culture and accessibility barriers the employees of these programs experience and this memorandum aims to improve this through providing access to benefits and leave as outlined below. Effective for the duration of the 20th Main Agreement, the parties agree to establish a pilot project to provide persons employed under the IYIP and the Work-Able Accessible Employment Program with benefit and leave entitlements applicable to benefitted auxiliary employees, except as provided in this memorandum. All leave and benefit entitlements will immediately cease upon conclusion of the program. The enhanced provisions described under this MOU, shall not impact the employment status of persons hired under Article 34, who are term certain employees and not subject to the provisions of Clause 31.1. At the completion of the program, such employees remain subject to the provisions of Article 34 and Clause 31.5(d). All benefits and leaves will immediately cease upon the conclusion of the program. Should the person's employment status change, their benefit entitlement will be commensurate with their employment status. The parties agree this is a pilot project for the duration of the 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 43

Re: Design of a New Public Service Job Evaluation Plan The Employer and the Union agree on the need to jointly design and implement a new job evaluation plan for the BC Public Service. To that end, the parties agree to eliminate the existing PSJEP and corresponding benchmarks and to replace it with a new joint job evaluation plan (the 'New JE Plan').

(1) Current PSJEP Removed from the Collective Agreement

(a) All clauses in Article 28 · Classification and Reclassification are deleted and replaced with the following: ·Pursuant to MOU 43, the parties are developing a New JE Plan to be inserted into Article 28 in the next collective agreement·.

(b) The former Article 28 is reproduced below and will be used for the interim period while the New JE Plan is being developed to set wage rates for new and materially altered positions and for the purpose of appeals.

(2) The Joint Job Evaluation Committee

(a) The parties will establish a Joint Job Evaluation Committee (JJEC) consisting of up to four appointees from the Union and up to four appointees from the Employer to create the New JE Plan.

(b) Appointees shall include technical experts chosen by both the Employer and Union. Technical experts shall be persons who have received job evaluation training and are fully conversant in the application of the job evaluation plans. Both parties commit to dedicating the necessary resources to meet their respective obligations.

(c) The JJEC will develop the following:

i) Factors, degrees, weightings, and point bands ii) Moving the RSWJEP into the New JE Plan iii) Recognition of formal supervision iv) Comprehensive creation of net new benchmark positions v) Glossary definitions vi) Application guidelines vii) Classification groupings/job architecture viii) Discussion of Growth Plans ix) An expedited process to review and agree on the creation of net new benchmark positions. x) Establishment of a Memorandum of Understanding for expedited classification resolutions.

(d) The New JE Plan will establish Benchmark Reference Positions within the BC Public Service with the intention of providing the most comprehensive expanse of relevant duties and will update the Benchmark Reference Positions as needed to ensure their continued relevance through the design process.

(e) The JJEC will develop recommendations on language to replace Article 28 of the collective agreement to be forwarded to the parties for review.

(3) Principles Applicable to the New JE Plan

(a) The following principles will apply to the new JE Plan will include:

- gender pay equity and gender neutrality;
- diversity and inclusion;
- equitable treatment of employees across the BC Public Service;
- standardization of pay for classifications in identical or near identical roles;
- the ability to consistently refresh benchmark reference positions on a periodic basis;
- ensuring employees will be credited in classification placement via any scoring system for all the duties regularly or periodically performed in the course of their work;
- ensuring the diversity and comprehensive breadth of roles and duties performed in the Public Service are adequately recognized and weighted; and
- new and expanding duties will be regularly reviewed and added to ensure benchmarks stay current and relevant.

(4) Timeline for Development of the New JE Plan and Transitional Period

(a) The New JE Plan will be finalized by the conclusion of the term of the current collective agreement according to the following timeline:

Action

Completion Date

- | | |
|--|---|
| 1. Selection of JJEC members | December 15, 2025 |
| 2. Initial meetings, establishment of terms of reference for the JJEC, scheduling of future Preliminary Assessment and Design including: · Hiring of external job evaluation and pay to advise the committee. · Reviewing former PSJEP system to identify strengths and weaknesses · data analysis and information on possible solutions · Conducting early diversity and inclusion and pay equity analysis · Finalizing the conceptual framework, draft design and approach | January 15, 2026 meetings 3. June 2026 equity consultants |
| 4. Plan Development · Assessing and deciding on job evaluation factors, degrees, and glossary language to be established · Creating preliminary weightings and point bands · Determining the approach to classification coding and administration · Developing draft language for the job evaluation plan · Beginning benchmark design and drafting a process for expedited process for reviewing and updating benchmarks. · Creating Glossary definitions · Reviewing Growth position placement and related issues · Reviewing LDB position placement and related issues · Gathering feedback from subject matter experts and incorporating feedback · External consulting review for pay equity compliance · Ensuring the New JE Plan is compliant with human rights legislation, pay equity and diversity and inclusion principles · Early testing · Begin preparing an implementation plan (communication, collective agreement updates, education and training) | |
| 5. Testing and Piloting · Confirming appropriate benchmarks and Conducting pilot testing · Establishing grids · Finalizing weightings and point bands · Finalizing decisions on benchmarks | June 2027 testing against the plan · |
| 6. Final sign off and implementation | December 2027 |

(b) The above timelines may be altered by the agreement of the parties; however, failure to complete the design of the New JE Plan by the conclusion of the collective agreement means that there is no job evaluation plan in place unless the parties agree to some other interim measure with the New JE Plan is finalized.

(c) The parties will develop a process for member education on the New JE Plan following completion of its design.

(5) Dispute Resolution for JJEC

(a) Disputes arising from the JJEC will be referred to Amanda Rogers or Brett Matthews or another mutually agreed upon arbitrator. The arbitrator is seized with the requisite jurisdiction to issue a binding decision to resolve the impasse. The arbitrator may rely on technical resources as deemed appropriate.

(6) Former PSJEP Language

ARTICLE 28 · CLASSIFICATION AND RECLASSIFICATION

28.1 Classification Plan

- (a) The Employer and the Union recognize the need to maintain the principles of Pay Equity to evaluate jobs in the Public Service bargaining unit. The parties also agree to apply the Public Service Job Evaluation Plan in accordance with those principles to all bargaining unit positions using the gender neutral plan factors and degrees in the Public Service Job Evaluation Plan. The Public Service Job Evaluation Plan will be used to evaluate positions in the Main Agreement and to determine their appropriate factor ratings.
- (b) The Employer agrees to supply the President of the Union or their designate with the job evaluation plan and benchmarks/reference jobs for those classifications in the bargaining unit.
- (c) The former classification plan specifications are redundant for evaluation purposes and will be utilized solely for descriptive purposes to assist in the orderly management of the Public Service, including staffing and collective agreement purposes.

28.2 Changes to the Job Evaluation Plan and Benchmarks/Reference Jobs

- (a) The Employer agrees that no changes to the job evaluation plan and benchmarks/reference jobs pertaining to positions covered by this agreement will be introduced without the mutual agreement of the parties.
- (b) To facilitate the orderly change in the job evaluation plan, a joint technical working committee will be used. There will be equal representation of technical experts from the Employer and the Union on this committee, and total membership from each side will not exceed four.
- (c) The Committee shall formulate any necessary changes or new benchmarks/reference jobs in the job evaluation plans used within the Public Service bargaining unit and shall make joint recommendations to the Bargaining Principals.
- (d) When a new or substantially altered benchmark/reference job covered by this agreement is introduced, the factor ratings shall be subject to agreement between the Employer and the Union.
- (e) Where the Joint Technical Working Committee is unable to agree to benchmark(s)/reference job(s) and/or agree on a factor rating, the matter may be referred to an agreed upon classification referee. The benchmark rating shall be effective on the date agreed to by the parties or the date set by the referee but, in any event, not earlier than the date of implementation.

28.3 Classification Appeal Procedure

An employee shall have the right to appeal, through the Union, the classification of the position they occupy. Such an appeal shall be in accordance with the provisions of this clause and shall not be considered a grievance under Article 8 - Grievances, of this agreement. Part 1

- (a) If an employee believes that the position they occupy is improperly classified, they shall complete and forward to their immediate supervisor, excluded manager and the BC Public Service Agency Part 1 of the Classification Appeal Form requesting a written job description describing duties and responsibilities, which shall be provided within 30 days of the request. Such job descriptions shall be consistent with the employee's assigned duties and must be signed by an excluded manager or designate. An organization chart will also be included at this step.
- (b) The employee and their immediate supervisor will review the job description and identify in writing any discrepancies between assigned duties and the job description content. If the excluded manager (or designate) agrees, the duties will be incorporated into the job description and signed by the excluded manager or designate. Part 2

(c) If the employee believes that the position they occupy is improperly classified, the employee shall complete Part 2 of the Classification Appeal Form and forward it to the BC Public Service Agency and the Union within 30 days of receipt of the written job description or when the response was due at Clause 28.3(a) or the appeal will be deemed to have been abandoned. Any duties in dispute will be listed in writing by the employee and will accompany Part 2 of the Form. If the employee has not received the job description within 30 days of their request in Part 1, the employee will list their duties and note those duties that they believe are evidence of a higher classification.

(d) Differences between the employee and the excluded manager or designate respecting any areas in the job description not being consistent with the assigned duties may be clarified, and where possible, resolved at the "joint on-site" interview or telephone conference. The Union's classification representative will be advised of the date, time and location of on-site interviews in

order that they may attend. The BC Public Service Agency shall respond within 60 days of the "joint on-site" with a written rationale.

(e) If there remains a dispute respecting the classification level, the Union will respond to the BC Public Service Agency within 60 days of receipt of the written response at Clause 28.3(d) or when the response was due. The Union will provide a written classification rationale explaining why the rating sought is more appropriate than the existing rating focusing on the area(s) in dispute for each appellant, or group of appellants, including reference to supporting benchmarks in the relevant classification/job evaluation plan.

(f) If the classification level remains in dispute, the Union and the BC Public Service Agency may agree to an alternative process in order to resolve the classification appeal.

(g) If the above procedure does not lead to a satisfactory resolution, the Union may submit the matter to adjudication under Clause 28.4 by providing the Employer with written notification. Any such notification shall be transmitted within 60 days of the response from the Union at Clause 28.3(e) or when the response was due. The appeal shall be deemed abandoned in the event that the appeal is not submitted to adjudication within the required time period.

(h) These time limits may be extended in writing by the mutual agreement of the parties.

(i) A submission of a classification appeal to adjudication shall be transmitted to the Employer.

28.4 Adjudication

(a) The parties shall jointly agree upon a list of referee(s) who shall make a final and binding decision with respect to the proper classification of a position submitted to adjudication pursuant to Clause 28.3(g).

(1) The referee shall be assigned to hearings, depending upon availability, on a rotating basis from the list of referees. For full hearings, the order of rotation may be varied by mutual agreement of the parties.

(2) Expedited Adjudication - Classification appeals submitted to the adjudication stage may be submitted to a referee for a final and binding decision pursuant to and in accordance with this article and an agreed upon expedited joint process.

28.5 Effective Dates

The effective date of any resulting change in classification level shall be the first day of the biweekly pay period following the date of receipt by the employee of the written job description or when the response was due pursuant to Clause 28.3(a), ie., the Part 2 date.

MEMORANDUM OF UNDERSTANDING 44

Re: Joint Rapid Grievance Tribunal Pilot The purpose of this MOU is to outline a pilot process which facilitates rapid resolution of non-complex grievances, to reduce the need for recourse through the expedited arbitration processes as outlined in Article 9 of the Main Agreement or case management as outlined in the Memorandum of Understanding regarding Case Management and Expedited Arbitration.

For clarity, the intent of the MOU is not only to facilitate the rapid resolution of non-complex grievances but to provide joint education on the administration of the collective agreement to shop stewards, employees, ministry supervisors, and managers, and to ensure that the processes at Steps 1 and 2 of the grievance process as outlined in Article 8 of the Main Agreement have been fully exhausted. 1. Effective 180 days after ratification, Tribunal meetings will occur monthly, except for the months of December and August. Dates to be utilized for the meetings will be scheduled no later than the end of November in advance for the following year. All meetings shall be held virtually. 2. Ad hoc Tribunal meetings may be held by mutual agreement for situations that are time sensitive in nature. 3. Once the step 2 process has been exhausted, and within the time limits set out in Article 8.7 of the Main Agreement, the Union has the right to advance grievances to expedited or full arbitration. For the purposes of the pilot, only grievances advanced to expedited arbitration, and which are limited to specific categories as identified below in 5 of this MOU, will be referred to the Tribunal for resolution. 4. The Tribunal will consist of one senior representative from the BCPSA and from the BCGEU, with the commensurate decision-making authority. 5. The BCGEU Registrar will roster a list of grievances to be considered by the Tribunal and will send it to the BCPSA Registrar. The following types of grievances will generally be considered suitable for the Tribunal: i. Union leave denial ii. Daily recall iii. Shift change notice iv. Overtime allocation v. Shift premiums vi. Statutory holiday pay vii. Vacation denial viii. Special and other leave

6. Files are to be rostered chronologically. However, the Tribunal may move 5 files to the top of each roster to prioritize them in order of time sensitivity to meet remedy requirements, if applicable. The finalized list will not exceed 20 files to be heard per Tribunal meeting. 7. If either Tribunal member deems a file rostered to be unsuitable for the Tribunal, they may remove it from the process and immediately refer it to case management, and then, if required, to the expedited arbitration process based on the date of submission. 8. On the date of the Tribunal meeting, the Tribunal members will hear brief submissions from the local worksite step 1 or 2 representatives for the Union and Employer. The submissions may be presented orally or in writing but must be brief, ideally 5 minutes in duration and will state the parties' positions on the matter in dispute. The choice of representative for either party is at their discretion but must be either step 1 or 2 representatives from the local worksite, must be knowledgeable of the matter, and the decision giving rise to the dispute. There shall be no witnesses or case law submissions. A labour relations specialist or staff representative will only appear when deemed necessary by the Tribunal. 9. The Grievor and their Shop Steward will be notified sufficiently in advance of the scheduled meeting. The meeting shall take place on the Employer's premises during hours of operation, unless

agreed otherwise. On the date of the Tribunal meeting, the Employer will facilitate computer access and adequate space to allow for the virtual hearing. 10. Each representative will share only necessary documentation. Necessary documentation will not exceed a copy of the grievance, the step 2 response, and limited supporting documents relative to the facts that gave rise to the grievance, (e.g. a copy of the vacation schedule where a denial of vacation leave is in dispute.) 11. If in agreement, the Tribunal will render an oral decision at the meeting, including a brief rationale for the decision. Decisions at the Tribunal are without prejudice and non-precedential. If the Tribunal is unable to come to agreement, the matter will be referred to the next case management dates. Files must be moved no later than six weeks prior to the next prescheduled dates for case management. 12. The parties acknowledge that decisions made by the Tribunal do not prevent a grievor from accessing the Union's internal appeal process. 13. This MOU/pilot shall be in effect so long as the 20th Main Agreement is in effect from the date of initiation and is subject to review by the Principals. The parties will track the outcomes annually and review the pilot for its effectiveness in preventing backlogs and/or numbers of files set for expedited arbitration, and any other relevant factors. 14. Either party may end the pilot with 60 days notice.

MEMORANDUM OF UNDERSTANDING 45

Re: Case Management and Expedited Arbitration The Main Agreement between these parties provides the following:

9.9 Expedited Arbitration

The parties shall meet every four months during the term of the 20th Main Agreement or as often as required to review outstanding grievances filed at arbitration to determine by mutual agreement those grievances suitable for this process and shall set dates and locations for hearings of groups of grievances considered suitable for expedited arbitration. 1. Case Management Note: ·Main List· means the inventory of grievances in the expedited arbitration process that have not been settled, withdrawn, granted or moved to formal arbitration and are intended to be heard at the Case Management Meeting.

(a) No later than eight weeks prior to each Case Management Meeting, the BCGEU will provide its Main List to the BCPSA. No later than seven weeks prior to each Case Management Meeting, the BCGEU Director and BCPSA Director ·the Directors· will meet to determine the Main List for Case Management for their region. No other cases may be added to the Main List, except by mutual agreement. The Main List will include the following information: · The name and work location of the grievor (or each grievor for et al grievances) · The reference number assigned by the arbitration registrar for each grievance · The name of the ministry

· The Main or Component Agreement clause allegedly violated, to clearly identify which party bears the onus · The name of the BCGEU Staff Representative/BCPSA Labour Relations Specialist assigned conduct of each grievance

(b) No later than two weeks prior to each Case Management Meeting, the BCGEU Staff Representative and the BCPSA Labour Relations Specialist will discuss each case on the Main list. The intent of these discussions is to review the merits of the grievances and any avenues for resolution prior to the Case Management Meeting. The discussions must include but are not limited to: · The specific particulars of the alleged breach of the collective agreement · The specific remedy sought · Notification of any preliminary matters · Confirmation of documents either party intends to rely upon and reasonable requests for disclosure

(c) Case Management shall be scheduled as follows:

The parties will convene a virtual Case Management Meeting to review grievances arising throughout the province, scheduled in advance as follows: · February: All Regions · 3 days · May: All Regions · 3 days · August: All Regions · 3 days · November: All Regions · 3 days

In addition, the parties will add extra days as follows:

· April: LDB Only, All Regions · 1 day · December: LDB Only, All Regions · 1 day

(d) The objectives at the Case Management Meeting are as follows:

i. The parties will provide a verbal case summary articulating their position on the grievance, and attempt to resolve the matter.

ii. Grievances may be identified for full arbitration per the terms of the collective agreement.

iii. The Directors may specify disclosure or other requirements needed for a grievance file as required, including timelines. To ensure no delays, disclosure requirements will strictly adhere to reliance documents.

(e) At the Case Management meeting files may be coded as:

· ·ANR· · Adjourned to Next Round · ·APF· · Abeyance Pending Formal Award · ·SIP· · Settlement Implementation Pending · ·STO· · Settlement Talks Ongoing · ·EXP· · Expedited

· ·WD· · Withdrawn · ·ARB· · Full Formal Arbitration

(f) Any files coded as ANR, SIP, or STO will be followed up on as appropriate and the parties

will adhere to the commitments made at the Case Management Meeting. If files with these codes are not resolved by the next Case Management dates, they may be brought forward again to be recoded accordingly. For clarity, should any files with these codes not be resolved within six months from the date they were first heard at Case Management, they will automatically be advanced to EXP or ARB, whichever process is deemed suitable by the Directors.

(g) Files coded for EXP will be referred to the next scheduled hearing dates.

2. Expedited Arbitration (EXP)

(a) The parties intend for EXP hearings to be truly expedited in nature, with limited witness testimony (maximum two per side) and jurisprudence submissions.

(b) Grievances deemed suitable for expedited arbitration will proceed either in person or virtually, as determined between the parties. The parties will make every effort to conduct proceedings virtually or utilize a BCGEU or BCPSA meeting room.

(c) Late disclosure of documents that were requested in a timely manner will result, unless mutually agreed otherwise, in the grievance being removed from the current expedited arbitration hearing list and set for a future expedited hearing list. Only the affected party may trigger the postponement.

(d) Should either party wish any matter to proceed to a formal hearing it must first be discussed at a Case Management Meeting.

(e) Any dispute as to the venue for a hearing, length of hearing, consent for adjournments or other preliminary matters will be resolved by a conference call with the arbitrator.

(f) Dates to be utilized for EXP will be scheduled in advance each fall for the following year, to appropriately coincide with the Case Management Meeting. Dates for EXP will be no earlier than six weeks after the Case Management Meeting and shall be scheduled as follows: · March/April: 3 days · June/July: 3 days · September/October: 3 days · December 2 days

(g) The arbitrators shall be as follows:

· March/April:	Vince Ready/Chris Sullivan	· June/July:	Marli Rusen/Brett Matthews
September/October:	Chris Sullivan/Robert Pেকেles	· December:	Robert Pেকেles/Marli Rusen

This MOU shall be implemented effective January 1, 2027, and remain in effect for the term of the 20 th Main Agreement and is conditional upon the arbitrators acceptance of the assignment. Guidelines For Union and Employer Representatives for EXP Hearings:

1. Each party is expected to make comprehensive, concise and brief submissions. Under no circumstances is a representative to make a statement that is not supported by evidence. A copy of these statements will be provided to the arbitrator and opposing representative at the same time. 2. Grievance correspondence is neither relevant nor permissible in submissions or statements. 3. Rebuttal, if necessary, should be limited to any facts in dispute and any additional facts that are relevant. 4. Counsel should assume the arbitrator is familiar with commonly used case authorities (William Scott, KVP, etc.). Excessive reference to case authorities or Brown & Beatty is not encouraged. Guidelines for Arbitrators for EXP Hearings: 1. For EXP decisions, the arbitrator will provide an oral decision whenever possible, followed by a written decision within 30 days. 2. Written decisions will only be as long as necessary to convey the facts needed to substantiate the decision of the arbitrator.

MEMORANDUM OF UNDERSTANDING 46

Re: Data Reports The Parties agree the Employer will continue to provide sufficient information to the Union to administer their role as bargaining agent. The Main Agreement and Component Agreements contain multiple provisions to facilitate this. These include but are not limited to Article 4, Article 5, and Article 11. The intent of this MOU is to pilot a method to consolidate these lists for greater efficiency. Effective 60 days post ratification and for the term of the 20th Main Agreement, the Parties agree to implement the following process for the sharing of data reports: 1. The Employer will provide to the Union a data report on a bi-weekly basis within seven days of the end of each pay period. 2. Each Report will contain the following fields, and will be provided in excel or another mutually agreed format: · Employee ID · Last Name · First Name · Hourly pay rate at the end of the pay period · Standard hours · Gross regular straight time wages for the pay period · Dues paid · Employment status at the end of the pay period · Employment end date, if applicable, per Article 4(i) · ROE code, if applicable, per Article 4(i) · Full Time(FT), Part Time (PT), or Auxiliary (AUX) · Business unit

· Position title · Classification title · Classification grade · Department ID (Paylist) · Service years (per Article 11) · Service hours (per Article 11) · Employee Last Hire Date · Email · Work cell · Personal address · Work address · Work city · Work postal code

3. If an employee holds multiple positions within the bargaining unit, each position will be listed in a separate row. 4. The Union will provide a secure data transfer solution for this information that meets the Employer's data privacy and security requirements. The Union will consult with the Employer before changing which solution it uses to improve security or user experience. If at any time the transfer solution does not meet the Employer's requirements or incurs additional costs to the Employer, the secure data transfer will cease immediately. 5. During the term of the 20th Main Agreement, the Parties will form a Joint Committee to review the Main and Component Agreements to make recommendations to the bargaining principals of redundant articles to be removed as part of housekeeping for the 21st Main Agreement.

MEMORANDUM OF UNDERSTANDING 47

Re: Dedicated Remote Postings The purpose of this MOU is to support the Employer's ongoing commitment to employment equity and expand diversity through removing barriers to employment by creating and outlining the entitlements of a ·dedicated remote position·. The effective date of this MOU is 120 days after the date of ratification of the 20th Main Agreement. 1. Definitions

(a) ·Dedicated remote positions· are those positions that allow an employee to ordinarily perform their duties on a continuous basis from an ·approved remote work location·. The approved remote work location is their headquarters and must be located within the province of British Columbia. Dedicated remote positions can only be applied to positions that are regular status full or part-time.

(b) For further clarity, these positions are established at the sole discretion of the Employer. 2. The following terms and conditions of employment will apply to dedicated remote positions:

(a) Dedicated remote positions will be posted as per the collective agreement.

(b) Once accepted, this status will be clearly reflected in the offer letter.

(c) Approved Remote Work Location Acknowledgement Form · employees in a dedicated remote position must complete the Employer's form that designates the approved remote work location and sets out the criteria and standards for the approved remote work location. A signed copy will be kept at the local level and an annual review completed. The annual review is completed to ensure the criteria and standards continue to be met as a condition of employment. If approval is revoked the employee will have 30 days to bring the location back into compliance prior to a review of the employee's employment status.

(d) A dedicated remote position is tied to the position and not to an individual employee. Therefore, an employee vacating a dedicated remote position to another position cannot port their approved remote work location with them to the new position.

(e) The provisions of all relevant workplace policies and guidelines, and legislation apply to

the dedicated remote position.

(f) Unless otherwise stated in this agreement, the Main and Component Agreements apply.

(g) Any article in the Main or Component Agreements regarding allowances related to uniforms or the cost of maintenance will not apply, unless required and approved by the Employer.

(h) Any recruitment incentives related to working in specific geographic locations do not apply. This includes, but is not limited to, hard to recruit incentives and MOU 17 Re: Vacation Adjustments for Remote Locations.

(i) Relocation expenses as per MOU 3 or Clause 27.16 do not apply. For clarity, the Employer shall not pay to relocate any employee who is assigned, transferred, or hired into a position designated as a dedicated remote position, unless initiated and approved by the Employer.

(j) New or additional costs such as isolation allowances as per Clauses 27.10, 27.17, 27.23 are also not applicable.

(k) Seniority · For the purpose of seniority based entitlements, the employee will continue to accrue seniority in a separate provincial seniority block that is not restricted to geographical area.

(l) Hours of work will be defined by the Component Agreement.

(m) Annual vacations · vacations shall be selected and determined based on the work unit that the dedicated remote position is assigned to. For example, a team may be a provincial work unit and provide services throughout various locations across the province. Vacations will be determined based on the work unit at the local level. Any disputes that cannot be resolved at the local level may follow the grievance process. 3. The Employer will not cover any expenses related to an approved remote work location, unless, the Employer directs the employee to travel, outside of their headquarters. In that circumstance, the approved remote work location shall be their headquarters. 4. Employees whose work location is not in a provincial government office will be provided with the appropriate electronic equipment as determined by the Employer to conduct their job.

5. The Parties agree that this MOU will be cost neutral. 6. Issues arising from the implementation of this MOU will be addressed by the Bargaining Principals. This Memorandum of Understanding will remain in effect for the term of the 20th Main Agreement.

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